



JAMAICA CONSTABULARY FORCE
Criminal Investigation Branch Manual on Homicide Investigation

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INTRODUCTION

The Jamaica Constabulary Force (JCF) Homicide Investigation Strategy has produced this Manual. Its aim is to complement the Criminal Investigation Branch (CIB) Policies and Standard Operating Procedures and to provide a standard operating procedure (SOP) for the investigation of homicide and unexplained deaths within Jamaica. It is an amalgam and update of all previous Force Orders and replaces all previous Force Orders on the subject. The manual sets out areas of responsibility for all JCF personnel and investigators.

Detailed guidance is provided for all officers involved in the investigation of homicide from the first officers on scene through to the Investigating Officer and support for him/her. All investigations should be in accordance with our laws, JCF policies and procedures.

The JCF Code of Ethics clearly sets out our responsibilities;

The Code of Ethics outlines the values, conduct and performance expected of all members of the JCF. The standards of conduct and integrity to be complied by all JCF members are expressed in the following Code of Ethics standards. This Code of Ethics now replaces previous Statement of Ethics and Code of Conduct.

Professional Duty

We will carry out the duties of a police officer professionally and ethically, comply with all lawful orders, policies, procedures and guidelines, shall obey and uphold the law, protect human dignity and uphold human rights and fundamental freedoms of all persons.

Police Investigations

We shall undertake investigations in a prompt, thorough, impartial and careful manner so as to ensure accountability and responsibility in accordance with the law.

Privacy and Confidentiality

We will only access, use and/or disclose confidential information if required and shall comply with all relevant legislation and Jamaica Constabulary Force policy and procedure governing gathering, retention, use and disclosure of information.

Use of Force

In carrying out our duties as police officers shall as far as possible apply non-violent methods before resorting to any use of force and shall comply with relevant legislation and Jamaica Constabulary Force policy and procedure governing use of force.

Jamaica Constabulary Force Homicide Manual

Detained Persons

We shall ensure that all detained persons are treated in a humane and dignified manner, and shall comply with relevant legislation and Jamaica Constabulary Force policy and procedure governing arrest and detention.

Equality

We treat people with respect, impartiality, courtesy and sensitivity and recognise their interests, traditions, beliefs, rights, safety and welfare.

Integrity

We act with integrity towards members of the community and make decisions that are honest, fair, impartial, and timely, and consider all relevant information that uphold the values and reputation of the Jamaica Constabulary Force, whether on or off duty.

Accountability

We use the resources of the state in a responsible and accountable manner that ensures the efficient, effective and appropriate use of human, natural, financial and physical resources, property and information.

Fitness for Duty

We shall be fit to carry out our responsibilities commencing duty or on duty and when on call in accordance with Jamaica Constabulary Force policy and procedure.

Duty of Supervisors

Our supervisors will be the primary promoters and positive agents of good conduct, and shall be role models in delivering professional, impartial and effective policing services to the community.

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GLOSSARY OF MAIN TERMS

Throughout this manual reference is made to the following terms:

Homicide – The killing of one human being by the act of another.

Unexplained Death – is any death (which clearly includes deaths such as apparent sudden infant death syndrome and fatal fires) where a doctor cannot issue a death certificate and the cause of death is not apparent.

Suspicious Unexplained Death – an unexplained death where the divisional on-call senior CIB officer, following a thorough assessment believes that there are grounds to suspect the death may be due to homicide where culpability for the loss of life is likely to be an issue in a criminal court.

Critical Incident – Any incident where the effectiveness of the police response is likely to have a significant impact on the confidence of the victim, their family and/or the community. All homicides are critical incidents.

Additional Relevant JCF Policies or SOP's

Vision, Mission and Core Values,
Corporate Strategy 2010—2014,
Citizens Charter,
Ethics and Integrity Policy,
CIB Policies & SOP's,
CIB Major Investigation Strategy
CIB Major Scene of Crime Policy
Forensic Master Plan
Technical Services Division (TSD) Policy & SOP,
The Use of Digital Media in Criminal Investigations Policy,
Police Manual,
Police Citizens Interaction SOP,
CIB Handbook, and
JCF Force Orders.

Investigating Officer (IO)

Throughout this manual reference is made to the **IO**. This is the most important position in regard to any investigation and must be undertaken by an officer, with sufficient knowledge, experience, training and skills to undertake the relevant investigation. The appointment must be made as soon as possible after the incident report is received, so that an informed decision can be made for the most appropriate individual to be selected. See Chapter **7.5** for their Roles & Responsibilities.

In complex cases, or a linked 'series' a Senior Investigation Officer (**SIO**) may be appointed to oversee, either an individual **IO**, or several **IOs** on whose cases may be, or are, linked and additional oversight, management or control is required to achieve a successful outcome.

Acronym's & abbreviations used

A	Action	IBIS	Integrated Ballistic Identification System
ACP	Assistant Commissioner of Police	IML	Incident Management Log
AFIS	Automated Fingerprint Identification System	INDECOM	Independent Commission of Investigations
AIRU	Accident Investigation Reconstruction Unit	IO	Investigating Officer
ATM	Automatic Teller Machine	JCF	Jamaica Constabulary Force
BSI	Bureau of Special Investigation	LMU	Legal Medicine Unit
CAP	Common Approach Path	M	Message
CCN	Constabulary Communications Network	MIR	Major Investigation Room
CCTV	Closed Circuit Television	MIT	Major Investigation Taskforce
CDA	Child Development Agency	NIB	National Intelligence Bureau
CFCU	Communications Forensics & Cybercrimes Unit	OCID	Organised Crime Investigation Division
CHIS	Covert Human Intelligence Source	OD	Other Document
CIA	Community Impact Assessment	ODPP	Office of the Director of Public Prosecutions
CIB	Criminal Investigation Branch	OM	Office Manager
CO	Case Officer	PDF	Personal Descriptive Form
CR	Crime Recording Form	PII	Public Interest Immunity
CRO	Criminal Record Office	PLO	Prosecutions Liaison Officer
DCO	Divisional Crime Officer	Prison LO	Prison Liason Officer
DDI	Divisional Detective Inspector	Q & A	Question & Answer Interview
D/IO	Deputy Investigating Officer	RM	Resident Magistrate
DNA	Deoxyribo-Nucleic Acid	PM	Post Mortem Examination
DSO	Divisional Sub-officer	PPE	Personal Protective Equipment
e-Fit	Electronic Facial Identification technique	S	Statement
FCSI	Forensic Crime Scene Investigator	SIO	Senior Investigating Officer
FCSM	Forensic Crime Scene Manager	SOC	Scene of Crime
FID	Financial Investigation Division	SOP	Standard Operating Procedure
FLS	Forensic Light Source	TIE	Trace, Interview and Eliminate
GSR	Gun Shot Residue	TSD	Technical Services Division
HAT	Homicide Action Team	URN	Unique Reference Number
HCCT	Headquarters Command & Control Team	VSS	Victim Support Scheme
H2H	House to House Enquiries		

CHAPTER 1

OVERARCHING LEGISLATION

1.1 Laws of Jamaica

1.1.1 The Constitution of Jamaica

Human Rights Principles

The Jamaica Constabulary Force (JCF), as a public authority, has a duty to ensure that its policies and procedures are compatible with the rights and fundamental freedoms outlined in Constitution of Jamaica and related Human Rights requirements. Any interference with these rights by a public authority must be justified. The relevant decision making processes must be comprehensively and retrievably documented.

Always consider the principles enshrined in the mnemonic **P L A N**:

Proportionality

Police action must be fair and achieve a balance between the needs of society and the rights of the individual. You must consider all the different options available capable of achieving the objective and select the least intrusive. Don't use a sledgehammer to crack a nut!

Legality

Police actions must be supported by legislation or stated cases. You must know your basic police powers well.

Accountability

Police action will be open to scrutiny. You should fully record your actions and the options considered. Show what factors influenced your decision; include reasons for not taking action.

Necessity

Police action must be 'necessary in a democratic society'. You must be able to justify any infringement of rights.

The following Constitutional Rights are of particular interest in relation to the subject of this manual:

- a. Life, liberty, security of the person, the enjoyment of property and the protection of the law;
- b. Freedom of conscience, of expression and of peaceful assembly and association; and
- c. Respect for private and family life.

The Constitution affords the above protections to the rights and freedoms of an individual, subject to limitations that does not prejudice the rights and freedoms of others or the public interest.

I.1.2 Access to Information Act

(Force Orders 23 June 2011 #3342)

The Access to Information Act was passed in Jamaica's Parliament in 2002 to legislate into law the right of every individual to receive access to official information from all Governmental authorities, including the JCF.

Its objectives are, by granting right of access to public information, to reinforce:

- i. Government accountability,
- ii. Transparency, and
- iii. Public participation in decision-making.

Members of the media or any member of the public may apply for access to view, listen to or receive a copy of any record or document that is not exempted under the Act or by the Minister. Such documents include: manuals, rules, guidelines, procedures, rights, privileges, benefits, obligations, penalties, etc. The applicant is not required to give reasons for the request.

This law **does not** apply to strategic or intelligence gathering activities of security or intelligence services.

Upon receiving a request for disclosure of information, the JCF should attempt to make this available at the earliest opportunity, but no later than 30 days after receipt of the application. If the information requested is not available in an easily accessible form or if there is need to determine whether the information requested is on the list of exemptions or thought to be on that list, the Force may defer providing that information. In such cases however, the applicant must be informed of such deferment within 14 days. Any document whose disclosure would prejudice the security, defence or international relations of Jamaica would be exempt under the Act.

Documents or other information related to law enforcement are also exempt if their disclosure would:

- ☐ Endanger life or safety
- ☐ Prejudice an investigation or a fair trial
- ☐ Reveal a confidential source
- ☐ Reveal lawful methods of crime prevention, detection or investigation
- ☐ Facilitate the escape of a suspect, or
- ☐ Jeopardize the security of a correctional facility

All requests to JCF personnel under the Access to Information Act must be directed to the JCF's Director of Communication who is located at the Office of the Commissioner of Police, 103 Old Hope Road, Kingston.

1.1.3 Childcare and Protection Act ('Child' is under 18 years)

This Act relates to the care and protection of every child. This law applies to parents, teachers, day-care centre workers, doctors, nurses, guidance counsellors and other persons who work with children. In fact, **EVERY ADULT HAS A RESPONSIBILITY** under this law.

1.1.3.1 What are the main purposes of this act?

- ☐ To make sure that adults consider the views and best interests of children.
- ☐ To put in place new organizations, like the Children's Registry and the Office of the Children's Advocate - to monitor the care and protection of children.
- ☐ To provide special help to children who are in need of care and protection.
- ☐ To make sure that all children are protected from abuse or neglect.

The Child Care and Protection Act strengthens the care and protection of children by introducing new standards for their treatment while removing the fragmentation of legislation relating to their welfare. It brings under one umbrella, measures concerning children previously embedded in the Juvenile Act (which was effectively repealed with the enactment of the CCPA), as well as provisions in over 20 other laws. It also draws on provisions applicable to children under the Offences Against the Person Act.

1.1.3.2 Main Provisions

The Child Care and Protection Act make provisions for:

- ☐ The establishment of an Office of Children's Advocate to act in legal matters on behalf of children.
- ☐ The establishment of a central Children's Registry for the reporting of abuse of children.
- ☐ Formulation of standard principles to be upheld in dealing with matters affecting children. The standards are founded on the tenets of the International Convention on the Rights of the Child.
- ☐ Parental responsibility and government support for the welfare of children.
- ☐ Community responsibility for the reporting of abuses against children.
- ☐ Increased penalties for violations of the rights of children and other offences under the Act.

Every adult has one main duty under the Act: *To make a report if they know or suspect that a child is being abused or is in need of care and protection.*

This duty to report applies:

- ☐ Whether you are certain or only suspicious.
- ☐ Whether the abuse has happened, is happening or is likely to happen.

1.1.3.3 Mandatory Reporting

The maximum penalty for not making a report regarding suspected case of abuse or neglect is \$500,000, or 6 months imprisonment. The report must be made without delay. The person making the report cannot be sued. Knowingly making a false report attracts a maximum penalty of \$250,000 or three months imprisonment.

1.1.3.4 Publishing the Identity of a Child

It is an offence to publish a report of any Children's court proceedings which reveals details such as name, address, school or picture leading to the identification of a child who is a victim, the subject of dispute before the court, a witness or the accused, unless the Court orders that this may be done. Violation of this provision, attracts a maximum penalty of \$1 million or 12 months imprisonment.

1.1.3.5 The Role and Function of the Police

The police play a key role as it relates to both Children in Need of Care and Protection and Children in Conflict with the law. It is the duty of the Police to:

- ☐ Receive complaints.
- ☐ Investigate allegations of abuse against children.
- ☐ Make arrests if necessary.
- ☐ Make referrals to support services.
- ☒ Ensure that a child is brought before the Court within 48 hours of being taken to a place of safety.
- ☐ Participate in Court cases.

The JCF should undertake to ensure that the CDA and other relevant bodies/agencies are fully informed concerning children and in particular;

- ☐ Overall principles that should inform responses to all child deaths
- ☐ Relevant definitions e.g. 'unexpected' death
- ☒ Descriptions of the roles and responsibilities of member agencies in responding to all child deaths (expected and unexpected)

For further information on the care and protection of children, consult:

- ☒ The Child Care and Protection Act 2004, Implementation Handbook (UNICEF, MOH, PIOJ)
- ☐ From Rights to Action! A Guide to the implementation of the Convention of the Rights of the Child (Jamaica Coalition on the Rights of the Child)
- ☐ Rights and Responsibilities, A Guide to Parents, (JCRC)
- ☐ The A-Z Manual, Children Remanded in Custody (Child Development Agency, MOH)
- ☐ National Policy for HIV/AIDS Management in Schools (Ministry of Education and Culture).

1.1.4 Evidence Act

Note: an amendment has been drafted to amend this act and will be submitted as a Bill in Parliament and once passed as an Act and Gazetted this will require to be fully considered in respect of this section.

1.1.4.1 Witness Statements

Investigators must always consider how information and material that they gather during an investigation could be presented, in due course, in a court of law. All Homicide investigations are likely to be the subject of at least a Coroner's Inquest where different rules apply, especially relating to hearsay evidence.

Written witness statements are a vital component of any investigation. The quality and content of the recorded information and the use of the actual words, phrases and language of the witness are important and often these statements fail to contain the relevant and important information that is required; especially where identification/recognition are necessary ingredients in any case.

The **CIB Handbook** covers the relevant case law, such as **R v Turnbull** and the Evidence Act provisions below are always necessary and should be fully covered during any investigation;

1.1.4.2 Hearsay and Computer-generated Evidence

SECTION 31B “Document” Definition

In this part – “document” includes, in addition to a document in writing -

- a. Any map, plan, graph or drawing;
- b. Any photograph;
- c. Any disc, tape, sound track or other device in which sounds or other data (not being visual images) are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced there from;
- d. Any film (including microfilm), negative, tape or other device in which one or more visual images are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced there from.

SECTION 31C

Admissibility of written statement in criminal proceedings

1. Subject to this section, in any criminal proceedings, a written statement by a person shall, if the conditions specified in subsection (2) are satisfied, be admissible in evidence to the same extent and effect as direct oral evidence by that person.
2. The conditions referred to in subsection (1) are that:
 - a. The statement purports to be signed by the person who made it,
 - b. A copy of the statement and a notice of intention to tender the statement in evidence are served on all other parties to the proceedings by or on behalf of the person seeking to tender the statement in evidence, at least twenty-one days before the hearing at which the statement is to be so tendered;
 - c. None of the other parties to the proceedings or their attorneys-at-law have, within ten days from the service of the copy of the statement, served a counter- notice on the party seeking so to tender it, objecting to the statement being tendered in evidence and requiring the attendance of the maker of the statement as a witness at the hearing;
 - d. Notice of the intention to tender the statement in evidence is accompanied by a declaration by the person who made it to the effect that it is true to the best of his knowledge and belief and that he made it knowing that, if it were tendered in evidence, he would be liable to prosecution if he willfully stated in it anything which he knew to be false or did not believe to be true.

3. Paragraphs (b) and (c) of subsection (2) shall not apply if the parties to the proceedings agree before or during the hearing that the statement be tendered in evidence.
4. A statement shall be inadmissible in evidence under this section in any criminal proceedings where a party to the proceedings has served a counter-notice objecting to the statement being tendered in evidence and requiring the person who made the statement to attend the hearing as a witness.
5. Notwithstanding that a written statement made by any person may be admissible by virtue of subsection (2), the court may, on its own motion or on application by any party to the proceedings, require that the maker of the statement attend and give oral evidence at the hearing.
6. Notwithstanding the failure of any party to the proceedings to serve a counter-notice objecting to the admissibility of the statement, the court may, if it thinks fit, permit that party to lead evidence contradicting the evidence contained in the written statement.
7. Where contradicting evidence is given as mentioned in subsection (6), the party who tendered the written statement may lead additional evidence in response to the contradicting evidence.

SECTION 31D

Admissibility of first hand hearsay statements in criminal proceedings.

31D. Subject to section 31G, a statement made by a person in a document shall be admissible in criminal proceedings as evidence of any fact of which direct oral evidence by him would be admissible if it is proved to the satisfaction of the court that such person:

- a. Is dead;
- b. Is unfit, by reason of his bodily or mental condition, to attend as a witness;
- c. Is outside of Jamaica and it is not reasonably practicable to secure his attendance;
- d. Cannot be found after all reasonable steps have been taken to find him; or
- e. Is kept away from the proceedings by threats of bodily harm and no reasonable steps can be taken to protect the person.

SECTION 31G Evidence from Computers

31G A statement contained in a document produced by a computer which constitutes hearsay shall not be admissible in any proceedings as evidence of any fact stated therein unless:

- a. At all material times:
 - i. The computer was operating properly;
 - ii. The computer was not subject to any malfunction;
 - iii. There was no alterations to its mechanism or processes that might reasonably be expected to have affected the validity or accuracy of the contents of the document;
- b. There is no reasonable cause to believe that:
 - i. The accuracy or validity document has been adversely affected by the use of any improper process or procedure or by inadequate safeguards in the use of the computer;

- ii. There was any error in the preparation of the data from which the document was produced;
- c. The computer was properly programmed;
- d. Where two or more computers were involved in the production of the document or in the recording of the data from which the document was derived:
 - i. The conditions specified in paragraphs (a) to (c) are satisfied in relation to each of the computers so used; and
 - ii. It is established by or on behalf of the person tendering the document in evidence that the use of more than one computer did not introduce any factor that might reasonably be expected to have had any adverse effect on the validity or accuracy of the document.

1.1.5 The Law Relating to Homicide

Definitions

Homicide Homicide is the killing of a human being, whether lawfully or unlawfully, by another human being.

Murder The crime of murder is committed where a person of sound mind and discretion unlawfully kills any reasonable creature in being and under the Queen's peace with intent to kill or cause grievous bodily harm.

Manslaughter Manslaughter is any unlawful homicide not amounting to murder and may be classified as either voluntary or involuntary.

1.1.5.1 Murder

Of sound Mind and Discretion

Persons who are regarded as **not** being of sound mind and discretion are:



The insane;



Children under 12 years old (there is an irrefutable presumption that no child under 12 can be guilty of any offence: *Child Care & Protection Act (S63)*)

Insanity: The M'Naghten Rules

The law relating to the accused's sanity at the time he committed the relevant act(s) was set out in authoritative form by the House of Lords in the so-called 'M'Naghten Rules'.

In 1843, Daniel M'Naghten, a Scottish woodcutter, shot and killed Edward Drummond, private secretary to Sir Robert Peel, whom M'Naghten had intended to kill. The defence was insanity. Evidence was introduced showing that M'Naghten 'was labouring under the insane delusion' of being hounded by enemies, among them Peel. Lord Chief Justice Tindal was so impressed by this evidence that he practically directed a verdict for acquittal. The jury found M'Naghten not guilty, on the ground of insanity. As usually told, this is where the story ends. But what happened to Daniel M'Naghten?

M'Naghten was acquitted but he was sentenced to life imprisonment in an insane asylum. He was confined at the Bethlehem Hospital until 1864, when he was transferred to the newly opened Broadmoor Institution for the Criminally Insane. M'Naghten died in Broadmoor in 1865, having been incarcerated for the last twenty two years of his life.

M'Naghten's controversial acquittal led to a debate in the House of Lords that culminated in the following:

To establish a defence on the ground of insanity, it must clearly be proved that:



At the time of the committing of the act;



The party accused was labouring under such a defect of reason from disease of the mind;



As not to know the nature and quality of the act he was doing; or



If he did know it, that he did not know he was doing was wrong.

1.1.5.2 Unlawfully Kills

Unlawfully

This means without legal justification or excuse. Examples include self-defence and *bona fide* surgical treatment (see Defences).

The onus is on the Crown to prove that the killing was unlawful.

Kills

Causing Death

Any act which is a substantial cause of death may render D (the doer of the act) responsible for that death (provided the other elements of murder are proved). It is enough that D's act contributed significantly to the death, but it need not be the sole or principal cause. *Pitts, 1842*.

By Acts or Omissions

The courts have long held that murder and manslaughter are capable of commission by omission. Gibbins and Proctor, 1918 is an example of murder by omission. G and P deliberately withheld food from a child.

1.1.5.3 No Body

Where neither the body nor any trace of the body can be found, the fact of death is nevertheless provable by:



Evidence provided by the accused;



Cogent and compelling circumstantial evidence. (*R v Onufrejczyk, 1955*)

1.1.5.4 Intervening Acts

There is considerable case-law relating to deaths that occur after D's act and one or more subsequent acts by others. The following instances illustrate some of the principles.

- ❑ Although D does an act with intent to murder P, he will not be liable when some independent act causes the intended result. D gives poison to P but P is killed by a burglar before the poison takes effect. D will not be guilty of murder (but may be guilty of attempted murder).
- ❑ D injures P with intent to kill him. P's wound is treated negligently and P dies of the negligently treated wound. D will nevertheless be guilty of murder if the injury he inflicted was still 'an operating cause and a substantial cause'. *Smith, 1959*. Similarly, D inflicted injuries on P which resulted in brain injuries. She was placed on a life support machine. After carrying out five out of the six tests for brainstem death, doctors switched off the machine. The Court of Appeal held that the original injury was an operating and substantial cause of death. *Malcherek, 1981*.
- ❑ D holds a girl in front of him as a shield to prevent arrest. He fires at police officers who return the fire and kill the girl. It was held that D caused her death and was guilty of manslaughter. *Pagett, 1983*.
- ❑ 'D must take his victim as he finds him'. In *Blaue, 1975*, D stabbed P, a young girl and pierced her lung. She refused a blood transfusion because she was a Jehovah's Witness. She died. It was held that the wounding was the cause of death.
- ❑ Medical evidence is admissible to show that the medical treatment of a wound was the cause of death and that the wound itself was not. *Jordan, 1956*.
- ❑ If a wound was an operating and substantial cause of death, D is guilty of homicide, however badly the wound was treated.
- ❑ If a wound is not an operating and substantial cause of death (e.g., almost healed), and P dies later following an act so extraordinary as to be unforeseeable (e.g., gross medical negligence), D will not be liable.

1.1.5.5 Any Reasonable Creature

A 'reasonable' creature is simply the person who is the victim of the offence i.e., any human being. Difficulties have occasionally arisen when it comes to determining when precisely human life begins and when it ends; in particular, determining at what stage in the process of gestation and birth a foetus or unborn baby becomes a 'person' and at what stage in the process of death a person becomes a corpse.

1.1.5.6 The Unborn and the Newly Born

It is not murder or manslaughter to kill a child in the womb or in the process of leaving the womb. It may however be an offence under s72 of the *Offences Against the Person Act* (procuring etc an abortion). These offences are considered under Offences related to homicide, see **1.3.6** below.

For murder or manslaughter, it must be proved that the child has an existence independent of his mother. To have such an existence, the entire child must actually have been wholly expelled from his mother's body and be alive. There is however some uncertainty as to when precisely the child comes under the protection of the law of murder.

Special care is required where an abortion may be suspected, and the ODPP should be consulted, as the Offences Against the Person Act relate to 'unlawful' conduct. The individual and specific circumstances of any case require special consideration, especially where the 'unlawful' aspect of the case is an issue. Special consideration is required - the case of *R v Bourne* ((1939) 1 KB 687), Macnaghten J., sitting at first instance, relied on the presence of the term "unlawfully" in the English Offences against the Person Act, to find that the law did not, in 1939, prohibit abortion in all circumstances.

Section 58 of the English Offences against the Person Act stated, verbatim, the formulation now in Section 72 of the Jamaican act. Reading this provision, Macnaghten J. noted that the word "unlawfully" is not a meaningless word", and found that there were unlawful and lawful forms of abortion. For Macnaghten J., the abortion committed in *R v. Bourne* was lawful, and so, the defendant was acquitted.

1.1.5.7 Under the Queen's Peace

All persons appear to be 'under the Queen's peace'. This includes persons under sentence of death and alien enemies (unless the killing is carried out in the actual exercise of war).

1.1.5.8 Capital Murder, Under the Following Circumstances

The murder:

- ☐ Of a member of the security forces acting in the execution of his duties or of a person assisting a member so acting;
 - ☐ Of a correctional officer acting in the execution of his duties or of a person assisting a member so acting;
 - ☐ Of a judicial officer acting in the execution of his duties, etc. (S.2.1.a);
 - ☐ A person who is **convicted of non-capital murder** shall be sentenced to death **if before that conviction** he has been convicted in Jamaica:
 - Whether before or after the 14th October, 1992, of **another murder done on a different occasion**; or
 - **Of another murder done on the same occasion** (S3 1A).
- OR**
- **Treason**

1.1.5.9 Majority Verdicts for non Capital Murder

A majority verdict of at least nine jurors may be returned for non Capital Murder.

1.1.5.10 With Intent to Kill or Cause Grievous Bodily Harm

'Malice Aforethought'

Murder traditionally required 'malice aforethought'. This technical term now amounts to:

- i. An intention to kill any person; or
- ii. An intention to cause grievous bodily harm to any person. (*Moloney, 1985*).

'Intention'

Case-law on this subject is plentiful but decisions are sometimes inconsistent and there is a degree of uncertainty. The following propositions are however generally established:

1. A result is intended when it is the accused's purpose to cause it.
2. A court or jury may also find that a result is intended even though it is not the accused's purpose to cause it, when:
 - a. The result is a virtually certain consequence of that act; and
 - b. The accused knows that it is a virtually certain consequence.

'Transferred Malice'

Where D shoots at P, intending to kill P but kills Q by mistake, D is guilty of murder. His 'malice aforethought' is deemed to be *transferred* from P to Q.

The harm caused must however be of the same kind as the harm intended. If a police officer shoots at P in self-defence but kills an innocent bystander, he will not be guilty of murder nor (without more) of manslaughter.

'Grievous Bodily Harm'

'Grievous' means 'really serious': *Saunders [1985]*.

1.1.5.11 Year and a Day Rule

The date of the offence is the actual date of death. The Common Law rule that death must follow within a year and a day exists in Jamaica.

1.1.6 Manslaughter

Manslaughter is any unlawful homicide not amounting to murder and may be classified as either voluntary or involuntary.

1.1.6.1 Voluntary Manslaughter

Voluntary manslaughter occurs when all the elements of murder are present, including an intent to kill or cause grievous bodily harm, but the crime is reduced to manslaughter by reason of

- a. Provocation;
- b. Diminished responsibility; or
- c. Death being caused in pursuance of a suicide pact.

See Defences at **1.2** below.

1.1.6.2 Involuntary Manslaughter

Involuntary manslaughter is unlawful killing without intent to kill or cause grievous bodily harm (*R. v. Taylor (1834)*). Apart from intent, the elements of the offence are the same as in murder. There are two broad categories of involuntary manslaughter:

- i. Manslaughter by an unlawful and dangerous act;
- ii. Manslaughter by gross negligence or recklessness.

1.1.6.3 Manslaughter by an Unlawful and Dangerous Act

Manslaughter by an unlawful and dangerous act arises where the person who causes death was engaged in a criminal act which carried with it a risk of causing some injury or harm.

The following propositions appear to be established:

- a. The killing must be the result of the accused's unlawful act (though not his unlawful omission);
- b. The unlawful act must be one, such as an assault, which all sober and reasonable people would inevitably realise must subject the victim to, at least, the risk of some harm; even though it may not be serious harm;
- c. It is immaterial whether or not the accused knew that the act was unlawful and dangerous, and whether or not he intended harm;
- d. "Harm" means physical harm.

D breaks into a house with intent to steal, and terrifies the occupant into a heart attack: *Watson [1989]*.

Three teenagers dropped a paving stone on to a passing train. It landed on the cab and killed the guard. The House of Lords upheld their convictions for manslaughter. *DPP v Newbury [1977]*

1.1.6.4 Manslaughter by Gross Negligence or Recklessness

Manslaughter by gross negligence or recklessness arises where a person causes death through extreme carelessness.

- a. The accused must have been in breach of a duty of care under the ordinary principles of negligence;
- b. The breach of duty must have caused the death; and
- c. It must in the opinion of the jury amount to gross negligence.

The question for the jury is:

‘having regard to the risk of death involved, [was] the conduct of the defendant...so bad in all the circumstances as to amount in [the jury’s judgement] to a criminal act or omission’. R v Adomako [1995]

D, an anaesthetist failed to notice that the tube from a ventilator had become disconnected during an operation and the patient died. The House of Lords rejected the defendant’s appeal against his conviction.

1.2 Defences

1.2.1 Children Under 12 Years

There is an irrefutable presumption that no child under 12 can be guilty of any offence: *Child Care & Protection Act (S63)*.

1.2.2 Insanity

See M’Naghten’s Rules at 1.1.5.1.1 above.

1.2.3 Mistake of fact or Intoxication

1.2.3.1 Mistake of Fact

If D makes a genuine mistake of fact, this may negative the required intent for the commission of an offence. It may be also be evidence that D was using reasonable force in self-defence or the prevention of crime (see below).

1.2.3.2 Intoxication

Evidence of intoxication by alcohol or dangerous drugs may be adduced to show that D lacked the necessary criminal intent. It is therefore similar in this respect to Mistake of Fact above.

The defence is available in cases of:

- i. Crimes requiring a ‘specific intent’, whether the drink or drug was taken **voluntarily or involuntarily**; murder is included (*Beard, 1920*) but manslaughter (in all its forms) is not: *Bratty v A-G Northern Ireland, 1961*.
- ii. All crimes where the drink or drug was taken **involuntarily**.

1.2.4 Provocation

1.2.4.1 Definition

Provocation is some act, or series of acts, done by the dead man...which would cause in any reasonable person and actually caused in the accused, a sudden and temporary loss of self-control,

rendering the accused so subject to passion as to make him for the moment not master of his mind. *Duffy, 1949.*

1.2.5 Suicide Pacts

1.2.5.1 Definition

‘Suicide pact’ means a common agreement between two or more persons having for its object the death of all of them, whether or not each is to take his own life, but nothing done by a person who enters into a suicide pact shall be treated as done by him in pursuance of the pact unless it is done while he has the settled intention of dying in pursuance of the pact.

1.2.5.2 Defence to Murder

It shall be manslaughter, and shall not be murder, for a person acting in pursuance of a suicide pact between him and another to kill the other or be a party to the other ... being killed by a third person. *S7 Offences Against the Person Act.*

1.2.6 Necessity and Duress

1.2.6.1 Necessity

As far as murder is concerned, the defence of necessity may be available in the following circumstances:

It is lawful for D to kill B where, as D knows, B is doomed to imminent death but even the short continuation of B’s life will kill A as well. *Re A (Conjoined Twins: Surgical Separation), 2001*].

The special circumstances of this case involved conjoined twins. It was lawful to kill the weaker twin, B, in order to save the life of the stronger. If the operation was performed, D would be killed but A would probably live (as in fact occurred). If the operation was not performed, both would certainly die.

1.2.6.2 Doctors

Case-law suggests that there is a special defence to murder by doctors. A doctor will not be guilty of murder if he administers treatment to a patient which he knows will significantly accelerate the death of the patient PROVIDED – his purpose is to give proper treatment to relieve pain.

1.2.6.3 Duress

Duress is not available as a defence to murder: *Howe, 1987.*

1.2.7 Self-defence and others

The law allows such force to be used as is reasonable in the circumstances as D believed them to be, **whether D’s belief was reasonable or not.** *Gladstone and Williams, (1984).*

'It is both good law and good sense that a man who is attacked may defend himself. It is both good law and common sense that he may do, but may only do, what is reasonably necessary. But everything will depend upon the particular facts and circumstances. ...If there has been an attack so that defence is reasonably necessary, it will be recognised that a person defending himself cannot weigh to a nicety the exact measure of his defensive action' (Privy Council in Palmer v R [1971]).

1.2.7.1 Particular Issues

- ☐ Self-defence is not available where D deliberately provoked an attack with the intention of killing, purportedly in self-defence.
- ☐ Self-defence is not available against a police officer who is acting lawfully and is using only such force as is reasonable in the circumstances.
- ☐ Despite the case of *Hussey* (1924), it seems unlikely that it would be lawful to kill someone simply to prevent him from taking unlawful possession of his property.

1.2.7.2 Use of Force in Prevention of Crime

A person may use such force as is reasonable in the circumstances:

- ☐ In the prevention of crime, or
- ☐ In effecting or assisting in the lawful arrest of offenders or suspected offenders or of persons unlawfully at large.

Even killing may be justifiable to prevent unlawful killing or grievous bodily harm, or to arrest a man where there is imminent risk of his causing death or grievous bodily harm if left at liberty.

1.2.7.3 Medical or Surgical Treatment

Bona fide medical or surgical treatment is not 'unlawful' and therefore death resulting does not amount to murder, even though death or serious injury is foreseen as a probable consequence. Nor does it amount to manslaughter, unless the person giving the treatment has been guilty of 'gross negligence'.

1.3 Offences Related to Homicide

1.3.1 Attempts to Murder

On a charge of attempted murder, the prosecution have to prove **an intention to kill** - *R v Whybrow* (1851).

1.3.2 Conspiracy and Soliciting to Murder

All persons who shall conspire, confederate, and agree to murder any person, whether he be a subject of Her Majesty or not, and whosoever shall solicit, encourage, persuade, or endeavour to persuade, or shall propose to any person to murder any other person, whether he be a subject of Her Majesty or not, shall be guilty of a misdemeanour, and being convicted thereof, shall be liable, to be imprisoned for a term not exceeding ten years, with or without hard labour.

It is an offence to:

- ☐ Solicit,
- ☐ Encourage,
- ☐ Persuade,
- ☐ Endeavour to persuade, or
- ☐ to propose to any person, to murder any other person.

A solicitation **to kill**, not merely to do serious harm, must be proved: *Bainbridge, 1991*.

1.3.3 Letters Threatening to Murder

Whosoever shall maliciously send, deliver, or utter or directly or indirectly cause to be received, knowing the contents thereof, any letter or writing threatening to kill or murder any person, shall be guilty of felony, and, being convicted thereof, shall be liable to be imprisoned for a term not exceeding ten years, with or without hard labour. (Section 18 Offences against the Person Act). **Note:** the Cybercrimes Act, 2010 may be relevant and should be considered for any written content received via cellphone or e-mail etc. (i.e. any computer). 'Computer' may include any telephone or communication device (such as text & messaging services).

1.3.4 Infanticide

Where a woman by any wilful act or omission causes the death of her child, she would normally be guilty of murder (provided all the necessary elements were present). Under certain circumstances, however, the mother will not be guilty of murder but of a lesser offence, namely infanticide.

The circumstances are as follows: at the time of the act or omission, the child was under the age of 12 months and the balance of her mind was disturbed:

- ☐ By reason of her not having fully recovered from the effect of giving birth to the child; or
- ☐ By reason of the effect of lactation consequent upon the birth of the child, *Section 75 Offences Against the Person Act*.

1.3.5 Concealment of Birth

The offence

It is an offence for:

- ☐ Any person to endeavour to conceal the birth of a child;

- ☐ By any secret disposition of the dead body of the child; or
- ☐ Whether the child died before, at or after its birth.

Section 74 Offences against the Person Act.

1.3.6 Abortion

1.3.6.1 Use of Poisons or Instruments to Cause Miscarriage

An offence is committed when:

- ☐ A woman being with child;
- ☐ With intent to procure her own miscarriage;
- ☐ Unlawfully administers to herself; or
- ☐ Any poison or other noxious thing, or unlawfully uses any instrument or other means whatsoever with the like intent.

An offence is also committed when:

- ☐ Any person;
- ☐ With intent to procure the miscarriage of any woman;
- ☐ Whether she be or be not with child;
- ☐ Unlawfully administers to her or causes to be taken by her;
- ☐ Any poison or other noxious thing; or
- ☐ Unlawfully uses any instrument or other means whatsoever with the like intent.

Section 72 Offences against the Person Act

1.3.6.2 Supplying or Procuring Poison or Instruments

An offence is committed when:

- ☐ Anyone unlawfully supplies or procures;
- ☐ Any poison or other noxious thing;
- ☐ Any instrument or thing whatsoever;
- ☐ Knowing that the same is intended to be unlawfully used or employed with intent to procure the miscarriage of any woman; or
- ☐ Whether she be or be not with child.

Section 73 Offences Against the Person Act.

1.4 The SOP for Police Citizens Interaction – Relevant Excerpt Only

(Force Orders 25/5/2011 #3338)

1.4.1 Policy Statement

It is the policy of the Jamaica Constabulary Force that all interactions between its members and the public, must be done in a manner which reflects respect for citizens rights and dignity; portrays a

professional image of the police and enhances positive relationship between the community and the police service.

The Standard Operation Procedures for Police Citizens Interaction are adopted as a set of practical guide to minimum standards to be adhered to by all members of the JCF and its auxiliaries.

Any departure from these procedures will be viewed as breach of Force Orders and will attract disciplinary action.

I.4.2 Polices Powers and Legislative Authorities to Stop and Search

The police power to stop and search is grounded in the Jamaican Constitution, Common Law and several legislations, the scope of which encompasses: the Constabulary Force Act., Dangerous Drugs Act, Road Traffic Act, and Firearms Act. Members of the JCF and its auxiliaries **must** be conversant with the constitutional provisions, the Common Law and legislation when conducting a stop and search operation. Supervisors **must** ensure that the police powers form part of their briefing to members prior to being dispatched on such operations.

I.4.3 Constitutional Provisions

Enshrined in the Constitution of Jamaica is the protection of certain fundamental rights of the citizens to include but not limited to the right to freedom of movement and freedom from arbitrary search. Section **16(1)** of the Constitution states that:

“No person shall be deprived of his freedom of movement and for the purposes of this section, freedom means, the right to move throughout Jamaica....”

Albeit this right to freedom of movement is a constitutional right to which all Jamaicans are entitled, it must be noted that this right is not an absolute right and may be rescinded in certain circumstances. Section **16(3)** therefore states that:

“Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of this section to the extent that the law in question makes provision: (a) which is reasonably required in the interest of defence, public safety, public order, public morality or public health.”

As it relates to **arbitrary searches**, section **19(1)** of the Constitution states that:

“Except with his own consent, no person shall be subject to the search of his person or his property....”

Again this right is not an absolute right and section **19(2)** of the Constitution provides that:

“Nothing contained in or done under the authority of any law shall be held to be inconsistent with or in contravention of this section to the extent that the law in question makes provision which is reasonably required...”

Section 19(2) goes on further to state, inter alia, that a person's right to freedom from arbitrary search can be abridged in the interest of defence, public safety, and public order and for the purposes of preventing or detecting crime.

Once a member of the JCF is conducting a stop and search, the person who is subjected to this activity **must** be made aware of the authority under which he or she is being stopped, searched and or to make an account of himself/herself.

I.4.4 Legislative Authority

1.4.4.1 Common Law

To Search a Crime Scene

The legal situation in respect of establishing and enforcing crime scene cordons is complex. Other than in respect of 'cordon & search' operations, police currently have no legislated power in law to cordon off and prevent access to land or premises as a crime scene and largely have to rely upon Common Law powers.

In the case of *Ghani v. Jones* (1970), Lord Denning said **"The police should be able to do whatever is necessary and reasonable to preserve the evidence of the crime"** Most crime scene cordons are therefore established under Common Law and still largely rely upon the judgement in *Ghani v. Jones*. In addition Common Law powers extend to searching for wanted persons.

To Search a Person or Property Incidental to an Arrest

This a Common Law power and must be based on the officer's reasonable belief that such search is necessary to prevent escape of the person arrested, his injuring himself or others, his destruction of evidence and the commission of further crimes.

To Search for Wanted Persons

Semayne's Case (1604) 77 Eng. Rep.4; 5 Co. Rep. 91. This is a Common Law power in which the principle, so firmly entrenched in our jurisprudence, that every man's house is his castle, was expressed in these words: "That the house of everyone is to him as his castle and fortress, as well for his defence against injury and violence, as for his repose...". That, then, is the basic principle, as important today as in Biblical times (Deuteronomy 24:10) or in the 17th century. But there are occasions when the interest of a private individual in the security of his house must yield to the public interest, when the public at large has an interest in the process to be executed. The criminal is not immune from arrest neither in his own home nor in the home of one of his friends. So it is that in *Semayne's Case* a limitation was put on the "castle" concept and the Court resolved that:

In all cases when the King is party, the Sheriff (if the doors be not open) may break the party's house, either to arrest him, or to do other execution of the King's process, if otherwise he cannot enter. But before he breaks it, he ought to signify the cause of his coming, and to make request to open doors...

See also, a century later, to the same effect, Hale, *Pleas of the Crown* (1736), 582; Foster, *Crown Law* (1762), 320. Thus it will be seen that the broad basic principle of sanctity of the home is subject to the exception that upon proper demand the officials of the King may break down doors to arrest. The incidental point was made in *Semayne's Case* that "the house of any one is not a castle or privilege but for himself, and shall not extend to protect any person who flies to his house..."

1.4.4.2 The Constabulary Force Act

Under this legislation provisions are made for any constable to stop and search motor vehicles. Section 19 of the Act empowers a constable, without a warrant, to lawfully stop any vehicle which **he suspects** to be conveying stolen goods or any dangerous or prohibited drugs and to search such vehicle, the driver and any persons conveyed therein. Implied here, is a condition that there must be some grounds for suspicion that the police are obliged to make known, if requested so to do.

1.4.4.3 The Firearms Act

Section 42(1) of the Firearms Act provides that:

"Any constable may without a warrant stop any vehicle in which he suspects any firearm or ammunition is being conveyed, and may search such vehicle and the driver thereof and any person conveyed therein,"

1.4.4.4 The Road Traffic Act

A number of provisions are made under this Act which empowers the police to stop motor vehicles in the lawful execution of their duty.

Section 34(3) provides that:

Any person driving a motor vehicle on a road shall stop the vehicle on being so requested by a constable in uniform and if he fails so to do shall be guilty of an offence.

1.4.5 Policy Interpretation of Constitutional Provisions and Legislations

The Jamaican citizens have a right to the freedom of movement and protection from arbitrary searches. However, these rights are not absolute and there will be no infringement of the constitution if they are suspended pursuant to sections 16(3) and 19(2) of the Constitution.

The Firearms Act, The Constabulary Force Act, and the Dangerous Drugs Act all empower the police to stop and search motor vehicles and the occupants. However, **there must be reasonable grounds** upon which the policeman believes that there has been some infraction of any of the aforesaid legislations. Thus, a constable cannot lawfully stop and search a motor vehicle/motorist under the Firearms Act unless he has reasonable grounds to suspect that the vehicle is being used to convey any illegal firearm or ammunition.

Similarly, a policeman's authority to stop and search a motor vehicle under the Constabulary Force Act is predicated upon there being **reasonable grounds** to suspect that the vehicle is conveying stolen goods or prohibited drugs. Consequently if a policeman, acting under any of these Acts, stops

and searches a motor vehicle/motorist without having reasonable grounds to suspect that there has been some infraction, this would be a violation of the motorist's constitutional rights to freedom of movement and protection from arbitrary search.

The pertinent Act however is the **Road Traffic Act**, which, unlike the other mentioned Acts **does not** require a constable to suspect that there has been some breach of the law in order to stop a motorist. Thus there would be **no violation** of a citizen's constitutional right if he/she is stopped by a policeman operating under the Road Traffic Act as this power would be exercised in the interest of the public order and public safety as provided for by our Constitution.

If in pursuant to **section 22** of the Road Traffic Act, a constable has reasonable grounds to suspect that there has been some contravention of the Dangerous Drugs Act, the Constabulary Force Act or the Firearms Act then the constable, acting under the relevant legislation, can proceed to search the vehicle and its occupants in respect to the provisions of the respective Act.

Consequently all members of the JCF and its auxiliaries are well within their rights to stop motorist in the execution of their duties pursuant to the provisions of the Road Traffic Act.

I.4.6 Search of Property and Securing of Exhibits

In the execution of a warrant to search a particular premise for a specific reason the owner/occupant should be shown the warrant and where possible a copy of the warrant should be given to the owner/occupant.

Where there is no warrant available at the time of the operation, permission should be sought from the owner/occupant for the team to enter the building/premises/compound.

"Good morning Sir/Miss we are from the Frankfield Police Station and we have a warrant to search your premises for stolen items believed to have been taken from Molly's Hardware on January 25, 2011. Here is a copy of the warrant.

You are required to be present with us during the search. Each item seized will be noted. You may be required to come to the station to produce your receipts and or to answer some questions. "

Or

"Good afternoon Sir/Miss we are conducting an investigation where intelligence has led us to your premises, may we be given permission to conduct a search of the building in your presence?"

Where exhibits are taken from the scene of a search, then it is the responsibility of the finding officer to note the exact location (consider using photography or videography) where the item was removed from and the circumstances. It is unethical for evidence to be planted at the scene of a suspected crime. The integrity of the investigations would have been compromised if the evidence obtained from the scene is tampered with.

All items seized must be securely sealed (e.g. placed in an envelope, self sealing bag, etc), properly labelled and sealed in the presence of the accused wherever possible. JCF policy and SOP's relating to the proper chain of custody, records to be made, etc. must be complied with, for all seized items/articles.

1.4.7 Effecting an Arrest

When effecting an arrest, the offender must be told of the offence for which he/ she is being arrested. The offender must be cautioned as soon as a Police Officer has reasonable grounds for suspecting that a person has committed an offence, he shall caution that person or cause him to be cautioned before putting to him any questions, or further questions, relating to that offence;

“You are not obliged to say anything, unless you wish to do so, but what you say may be put into writing and given in evidence.”

When after being cautioned, a person is being questioned or elects to make a statement, a record shall be kept of the time and place at which any such questioning or statement began and ended and of the persons present.

If in public thoroughfare, offender should be frisked for weapons, drugs or any other object which could harm the officer while the offender is being escorted to the police station. At the station a more thorough search must be done before offender is placed in holding area or cell.

As far as practicable, handcuffs must be used on males and violent females but try not to embarrass persons in your custody by escorting them in awkward positions, e.g. draping the waist so that prisoner has to walk on his toes or dragging prisoner on the ground in a bid to punish him.

If a prisoner escapes while being escorted and is running away from you, **DO NOT OPEN FIRE**, he is no threat to you or your colleague. This order goes for all cases where police personnel accost members of the public who run away without being a threat to them. It is much better for a suspect to escape, than for the police to open fire resulting in the death or injury of innocent members of the public.

On being charged or told he may be prosecuted (including being arrested on an arrest warrant) the offender must be cautioned;

“Do you wish to say anything? You are not obliged to say anything unless you wish to do so, but whatever you say will be taken down in writing and may be given in evidence against you.”

POLICE OFFICERS MUST ALWAYS BEAR IN MIND THAT OFFENCES ARE COMMITTED AGAINST THE STATE AND NOT AGAINST THEM AS INDIVIDUALS.

Where individuals are brought before the court or are required to attend the court, all such individuals shall be addressed by their full name and title for e.g. **“Mr. Isaiah Thomas” or “Miss Dotlyn Chambers”**.

It is unprofessional to address any citizen by their first name unless at their request.

CHAPTER 2

RESPONSIBILITY FOR INVESTIGATION

2.1 Homicide and Unexplained Death - Standard Operating Procedures

2.1.1 CIB Divisional Investigations

CIB divisional detectives will provide the first level of CIB response to any reported incident where a homicide has or may have occurred. The priority being to ensure that an effective investigation is implemented from the earliest opportunity, taking into consideration the following:

- ☐ Preserving life and minimising harm to all persons involved;
- ☐ Scene preservation, **prioritising**;
 - Cordons – utilising crime scene tape and police officers posted
 - Security of the scene and local area
 - Search for witnesses and suspects
 - Identification of/and retrieval of all potential exhibits (ideally by Scene of Crime Officers)
 - Recording (including photography/videography), packaging, continuity and accountability of all items found.
- ☐ **Maintaining Crime Scene Logs**;
- ☐ Community interaction and support;
- ☐ Supporting the **Scene of Crime** investigators and their activities;
- ☐ Informing senior divisional officers in accordance with existing policies and procedures; and
- ☐ Implementing prompt action to apprehend any identified suspects.

Note – Divisional Radio Cars **MUST** have sufficient supplies of Crime Scene Tape and Logs. This is the responsibility of each Divisional Commander and their supervisors.

2.1.2 Scene Assessment

The CIB officers will assess the incident and ascertain the available facts and inform Police Control and their on call senior CIB officer and/or Crime Officer should additional assistance and/or resources be required.

Once the CIB officer has received a briefing from the first responder(s) they will assume responsibility for the investigation unless instructed to hand it over to another divisional or specialist officer. Ensuring a formal briefing is arranged and the new investigator is fully apprised of the facts and actions taken.

2.1.3 Major Investigation Taskforce (MIT)

2.1.3.1 MIT Taskforce Terms of Reference

Currently we have two MIT's covering specified areas of activity in accordance with their terms of reference, these being in the Parish's of:

- ☐ Kingston & St Andrew and
- ☐ St Catherine

2.1.3.2 The operational development of the MIT's – Terms of reference which is to:

Provide a 'one stop' response for all shooting homicides (whereby firearms have been discharged) **NOT involving** security forces and licensed firearm holders, by

- ☐ Implementing a new 'all inclusive' investigation and scene of crime response;
- ☐ Leading to a coordinated 'task force' approach for such investigations; and
- ☐ Finally delivering a more effective prosecutions process to reduce delays and bring offenders to justice.

2.1.4 Bureau of Special Investigation (BSI) and Independent Commission of Investigations (INDECOM)

BSI and INDECOM will investigate any shooting homicide where the security forces have discharged firearms. Liaison will be made with the Division, and where applicable the MIT, to ensure support and cooperation is obtained for an effective investigation to be conducted.

The divisional CIB will attend all such incidents and maintain the investigation until directed to handover, in accordance with JCF protocols, to a representative of the unit/agency.

2.1.5 Shootings

The divisional CIB units are responsible for the investigation of all shootings.

The Firearms Act definition - "**firearm**" means any lethal barrelled weapon from which any shot, bullet or other missile can be discharged, or any restricted weapon or, unless the context otherwise requires, any prohibited weapon, and includes any component part of any such weapon and any accessory to any such weapon designed or adapted to diminish the noise or flash caused by firing the weapon, but does not include any air rifle, air gun, or air pistol of a type prescribed by the Minister and of a calibre so prescribed.

The relevant divisional CIB unit will investigate all offences where a firearm, as defined above, has been discharged. This includes murder, shooting with intent, woundings, fatal shootings involving security forces/licensed firearms holders and when a weapon has been fired where the circumstances or motives are unknown

The first responding officer should call the divisional CIB officers who will attend and take over the investigation. A scene of crime officer should be contacted and they will attend the scene in order to maximise the recovery of potential evidential material and opportunities.

2.1.6 Divisional CIB Investigations

The Divisional Commanding Officer is responsible for ensuring that effective systems and process are in place, on their division, to investigate all homicides in accordance with the JCF policies and SOP's and utilising divisional resources.

The Divisional Crime Officer will conduct the day to day management on behalf of the Commanding Officer and they will provide oversight for the following homicides:

Doctor providing a death certificate – Where a patient has died and the treating Doctor is willing to certify death as a result of an illness/natural cause then the investigating officer (most likely the first responder) must ensure that the facts are consistent with the scene/death, in cases of doubt the CIB and Scene of Crime Officers should be called to the scene and a Pathologist contacted for advice or guidance.

2.1.7 Fatal Traffic Incidents

Initial response is likely to be led by a regular officer and they are required to inform the **Accident Investigation Reconstruction Unit (AIRU)** who will conduct the investigation. Support may be required from Scene of Crime, CIB and/or other specialists as required. Consideration must always be given to possible manslaughter charges and as such, a thorough investigation is required.

2.1.8 All Reported/Discovered Unexplained Deaths

Initial response is likely to be led by a regular officer and they are required to inform the on call divisional CIB and Scene of Crime officers, who should attend the scene, as they are required to ensure that a thorough assessment has been conducted and the facts are consistent with the scene/death. All such deaths are likely to be concluded through a Coroner's inquest and/or criminal proceedings.

2.1.9 Fatal Shooting by the Security Forces

The scene will be secured by the first responders and the divisional CIB and Scene of Crime officers informed. The **BSI** must be informed without delay and they will ensure that **INDECOM** are informed in accordance with approved protocols.

The investigation will continue to be conducted by divisional officers in accordance with CIB policies and SOP's and appropriate investigative action will not be delayed, unless specifically directed to do so by **BSI** and/or **INDECOM**.

2.1.10 Major Investigation Taskforce (MIT) Cases

Once the incident is confirmed to fall within their terms of reference (as **2.1.3.2** above) the on call **MIT** team will be contacted through Police Control and they should attend the scene. The divisional CIB officer will ensure that an effective handover is completed and the MIT team are fully briefed and provided with all appropriate reports and assistance to conduct the investigation. divisional resources will still be required to secure the scene, search for suspects and witnesses, guard locations/persons of interest and to support additional action as required.

2.1.11 Work-Related Deaths

The scene will be secured by the first responders and the divisional CIB and Scene of Crime officers should be informed and attend the scene. An investigation will be commenced and advice/guidance should be sought from the **Ministry of Labour, National Environment and Planning Agency (NEPA)** or the ODPP especially where negligence/manslaughter or other criminal acts are suspected or may have contributed to the death.

2.1.12 Discovery of Bones or Other Human Remains

The scene will be secured by the first responders and the divisional CIB officers and Scene of Crime Officers should be informed and attend the scene. An investigation will be commenced and advice/guidance should be sought from the **on-call Pathologist** before any attempt is made to disturb, remove or recover the remains.

In any case of doubt the senior divisional CIB officer must be consulted at the earliest opportunity.

Note: An unexplained death is any death (including incidents of apparent sudden unexpected death in infancy and fatal fires) where a doctor has not issued a death certificate.

2.1.13 Attendance of Pathologist at Scenes

Consideration must always be given, especially where sexual offences are apparent, or for decomposed bodies, for the attendance at the scene by a Pathologist. When making this decision the CIB officer should consult with the divisional on-call senior CIB officer and the final decision and rationale should be recorded in their respective Logs.

The attendance of the Pathologist at a scene prior to the forensic retrieval has in some cases proved to be beneficial. These experts due to their high level of diverse medical knowledge can provide the CIB with potential lines of enquiry to:

- ☐ Identify time of death;
- ☐ Interpretation of injuries in context to the scene, something that may not later be reconstructed; and
- ☐ Recover intimate samples from the body which may be compromised through handling by the funeral home operators.

In addition, they can pronounce life extinct although this must not be a reason to call the Pathologist, as this is the role for another Doctor and they should be called to the scene for this specific purpose where an apparent lifeless body has been found. If the Pathologist is attending they can perform this function.

The responsibility for the management of major crime scenes is that of the CIB. In complex scene interpretation or scenes where there might be several different forensic opportunities the investigator must consider bringing a relevant FCSI manager, and on occasions a scientist to the scene from an early stage. This action will assist in the correct interpretation of evidence and assist with the chronology of approach to competing sciences. Early intervention of practitioners who will be responsible for progressing the forensic exhibits enables the priorities to be realised by all parties from the outset. In addition unrealistic or un-economical forensic lines will be avoided.

2.1.14 Attendance of a Doctor to the Scene

Wherever an apparent lifeless body has been found a Doctor should be called to the scene to pronounce life extinct. Under no circumstances should a body be left at a scene where any signs of life are apparent. In such cases, the body must be promptly removed for urgent medical attention.

Police often are called to a scene where it is clear life does not exist (i.e. headless body). However, a Doctor is still required, at the earliest possible time to attend and certify life extinct.

The officer on the scene must note the time, Doctors details and any comments that the Doctor may make concerning the death.

Evidence preservation is always a consideration although saving life must always take a priority. Police must take all possible steps to preserve any forensic evidence that may be apparent or could be lost from any person/body that may have to be moved.

Should a body be moved from the scene the investigator and or the Scene of Crime Officers must consider all other 'scene(s)' that are now involved (vehicle, hospital etc) and forensic examinations will be required at these locations to ensure forensic evidence is not lost,

2.1.15 Clothing at hospitals

Medical staff will often remove clothing from a person attending any hospital or medical facility, as part of their medical treatment, and all efforts must be made to secure the clothing and any other potential forensic samples, such as dressings, pre-transfusion blood samples and other items that may be possess a forensic value, especially relating to a suspect who may later refuse to supply a DNA sample, for comparison purposes.

CHAPTER 3

FORENSICS AND INITIAL RESPONSE

3.1 Forensic Evidence

A prominent French scientist called Dr Edmund Locard held the philosophy that when any two objects come into contact with each other, there is always a cross transference of material from each object onto the other (no matter how small). Locard's theory forms the basis upon which every forensic examination of physical evidence is carried out and the principle can be applied to many criminal offences from a road traffic collision to a murder.

These notes are not prescriptive but are designed to guide you towards recognising forensic physical evidence, its value and your responsibility in identifying and preserving it at scenes of incidents.

Each scene that you attend will be different and should be treated as such. Remember Locard's theory and consider that minute amounts of material, which could connect an individual to the scene, will be present. This will have occurred when any person, including an offender, a victim, a witness or a police officer has come into 'contact' with the scene and has left various traces behind. Dependent on the circumstances and the type of traces, conclusive or corroborative evidence to link an individual to a scene may be obtained.

These traces can be fingerprints, DNA, shoe impressions, fibres and many others and is called 'contact evidence'.

3.1.1 Contact Evidence

You may not be able to see all contact evidence. However, you must remember to be aware of its likely existence at all scenes. Particular attention should be paid to the point of entry and exit and actual site of the incident.

Consider putting yourself in the place of the individual at the scene, and think of his/her possible movements. This process has often helped investigators to interpret or reconstruct what has occurred during an offence. It will assist in establishing possible contact points thereby locating valuable evidence.

3.1.2 Fingerprints

Most fingerprints are made from an individual's sweat deposits, which comprises of components such as water, fats, salts and proteins. Fingerprints can be made in or with deposits other than sweat, for example saliva, blood, oil or grease and can be transferred and retrieved from many different surfaces. Glass, metal, wood, plastics, ceramics and paper are some examples

3.1.3 Preservation

As with other contact evidence types, fingerprints can easily deteriorate or be damaged particularly in adverse weather conditions. Remember too that the longer a scene is left unpreserved the greater the likelihood that articles and surfaces will be touched and potential evidence destroyed.

Do not try to look for fingerprints, as often they cannot be seen. Breathing on articles to see if there are prints, handling items with gloves or handkerchiefs will interfere with the fingerprint examination. Wrapping up articles for fingerprint examination in paper or polythene can also have an adverse effect.

If you have to move items always wear gloves as there may be a health and safety hazard present or a risk of contamination of other evidence i.e. DNA. Remember to tell the Crime Scene Officer what you have moved and whether you have used gloves or not.

Consider a burglary with broken glass from a point of entry left on the ground outside the premises. If it is protected from the weather and from being handled it could be left in situ. If not, it should be moved and placed somewhere safe and dry. Pick up glass by the edges and try to avoid accidentally erasing fingerprints. Remember your own health and safety and wear sturdy gloves if possible.

If a window has been opened by an intruder close it carefully, again using gloves on your hands. Try and think what areas the individual may have touched and avoid them if at all possible.

Often at dwelling burglaries drawers and cupboards are searched with some of the contents, often clothing, tipped out onto the floor and bed. In circumstances like these it would be unrealistic for the householder to find alternative sleeping arrangements. In these cases, clothing which would be unsuitable for fingerprinting could be gathered up and moved. The items which are suitable could be carefully placed to one side.

If you do find it necessary to protect an item in some way or have to move an article, note it carefully and tell the Crime Scene Officer.

3.1.4 DNA

DNA stands for Deoxyribo-Nucleic Acid. This is the name of the chemical which is found in virtually every cell in the body and which carries genetic information from one generation to the next. The genetic information is the form of a code or language which, when translated, determines our physical characteristics and directs all the chemical processes in the body.

Half of the DNA is inherited from a person's mother and the other from his/her father. Siblings inherited different combinations of DNA from the same parents and therefore are different from each other. Each generation of people is a new and different combination of genetic material from the previous generation. Except for identical twins, each person's DNA is unique, although the technology available does not yet allow the examination of every single difference between people's DNA.

An individual's DNA can be easily transferred in many ways and can be retrieved and analysed from a variety of items if they are preserved correctly. Scientists have developed methods for looking at DNA in samples such as blood, semen and saliva.

Improvements in the sensitivity of the techniques meant that excellent DNA profiles have been obtained from cigarette butts, chewing gum, masks, drinking vessels, envelope flaps and stamps. Even used handkerchiefs where there are obvious nasal secretions can be a good source of DNA.

3.1.4.1 Preservation

At scenes where potential DNA evidence has been left, items should be moved to a safe place, away from any likely contamination sources. When moving items use surgeon type disposable gloves if possible. In moving a bottle do not insert an implement into the neck and do not pour out any remaining contents as DNA material may be destroyed. The increasing sensitivity of DNA systems means that you must be constantly aware of contamination issues.

Items can become contaminated by your own DNA if you handle items without gloves or by saliva transfer caused by coughing or talking over an unprotected item.

3.1.5 Footwear Marks

Footwear marks can be successfully recovered from many surfaces, hard, soft or such as work surfaces, windowsills, vinyl and furniture. Every step could leave an impression, which means that footwear marks should be present at every scene, although they may not be obvious. Footwear impressions provide a valuable source of evidence as they can identify a particular shoe and excellent results can be obtained from even a partial impression.

3.1.5.1 Preservation

If any shoe impressions are evident, try and preserve them. A dustbin lid, box, or polythene bowl can be used to cover them if they are outside premises. Try to ensure however that no soil is pushed into the impression. If footwear impressions appear inside the premises on windowsills, kitchen work surfaces or furniture, ask the occupier not to clean them prior to the Crime Scene Officer's visit. Impressions on moveable objects such as papers can be moved to one side if really necessary.

3.1.6 Fibres and Hairs

Hairs and fibres are the most common materials transferred during physical contact between two or more people. The closer and more lasting the contact, the greater the chances of a two way transfer.

Hair and fibres are most commonly examined to prove contact between two individuals in rape, murder and assault cases. However they are valuable sources of evidence at points of entry on masks, gloves and in vehicles.

3.1.6.1 *Preservation*

If you need to take possession of clothing from a victim, witness or suspect to preserve the potential fibre evidence, you must seize it as soon as possible. Fibres and hairs fall very rapidly from clothing and once they have gone there is no chance of getting them back!

3.1.7 *Marks*

Marks typically occur when two surfaces come into contact with each other. Some marks are recognised as evidence types in their own right, such as footwear and fingerprints. However, forensic techniques can enable almost any mark to be linked to the item that made it.

Tools possess unique characteristics consisting of manufacturing irregularities and damage caused by use. When the tool is forced against a surface it records an image of this detail. If microscopically examined, sufficient detail can conclusively link items together.

3.1.7.1 *Preservation*

If you are at a scene of a crime and you see that there are instrument marks do not put anything into the mark. Even if there is a tool recovered from a suspect do not attempt to fit the tool back into the mark as this may destroy evidence. Cover the mark if there are adverse weather conditions.

3.1.8 *Paint and Glass*

Paint, glass and many other types of debris are used to link suspects to scenes. The strength of this evidence will depend on the material concerned and the circumstances of the case.

Paint is usually transferred in the form of minute flakes or smears, onto clothing, vehicles or tools. Paint evidence is commonly associated with burglaries and malicious damage where paint from damaged doors and windows has transferred onto clothing and tools. It is also associated with road traffic collisions where paint can transfer to a victim or between vehicles.

When a glass object breaks, hundreds of tiny fragments are produced. These can either land on suspect and their clothing or can be transferred by direct contact such as climbing through a broken window for example.

3.1.8.1 *Preservation*

Paint flakes and glass fragments are lost very rapidly from hair and clothing, as are most other types of debris. It is therefore crucial to recover clothing and footwear from a suspect when required as soon as possible.

If the circumstances are relevant, obtaining hair combings should also be considered at the earliest opportunity. Ask for advice regarding this procedure from your supervisor or the Forensic Laboratory.

3.1.9 Gunshot Residue (GSR)

(extracts from 'The Current Status of GSR Examinations' an FBI publication)

Most residue originating from the barrel of a gun is burned, unburned, or partially burned propellant (gunpowder) and contains metal particulates, such as lead, copper, brass, or nickel from jacketing material. Firearms examiners use this type of GSR to determine the distance between the muzzle of a gun and a target. When forensic trace evidence examiners receive a request to look for GSR on the hands or clothing of a suspected shooter, they search for residue from the primer.

The firing pin of a gun hits the back of the cartridge, activating the shock-sensitive primer, which ignites the gunpowder, forcing the bullet down the barrel of the gun and on its path. The heat and pressure within the cartridge vaporize the metals from the primer. Vapours escape from any area of the weapon not gas tight, like the breach area and muzzle. The heat of this explosive reaction and subsequent cooling results in the condensation and formation of tiny metal-containing particles. These particles fall on anything in the vicinity of the fired weapon, including the hands of the shooter, and typically measure 1 to 10 microns (10-6 m) in size (for comparison, a typical human hair is approximately 100 microns in diameter). Finding and viewing primer GSR particles require a high-powered microscope, such as a scanning electron microscope (SEM)

3.1.9.1 Rate of GSR Loss

Gunshot residue particles can be removed easily from the surfaces they land on. Regular activities, such as putting hands in pockets, rubbing hands together, or handling items, can wipe them away. The washing of hands can remove most, if not all, particles. Rates of loss vary widely with the activity of the subject. Depending on conditions and activity, particles may be removed from a shooter's hands within 4 to 5 hours after a shooting event. They also can transfer from a surface or person to another individual; the amount depends on the number of GSR particles on the contaminated surface (e.g., a person's clothing or hands) and likely will be a small percentage of the total number of particles present. Tests show that people standing within 3 feet to the side of a shooter may have GSR on their hands, whereas those standing 10 or more feet in the same direction typically will not. This can vary with the type of gun and ammunition, number of shots fired, and the environment of the shooting. Gunshot primer residue also can travel downrange with each firing of a weapon. Long guns, like rifles and shotguns, tend to leave less GSR on shooters than handguns. Laboratory tests have shown that GSR on clothing will last considerably longer than on hands, but exactly how long remains unknown and greatly depends on the activity of the clothing and the type of fabric. Similar to hands, however, washing will remove most, if not all, residue from the clothing.

3.1.9.2 Contamination

Scene of Crime officers are trained to collect samples as soon as possible after apprehending, a suspect—preferably, before transportation to the police station—and to clean their hands and wear gloves when sampling suspects to prevent contamination. While law enforcement personnel could be a potential source of GSR because they carry guns, studies have shown that few of them have particles on their hands because they clean their hands much more often than they touch their weapons. Nevertheless, police officers should avoid contact with a subject's hands before sampling. If armed officers collect the samples, a disposable lab coat, along with proper hand washing and glove use, can minimize the risk of contamination. As police vehicles and police holding areas are potential sources of contamination, investigators should collect GSR samples before transporting

subjects in a police car or questioning them at the station. Studies have indicated a low potential for secondary transfer in these areas and that testing them occasionally may help prove the low risk of contamination.

In a GSR case, the submitting agency, attorneys, judge, and jury all want to know if the suspect fired a gun. Unfortunately, the presence or absence of GSR on a person's hands cannot answer that question. Rather, as the accepted practice, all positive gunshot residue reports include a qualifier, such as "The presence of primer residue on a person's hand is consistent with that person having discharged a firearm, having been in the vicinity of a firearm when it was discharged, or having handled an item with primer residue on it." Conversely, negative GSR reports often contain a qualifying statement, such as "The absence of gunshot residue on a person's hands does not eliminate that individual from having discharged a firearm." And, when GSR is found on an inanimate object, like clothing, a qualifier could be, "The presence of primer residue on an item is consistent with that item sometime having been in the vicinity of a firearm when it was discharged or having come in contact with primer residue on another item." A forensic GSR report also may list the instrumentation used (e.g., SEM/EDS) and the criteria employed to define the gunshot residue (e.g., elemental composition and morphology).

3.1.9.3 Testimony

GSR testimony can be challenging because of the difficulty in interpreting the results. An expert assumes the role of teacher when describing gunshot residue and its analysis. After instructing the court on the definition, production, collection, preservation, and analysis of GSR, the examiner then must present the results in a simple, truthful, and unbiased manner. The difficulty lies in the fact that while analysts can report that the particles came from a fired weapon, they cannot describe how they were deposited on the item. Examiners called to testify on GSR results cannot identify the person who discharged a firearm in the commission of a criminal act. A positive GSR finding is most probative in cases where a suspect denies proximity to a discharged firearm because GSR is not common to the average person's daily environment. A negative finding does not imply that the subject was not in the vicinity of a recently discharged firearm; it only indicates that no evidence of primer residue was found on the items tested.

Often, defence attorneys will raise questions at trial as to why GSR was not collected, under the guise that negative results would have been vital to the defence's strategy and ultimately exonerated the suspect. Investigators and prosecutors should not let this potential argument serve as a driving force in requesting GSR examinations that might raise more questions than can be answered effectively.

So, the question arises, "Why analyze for GSR?" First, the technology behind the analysis of gunshot residue is unquestionably scientifically sound. SEM/EDS analysis has existed for a long time and been used in GSR analysis since the 1970s. Second, studies have shown that average people do not have gunshot residue on their hands, but someone who fires a gun most likely will for a period of time. Despite efforts by forensic scientists to disprove the uniqueness of GSR to firearms, research only has strengthened the position of naming spheroid Pb, Ba, and Sb particles as having come from a fired weapon. While studies of contamination issues continue, the likelihood of transfer from another source remains small in most cases. The reason for analyzing for GSR lies in the fact that most trace evidence is not conclusive but supportive and circumstantial. Glass, hair, fibre, paint, soil, and, sometimes, shoeprint analyses cannot conclusively identify a common source between a

known and an unknown sample. The fact, however, that authorities located evidence with a possible common source is worth noting for the court. Correspondingly, GSR found on the hands of a suspected shooter is significant and worthy of consideration by the jury. For a court to understand the significance of the findings, experts must discuss all aspects of the sample collection, analysis, and interpretation at trial. Sources of contamination and an explanation as to whether the analyst could account for any anomalies in the findings also should be included in the testimony. In some cases, the sample collection officer should give testimony first to provide context for the results that an analyst may report.

3.1.9.4 JCF Force Policy

HAND samples should be taken as soon as possible from suspects **and no later than eight (8) hours after a shooting incident.**

CLOTHING should be seized and considered for GSR examination **for a maximum of ten (10) days, after the shooting incident date.**

Note: consider potential DNA opportunities and this could be found on the clothing far in excess of this time period (e.g. dried blood) and any garment should be examined by a FCSI to establish whether the article should be sent to the Government Forensic Laboratory for detailed analysis.

3.2 Preventing Contamination of the Scene

Remember that evidence of disturbance or interference with a scene may provide grounds for considering prosecution for offences of 'attempting to pervert the course of justice', 'conspiracy to pervert the course of justice' or other offences.

3.2.1 Preserving Contact Evidence

Contact evidence at scene can have a very high evidential value. It is therefore essential that all steps possible be taken to prevent the evidence not only being damaged or lost but also 'contaminated'. This contamination is interference, often caused unwittingly by human, animals and other means.

Contamination often occurs because of actions taken by a member of the public and in some instances those of police officers. **Remind yourself of Locard's theory, that every contact leaves a trace.** Due to the fragile nature of contact evidence it is possible that you may unknowingly remove evidence from the site of a scene and transfer it to another. This can lead to confusing or misleading findings when the scene is examined.

Avoid visiting a crime scene or victim and then dealing with any suspect for that offence. Remember that you will leave behind your own contact traces so keep contact points at a scene and those of others to a minimum.

Protection against contamination should always commence at the scene.

In the event that contamination is found to have occurred, the findings of any scientific examination may be rendered valueless. If you believe that contamination possibly may have occurred at scene e.g. by a person moving from a scene to an offender, for example, speak to a member of the Technical Services Division or a Crime Scene Officer for advice.

Many scenes of crime are reported to the police and are easily identified such as a burglary at a particular premises or a vehicle damaged in a road. Other scenes may be discovered and located by members of the public or police officers. Scenes can be located anywhere, buildings, vehicles, roads, boats, waterways or large areas of land. You should remember that people too could form part of a scene. This is highlighted in assault and sexual offence cases. A particularly sensitive approach by you will be needed in these instances.

To assist in determining the extent of a scene, you will need to look carefully for evidence such as footwear marks or tyre marks on the ground. Signs of damage, blood or other materials such as fibres on fences or tool marks. Cover the evidence to protect it from weather or from being lost.

3.2.2 Scenes Examination

The examination of scenes is very much dependent upon our policies and Standard Operating Procedures (SOP's) and it is important that you familiarise yourself with them. Scene of Crime Officers, also known as Forensic Crime Scene Investigators (FCSI), are police personnel who are trained in the investigation and examination of scenes of crime, Crime Scene Investigators attend both major and minor scenes usually at the request of the IO. Crime Scene Investigators are also trained photographers and form part of the Technical Services Division (TSD). **3.22** below, details the **FCSI Instruction Plan for Death Investigations** & **3.23** below, details the **Recovered Firearms SOP**. Both should be read and considered by all investigators.

3.3 First Officers at Scene – Initial Investigating Officer(s)

See **1.4** above, & **3.3.9.4** below, for Police Powers to implement Cordons, searches & arrests and the **CIB Major Scene of Crime Policy & SOP's** must be implemented.

3.3.1 Equipment to be Carried in ALL Uniform Response Vehicles

In addition to any other requirement, all operational JCF vehicles must be equipped with the following items:

- ☐ Crime Scene Cordon Logs (at least 4);
- ☐ Crime scene cordon tape (at least two rolls);
- ☐ Forensic Overshoes (at least 4 sets);
- ☐ Protective latex gloves.

Officers booking out JCF vehicles are responsible for ensuring they are in possession of such items of equipment.

3.3.2 Incident Manager

The most senior constable initially arriving on scene will assume the role of 'Incident Manager' pending the arrival on scene of the first supervisory officer. The initial Incident Manager will be responsible for recording all initial actions, decisions together with the rationale pending the arrival of the first supervisory officer. The responsibility for completion of the log of events will then pass to the supervising officer who attends the scene.

3.3.3 Incident Management Logs (IML)

Incident Management Logs (IMLs) are intended to assist the officer conducting the initial supervision at incidents and crime scenes. Furthermore an IML when fully completed, is of considerable benefit to the Divisional Commander or Investigating Officer to have all initial decisions, actions and rationale recorded within a single document.

The log should contain any actions taken, decisions made (including specific decisions not to do something) in respect of the 5 building block principles, explained in some detail below, should be recorded.

Any officer handing over the incident to a supervisory officer will document the handover within the IML. The officer assuming responsibility for the incident will also clearly document that they have assumed responsibility within the IML. For evidential continuity purposes the IML should leave no doubt as to who was responsible for managing the incident at any particular time.

It is essential therefore, that at all times there is clarity around who has responsibility for the scene(s).

3.3.4 General Guidelines

The initial information indicating that an offence has been committed may be of a precise or imprecise nature. Most offences of murder come to light as a result of a report of a found body. Less obvious scenarios may not be treated as suspicious and the subsequent police actions will not be geared towards a systematic response and vital evidence will be lost.

Examples:

- ☐ Reports of missing persons;
- ☐ Cot deaths;
- ☐ Reports of abduction;
- ☐ Victims of violence (whose death was not anticipated);
- ☐ Body-less crime scenes;
- ☐ Apparent hit and run accidents;
- ☐ Apparent suicides;
- ☐ Fires where death occurs; and
- ☐ Drug related deaths.

Where death or serious injury is reported or circumstances appear suspicious - **“THINK MURDER”**. Crime scenes are precious, opportunities to retrieve evidence must not be wasted.

IF IN DOUBT INVESTIGATE AS MURDER UNTIL THE EVIDENCE PROVES OTHERWISE.

Cases involving vulnerable missing persons are more problematic, especially if the significance of the circumstances of the persons disappearance is not interpreted appropriately. Therefore consider: Every Missing Person Report has the potential to become a Homicide Investigation

Once an unexplained death is identified as a potential murder the initial response by the first officer's attending the scene is critical to the success of the investigation.

When police are alerted to the discovery of a potential murder, an investigative mentality should be adopted.

REMEMBER A person reporting a murder may be a significant witness or the offender.

The significance of the information provided by the person reporting the suspicious death must not be underestimated.

3.3.5 Five Building Block Principles

When attending any death JCF personnel must consider the following five building block principles:

1. **Preserve life**
2. **Preserve scene(s)** (Identify, Secure, Protect)
3. **Secure evidence**
4. **Identify victim(s)**
5. **Identify suspect(s)**

Remember: Think 'murder' until the investigation proves otherwise.

3.3.5.1 Preserve Life

PRESERVE LIFE (and considerations during the preservation of life stage).

Upon arrival at the scene, the medical condition of the victim must be established. If there appears to be any sign that the victim may be alive, an ambulance/transportation must be called immediately and officers must administer emergency life support techniques.

There have been a number of occasions where police officers believed a victim to be deceased, only for the doctor to later discover vital signs of life. *Unless and until life is pronounced extinct every effort must be to seek medical attention, give emergency life support and/or transfer to hospital.*

When administering first aid or handling bodies, officers should be aware of health hazards, for example, hepatitis B and HIV.

Initial Scene Considerations

The following should be considered by officers attending the scene initially, taking into account that, at this stage, the priority is to preserve the life of the victim, medical treatment must not in any circumstances be delayed.

In particular consider the following:

Gaining Entry

- ☐ Consider your initial entry, take any practical steps that you are able so as to preserve evidence; your point of entry to premises is most likely the same entry/exit as the offenders.
- ☐ Look carefully before you touch anything, put on protective gloves and overshoes if the circumstances allow you to do so. – **DO NOT TOUCH ANY SURFACE OR OBJECT UNLESS YOU HAVE TO** - you may be obliterating the only finger mark at that scene left by the offender. If you have to touch, move or change anything such as turning on lights, make a note within the IML and bring to the attention of the Investigating Officer.
- ☐ Consider whether you can open doors by pushing at the bottom or top where others wouldn't normally do so.

Route

Try to use a route that is not the obvious route used by the offender(s), within premises walk to the side of rooms (without touching the walls) – Look prior to taking each initial step to ensure you do not obliterate obvious evidence such as footmarks. Try to follow the wall line and not walk along the centre of a hallway or obvious pathway. **Establish a Common Approach Path (CAP) at the earliest opportunity.**

Once an initial route has been established ensure other people that must enter the scene follow the same **CAP** route. Particularly in respect of outdoor scenes use tape to identify the approach route.

If the circumstances permit, encourage Ambulance crews/Doctor and anyone having a need to enter the scene to put on protective overshoes – this takes seconds, will considerably reduce the forensic workload and may prevent their footwear from having to be seized at a later stage

3.3.5.2. Preserve Scene(s)

preservation of life stage

Observe the exact details of the scenes, particularly the location of the victim;

In any event you ought to consider provision of detailed notes, a sketch or series of sketches to ensure important information is noted early in an investigation. (However the overriding consideration is not to disturb the scene anymore than is absolutely essential to save life, therefore although this is a consideration, do not move or change anything or permit others to enter, or exit and re-enter, in order to achieve this.)

If the victim is to be removed to hospital then remove them with minimum disturbance of the scene

A comprehensive and accurate note must be made by an officer who for good reason has no alternative but to move, touch or alter anything within the scene. **CONSIDER CAREFULLY WHETHER IT NEEDS TO BE TOUCHED MOVED OR ALTERED BEFORE YOU DO SO.** Report these facts to the **IO** at the earliest opportunity;

Steps must be taken to prevent unnecessary access to the scene; (even at this early stage an officer or officers not involved in the preservation of life, as far as circumstances allow, must establish early scene control: Only those people who are directly involved in the provision of life support/medical attention to the victim must be allowed to enter the scene.) **Commence incident management and crime scene logs.**

Undertake a flash search of the scene – there might be more than one victim in need of medical attention, **USE CAUTION** as the offender may also still be present.

Victim Clearly Deceased at Scene

In circumstances where officers attending the scene have clear evidence and there is absolutely no doubt that the victim is dead, a Doctor should be called to formally pronounce life extinct.

Officers should be aware that a pathologist and some paramedics can also perform this function - whereby there is no requirement to seek the attendance of a Doctor but officers must record details of the medical person pronouncing life extinct, and the time.

Victim Moved to Hospital

When a victim is moved from the scene to the hospital, the identity of the ambulance crew/transport used and the details of the hospital, should be established and noted within the IML.

Ideally, an officer should travel to the hospital with the victim to provide evidence of continuity and subsequently to co-ordinate investigative actions. If it is not possible to send an officer from the scene, at the earliest opportunity an officer must attend the hospital.

Remember: Dying declarations and utterings of the victim – **MAKE A RECORD** (see 'Dying Declarations' below).

Post - preservation of life stage (Scene Control)

Adequate preservation of the crime scene(s) is of fundamental importance. It is absolutely essential that scene control be established at the earliest opportunity even whilst life support is being administered to the victim. Access must only be afforded to persons whose presence is necessary to provide life support/medical attention to the victim.

Crime scene logs are to be commenced at this time and one of the cordon officers must make a note of all persons within the scene. When time allows (prior to them leaving the scene) this note must be expanded to include the names, role performing and contact details of those persons.

First officers ought to consider the following in relation to the scene(s):



Identify scene

- ☐ The identification of the crime scene(s) is a priority activity.
- ☐ Look beyond the obvious as the parameters of the scene are likely to extend beyond where the body is found. Consider for example the access and egress.
- ☐ Identification of routes taken by the suspect and victim is of equal importance. Additionally consider the CCTV evidence along such routes.
- ☐ There may be more than one crime scene.
- ☐ Remember that those who enter scene(s) or come into contact with the victim(s) are themselves crime scenes (e.g. persons who moved the body/Ambulance staff etc) – They should be advised to preserve their clothing and footwear until the IO has been consulted.

Significant scenes may include:

- ☐ Where the victim was last seen alive;
 - ☐ Initial contact site;
 - ☐ Attack site;
 - ☐ Body deposition site;
 - ☐ All routes connecting sites;
 - ☐ Routes to and from the scene(s) that the offender may have used; and
- ☐ Any vehicles used (Consideration should also be given to the ambulance/transportation used, the divisional senior CIB officer should be consulted at the earliest opportunity. Whilst only in rare circumstances will an ambulance be taken out of service, in certain circumstances it may require a forensic search).

Secure scene

Steps must be taken at the earliest possible opportunity to secure the identified crime scene(s) and at this time commence crime scene logs. This may be best achieved by use of an inner and outer cordon.

- ☐ The inner cordon will include the site where the body was found and all approach and exit paths to and from the scene that the offender may have used;
- ☐ It is better to overestimate the area to be cordoned off as cordons can be reduced after an expert assessment;
- ☐ The outer cordon must be sufficiently large to ensure a Rendezvous Point (RVP) and marshalling area for official vehicles to be accommodated;
- ☐ Decide and outline access and egress paths to scenes;
- ☐ Ensure that all those who enter the scene wear protective clothing;
- ☐ **Start a Crime Scene Log (SOC 1)**

Depending on circumstances, there will always be a wide range of methods available to secure scenes. Some of the most commonly used are:

- ☐ Tape – start with a widely defined area to allow the IO the best chance of securing all available evidence;
- ☐ Individual officers – beware of contamination issues that may arise in this respect. Different officers must be deployed in respect of each scene. Scene, within this context, includes persons such as the victim(s) and suspect(s). Care must also be taken around the use of vehicles, for example, a suspect must not be transported in a vehicle that has been used by officers who have been with the victim or other scenes. In any case of doubt the divisional senior CIB officer must be consulted;
- ☐ Vehicle;
- ☐ Roadblocks;
- ☐ Temporary fencing; and
- ☐ Road diversions

The Incident Management Log should detail any method used to secure scenes and efforts to obtain necessary equipment to that end.

Crime Scene Cordons

Officers posted to cordons are to note the following:

Whenever a scene is initially secured, one of the cordon officers at each scene must make a note of all persons within the scene recording the date and time the record commenced. When time allows (prior to them leaving the scene) this note ought to be expanded to include the names, role performing and contact details of those persons.

It is essential for reasons of continuity of evidence that cordon officers remain present at their cordon point at all times and must not leave for ANY REASON unless physically relieved by another officer. The IO will notify the Divisional Senior Officer when the cordon may be released. **It is the**

responsibility of the division (where the scene is located) to provide security and to ensure that all cordons are effectively managed and controlled.

Relieving cordon officers, should within the crime scene log, record the date and time of taking over & anyone present within the cordon at that

time. Access and Egress

Once essential (medical/fire) personnel have left the scene, the only persons to be allowed into the inner cordon on behalf of the IO & on production of identity are:

- ☐ The Crime Scene Manager;
- ☐ The Exhibits Officer; and
- ☐ And any person(s) personally authorised and accompanied by them.

No vehicle (other than emergency service vehicles) should be allowed to be removed from within the cordon area without a full crime scene assessment being undertaken by the IO, in conjunction with the Crime Scene Manager. The decision and supporting rationale to release a vehicle should be documented within the IOs Decision Log and/or Forensic Strategy Meeting minutes.

All entries and exits are to be fully recorded in the Crime Scene Log (SOC 1) showing the date and time.

No other person is to be afforded entry into the inner cordon under any circumstances without prior permission of the IO or the Crime Scene Manager.

If any member of the public approaches a cordon, the cordon officer should record any conversation at the earliest practicable time within the cordon log showing the date and time and sign the note. A full description of the person is to be recorded together with name & address or other details elicited. Any conversation of significance should be brought to the immediate attention of the IO via your supervising officer.

Once the cordon is stood down, the log is to be personally handed to either the IO or the divisional senior CIB officer.

In any cases of doubt or difficulty the IO should be contacted for advice or assistance.

Officers posted to cordons should be aware that they are likely to be approached by media representatives. Officers are not to divulge any information concerning the crime to any persons including media representatives approaching them at a cordon. Media representatives should be referred to the Constabulary Communications Network (CCN), the IO and the Divisional Officer notified.

Powers to Establish and Enforce Crime Scene Cordons

The legal situation in respect of establishing and enforcing crime scene cordons is complex.

Other than in respect of Cordon & Search operations, under the Constabulary Force Act, police currently have limited power in law to cordon off and prevent access to land or premises and largely have to rely upon Common Law powers.

In the case of Ghani v. Jones (1970), Lord Denning said **"The police should be able to do whatever is necessary and reasonable to preserve the evidence of the crime"**

Most crime scene cordons are therefore established under Common Law and still largely rely upon the judgement in Ghani v. Jones.

If the crime scene is on private land or premises police are entitled to proceed on the assumption that the owner would consent and would want to assist. In the case of DPP V Morrison, Lord Justice Kennedy and Mr Justice Hooper said that "it was their belief that consent could not lawfully be withheld which tends to be supported by Ghani V Jones."

Despite the legal complications police have a duty to investigate crime and in respect of serious assault or homicide police action in establishing a cordon in order to preserve forensic evidence clearly must not change.

The Incident Manager must note within the IML:

- ☐ The gravity of the offence for which the area is cordoned;
- ☐ The precise area cordoned;
- ☐ Reasons why it is considered to be reasonable and necessary to cordon the specific area; and
- ☐ Considerations under the Constitution of Jamaica and adherence to Human Rights (PLAN) in respect of the victim, police actions and the local community

In the event any unauthorised person demands entry to the inner cordon they should be informed that if they were permitted to cross the cordon they are extremely likely to destroy evidence in relation to a serious crime. Particular care must be taken if the person has a right of way through the cordoned area or is the owner of premises within the cordoned area.

If the person's reasons for wishing to enter are reasonable there may be a way of meeting their need without them actually entering the cordon for example the crime scene manager may be able to enter and retrieve property that is not of forensic value.

A supervising officer must be called to the scene at the first opportunity.

The on-call divisional senior CIB Officer is available for advice and guidance 24 hours per day.

If the request is unreasonable and cannot be met and the person remains insistent, they should be informed that to cross the cordon without authority and destroy evidence will be construed as a deliberate act likely to destroy evidence relating to a serious crime and therefore they will be liable to arrest.

Relevant Powers of Arrest

The exercise of arrest powers will be subject to a test of necessity based around the nature and circumstances of the offence and the interests of the criminal justice system.

Officers may consider arrest under the Common Law or S 30 of the Constabulary Force Act for obstructing a police officer in the execution of their duty where arrest is considered necessary to prevent the person causing loss of or damage to property.

In the event where an owner is seeking entry to their own premises for which police have not obtained permission from an owner or a person seeking to exercise their legal right of way across land, particular care should be taken as in these circumstances it could be held that the cordon is not legally in place and therefore the officer cannot be acting in the execution of their duty.

There may be extreme circumstances where officers consider that a person through such actions may be attempting to pervert the course of justice and thereby render themselves liable to arrest. Any case of doubt must be referred to a supervising officer preferably the current incident manager if immediately available.

In any event the scene sterility MUST be maintained.

Protect scene

The first officers on scene must do all that is possible to prevent:

- ☐ Movement of exhibits;
- ☐ Evidence being obliterated;
- ☐ Additional material being added;
- ☐ Loss of evidence;
- ☐ Prevent further human/animal disturbance of scene;
- ☐ Prevent any possible evidence at scenes from being destroyed by minimising interference;
- ☐ Specialist protection which includes tents and weatherproof covering/screens are available to assist in scene protection. If such protection is considered to be necessary, or likely to be necessary, the advice of the TSD on-call Senior Officer or the Crime Scene Manager must be sought at the earliest opportunity.
- ☐ Prevent others from destroying the scene and potential evidence (e.g. by cleaning up).
- ☐ **Remember – Commence the logs.**

Officers attending an incident should enter a crime scene only to preserve life, arrest an offender, or search for other victims. The scene should be cordoned off as soon as practical. If entry is essential, then care must be taken to avoid using the route most likely to have been used by the suspect(s). A body should not be disturbed unless for the purpose of saving life.

Unless absolutely necessary windows should not be opened/closed, and air conditioning/televisions and so on should not be switched off. Computers, telephones and telephone answering equipment must not be touched.

If any interference with a scene is essential, the facts must be fully recorded within the IML and the IO informed.

When called to a scene where a person is found hanging, officers should cut the ligature rather than undo the knotting wherever possible. The primary consideration, however, will be the preservation of life and there will be circumstances where it will be necessary to untie the ligature to achieve this.

Good Practice at Crime Scenes

It is important for officers to consider the following:

- ☐ If the incident occurs during the hours of darkness, portable lighting should immediately be deployed to the scene to preserve evidence; avoid touching surfaces that an offender may have touched, for example, light switches, door handles and windows.
- ☐ Enter the scene by a route the offender is unlikely to have used, for example, walk near to skirting boards.
- ☐ Mark the route by use of cordon tape.
- ☐ Do not alter conditions, for example, by turning off air conditioning, opening of windows or switching off anything unless it is to prevent loss of life or serious damage (in the event, where for good reason it is unavoidable to touch, move or alter anything within the scene, a comprehensive note must be made and the IO personally informed at the earliest opportunity.
- ☐ Remove any people or animals from the scene (and log their details).
- ☐ Do not switch off lights.
- ☐ Do not use any telephone from within the scene.
- ☐ Special care should be taken at scenes of fatal fires to secure the scene, preserve evidence and capture details of fire service staff. The senior fire officers should be reminded that whilst fires must be extinguished, it is of utmost importance that scenes and evidence are preserved.
- ☐ Use of crime scene tents/screens are available on TSD vehicles or by request to TSD. However, advice of the Crime Scene Manager, IO or divisional on-call senior CIB officer should be sought as the erection of a tent may in itself destroy evidence.
- ☐ Forensic awareness should not be restricted to suspects but considered for every person who may be connected to a crime investigation or crime scene.

3.3.5.3 Secure Evidence

In the early stages of an investigation, one of the most important sources of evidence will be the identification of witnesses.

Likely sources:

- ☐ Residents in the immediate nearby area;
- ☐ Passers-by;
- ☐ Tradesmen;
- ☐ Family/associates of victim or suspect; and
- ☐ CCTV

Every effort should be made to obtain details of all persons at the scene and record the index numbers of motor vehicles in the nearby area. Consideration should be given to videoing of the scene, surrounding areas and crowds that may form.

It is important to remember that on many occasions offenders either remain at, or return to, the scene of the crime. Use of video recorders at scenes, together with a commentary, is considered good practice.

Once potential witnesses have been identified, attending officers must record the initial description/accounts/discrepancies and details of persons at the scene, including their clothing and physical descriptions.

Evidence contained within report books is to be written in full in the officer's statement.

Flash Search for Witnesses and Exhibits

At these very early stages of a serious crime investigation, consideration should be given to obtaining the services of the additional resources to conduct flash searches for witnesses and exhibits.

These should be conducted immediately outside the inner cordon and should focus around known or suspected entry/exit routes.

A supervisor (preferably of sergeant rank) must act as co-ordinator.

The parameters and rationale together with details of the supervising co-ordinator must be documented by the Incident manager within the IML.

The Caribbean Search Centre should be called out for more thorough searches, especially for exhibits in dense undergrowth, over wide area, or inside premises where evidence is believed to have been hidden.

Significant Witness

Consider implementing special arrangements for eye witnesses to any incident. Special care and additional security measures may be required to minimise any harm to any such witness. Early removal from a scene and interview in a secure and safe location are primary issues for vital witnesses.

This is also fully documented in Chapter **4.12**

There may be occasions where persons who are originally significant or key witnesses may become suspects. From the outset it is therefore very important to be forensically aware not just in relation to suspects but with any person who may be connected to a crime scene or investigation.

Dealing with Exhibits

Advice and guidance on forensic awareness at the scene of serious crime and critical incidents is provided by TSD and within CIB policies and SOP's, including the CIB handbook, Major Scene of Crime Policy and TSD Policy & SOP. Instructions as to packaging and preventing cross contamination and maximising forensic potential must be strictly adhered to.

Apart from the standard exhibit recovery, handling and packaging, some specialist equipment is now available for dealing with exhibits; such as drying, light sources and specialist chemicals. **Note:** *good practice requires photography/videography of items found, ideally still in the situation/condition found. Additional images can be taken of all identifying marks etc.*

Drying cabinets are available for wet exhibits e.g. clothing/blankets. TSD and Crime Scene Managers are aware of the locations. A specific instruction on their use has been disseminated.

Forensic fridges are available at selected sites for the storage of exhibits in cold conditions. Once again staff from TSD and Crime Scene Managers know their location and availability.

Mobile Forensic Labs are available for use at scenes and conveying exhibits. Instructions for use will be published and circulated by TSD. N.B. The instruction to officers regarding the above being thoroughly cleaned after each use is to be strictly adhered to. This will prevent cross contamination

Medication

Details of medication that the deceased either had in their possession or were known to take should be noted for the information of the coroner and the Forensic Laboratory. Any medication found at or near the scene should be seized and retained in line with JCF policy until the investigation is concluded.

3.3.5.4 Identify Victim

Every effort should be made to identify the victim. Usually the initial investigation should be restricted to questioning persons present.

Do not, at this stage, be tempted to search the victim's clothing or move, search or otherwise disturb anything at the scene for identification evidence. A record should be made of clothing being worn by a victim and their physical description. If the identification of the victim is unknown a search of missing person records must be undertaken.

Photographs are a potential means to assist in this regard. However, often the initial scene photographs could be potentially distressing, for witness, friends and/or relatives, to view and special consideration should be applied. Photographs taken after the Post Mortem may be less graphic and more appropriate to assist in any identification.

Identification of the Body and Bish Nexus

Two specific areas must be covered:

1. **The continuity of the body from the crime scene** to the post mortem examination. This is in compliance of case law (**R v Florence Bish**) and is referred to as the Bish nexus. Ideally the first responder will be responsible for confirming, that the body found at the scene - is the same body being examined by the Pathologist at the Post Mortem examination. **Special care** is required where the body is found at a hospital or other place away from the crime scene, including traffic related investigations and continuity statements must be obtained to prove that the body at the hospital/other location, is the same body that was involved in the original incident and examined by the Pathologist.
2. **Identification by a relative/friend etc.** and the 'naming' of the victim. This is necessary although with modern techniques this can now be supported by additional forensic evidence. However, best practice still requires this formal identification and this should ideally be made at the Post Mortem examination or by using forensic evidence such as DNA, dental records or digital photographs.

All matters of identification, prior to a post mortem, should be made by digital photography or if at the scene, provided the body has been examined and placed into a body bag, the face can **CAREFULLY** be exposed for identification, **ensuring no PHYSICAL contact with the 'identification person' and the body** is made and all steps taken to minimise contamination.

Once a body bag has been sealed it should only be opened for the Post Mortem Examination and after inspecting the security seals to ensure no breaches have occurred. **Any breach, of a seal**, is a serious concern and all such breaches **must be investigated and fully reported to ACP CIB**, as it may amount to interference with evidence or identify poor handling/storage issues, that need to be addressed.

Pronouncing Life Extinct – Doctor

Bodies should be placed in a body bag at the scene and wherever possible, a Doctor called to the scene to pronounce life extinct (death). Where no doctor has pronounced life extinct, the FCSI must escort the body to a hospital/Doctor who can pronounce life extinct and then the FCSI can seal the body bag. Protective clothing should be worn during such exercise and the bag sealed on completion.

Bodies already at the hospital/morgues, if wrapped in a sheet, should be placed after photography and forensic examination by the FCSI into a body bag, still wrapped in the sheet. The sheet should be fully examined after the post-mortem for forensic debris and submitted, as required, to retrieve forensic evidence.

Body bags should be sealed with the requisite uniquely numbered tie strap pulling together both zippers or another seal that identifies the FCSI to ensure the integrity of the sealed bag and this should only be opened by the Pathologist at the Post Mortem examination.

The number coded on the tie strap, or other markings should be maintained throughout all the documentation up to post mortem to ensure integrity. Any opening of the bag must be justified and minimized to prevent contamination of forensic exhibits. It is unlikely that the body bag would be opened prior to post mortem, once sealed and after death has been certified by a Pathologist/Doctor.

In order to maximise forensic evidence retrieval and preservation TSD will supply body bags for all unexplained deaths and this will:

- ☐ Provide the best possible security for evidence contained on/within a body;
- ☐ Maintain the integrity of a body so enclosed through the use of an identifiable locking system and proper labelling;
- ☐ Minimise exposure of any known or suspected infection, from the body, to police and others involved in the safe custody of the body.

Use of Body Bags

For the safe storage of deceased bodies in case of:

- ☐ All suspicious/unexplained deaths, to include;
 - Murders
 - Fatal shootings involving the security forces
 - Traffic homicides
 - Deaths where no certificate is issued by a Doctor who had recently treated the patient.

NB: Except decomposed bodies where an on the spot post mortem examination and forensic retrieval has been completed, at the scene, to include photography.

Only FCSIs should be in possession of body bags and they are strictly for SINGLE USE ONLY.

In all cases, a search must be made at the scene for forensic evidence by the FCSI; to include hairs, DNA/fibers etc. CONSIDER calling a Pathologist to the scene in all cases where sexual activity is suspected so that additional procedures can be completed by the Pathologist, this will include internal swabs and the retrieval of forensic evidence. Where a Pathologist has not been able to attend the scene additional care must be taken to preserve forensic evidence from internal parts of the body and the hands/head and other areas as necessary should be protected by wrapping in paper to collect debris before being placed into a body bag.

Fingerprinting must not take place in such cases until the hands have been fully examined, including nail clippings (fingerprints can be taken at the conclusion of the post mortem examination).

No other garment/sheet etc must be placed on the body and the body must be placed into the body bag, either in the clothing/material as found, or after any material has been removed due to a priority to preserve specific forensic evidence. **It is essential that no contamination is caused by placing additional material in contact with the body, other than the single use body bag that is provided specifically for this purpose.**

Bodies should be fully photographed and then tagged before being placed in the body bag by the FCSIs to reduce risk of contamination. If necessary, with additional assistance (funeral home attendants) **and with ALL person(s) wearing Personal Protective Equipment (PPE) to include disposable clothing, hair net, gloves etc.** to minimise contamination.

Prompt application for Post Mortem (Autopsy) examinations

(Force Orders 22ND December 2011 #3368)

Post Mortem examinations are currently being performed by the Government Pathologists within one to two (1-2) days of the death. Investigators must be encouraged to have the necessary documentation in place and submitted to the Legal Medicine Unit (LMU) without delay.

See **Chapter 3 Appendix A** for the Autopsy Requisition form.

This replaces the previous telephonic request process for Post Mortem Examinations.

Forensic Light Sources (FLS)

FCSIs should utilize the FLS at the crime scene, in particular when examining the body, and the adjacent area. In addition, at the Post Mortem examination when the body bag is first opened to check for any forensic evidence that may have moved or have fallen from the body, prior to removing the body from the bag.

Once the body has been removed, the bag will be checked and any forensic evidence removed. At the conclusion of the examination the bag can be disposed of in accordance with policy relating to the disposal of medical bio hazardous material and this should also include cutting the bag to ensure that the bag is not reused.

***Note:** Any breach of the seal prior to post mortem may be viewed as an attempt to pervert the course of justice and also will create doubt should forensic evidence later be retrieved from the body.*

Informing Next of Kin

The important task of informing the next of kin must be undertaken with tact and sensitivity. Unless it is totally impractical to do so, a police officer in person should carry out this function. If practicable, this function should be performed by the appointed Family Liaison Officer (FLO).

Where the next of kin live in other parts of Jamaica, the local police should be tasked to inform them. This task must not be delegated to other agencies, neighbours or other individuals.

There should not be any delay in informing the next of kin of the death unless the **IO** decides (evidencing such in the decision log) that there are exceptional reasons for not doing so as the next of kin is the perpetrator.

3.3.5.5 Identify Suspect(s)

The identification and early arrest of suspects must always be a priority. To avoid cross contamination, officers who have not attended the scene should be tasked to effect the arrest. If this is not possible (e.g. because the offender is arrested at or leaving the scene), the fact that the officer has been at the scene should be declared to investigators as soon as practicable.

When a suspect is arrested do not forget the suspect also is a 'scene' which also requires consideration of a forensic recovery strategy. Special care must be taken should the incident have involved the discharge of a firearm and GSR evidence is a potential opportunity. Cross Contamination is a serious possibility and great care should be taken to avoid cross contamination, especially where police/security forces are carrying/discharged firearms, and all reasonable steps should be taken to minimise any such risks.

3.3.6 Priorities for Officers Attending the Hospital

SEIZE EVIDENCE

The victim is a crime scene:

- ☐ The clothing and possessions of the victim are to be seized as evidence. These vital exhibits **MUST** be properly recorded and packaged correctly to ensure preservation and continuity. Seperate packaging must be used for each individual item, such as shoes – a pair of shoes will be packaged seperatly from the other.
- ☐ **Arrange for a pre-transfusion blood sample to be taken by the hospital.** Officers should be aware that hospitals will only retain pre-transfusion blood for a limited period of time and this should be retrieved and submitted to the laboratory without delay.
- ☐ Consideration should be given as to what forensic opportunities might be lost during the medical procedures that are able to be recovered without hindrance to the medical team. This will require close liaison with the medical practitioner in charge having regard to the fact that preservation of life clearly takes precedence.

VICTIM

Establish identity of victim(s):

- ☐ If a victim is conscious (subject to medical advice) establish facts including details of any possible suspect(s);
- ☐ Obtain details of family, friends and associates with whom the victim is in contact – these may be witnesses or good sources of information;
- ☐ Obtain medical advice about the prognosis of a victim's condition;
- ☐ Remind ambulance/paramedics/Doctors re preservation of evidence;
- ☐ Make notes of your decisions, actions and observations;
- ☐ Consider significant witness protocols;
- ☐ Make contact with family/friends who may arrive. Ensure the **IO** or the incident manager and Police Control are made aware.

3.3.7 Dying Declarations

When dealing with seriously injured persons, officers should make every effort to establish from them who was responsible for causing the injury, recording the exact words spoken or any indications made. The statement may be vital evidence and may be admissible at court as a dying declaration.

Under Common Law on an indictment for murder or manslaughter, the dying declaration of a deceased person can be accepted in evidence, provided that the judge is satisfied that the deceased was conscious of his being in a dying state at the time he made it and was aware of his situation.

REQUIREMENTS

- ☐ Can be taken anywhere.
- ☐ Can be taken by any person.
- ☐ Need not be in writing.
- ☐ The accused need not be present.
- ☐ The declarant need not be on oath, but must be in settled and hopeless expectation of death.
- ☐ The contents of the declaration must relate to the cause and circumstances which resulted in the death of the declaring.

The general principle on which this species of evidence is admitted is that they are declarations made in extremity when the victim is at the point of death, and when every hope of this world has gone.

There must be a settled hopeless expectation of death in that the victim must have abandoned all hope of living.

They need not be expecting to die immediately but certainly within a short time. It must be shown that when they made the declaration he believed death was impending.

Dying declarations are only admissible where the death of the deceased is the subject of the charge, and the cause of the death subject of the declaration.

It is important to also record ANY utterings from victims. Ensure that any witness such as other police officers, Doctor/ambulance crew sign your record.

3.4 Uniformed Supervisors

To support constables, a uniformed supervisor must attend scenes as a matter of priority, demonstrating clear leadership and in the case of an unexplained death, or other critical incident, ensure that an Incident management log (IML) has been commenced.

The divisional on-call senior CIB officer will undertake a review of **all unexplained deaths** in order to make an assessment on behalf of the Divisional Commander as to the circumstances. This may be undertaken either by personal attendance or the attendance of an experienced CIB officer on their behalf.

In the event of any unexplained death therefore, the uniform supervisor must liaise with the divisional on-call senior CIB officer in order to apprise them of the circumstances.

The divisional on call senior CIB officer will in the case of **all unexplained deaths** undertake a thorough assessment of the circumstances together with the supervising officer.

In any event that a uniform supervising officer believes there to be any suspicious circumstances the divisional on-call senior CIB officer should personally attend the scene in order to undertake a full review and assessment.

- ☐ The divisional on-call senior CIB officer will have sole responsibility in all cases of unexplained death to declare the incident as either a suspicious or non-suspicious unexplained death.
- ☐ The uniform supervisor will note the review within the IML, noting the date and time that it took place together with the outcome.
- ☐ In the event of a non-suspicious unexplained death the uniform DSO will retain responsibility for the investigation on behalf of the Coroner and subsequent presentation to the coroner.
- ☐ In the event of a suspicious unexplained death or whilst waiting for the divisional on-call senior CIB officer to attend, the uniform supervisor will continue their actions as below:

The supervising officer should review the circumstances and in particular the actions and decisions taken by the officers in attendance, detailing the review within the incident management log.

The review must include a review of the cordons (see Cordons and the law above) In particular the supervisor must ensure the following is noted within the IML.

The Incident Manager must note within the IML:

- ☐ The gravity of the offence for which the area is cordoned;
- ☐ The precise area cordoned;
- ☐ Reasons why it is considered to be reasonable and necessary to cordon the specific area; and
- ☐ Considerations under the Constitution of Jamaica and Human Rights in respect of the victim, police actions and the local community

Following the review the supervising officer must document the review and handover within the IML and then should note the following:

- ☐ Decisions made by them;
- ☐ Actions taken by them;
- ☐ Actions allocated by them; and
- ☐ Handover of the incident to divisional on-call senior CIB officer.

The supervising officer must ensure that all necessary fast track actions in respect of the five building block principles set out above have been considered and actioned as necessary.

Where action/guidance set out in this manual is not followed, the supervising officer must record the reasons why that action has not been taken.

The supervisor must ensure that the reason for not following guidance is valid and endorse the relevant entry. Where a Sergeant is the initial investigator of a death, then an Inspector will supervise their actions.

Note - Supervising officers are to note the Major Scenes of Crime Policy concerning crime scene management and the use of cordon logs.

3.5 Headquarters Command & Control Team (HCCT)

Support for Serious and Critical Incidents ([Force Orders 28th April 2011 #3334](#))

In addition to the normal command functions provided by Police Control; The HCCT maintains full command and control of the force at nights within the context of managing and co-ordinating planned operations; giving directions and mobilizing resources in response to unexpected major incidents and they will also provide real time intelligence support for officers, in the initial stages, of a serious or critical incident.

The **HCCT** operates on a 12 hour basis (6pm to 6am) all year round and has access to a full range of JCF resources, including a senior CIB investigator (for advice & guidance) and access to all JCF intelligence assets. The purpose of the service is to provide real time support & access to the best intelligence available.

Full details of the support available is outlined in the above mention Force Orders and the HCCT can be contacted on **927 3168**, Force Radio and via Police Control at the Commissioner's Office.

3.6 Divisional Sub Officer in Charge

The DSO is responsible for personally attending all unexplained deaths as a matter of priority and demonstrating clear and effective leadership.

The DSO should take overall command and ensure the divisional senior CIB officer on call undertakes a review, within 24 hours of the incident, liaising directly with the divisional senior CIB officer or the nominated experienced CIB officer attending.

The DSO is expected to be fully conversant with this manual and satisfy themselves that all initial action including the key areas identified by the five building block principles is being taken or has been considered.

The DSO should assume the role of Incident Manager leaving the Uniform Sergeant free to directly supervise and ensure policy decisions made by the DSO are being actioned.

If the divisional on-call senior CIB officer declares this as a non-suspicious unexplained death, the DSO will retain responsibility for the investigation on behalf of Coroner, ensuring the preparation and presentation of any reports are made as necessary.

In all instances of a child death the DSO is responsible for ensuring that the Child Development Agency is notified.

The DSO must ensure that scene management and record keeping are maintained ('Incident Management Logs' and 'Crime Scene Logs').

3.6.1 Unexplained Death with Suspicious Circumstances

If the death is declared as suspicious, the DSO will retain responsibility until a documented handover to the divisional on call senior CIB officer has taken place. The arrival of the divisional on-call senior CIB officer should not automatically be a signal for the DSO to assume that they are no longer responsible for the incident.

The calling of any support services does not remove the DSOs responsibility for the incident.

It is essential both evidentially and from a leadership perspective that roles are clear throughout and that the IML clearly documents handover times between persons assuming responsibility for the investigation.

The DSO is responsible for the management and control of the incident until the divisional on-call senior CIB officer relieves them or, in appropriate circumstances, the divisional CIB IO attends and takes over the investigation.

The divisional on-call senior CIB officer, in consultation with the DSO, will decide who will have overall responsibility for the incident.

The DSO will ensure that the TSD Scene of Crime Officers have been called out.

All such incidents within the division are to be treated as 'critical incidents' and **the security/cordons for the incident as a whole will remain the responsibility of the DSO until the divisional on-call senior CIB officer or the IO informs him, on the conclusion of the activity, that they can be removed.**

3.6.2 Unexplained Death with no Suspicious Circumstances

The DSO is responsible for the investigation of incidents of unexplained death where, following thorough assessment by the divisional on-call senior CIB officer it is declared as a non-suspicious unexplained death. This includes the preparation of any reports to the coroner.

The divisional on-call senior CIB officer should be consulted for advice and guidance.

These may well be 'critical incidents'.

3.6.3 Apparent Suicide

The cause of death is something for the medical profession and ultimately the Coroner to determine. Officers must avoid using the word suicide; this can be difficult for family and friends to accept at a traumatic time and could also cause a rift between the family and police.

Police must avoid using the word suicide when talking to the media – unless these are the findings of a coroner's court. Police should therefore refer to the death as 'an unexplained death' or 'a death where the cause is undetermined', until the cause is fully known.

This does not prevent officers from providing the facts surrounding the death if so asked by the family.

In cases where it appears that the subject has taken their own life, the DSO must also ensure that the scene has been adequately forensically examined and that a photographer has been requested to record the body position and the scene.

These may well be 'critical incidents'.

3.7 Police Control Dispatch Controller

The Police Control Dispatch Controller will ensure that:

- ☐ An accurate record of the incident is recorded;
- ☐ A RVP has been identified within cordons (inner/outer);
- ☐ A Doctor is notified if required and details of the RVP and scene conditions are included (but note a paramedic or pathologist can certify life extinct);
- ☐ The divisional on-call senior CIB officer is notified and given contact details of the DSO at the scene. (Clearly the DSOs mobile phone and not any phone within the premises or of potential evidential value)
- ☐ Separate lockups are allocated for each prisoner to prevent cross contamination;
- ☐ A witness reception point is designated in a different building separate to the lockups; and
- ☐ Call signs of vehicles used at the scene and those used to transport prisoners and witnesses are recorded on the incident message.

3.8 Divisional CIB Officers

On being informed of any unexplained death, a substantive CIB officer (preferably of Sergeant rank) will go to the scene and review the circumstances together with the uniformed supervising officer, or DSO, present and assess the situation.

The officer will then appraise the divisional on-call senior CIB officer who will have responsibility to declare the incident as suspicious or non-suspicious.

This officer will also advise uniform supervisors in respect of fast track actions in accordance with the five building block principles of investigation set out above.

3.9 Divisional On-Call Senior CIB Officers

The divisional on-call senior CIB officer will ensure that they, or a nominated deputy, attend the scene of **all unexplained deaths** and conduct an assessment to ascertain whether there are grounds to suspect the death may be due to homicide where culpability for the loss of life is likely to be an issue in a criminal court;

Having undertaken the assessment as above, the divisional on-call senior CIB officer will:

- ☐ Liaise with the DSO and declare the death as either suspicious or non-suspicious;
- ☐ Provide necessary advice and guidance, as required, to the DSO in the case of non-suspicious unexplained death;
- ☐ Attend the scene and take charge of the investigation where there is any reason to suspect that the unexplained death is suspicious;
- ☐ Call or authorise the call out of the TSD Scene of Crime Officers (if not already done);
- ☐ Update the Divisional Crime Officer; and
- ☐ Ensure that records are kept of decisions and activities/actions.

3.10 Divisional Crime Officer

The Divisional Crime Officer will have responsibility for and control of all deaths investigated by divisional officers (except any offences that are within a MIT's remit, operating within that divisional area) and will ensure an effective case management system is in place to provide co-ordination, quality control and the maintenance of a storage system for all death-related reports, with the exception of fatal road traffic accident investigations which will be the responsibility of the **AIRU**.

The Divisional Crime Officer also has responsibility for missing persons reported/investigated on their division and overseeing, on behalf of the Divisional Commander, an effective homicide review process.

3.11 Divisional Commander

The Divisional Commander or deputy is responsible and accountable for the overall policing response, investigation & community relations within their respective division. The Divisional Commander, in consultation with the Crime Officer & the **IO**, should ensure that an effective community relations strategy is in force. This will always include the *joint* completion of a Community Impact Assessment (CIA). Where a MIT is operating, The MIT will conduct investigations, for and on behalf of the relevant Divisional Commander, and the MIT will ensure frequent updates, reports and briefings are provided to ensure the commander is fully informed.

An effective system must be in place to monitor and review all homicide investigations that occur within a police division. The MIT & AIRU, where applicable, will support the Divisional Commander in this regard. However, the overall responsibility for ensuring that these are effectively investigated remains with the Divisional Commander.

3.12 Area Officer

The Area Officer should be made aware of any difficulties in the circumstances of the death. That officer should then consider if the case is a critical incident, and assess the need for the formulation of a 'Gold' Strategy Group to oversee the investigation (NB the death can be one of natural causes but still be treated as a critical incident). The Area Officer should generally hold the position of Gold, but on occasion the relevant Divisional Commander could perform this function.

Homicide reviews should be overseen and effectively conducted across the area and in accordance with the Homicide Review Policy.

3.13 Post Mortem and Disposal of Bodies at Funeral Homes

(Force Order 26th May 2011 #3338)

The delay in getting these bodies out of funeral homes has been incurring hundreds of thousands of dollars in debt which is putting tremendous strain on the already stretched budget of the JCF Finance Branch. The practice of the police allowing bodies to be stored for excessively long periods is most inappropriate and reflects scant regard for prudent financial management.

In some cases bodies are left in storage at morgues or funeral parlours for several months under the pretext of awaiting identification.

All bodies, on being found, will be photographed by a trained scene of crime officer and again at the post mortem examination, a scene of crime officer will photograph the body. The scene of crime officer will ensure that a sample for DNA testing is taken by the pathologist from the body and will take a full set of fingerprints (including palms).

The fingerprints and photograph will be referred to the Assistant Commissioner in charge Criminal Investigation Branch who will take steps to identify the body, including publishing the photograph (if appropriate) in the print media with the hope that someone will come forward and identify it.

If after thirty (30) days, the body remains unidentified, the body can be released for burial and appropriate arrangements made.

In every case under police investigation, a member of the Force and in cases of murder and or fatal shooting by the police, the investigator must attend the post mortem examination to assist the pathologist with a history of the incident and any special circumstances surrounding the incident.

3.13.1 The Investigating Officer is Also Responsible For:

- ☐ Ensuring a scene of crime officer attends the post mortem examination.
- ☐ Recording a statement from person(s) identify the body of the deceased.
- ☐ Ensuring a statement(s) is recorded for the identification and/or continuity of the body from the crime scene to the post mortem examination. (This is in keeping with the judgement in R v Florence Bish).
- ☐ The Evidence (Amendment) Act requires that a comprehensive statement be recorded from these persons. This is important, especially in circumstances where these witnesses subsequently die or are otherwise not available to give evidence in the matter if required, and the prosecution intends to rely on their statements.
- ☐ Ensuring the process and actions taken are fully recorded.

3.13.2 Commanding Officers

Commanding Officers are to implement a system whereby investigating officers inform them on a daily basis of the following:

- ☐ Number of bodies at funeral homes;
- ☐ Number of days; and
- ☐ Reason for post mortem not being held.

On no account must bodies be sent to individuals and institutions which are not authorized by the JCF and those that are so authorized will be properly licensed, registered and will have the requisite storage facility to pick up and store bodies. **Force Orders No. 3336 Part I Sub. No. 6 dated 2011-05-12 treating on the subject of Approved Funeral Homes should be read in conjunction with these orders.**

Divisional Officers will be held accountable for any exorbitant bills incurred for storage of dead bodies without justification.

Note: Since publication of this Force Order, the **LMU** are conducting Post Mortem examinations (also immediate PM's for decomposed bodies) within 48 hours, and on occasions, immediatly. Prompt application must be made by the **IO** for every PM examination and the Divisional Administration Officer should ensure that these are completed and the bodies released without delay.

3.14 Approval of Bills – Funeral Homes and Pathologists

(Force Orders 30th June 2011 #3343)

Divisional Officers who submit funeral home and pathologist bills for payment, must ensure that with every such submission the relevant post mortem report(s) are attached to facilitate review and approval by the Legal Medicine Unit.

These bills upon receipt at the Legal Medicine Unit will be checked and verified and then passed to the JCF Finance Branch for payment.

This procedure is critical as we strive to ensure that all bills receive the approval of the competent authority. Under no circumstances will payment be made unless the invoices are verified by the Legal Medicine Unit.

3.15 Divisional CIB

The following key roles should be considered in any homicide investigation and additional specialist support and advice can be obtained from CIB HQ.

3.15.1 All homicide investigations should include:

- ☐ A Detective Sergeant/Detective Corporal or Detective Constable to be appointed as the Investigating Officer.
- ☐ A supervisor to be nominated to conduct effective reviews and to ensure that the investigations are properly conducted.
- ☐ The Divisional Detective Inspector (DDI) to review & oversee the day to day case management activity, in accordance with Force Policy.
- ☐ The Divisional Crime Officer (DCO) to ensure sufficient resources and staff are provided, including officers trained in:
 - Exhibits
 - CCTV Collection & Reviewing
 - Identification Officer (adhering to Code D)
 - Suspect Interviewing Officer (adhering to Judges Rules)
 - Vulnerable/Significant Witness Procedures
 - Communication Intelligence Procedures (including e-mail)
 - Financial Investigations
 - Intelligence Gathering & Handling

The division should appoint:

- ☐ An officer(s) trained to support investigations in the following roles:
 - Case File Management
 - Family Liaison Officer
 - Intelligence Officer

3.15.2 Reported Shooting or Homicide

3.15.2.1 Initial Attendance

Police Control will dispatch a local police response in accordance with existing policy and practice. On arrival at the reported crime scene the first responding officer(s) will be responsible for commencing the investigation and for informing the local CIB, who are required to attend all shootings/homicides, together with the Scene of Crime officers to ensure a prompt investigation is instigated.

In the following cases the investigation will be conducted as described below:

Incident	Details	Initial Investigative Responsibility	Must inform	Handover
Shootings	a) Not involving security forces b) Involving security forces c) From b above, criminal use of firearms	Divisional Uniform & CIB	a) Senior Divisional CIB officer b) BSI (who will inform INDECOM) c) Senior Divisional CIB officer.	a & c) Retained on the division b) handover to BSI and/or INDECOM, as directed.

Homicide	a) Not involving security forces or firearms b) Involving security forces c) Criminal use of firearms (from a or b above)	Divisional Uniform & CIB	a) Senior Divisional CIB officer. b) BSI (who will inform INDECOM) c) Senior Divisional CIB officer & MIT (where operating within the Area)	a) Retained on the division unless c) applies. b) Handover to BSI and/or INDECOM , as directed. c) Handover to MIT (where operating within the Area & terms of reference).
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When it is **established that a homicide has occurred and involved the use of firearms being discharged** the following will occur:

3.15.2.2 Police/Security Forces Discharge of Firearms (Lead team – BSI/INDECOM)

The Bureau of Special Investigations (**BSI**) and/or the Independent Commission of Investigations (**INDECOM**) will be called, as per current policy, and the investigation will be conducted by them. The division where the incident occurs will be responsible for the initial investigation – up to a formal handover and the *Scene of Crime (SOC) Officers will be used by BSI/INDECOM in relation to their specific requirements* (to retain integrity of the investigative process and to avoid contamination of the forensic opportunities available).

3.15.2.3 Criminal discharge of firearms leading to a homicide (Lead team – Division or HAT/MIT (where operating))

The on call **SOC/HAT** team will be called to the scene and they will be briefed by the first investigator (usually the first officer(s) on the scene) and the investigation will then be accepted by the divisional team or where a MIT is operating by the **HAT/MIT** team (other than police/licensed firearms holders), who will then continue with the investigation.

Where a **MIT** Homicide Action Team (**HAT**) attends the scene, they will assist the **SOC** unit and prioritise the CRIMINAL use of firearms investigation and this must be conducted in close consultation with the **SOC/BSI/INDECOM** investigator. Valuable opportunities exist to bring early convictions against such offenders provided the criminal use of firearms investigation is undertaken without delay.

3.15.3 Investigative Priorities

3.15.3.1 The Local Divisional Officer will be responsible for:

- ☐ *Preserving life and minimising harm to all persons involved;*
- ☐ *Scene preservation, prioritising;*
 - a. Cordons
 - b. Security of the scene and local area

- c. Search for witnesses and suspects
 - ☐ Community interaction and support;
 - ☐ Supporting the **HAT** investigators and their investigation;
 - ☐ Informing senior divisional officers in accordance with existing policies and procedures; and
 - ☐ Retaining the Media communication lead until accepted by a senior **MIT** officer.

3.15.3.2 The HAT Team will be responsible for:

- ☐ Forensic examination and preservation of any evidence and exhibits found;
- ☐ Directing and overseeing the search for witnesses & suspects;
- ☐ Seeking community support for the investigation;
- ☐ Assessing whether the shooting/murder is within their terms of reference; and Informing senior officers in accordance with existing policies and procedures.

3.16 Handover

Where the investigation falls under the remit of **BSI**, **INDECOM** and/or the **MIT** (when operating within the area) - currently the JCF has two such formations:

1. Kingston & St Andrew and
2. St Catherine

The Divisional Crime Officer, on behalf of the Divisional Commanding Officer, will ensure a managed hand-over process takes place should the case fall within one of the above formations terms of reference.

The initial handover may be at the scene where the relevant unit/body attend and are ready to accept the investigation. Otherwise a suitable time will be required for the fully managed process to be conducted to ensure that all the investigative action is properly accounted for.

3.16.1 Investigating Officer Handover Guidelines

Careful thought must be given to the timing of the hand-over. Ideally this should occur within the first twelve hours. In some instances the hand-over may not be completed for up to 24/48 hours. The timetable for hand-over will be set out in consultation with the relevant senior officer for the formation taking over the investigation.

On all occasions when an investigation is transferred from officer to officer, a written briefing should be provided to the receiving officer, which will be entered into the case file as an 'other document'.

The hand-over procedure should include a comprehensive briefing on all aspects of the enquiry. The handover record should include:

- ☐ The date and time of the hand-over;
- ☐ A summary of the issues raised; and
- ☐ Details of any outstanding urgent enquiries.

At the conclusion of the briefing, the outgoing and incoming IOs will endorse the entry in the handover log confirming that a comprehensive hand-over has been completed. The entry will be signed by both IOs, timed and dated. The handover log will then be handed over to the new IO.

3.16.2 Taking over Existing Investigations

When an IO manages an enquiry from the outset, his/her understanding of the unique circumstances of the homicide, the characteristics of the victim, their family, witnesses, suspects and the communities affected by the incident gradually develops as they implement their investigative strategy and gather material. When another IO takes over the investigation, or where an old investigation is reopened by a new IO, he/she may find the investigation difficult initially because he/she lacks this in-depth knowledge.

Acquiring an in-depth knowledge of the investigation requires new IOs to fully assimilate all the material. In particular, they should ensure that they have a thorough understanding of:

- ☐ The circumstances in which the homicide was committed;
 - ☐ How the investigation was initiated;
 - ☐ What action was taken during the initial response stage and the material that resulted from this;
- ☐ The previous IOs evaluation of that material and the investigation strategy that was developed from it;
- ☐ The material that was gathered as a result of the investigation strategy;
- ☐ The characteristics of the victim, witnesses, any suspects and the communities which are relevant to the investigation;
- ☐ Any specific problems or issues that arose during the investigation.

This information can be obtained through briefings from previous IOs and others who have worked on the investigation and by reading the notes recorded within the investigation case file. In long-running investigations or cases that have gathered a high volume of material, this is likely to be a lengthy process. IOs and the senior officers who deploy them should allow ample time for this process to ensure that any subsequent action is based on a thorough understanding of the material and the issues involved.

3.17 Investigative Support

Investigators must consider using the entire range of expert skills available to support them in murder investigations. This is stressed throughout this manual. The IO cannot be an expert in every aspect of the investigation, but their role is to draw together, manage and maintain a team of experienced investigators and specialist advisers over the course of the investigation.

Notwithstanding this, IOs should be mindful that it is their responsibility to request such support and, depending on the type of opinion being offered, evaluate the advice in the context of the investigation.

- ☐ Behavioural Investigative Adviser;
- ☐ Geographic Profiler;

3.17.1 Behavioural Investigative Advisers

Formerly known as offender profiling, behavioural investigative advice is the process of drawing inferences about an offender or offence from a detailed, behavioural examination of actions within a crime.

Behavioural investigative advice is a strategic information management tool that can be used to understand an offence better, prioritise suspects, assist in the interview process and develop new investigative strategies to complement traditional approaches.

The support and advice available from BIAs takes many forms and includes:

- ☐ Crime scene assessment;
- ☐ Motivational factors;
- ☐ Series identification/case linkage;
- ☐ Risk assessment;
- ☐ DNA screening suspect prioritisation;
- ☐ Advice to support interview strategies;
- ☐ Offender background characteristics;
- ☐ Investigative suggestions/strategies;
- ☐ Familial DNA prioritisation.

3.17.2 Geographical Profilers

Geographic profiling is an investigative support technique designed to provide assistance in cases of serial crime or singular crimes with a number of related sites. This geographic analysis attempts to determine the most probable location of the offender's 'anchor point' (which is frequently their residence but may in some cases be related to their employment or social activity). It is based on the analysis of the locations of a connected series of offences, the characteristics of the neighbourhoods in which they have occurred and, where available, the behavioural analysis or psychological profile of the offender. Not every case may be geographically profiled and a preliminary review is usually necessary to determine its suitability.

In addition to geographic profiling, the following services are also available to investigators:

3.17.2.1 Geographic Search Analysis (GSA)

A technique that has been successfully used in searches for the body of a suspicious missing person, where it is believed that a known suspect has killed the victim but the body has not been recovered. This process, termed Geographic Search Analysis (GSA), involves the application of certain analytical techniques (temporal and spatial analysis from a geographic perspective). These are overlaid against intelligence in respect of the suspect's known movements, background and lifestyle. The analysis is used to provide a prioritised list of the locations of probable deposition sites. This is then used for developing the search strategy within the investigation.

3.17.2.2 Target Location Analysis

As with GSA, this technique has been developed for use in searches for missing suspects. It is based on detailed intelligence and applied in a similar manner to GSA.

3.17.2.3 Mapping Assistance

Assistance can be provided for mapping out locations related to a crime or a series of crimes. This can be particularly useful when reconstructing historical cases or for presentations in briefings and at court. The Communications, Forensic & Cybercrime Unit (CFCU) at OCID and NIB can provide support for this activity.

3.17.2.4 Other Specific Analytical Techniques

These include time/speed/distance calculations and Theissen Polygon analysis.

A geographic profiler will usually require the specific crime data, e.g., crime information and statements, together with any relevant geographic data, victimology and, if available, the behavioural analysis report and advice. They will also need to visit all the relevant scenes.

3.17.3 NIB Missing Persons Bureau (MPB)

The NIB MPB acts as a central clearing house for information on missing persons, and serves all of Jamaica. Investigators may find this facility useful in cases involving an unidentified body.

NIB MPB can be contacted by telephone: **922 8192**; email **mpcc@jcf.gov.jm**

3.17.4 NIB Interpol Liaison

Interpol spans 187 member countries and works to facilitate communication between law enforcement agencies around the world. Each member has its own National Bureau.

Interpol serves as a conduit for information between policing bodies in different countries. Although Interpol cannot become involved in anything that carries political, military or religious overtones, they can deal with any other enquiries that can be responded to on a police-to-police basis. On receiving a request for assistance, the National Central Bureau will liaise with the appropriate agency in the receiving country to facilitate the request.

Interpol can assist **IOs** by helping to trace property overseas or persons who may have travelled abroad. The majority of tasks are achieved by securing intelligence although, in some countries, they can also facilitate obtaining evidence.

The National Central Bureau (NCB) of Interpol for Jamaica, located within NIB, is currently staffed Monday to Saturday (7am to 10pm) by serving police officers and will shortly be opening on a 24/7 day basis.

NIB INTERPOL office can be contacted by telephone: **922 4989** or email **jalunib@jcf.gov.jm**

3.18 Family Liaison Officer

One of the most important considerations throughout a homicide investigation is providing support to the family of the deceased. Families should be seen as integral and key to an investigation; this concept is central to its success.

The trauma associated with a sudden unexpected tragedy will place the family of the victim under immense personal pressures at a time when the needs of the investigation will make heavy demands for detailed information.

It is essential that families are treated with respect and their individual needs taken into account. This principle must be reflected at all levels within police structures and due regard given to any police action which may impact on a victim's family throughout the process, from media statements made by a senior officer, to the telephone operator who responds to queries from a family member. The overall aim of family liaison in homicide investigations is to:

- ☐ Analyse the needs, concerns and expectations of the family in order to identify relevant and realistic action in the context of their human rights
- ☐ To work with the family to comply with their right to receive all relevant information connected with the enquiry, subject to the needs of the investigation.
- ☐ Assist the investigation by gathering information and evidence from the family in a way that is proportional to their fundamental right to privacy and family life. The appointment of a Family Liaison Officer (FLO) is essential in all homicide investigations

3.18.1 Family Liaison Officer Appointment

In formulating the family liaison strategy the family must be considered as integral and key to the investigation by the **IO**. The strategy should be defined and developed taking into account the needs of the family, the lines of enquiry and all available intelligence. This is a dynamic process, which must be reviewed at regular intervals and in consultation with the Family Liaison Coordinator and the FLO.

The family liaison strategy will be recorded in the **IOs** Policy File and should include:

- ☐ Objective of the strategy;
 - ☐ The selection of FLOs and criteria employed for selection;
 - ☐ The number of FLOs deployed and to whom;
 - ☐ The information released to the family;
 - ☐ Media;
- ☐ Any requests made by the family which have not been acceded to, and the reason for this action;
- ☐ Any complaints made by the family and the **IOs** action to progress and resolve the matters raised;
- ☐ Decisions concerning involvement of the Victim Support and other support services;
- ☐ The use of interviewers;
- ☐ The involvement of lay advisors;
- ☐ Exit strategy for the FLO; and

- ☐ The family liaison strategy is one of the important considerations a **IO** will have to address throughout the investigation.

Within this strategy it is accepted that family includes partners, parents, guardians or others who have (or have had) a direct and close relationship with the victim. This includes chosen family.

3.18.1.1 Objectives for Family Liaison Strategy

- ☐ Provide care, support and information in a sensitive and compassionate manner to the family who are themselves victims of crime.
- ☐ Ensure that family members are given information about support agencies and that referrals are made to Victim Support and other agencies in accordance with the family's wishes.
- ☐ Gather evidence and information from the family in a manner, which contributes to the investigation and preserves its integrity.
- ☐ Secure the confidence and co-operation of a victim's family, which can positively impact on the wider issues of community trust and confidence as well as bringing positive benefits to the investigation.
- ☐ **IOs** will ensure that the family liaison officer(s), when appointed, will be dedicated primarily, if not exclusively, to that task.

3.18.1.2 Family Liaison Officer Appointment

The FLO will be operating in a highly pressured environment and often with very distressed people. The choice of officer to act in the role should be well thought out in every case so that the most effective investigation can be carried out. The **IO** should be directly involved in the selection of the FLO(s) and dual deployments should be made on every occasion.

In all cases of suspected homicide the **IO** must appoint FLOs who have received training to the JCF standard. The **IO** should consider attaching a FLO who reflects the cultural or lifestyle background of the victim and/or family members. This means that the FLO will have an insight into the particular culture or lifestyle of the family and community. The attachment of such an officer to a family without prior consultation, however, may be viewed as tokenism by some individuals and may be detrimental to the police and family relationship.

In selecting the appropriate officer to perform the FLO function, the **IO** should consider:

- ☐ The family's cultural and ethnic background;
- ☐ Any significant developments in the officer's personal life;
- ☐ The officer's experience and training;
- ☐ Recent work demands on the officer;
- ☐ The family needs;
- ☐ Results of any impact assessment;
- ☐ Scale and nature of the incident;
- ☐ A suspect in the family.

3.18.2 Risk Assessment for Officer Safety

Risk assessments must be completed prior to any FLO deployment.

FLOs must carry out this research and forward the results to the **IO** to assist them in carrying out the risk assessment. This must be fully recorded in the decision log.

3.18.3 Working and Communicating with the Family

The conduct of the first contact with the family is vital when laying the foundations for a successful relationship. At no time must a family be deliberately misled. Contact must be honest and as far as possible open. It is of paramount importance that families are treated appropriately, professionally, with respect and with consideration given to their diverse needs.

FLOs must be aware that some of their actions and those of the police generally may be misunderstood and in some cases perceived as being patronising by the family. FLOs must minimise these possibilities by ensuring that actions and decisions are explained fully and considerately, ensuring that adequate time is taken to do so.

One of the primary concerns of family members will be the need for information. The trauma of bereavement can be compounded by the frustration of not knowing the surrounding facts. The victim's family must be provided with timely information, so far as the investigation permits. The FLO should have direct communication with the **IO** in connection with their role and issues concerning the family. The FLO must take part in regular briefings and debriefings with the **IO** and investigation team. Any information released to the family must first be authorised by the **IO**.

Depending on the size of the family FLOs may find themselves dealing with an individual or a whole family. In either case, a family will vary in structure and size and the degree of involvement during an investigation cannot be forecast. Many family members (including members of the extended family) may wish to become actively involved during an investigation. Consideration must be given to the closest relatives or partner as being the main point of regular contact for the FLO, should they feel able to do so. This is a matter for the family to decide but they may require some guidance.

Regardless of who is selected to carry out this role they may provide valuable assistance and when necessary organise meetings to relay information to the remaining family and relatives. This may prove beneficial for all concerned and may avoid any unnecessary conflict or confusion arising. In addition to this, the FLO should help the family to identify someone, either from the family or outside the family (i.e. a family friend), to represent them to the media.

In some cases language barriers may become problematic and communication may require the services of a suitably qualified interpreter. Where such a need arises great care must be taken that all information is clearly relayed and understanding sought. Furthermore, caution should be exercised when interpreters are engaged in the investigative process, to ensure that gender, personal background or beliefs are not conflicting with those of families.

During the initial contact with the family and in any event during the early stages of the enquiry the FLO must draw the family's attention to and confirm their understanding of the conduct of a police investigation and the role of the FLO.

The FLO will have a number of issues that should be addressed with the family in the early stages:



Providing immediate appropriate information to the family concerning the death of the victim and explaining to the family what happens in relation to the body e.g. the post mortem(s) and

coroners' processes. The family should be informed of their right to have a representative present at the post mortem.

- ☐ The gathering of any immediate evidence, information, intelligence or rumours from the family, so that it can be passed directly to the **IO** for urgent attention.
- ☐ Should a family or individual express concern for their personal safety or have been subject to threats or intimidation they may request police protection or assistance. In all cases the FLO must act quickly and effectively informing the **IO** without delay.
- ☐ Giving or facilitating initial practical support for members of the family.
- ☐ As far as is possible, protect the family from unwarranted media intrusions.
- ☐ Facilitating the family's wishes to visit the scene. There is a need to balance evidence gathering with the emotional needs of the family.
- ☐ Facilitating access to medical services for the family (e.g. family members suffering the effects of trauma).
- ☐ In particular cases it may be appropriate to explore with the family, the involvement of statutory or voluntary local support organisations, including local community groups.

It may also be appropriate to include a list of the contact names and telephone numbers of the FLO and **IO** and the times at which they may be contacted for easy reference by the family. After bereavement by homicide feelings of shock and loss of control are acute.

3.18.4 General Considerations

- ☐ All dealings with the family must be recorded in the FLO Log.
- ☐ After consultation with the **IO**, the FLO should consider who within the family would be most suitable to identify the body. The wishes of the family should be followed unless it conflicts with the investigation and/or Coroner's Rules.
- ☐ It is important that regular direct communication is maintained between the **IO** and FLO and recorded in the Family Liaison Log.
- ☐ Consideration should be given to appointing more than one FLO where there may be divorced parents or a split within the victim's family.
- ☐ Consideration should be given to appointing a Family Liaison Co-ordinator. This person should be used where there is a difficult relationship with the family or for other reasons including welfare support for the FLO(s).
- ☐ Consideration must be given to introducing Victim Support Scheme (VSS) to support families and allow the FLO to plan an exit strategy. An early discussion with the VSS should be made at an early stage to introduce a volunteer at the appropriate time. Consent of the family contact or nominee is required before details are passed on to VSS. Ideally a volunteer should be introduced, (facilitated by the FLO), within 28 days of the inquiry commencing. Any delay beyond 28 days must be recorded in the Decision Log detailing the reasons.
- ☐ There are many other support organizations available to families. FLOs should be conversant with their roles and how to access them.
- ☐ **Remember** - the appointment of family liaison officers is not restricted to murder, they are of valuable assistance to an investigation of any death and of immense value to families, partners and friends

3.18.5 Ongoing Family Liaison

A murder often receives a high local or national profile and can become a widely publicised event with interest normally focusing on the pursuit of the offender(s), their arrests and any subsequent trial. It is important that **IOs** maintain a constant link with the victim's close family or friends. This may involve a personal visit but invariably develops through the use of Family Liaison Officers.

3.18.6 Detected Cases

IOs ought to ensure that a family is kept informed not only about the progress of an investigation but about post-charge, pre-trial issues and post-trial issues.

Support provisions should begin at the start of an investigation and continue through the Resident Magistrates Courts, Circuit Courts and beyond. To this end, full use of the Victim Support Service and other available support agencies must be made. Families continue to grieve and even though a case may take months or longer to reach a trial stage, bereaved relatives should be regularly updated on times and dates of both Coroners and Criminal Court hearings as well as any other significant events.

The Clerk or Court Administrator should be used to assist families in court procedure, thereby alleviating some of the fears associated with giving oral evidence. In a number of cases this is the witnesses first experience of a courtroom atmosphere and most do not understand the legal procedures and protocols. Guidance through this process and explanations of the rules in giving evidence is considered good practice.

In cases where prosecutions fail, the **IO** needs to exercise particular care to ensure that the family and friends of the victim understand the reasons why, especially in cases where media comment on the investigation, or aspects thereof, has been extensive. Meetings with representatives of the Office of the Director of Public Prosecutions, and in exceptional cases, with the Crown counsel, may be considered necessary. Particular care needs to be taken in cases where there is no residual doubt as to the identity of the person responsible for the act which has caused the death, but where the Court has decided that the act should not attract criminal liability.

3.18.7 Undetected Cases

Where murder investigations remain undetected, **IOs** should maintain regular contact with a bereaved family or relatives of a victim through either family liaison officers or an appointed nominee. Once a decision is made to bring the active phase of the enquiry to a close, assurances must be given to the family indicating that arrangements are in place to ensure that every investigative opportunity will continue to be exploited.

To this end, anniversaries of the murder can be traumatic reminders to the family, yet **IOs** should consider using them as a means of possible enquiry regeneration and reassurance on continued investigative intent. It is a difficult time for all concerned and should be dealt with carefully, considerately and with due respect for family feelings.

Bereaved families should always feel they have a contact point, particularly at the time of significant anniversaries or prior to important events, for example trials, appeals, release of convicted

defendants, etc. When IO ownership changes, or when a family liaison officer is replaced for whatever reason, every effort should be taken to convey this change to the family. It is an opportunity to convey messages such as:

"We still care"

and

"Murder investigations are never closed"

3.19 On-Call CIB Senior Officer

The CIB will provide an 'on-call' Senior Detective through the HCCT and/or Police Control.

The 'on-call' Senior CIB Officer will:

- ☐ Oversee reported incidents during their tour of duty and where appropriate liaise with the IO in each new case;
- ☐ Resolve any early stage investigation or primacy issues;
- ☐ Provide leadership and support in difficult and high profile cases; and
- ☐ Inform the force Senior Duty Officer in appropriate cases.

3.20 FCSI Instruction Plan for Death Investigations

3.20.1 Introduction

- A. Webster's Dictionary defines homicide as: "the killing of one person by another."
- B. O'Hara's Fundamentals of Criminal Investigation defines homicide as "the killing of a human being."
- C. Nearly all deaths fall into four basic categories.
 - 1. **Homicide** (which includes murder and involuntary manslaughter)
 - 2. **Suicide**
 - 3. **Accidental**
 - 4. **Natural**
- D. The proven professional investigative techniques will work equally well in all four categories and until reasonably shown otherwise, all death investigations are treated as homicides.
 - 1. Avoids embarrassing retractions.
 - 2. Yields a more thorough and professional investigation from start to finish.
 - 3. Protects police from civil litigation and unwarranted criticism.

- E. Murder is man's oldest and most famous crime.
 - 1. Glamorized and publicized in books, movies, and TV, i.e., Ellery Queen, Agatha Christy, etc.
 - 2. Not glamorous - the most serious criminal offense.
 - 3. Police must deal with victim's family.

- F. The death investigation is one of the most pressure packed situations in which a police officer is engaged.
 - 1. Public interest maximised.
 - 2. Pressure from victim's family and friends.
 - 3. Media.
 - 4. Political and force pressure.
 - 5. Fear in the community.
 - 6. Peer pressure.
 - 7. Your actions will be second guessed by everyone - stay cool, logical, and professional, guard your comments around the public and media, and don't get caught up in emotions.
 - 8. Your actions will be scrutinised by everyone up to and including;
 - a. The Appeal Court (currently the UK Privy Council),
 - b. International human rights groups (Amnesty International, Jamaicans for justice etc.) and
 - c. The public as a whole.
 - 9. Take your time - make wise decisions - you can't undo or repair a major mistake made in haste.

3.20.2 FCSI Actions at the Scene

A. Interview

- 1. First responder(s) at scene.
- 2. Medical personnel.
- 3. Witnesses, if practical.
- 4. CIB investigator.
 - a. Know your powers of search (Common Law & statute)
 - b. Don't take theories as gospel, but this gives you a starting point.

B. Notes

- 1. When you arrive at scene, make a mental picture and describe it in your report. "You didn't do it if it's not in your report."
- 2. No such thing as too many notes; if in doubt, write it down.
- 3. Remember: Who, What, When, Where, and Why (the 5 W's).
- 4. Note all times, notification, arrival, etc.
- 5. Note weather conditions and temperature.
- 6. Note witnesses and other persons at scene.
- 7. Obtain names of medical personnel, if relevant.
- 8. Carefully describe the terrain, grass, parking lot, etc.
- 9. Be careful of technical terms you are not qualified to use.
 - a. Blood is referred to as a reddish, brown liquid.
 - b. Make use of phrases "appeared to be" and "possible."

- c. Medical terms read well in a report but only if you fully understand them.
- 10. Report only the facts, don't speculate or jump to conclusions in your report.

C. Examine

1. Do a basic walk through of crime scene using the Common Approach Path (CAP).
2. Decide what to do first then second.
3. Remember "The crime scene will dictate to you what needs to be done."

D. Photograph

1. Always start with photographs.
2. Capture the scene with a camera as soon as possible, also consider using a video recording camera as well.
3. This is also an ongoing process;
 - a. You will take more photos as you progress.
 - b. You cannot take too many pictures.

E. Sketch

1. Obtain all measurements for sketch.
2. You may need help from local officers.
3. Ongoing sketching will be required as you locate more evidence.

F. Collect

1. Collect items that will have to be processed at your office and/or the lab.
2. There may be items that will not need to be forensically processed but are vital to the investigation.

G. Process

1. Start processing for items of physical evidence.
2. The scene and conditions will dictate what is done first, second, etc.
3. There may be simple, conventional methods, or more complex, advanced techniques.
4. At the least, process and collect a clear path to the body which makes it easier to control scene after body is removed.

H. The Victim

1. Generally speaking - most of the evidence will be found fairly near the body.
2. Consider using the Alternative Light Source and electrostatic lifter before moving the body.
3. Remember the professional killer leaves you everything or nothing.

3.20.3 Identification of Victim

- A. Identification is the recognition of an individual as determined by characteristics which distinguish that individual from others.
- B. There are two primary reasons why positive identification is necessary.
 1. Needed for legal proof that a person is deceased (legal certification of death).
 2. Provides the corpus delicti and core for the subsequent death investigation.

- C. How a victim is identified depends on the condition of the body (visual identification v. scientific identification).
- D. Investigation of unidentified human remains includes:
 - 1. Accurate and thorough description of physical characteristics including scars, tattoos, amputations, deformities, etc.
 - 2. Location where body was recovered.
 - 3. Clothing and personal effects.
 - 4. Pathological examination.
- E. Least reliable methods of identification are:
 - 1. Visual (including photographic) recognition.
 - 2. Personal effects.
 - 3. Other circumstantial evidence.
- F. Most reliable methods of identification are by scientific means.
 - 1. Fingerprints
 - 2. Deoxyribonucleic acid (DNA)
 - 3. Dental records.
 - 4. Skeletal characteristics.

3.20.4 Post Mortem Changes and Time of Death

A. Post Mortem Lividity or Liver Mortis

- 1. Sometimes called "the purple color of death."
- 2. After death, bacterial action attacks blood vessels and various tissues - causes blood to be released into the body cavity.
- 3. Gravity pulls to lowest point in body.
- 4. Blood stains tissue a purple color.
- 5. Usually starts approximately 15 to 30 minutes after death and remains liquid/mobile.
 - a. Skin can be "blanched."
 - b. Generally "fixes" at approximately 3 to 6 hours.
 - c. Prior to "fixing" may see "tardieu spots (small hemorrhages)."
 - d. Environmental factors effect lividity.
 - e. Useful investigative aid regarding time of death and post mortem movement of body.
- 6. Medical study has shown there are instances of color difference in lividity.
 - a. Red/pink coloration - carbon monoxide poisoning.
 - b. Blue - cyanosis (cyanide-based poison).
 - c. Brown - methemoglobinemia (excess amount of drugs in blood stream, i.e., drug overdose).
- 7. Most valuable as an investigative aid for determining post mortem movement of body. Gravity will not allow blood to flow uphill.
- 8. If victim has "bled-out," lividity may not be present.

B. Rigor Mortis

- 1. Complicated chemical changes cause the muscles to contract and stiffen.
- 2. Usually evident 2 to 4 hours after death, starting in the jaw or limbs which had greatest ante (before) death exertion.

3. Generally fixes in about 8 to 12 hours, remains another 12 to 24 hours, then gone leaving body limp.
4. Rigor Mortis is the least reliable method for determining time of death because it is dramatically affected by other factors.
 - a. Temperature - weather.
 - b. Health of victim.
 - c. Age of victim (process speeded up on infants).
 - d. Presence of ante-mortem disease, arthritis, etc.
 - e. Physical activity at time of death.
 - f. Muscular vs. frail body (muscular body slows process).
 - g. Environmental and physiological factors effect to the degree that Rigor Mortis is not an overly valuable investigative aid.

C. Cadaveric Spasm

1. "Death Grip."
2. Hand/hands tightly clutched around item.
3. Indicates item was seized ante-mortem (prior to death).
4. Rare occurrence.

D. Body temperature change.

1. Normal body temperature of adult is 98.60 F.
2. Under average conditions, body cools at about 2.50 F per hour.
3. Under average conditions, body should feel cold in about 12 hours and temperature of internal organs same as environment in approximately 18 to 24 hours.
4. Body temperature is reliable indicator of time of death only within broad guidelines because of obvious environmental factors.
 - a. High humidity slows the rate of cooling.
 - b. Body composition - larger mass of muscle or fat cools slower.
 - c. Ventilation increases cooling.
 - d. Any clothing or cover retains heat and slows cooling.
 - e. Naturally cold water or frigid temperatures speed cooling.
 - f. Events just prior to death may raise body temperature to an abnormal high.
 - g. In most cases body temperature is considered reliable only for the 18 hours following death.
 - h. Physicians generally find the center of the liver the most accurate site for body temperature.

E. Skin Slippage

1. Usually noticeable within 24 hours.
2. Must allow for ante-mortem skin condition (elderly persons, etc.).

F. Post Mortem Decomposition

1. Bacterial action begins immediately after death.
2. First noticeable sign of decomposition is the grayish discoloration of the skin; followed by skin blebs.
3. Decomposition starts in the stomach and intestines and works out.
4. Body decomposes in following order, first to last:
 - a. Intestine, pancreas, and gall bladder.

- b. Liver and blood.
 - c. Brain and spinal cord.
 - d. Heart and lungs.
 - e. Kidney, bladder, and testes.
 - f. Skeletal muscles.
 - g. Uterus and prostate.
5. Putrefaction - advanced form of decomposition consistent with damp heat - body is literally rotting. The body will swell from gaseous buildup.
 6. Mummification - more common in buried or embalmed bodies. Consistent with very hot, dry environment and is usually preceded by some degree of putrefaction. This may last for years before turning to dust.
 7. Adipocere - developed when body is immersed in water for extended period of time (approximately 18 months). Changes in body fats cause tissue to harden and maintain shape long after muscles have dissolved.
 8. Advance forms of decomposition are not reliable indicators of time of death because they are too controlled by environment.
 - a. Hot or cold.
 - b. Ventilation.
 - c. Water vs. air.
 - d. Humidity or lack of it.
 - e. Insulation or soil cover.
 9. Casper's Formula.
One week in air = 2 weeks in water = 8 weeks in soil.
 10. Investigator must also be alert to post mortem damage done by animals, fish, birds, or moving water.

G. Stomach Contents/Digestion

1. A healthy person digests food at a relatively constant rate - usually within 4 hours the stomach will be empty.
2. If the small intestine is empty, it probably indicates the last meal was eaten at least 12 hours ago.
3. Hendricks case example.

H. Changes in eyes.

1. Will reflect loss of body moisture and heat.
2. Pupils may be irregular in shape and unequal in size due to loss of muscle control.
3. If eyelids are open, there is usually a thin opaque film over eyeballs within an hour after death.
4. The eyes don't capture the last thing seen!

I. Blood alcohol - A normal person's blood alcohol will fall at about 1 ounce per hour.

J. Hair and nail growth.

1. Do not grow after death.
2. Popular belief caused by fact that skin dries and shrinks causing hair and nails to look longer.

K. Insect Larva

1. Entomologist can determine age of maggots, i.e., when they were deposited.

2. Larva of fly (maggot) will generally hatch from eggs in about 8 to 14 hours under hot humid conditions.

L. Post mortem changes consistent with water (general).

1. Cutis Anserinae (gooseflesh).
2. Adipocere.
3. Head decomposes more rapidly because head floats lower than trunk.
4. Skin sodden in 10 to 12 hours, and skin of hands and feet will peel off like glove in 10 to 12 days. Fingerprints are still obtainable from peeled skin.
5. Slower rate of decomposition.
6. Cutting or tearing by fish, turtles, etc.
7. Present of sand or mud in airway.
8. Fluids (usually water) in lungs and foam in mouth.
9. Shock, spasm of larynx muscles, etc.

M. Post mortem changes consistent with fire death.

1. Blisters or reddening of skin.
2. Burning and charring.
3. Contraction of limbs into fetal position.
4. Soot in airway and lungs.
5. High percentage of carbon monoxide in blood with "cherry red" coloration of the body.

3.20.5 Edged Weapons

A. Three basic types of cutting wounds.

1. **Incised** is caused by a sharp instrument (knife, razor, etc.) being drawn across the skin under pressure. Generally show the following characteristics.
 - a. Linear (in a line), except for wrinkled skin.
 - b. Edges (margins) clean-cut, no bruising.
 - c. Length greater than depth.
 - d. Gaping wound.
 - e. Death caused usually by hemorrhage and/or shock.
2. **Stab or puncture** is caused by a sharp instrument being thrust into the body. Generally show the following characteristics.
 - a. Elliptical (oval).
 - b. Margins are clean-cut - bruising not uncommon (especially if struck by hilt of knife).
 - c. Depth greater than length.
 - d. Slight gaping.
 - e. Survival/fighting, knives may distort the wound.
 - f. Death usually caused by hemorrhage and shock.
3. **Chops** as caused by hatchet, cleaver, or ax.

B. Not uncommon to have a mixture of the two above types. Also it is not uncommon for assailant to accidentally cut himself.

C. Defense wounds are either incised or puncture wounds on the arms, legs, or hands of victim trying to ward off attacker.

D. Hesitation Marks are generally incised superficial cuts commonly found on the wrists of suicide victims made while working up the courage to make the final deep cut.

E. Torture marks are nonfatal wounds used to tease and punish the victim.

F. Irregularities in Wounds

1. Serrated-edge knife may give margin (edge) of wound some distortion.
2. Same knife may yield two different wounds.
 - a. Blade breaks.
 - b. Knife twists (common if assailant's hands become bloody).
 - c. Victim movement.
 - d. Blade hits bone.
 - e. Differences in assailant's grip or pressure.

G. Mutilation and Torture

1. Generally when the cuts (either puncture or incised) exceed the number needed to cause instantaneous death, "overkill" possible sexual overtones.
 - a. Piquerism or lust mutilation - sexual satisfaction through stabbing, piercing, and/or cutting the victim postmortem.
 - b. Sexual sadism - gratification obtained from the pain and suffering of a live victim.
 - c. Homosexual killings are frequently accompanied by excessive cutting, stabbing, or mutilation; frequently to genitalia.
 - d. Always request oral, anal, and vaginal swabs of victim to detect either ante or post mortem intercourse. (Procedure minus vaginal swab remains same for male victim!)
 - e. If victim is tied or restrained along with stabbing/puncture, can be consistent with sexual motivation.
2. Other potential causes for excessive cutting and/or mutilation are:
 - a. Occult or religious ceremony (i.e., voodoo, Charles Manson Family).
 - b. Organized crime (Gang/drug rings).
 - c. Motorcycle gangs.
 - d. Prison riot.
 - e. Attempt to prevent identification of victim.
 - f. Body disposal.

3.20.6 Gunshot Wounds (Handgun & Rifle/Shotgun)

A. Entrance Wounds

1. When a projectile strikes the skin, it leaves mark called an abrasion ring; this is caused by the bullet literally boring through the skin. Not to be confused with a "contact wound."
 - a. Projectile striking skin at a perpendicular angle usually leaves an abrasion ring that is fairly circular with minimal abrading or contusing on the margins.
 - b. Projectile striking at an acute angle may leave one side of the abrasion ring much wider on one side with abrading present.
2. Usually smaller than bullet due to the elasticity of the skin.
3. A ricocheting, or wobbly, projectile may also cause a distorted wound.
4. A lubricated, dirty, or soft metal composition bullet may leave a dark coloured ring around the entrance wound.
5. Similar ring can be left by projectile that has first passed through painted or dirty surface.

6. Lightweight, high-speed bullets (i.e., .223) may sometimes break up or begin to gyrate on contact causing distorted entrance wound.
7. Around wound in a circular pattern may be "tattooing" or small burn spots caused by burning gunpowder. "Tattooing" is also sometimes referred to as "stippling."
 - a. Density and diameter of tattooing can aid in range determination.
 - b. "Tattooing" is a common indicator of a close range gunshot wound.
8. Bleeding from mouth, nose, and ears characteristic of head injury.
9. Teeth/partial plate/denture may fragment and become secondary projectile.

B. Contact Wounds

1. Phrase "contact wound" usually covers two separate concepts.
 - a. Tight contact (also called hard contact) where the muzzle of the weapon is pressed against the skin.
 - b. Loose contact (also called soft contact) where the muzzle of the weapon is less than 1 inch from skin.
2. Tight contact is generally characterized by an oval wound which may have abrading and lacerations.
 - a. *Damage to skin surface generally greater than other entrance wounds.*
 - b. *Damage caused by concussion and force of rapidly expanding gas from discharged cartridge.*
 - c. *Normally no burning, tattooing, or bruising on outer layer of skin.*
 - d. *Examination of inner layers of tissue and/or bone will show a heavy, thick concentration of burning and/or tattooing and extensive tissue damage.*
3. Loose contact wounds are generally characterized by an oversized circular wound with a large amount of burning/tattooing and extensive tissue damage, easily noticeable on the outer layer of skin.
4. It should be remembered that all bullet wounds (especially contact wounds) will vary greatly with the caliber of the weapon involved.
 - a. Heavy caliber (i.e., 44 magnum) may actually decapitate a victim or at least totally remove a portion of the skull.
 - b. The force of the burning gas moves with such force and speed that "tattooing" may only be clearly evident on the inner surface of a corresponding exit wound.
 - c. Clothing, hats, or even human hair may absorb most of the burn/blast effect with small caliber weapons.
 - d. Last second movement by victim or assailant may cause an irregular entry wound.

C. Exit Wounds

1. Generally, an exit wound will be larger and more irregular than an entrance wound.
 - a. Hollow-point or half-jacket bullet (mushroom effect).
 - b. Bullet may tumble or wobble after striking bone, cartilage, or muscle.
 - c. Bullet that tumbles in body and leaves a long, irregular exit wound is referred to as "keyhole" effect because of shape of exit wound.
 - d. Although not common, there are instances of multiple exit wounds from a single projectile entering the body.
 - Bullet breaks up (fragmentation).
 - Secondary projectile - pieces of bone fractured when struck by the bullet and then driven through the body at great force by the bullet.

- It should be remembered that secondary projectiles may also figure into entrance wounds when a bullet strikes a button, belt buckle, badge, etc. and carries or drives fragments into the body.
- One projectile may cause multiple entry and exit wounds depending on position of victim (i.e., victim shot through arm, bullet exits arm, enters chest, and exits back).

D. Shotgun Wound

1. Entrance and exit wounds share most similarities of handguns and rifles.
 - a. Tattooing may be present depending on distance (muzzle to victim).
 - b. Abrasion ring or rings may show grease, bruising, or abrading, depending on distance.
 - c. Exit wounds are generally larger and more irregular in shape, particularly in older shells with soft lead pellets.
 - d. Tight contact shotgun wound can closely resemble heavy caliber handgun.
2. While many features remain consistent, major differences are also present.
 - a. Gauge of shotgun greatly effects wounds (particularly entrance).
 - b. Choke will radically change pattern.
 - c. Presence of wadding or shot collar actually in body.
 - d. Unless tight contact, pellets may cause multiple entrances (also possibility of multiple exits, particularly with 0 and 00 buckshot) - cookie cutter effect.
 - e. Close-range shotgun normally leaves abrading burning, and heavy powder transfer.
 - f. Close-range shotgun blast (rapidly expanding gases) normally cause massive tissue damage and may even partially decapitate victim with head shot.
 - g. Rifled slug, due to size, will cause massive damage at almost any range. Normal rifled slug construction will usually mushroom and may leave numerous tiny lead fragments (may need x-ray to see).
 - h. Magnum shot shells increase both blast effect and penetrating power of pellets.

E. Shotgun Range

1. Done by firing test shots with suspect weapon and similar ammunition.
2. Rule of thumb, not a hard, fast guideline: One inch in pattern spread is generally gained by every yard in distance.

F. Misconceptions in gunshot investigations.

1. The entrance or in shoot wound is always smaller than the exit or outshoot wound.
2. When the wound of entrance is higher on the body than the outshoot wound, it follows that the assailant was pointing the firearm slightly downward toward the victim at the moment of firing.
3. The bullet always travels in a straight line in the body, from the entrance to the exit wound, or wherever it came to rest in the body.
4. Semi jacketed or hollow-point pistol or revolver bullets make "hamburger" out of organs of the chest or abdomen.
5. Right-handed individuals commit suicide by holding the handgun in the right hand with the muzzle in contact with or close to the right temple.

3.20.7 Strangulation

A. Hanging

1. When occurs.

- a. Usually suicide or accident.
 - b. Not common manner of homicide today.
 - c. Used to make murder look like suicide.
2. Cause of death.
 - a. Compression of nerves cause heart to stop.
 - b. Compression of arteries or artery (needs only several pounds of force on noose around neck) can cause loss of consciousness.
 - c. Compression of jugular vein.
 - d. Compression of trachea (airway).
 - e. Fracture of cervical spine (broken neck).
3. Marks on neck - easily noticeable furrow into the skin caused by the ligature.
4. Location of furrow.
 - a. Usually above horizontal plane through adam's apple or larynx and does not completely encircle the neck. Furrow is oblique approximately 45 degree angle with the long axis of the body.
 - b. Always preserve knot when cutting victim down.
5. Suicide Hanging
 - a. *Posture of victim - may be kneeling, sitting, or even lying down, only partial suspension may be present.*
 - b. *Check victim's hands for traces of rope fibre.*
 - c. *Check beam or area where ligature is anchored and ascertain direction of force.*

B. Strangulation

1. Usually results from airway blockage or restriction by direct pressure.
 - a. Ligature or manual.
 - b. Does not usually cause compression of neck arteries.
 - c. Usually part of another assault, rape, battery, etc.
2. Marks on neck.
 - a. Ligature marks.
 - b. Bruising.
 - c. Scratches from assailant's or victim's fingernails.
 - d. Is ligature consistent with crime scene?
3. Other marks on body.
 - a. Face may become purple.
 - b. Eyes may blacken.
 - c. Faces may swell up.
4. It is not uncommon for cartilage or the hyoid bone (small bone near larynx) to be broken during manual strangulation - less common if ligature is used.

C. Suffocation

1. Blockage of the passage of air through nose and/or throat.
2. Minimal or no signs of injury.
 - a. Tears or hemorrhage to mouth or nasal mucosa.
 - b. Trauma to inside of lips.
 - c. Torn frenulum.
3. As with any "close contact" type of death, must consider possibility of sexual assault.

D. Drowning

1. Interference of the passage of air due to submersion.
2. Beware of crime made to look like drowning; cover all angles.

E. Auto-erotic asphyxia or sexual hanging.

1. Not suicide, but accidental.
2. Male form of sexual perversion usually (female cases also exist though).
3. Accompanying sexual fantasy.
4. Noose cuts airflow and oxygen to brain heightening sexual satisfaction achieved at orgasm.
5. Victim may also have constructed a bondage apparatus (handcuffs, etc.).
6. Ages range from young to old.
7. Look for evidence of repetitive behaviour.

3.20.8 Blunt Force Injuries

A. Common in accidental death.

1. Auto vs. pedestrian, etc.
2. Fall at home.
3. Accidental injury from golf club, baseball bat, etc.
4. Suicide by jumping from building or bridge
5. Difficult area: criminal vs. accidental.

B. Not uncommon in murder.

1. Bludgeons - ball bats, tire irons, hammers, etc.
2. Also edged weapon, i.e., axe or meat cleaver.
3. Generally "weapon of availability."

C. Visible injuries are common.

1. Bleeding, abrasions, bruises (contusions).
2. Compound fractures.
 - a. Directional fracture may aid in determining direction of applied force.
 - b. Bone or cartilage may shatter, leaving numerous chips or splints in wound.
 - c. Edged bludgeons generally leave deep gaping wound containing characteristics of both cutting and blunt force.
 - d. Not uncommon for edged bludgeon to completely amputate limb or limbs. Generally, a rough, jagged wound.

D. Less visible injuries.

1. Minor abrasions or bruises on face and/or head may cover massive subdural haemorrhage (brain haemorrhage).
2. Bruises (hematomas) are an area of bleeding under the skin.
3. Bruises are usually a reddish colour at the onset and, as they heal, they change purple ("black and blue"), green, and finally brownish-yellow, older injury.

E. Severe enough force may cause internal vital organs to lacerate or rupture causing almost instantaneous death.

1. Car or truck running over body, etc.
2. Construction site accidents.

3. Fall from multi-story building.

F. Investigation of blunt-force wounds may provide:

1. Nature of instrument (weapon).
2. Amount of force used.
3. Direction of force used.
4. Foreign material useful as evidence.

3.20.9 Poisoning Deaths

A. As discussed previously, carbon monoxide generally leaves bright red skin.

1. Common method of suicide.
2. Numerous accidental deaths.

B. Ingested or swallowed poisons are sometimes difficult to detect.

1. Vomiting or foam in the mouth.
2. May cough up blood.
3. Cyanide leaves lips blue.
4. Lye or caustic leaves burns on mouth and lips.

C. Autopsy and toxicology will yield most productive evidence of poisoning.

D. Carefully search area for poisons, medications, or caustic solutions and preserve for fingerprints - victim's or suspect's.

3.20.10 Post Mortem Examination

A. Essential that a Forensic crime scene investigator attend.

1. Can provide invaluable information to pathologist.
2. Provide photos & other information obtained from the scene.
3. Photograph and secure forensic samples obtained during the examination

B. Every pathologist is different. They will work with you. Don't be shy about asking questions.

1. Make sure you have everything you need when you leave the Post Mortem Examination;
 - a. All standards - hair, blood.
 - b. Nail scrapings.
 - c. Finger and palm prints.
 - d. Sexual assault evidence kit.
 - e. Clothing
 - f. Projectiles, etc.
2. Take photos of the autopsy procedure, as well as photos of items of evidence found.

3.20.11 Conclusion

A. The death investigation is the most stress packed, emotional, important, exciting, high visibility case you will be involved in. Everything will be amplified even more if a police officer or public official is involved.

- B. Remember, be methodical. While time is of the essence, do not allow yourself to be rushed. If it is a large, complex scene, consider calling your supervisor for assistance. Once you leave the scene or Post Mortem Examination autopsy, it is extremely difficult to go back.
- C. Safety, yours, others at the crime scene or Post Mortem Examination, and your family, is essential. There is a multitude of disease and viruses you may be exposed to. **Use your protective gear properly and follow established safety procedures.**

3.21 Recovered Firearms SOP

3.21.1 Objective

To establish effective procedures for the handling of ALL recovered firearms to facilitate the collection of Forensic Evidence (i.e. fingerprints & DNA).

3.21.2 Procedure

Firearms are likely to be recovered by police in the following circumstances;

1. Persons found in PHYSICAL (**actual**) possession
2. Recovered during search of premises, vehicles (**constructive**) etc.
3. Found by police/public
4. Handed to police

3.21.3 Physical Possession (Actual)

Where a firearm is found in the PHYSICAL possession of an individual there is no need for it to be examined for fingerprints.

*In this scenario, the firearm should be rendered safe, photographed by a Scene of Crime Officer (if possible), sealed and labelled in accordance with JCF policies, **in the presence of the suspect** or if not present (reason to be recorded) then in the presence of another police officer.*

Completion of local records (*Station Diary, Firearms/Exhibits Register*) must be made by the finding officer.

A case file will be commenced by the finding officer and the investigation will be overseen, by at least a Sub Officer, reporting to the DDI for the Division/Unit concerned.

The suspect will be interviewed (Question & Answer) in accordance with JCF investigative policies.

The firearm WILL be taken to the Government Forensic laboratory, by the finding officer, unless another officer is directed, for ballistic examination, together with a Laboratory submission form. A copy of this form will be returned, with a certified receipt, to the DDI. Continuity of exhibits must be fully recorded.

At the conclusion of the ballistic examination the firearm will be securely retained and MUST be collected from the appointed store for court and returned promptly afterwards.

3.21.4 Other Circumstances of Finding (Constructive)

There is a requirement to gather all possible forensic evidence, to determine who may have handled/possessed the firearm. The following procedure will be followed:-

- ☐ The firearm should be rendered safe, taking care to avoid contamination, gloves should be worn and all efforts made to minimise the handling of the firearm in this process.
- ☐ The firearm should be photographed (if possible) in 'situ' by a Scene of Crime Officer, ensuring all markings/adaption's etc are recorded, both in the photographs and in the officers notebook.
- ☐ The firearm will then be sealed in an appropriate package (specialist forensic gun boxes are available) and sealed by the finding officer.

Note: A to C above should all be completed in **the presence of the suspect** or if not present (reason to be recorded) then in the presence of another officer.

- ☐ The firearm (securely packaged in accordance with JCF policies & SOP's) will be transported, by the finding officer, unless another officer is directed (continuity being recorded at all times), to a nominated Scenes of Crime Office for Cyanoacrylate (Superglue) Fuming Chamber and DNA examinations.
 - ☐ Completion of local records (Station Diary, Firearms/Exhibits Register) must be made by the finding officer.
 - ☐ A case file will be commenced by the finding officer and the investigation will be overseen, by at least a Sub Officer, reporting to the DDI for the Division/Unit concerned.
 - ☐ The suspect will be interviewed (Question & Answer) in accordance with JCF investigative policies.
 - ☐ The firearm will be taken to the Government Forensic laboratory, by the finding officer, unless another officer is directed, for ballistic examination, together with a Laboratory submission form. A copy of this form will be returned, with a certified receipt, to the DDI.
- Continuity of exhibits must be fully recorded.***
- ☐ At the conclusion of the ballistic examination the firearm will be securely retained and MUST be collected from the appointed store for court and returned promptly afterwards.

3.21.4.1 CYANOACRYLATE FUMING CHAMBERS are at the following locations:

In the Corporate Area:

- ☐ Technical Services Division Headquarters – 34 Duke Street, Kingston.
- ☐ Kingston & St Andrew Major Investigation Taskforce (K&S MIT) Ocean Boulevard, Kingston.
- ☐ Area 1 (Summit Police Station in Montego Bay, St James).
- ☐ Area 2 (Pompano Bay in St. Mary).
- ☐ Area 3 (May Pen, Clarendon).

Forensic examinations – it must be stressed that all possible steps should be taken to minimise contamination of all recovered firearms (almost impossible in cases involving a suspect who is in physical possession due to safety factors) and the firearms should be thoroughly processed for fingerprints and if possible, DNA. It may be revealed that other persons may have handled these firearms which could prove important to other investigations.

APPENDIX 3 A

AUTOPSY REQUISITION FORM



The Director,
Legal Medicine Unit
Ministry of National Security

Date:-----

Dear Director,

I (Name of the Investigating Officer) of (Police Station)

JCF/ BSI / MIT Request the Postmortem Examination on the body of the deceased

..... (Name) (Age) (Sex) who died

on..... at(Address)

The body is now shifted to Morgue/Funeral Home.

The following are the circumstances surrounding the death

.....

The date and place of the autopsy be kindly informed to the undersigned whose telephone no
and fax no is

I depute the following Police Officer (Name) Regulation No
for the said Purpose (Optional).

Regards

Signature and Name. with Stamp.

Note: Autopsy order means for complete examination, besides retention, removal and examination of organs and for disposition of such materials as the Pathologist Determine.

CHAPTER 4

POLICY GUIDANCE & GOOD PRACTICE

4.1 Good Practice

Success will be measured in identifying the true circumstances of an unexplained death, and where a criminal offence is apparent ensuring the offender is quickly identified and brought to justice.

4.2 Key Elements in the Process

Key elements in this process are:

- ☐ Effective first response & scene preservation
- ☐ Being receptive & open to all means of communication and from all sources (witnesses, family etc. & even potential suspects)
- ☐ Coordination of intelligence & operational resources
- ☐ Reviewing & tasking staff to manage the inflow of information, managing the activities and sharing best practice across all those involved in the investigation - **Regular office/team meetings to ensure compliance.**
- ☐ Briefing & debriefing all staff
- ☐ Handling the media & the local community
- ☐ Prompt implementation of 'manhunts' for wanted persons and those who are 'persons of interest' to the investigation. (*See CIB Wanted Persons policy*).

The most successful investigators are those who are willing to engage all levels of society and take time to ensure staff are fully aware of how their activity can positively impact on an investigation

4.3 Intelligence

The value of intelligence in murder and other serious investigations should never be underestimated. Intelligence officers can be directed to undertake a wide range of tasks including:

- ☐ Research victims;
- ☐ Victim history – associations/lifestyle;
- ☐ Research suspects history/associations;
- ☐ Help IOs with briefing/debriefings;
- ☐ Prepare investigation bulletins for circulation;
- ☐ Liaison with other intelligence units and NIB;
- ☐ Managing 'sources' of information in consultation with the IO;
- ☐ Research to establish possible linked offences;

- ☐ Research JCF databases, for example, HCCT, NIB, CRO, Inland Revenue vehicle database, National Voters Register, Open Source checks (internet);
- ☐ Research non-police data sources, for example, Customs, local authorities, Insurance companies, utilities and so on;
- ☐ Research and provide information likely to assist investigations, for example house to house, interview of suspects;
- ☐ Research relevant prison releases;
- ☐ Obtain and research telephone intelligence; and
- ☐ Conduct initial hot-debrief of team that initially dealt with incident.

Analysts and researchers applying an analytical approach to the information flowing into the investigation will help the IO to establish the facts. Importantly analysis can enable the IO to continually review the progress of the investigation, with the following benefits:

- ☐ Assist mature assessment of information;
- ☐ Structure information;
- ☐ Identify new lines of enquiry; and
- ☐ Research specific elements of the investigation as directed by the IO.

4.3.1 Intelligence Dissemination

There is no doubt that murder inquiries capture and develop a lot of information and intelligence. The IO should ensure that intelligence is disseminated as appropriate without any damage being caused to the investigation. Where intelligence suggests a threat to life (public and/or officer safety) it should be sanitised and disseminated at the earliest opportunity.

At the conclusion of a major enquiry, after everything has been finalised on an investigation, A closing report must be submitted to ACP CIB and submitted together with the file so that it may be retained for a period of 25 years at the JCF Records Branch. The submission of this report is the responsibility of the IO.

The report & docket will be sent through the DIU so that all relevant intelligence can be obtained and forwarded to CIB HQ for processing and onward transmission to Registry Branch. All murder files are retained for at least 25 years when they will then be reviewed for further retention.

4.3.1.1 Intelligence Evaluation and Handling System (5x5)

It is of vast importance that valuable intelligence outside of the terms of the investigation is disseminated appropriately, via the Intelligence Evaluation and Handling System (5x5). For further guidance see a summary of the 5x5 system which is included in chapter [4.22.6](#).

4.3.2 Release of Post-Conviction Photographs

The decision whether or not to release a post conviction photograph rests with the Assistant Commissioner of Police in charge of CIB.

In order to assess any request for the release of a photograph to the media following will be considered:

1. Facts of the case
2. Public interest considerations
3. Whether or not the photograph is available elsewhere in the public domain
4. Media interest
5. Publicise JCF successes in particular crimes or criminal networks.
6. Reassurance to the general public
7. Constitutional & Human Rights considerations
8. Consideration of the views of the victim and their families.
9. Potential for detecting further offences by release of photograph.
10. Risk Assessment.

4.4 Passive Data Generators

Passive data generators is the term used to describe automated systems that gather information for purposes unconnected to criminal investigation, but which can be accessed by investigators. They are widespread and investigators will be familiar with the use of passive data generators such as CCTV and telephone billing systems.

Examples of passive data generators are:

- ☐ Financial information;
- ☐ CCTV and other images;
- ☐ Personal Computer information;
- ☐ Telecommunications information ;
- ☐ Voice-recording systems;
- ☐ Customer information, including subscriber information;
- ☐ Access systems;
- ☐ Automatic Number Plate Readers
- ☐ Vehicle Tracking Systems.

4.4.1 CCTV

The IO should ensure that all CCTV (public and private) is secured where evidence or intelligence may be captured. This should not only include any CCTV around the scene or scenes but also any CCTV that may cover access and egress to those scenes. It may well be that the CCTV is part of a wider route for either a vehicle or person that may provide that invaluable piece of film that can assist an investigation. CCTV is also available on some JUTC vehicles and these should be considered for enquiry/capture.

Officers seizing CCTV evidence must at the time of seizure check and note the time set on the recording device against the actual time, using the most accurate available source, to establish any variance in the recorded timings.

They should also enquire as to whether the timer unit on the device has been adjusted between the date/time of the incident and date/time of seizure.

Such verification must be included within the officer's statement.

The Technical Services Division (TSD) & the Communication Forensics & Cybercrime Unit (CFCU) at OCID are able to offer assistance to review CCTV data.

The **IO** should direct officers nominated to co-ordinate the CCTV trawl, capture and processing to keep a log of what, where, how and by whom viewing was undertaken.

There may be occasions where urgent viewing of CCTV is required to capture intelligence. This should be done with care to ensure no damage is caused to the original exhibit. It is suggested that a working copy is made at the earliest opportunity and originals retained through exhibit handling/storage.

4.5 Telephone Investigation Strategy

4.5.1 Single Point of Contact

The JCF have implemented a specialist support unit – **Communication Forensics and Cybercrimes Unit (CFCU)** as published in **Force Orders 14th July 2011 # 3345** sets out their terms of reference and the activities they will support. This is the single point of contact for the JCF with all communication service providers (Digicel, flow etc) in Jamaica.

Every geographic division and specialist investigation unit will have a nominated **Telecommunications Liaison Officer (TLO)** who will assist **IOs**. The TLO, will ideally have undergone CFCU Communication Intelligence Unit training, and if not, an officer should be identified who has the aptitude for understanding and interpreting communications data. In addition, a suitable deputy should also be appointed to ensure continuity should the TLO be unavailable. These appointments should be made at a very early stage of an investigation, if telephone enquiries and/or Intranet enquiries are likely to feature in any way in an investigation. This officer will be the single point of contact/reference for all telephone or Internet actions in respect of that investigation.

Prior to submitting any requests it is essential that early contact is made with the CFCU so that the Operation can be allocated to an officer within the CFCU and an enquiry reference number obtained. An early meeting between the TLO and the CFCU is essential so that a telephone strategy can be developed and agreed; that addresses both the intelligence and evidential needs of the **IO** whilst ensuring strict compliance with legislation.

4.5.2 Strategy Meeting

In order to prioritise applications to the CFCU and properly consider the relevance of findings, the **IO** or deputy should chair regular telephone strategy meetings. The minutes of these meetings should be retained in the case file. A policy decision should be made to the effect that applications will only be made to the CFCU sanctioned by this meeting or by the **IO** in cases of urgency. Such a meeting does not absolve the 'Designated TLO' of his/her responsibilities.

4.5.3 Results

All results from CFCU and itemised billing should be retained by the TLO and shared with the DIU and the IO should carefully consider indexing policy in relation to such material. It is important that any actions emanating from the investigation are consistent with the telephone strategy agreed by the TLO and the CFCU. Ongoing liaison between the IO and the TLO will assist in this aim.

4.5.4 CFCU

The CFCU will support any investigation in terms of meetings with the Office of the Director of Public Prosecutions and or a Court Clerk and will advise regarding issues of evidence, expert witnesses and Public Interest Immunity. The CFCU will seek to promptly facilitate any meetings with expert witnesses to ensure evidential issues are resolved as quickly as possible. In addition advice will be given in terms of the presentation of telephone data for court purposes. If required and available, officers from the CFCU will attend court to support any prosecution and will also act as the point of contact with the Communication Service Providers to ensure statements are obtained and evidential issues are appropriately addressed.

4.5.5 'Golden Hour' Advice

The CFCU (on-call) officer is available through the HCCT and/or Police Control to provide 'golden hour' advice re the maximisation of forensic opportunities relating to telephonic equipment.

4.6 Witness Appeal Signs

Witness appeal signs should only be used if they are likely to be productive. Their use is not mandatory.

The placing and retention at a scene of an appeal may affect the locality; it is particularly important to remove them promptly to reduce the perception of high crime and general fear of crime.

4.6.1 Community Advice Signs

The IO should give consideration to Community Advice Signs. This provides reassurance around the investigation and police action. For example, if a murder occurred in a public park then consideration should be given to placing a sign on the gates providing safety advice. Such signs can double as witness appeal signs.

4.7 Rewards

4.7.1 General Conditions for the Offer of a Reward

The offer of a reward for information is a significant tool for IOs when considering ways to support an investigative strategy. Advertising such a reward should always be considered as an option by officers reviewing murder or other serious crime investigations.

The use of a reward may have implications for subsequent court proceedings and is subject to strict guidance in respect of disclosure to the prosecutor, and therefore needs to be judiciously controlled. **Rewards may be offered from JCF funds only by the Commissioner of Police**, through ACP CIB.

Rewards from other sources (e.g. companies, media, other non government organisations or individuals) requires specific consideration and additional processes; we should consider utilising the existing 'Crimestop' scheme and as such, a report must be sent through ACP CIB for this to be considered, as particular care in wording must be considered when any reward is offered. Crimestop play a vital part in this process and they can be consulted for advice and guidance prior to developing this further.

Whenever a reward is being considered or offered for information in connection with a major crime, police must establish a proper contract between themselves and the person or organisation making the offer. This must be in writing and must detail exactly what conditions must be fulfilled for the reward to be payable. Most commonly this will mean specifying whether the contract is satisfied by an arrest, a charge or a conviction, but there may be other specifications and each case will have to be treated on its own merits.

In every case where the media or other organisation is considering the issue of a reward, police investigators should work to ensure they are consulted and an holistic assessment made of the opportunities and threats that the existence of a reward might create.

If written agreement is not reached, authority cannot be given for publication of a poster, or publication by way of a broadcast on television or radio or in the press.

Police officers must not solicit the offer of any reward.

4.7.2 Posters without Photographs

Authority for the publication of reward posters with or without photographs must be sought from ACP CIB.

The report should contain:

- ☐ Brief details of the case;
- ☐ The reasons for requesting publication;
- ☐ The source of the reward, the conditions attached to it and any grounds on which the offer might need to be rejected.

A copy of the written agreement between police and those making the offer must accompany the report. Advice of Crimestop should be obtained and wherever possible Crimestop should provide assistance in all such cases.

4.7.3 Posters with Photographs Seeking Suspects

Where it is intended to publish a photograph, the authority level will depend upon the reason for publication.

- ☐ Where the **suspect is not known** to police and his or her identity is sought, authority may be given by the Divisional Crime Officer (or equivalent rank in a specialist formation).
- ☐ Where the **wanted person is known to police** and his or her location is sought, authority must be obtained from ACP CIB.

In either case, where the Commissioner does not hold copyright on the material, written authority from the person who holds the copyright must also be included. Reports requesting the publication of a photograph should indicate that the **IO** has considered the effect the publication may have on subsequent identification evidence. Where publication of a photograph is linked to an offer of reward, a copy of the written agreement between police and those making the offer must accompany the report.

The Police National Computer Centre manage “the JCF Wanted” website. Any requests for inclusion in “the JCF Wanted” are to be submitted to the ACP CIB.

4.7.4 Police Action when a Reward is Claimed

Any request for a reward made by a Covert Human Intelligence Source (CHIS)/registered informant must be referred to Assistant Commissioner, NIB (Intelligence) for a decision and further action.

This also applies to people who have a criminal record or have been involved in crime but who have not been formally registered as a covert human intelligence source.

Any other request will be communicated to the person or organisation who offered the reward for their action. In these cases, police will not be involved in the payment of the reward but will act only as intermediaries.

4.7.5 Search Strategy

During the course of any murder or other serious investigation, the need to search crime scenes will become an important action which needs to be undertaken. Each investigation is likely to present a number of crime scenes that will require the **IO** to make critical decisions as to the:

- ☐ Identification of the scene;
- ☐ Priority for search purposes;
- ☐ Reason for the search;
- ☐ Forensic co-ordinations;
- ☐ Cross contamination
- ☐ Search methods to be employed;
- ☐ Order in which search methods will be used; and
- ☐ Health & Safety risk assessment and strategy concerning scene(s).

The need for the **IO** to ensure that each scene is professionally managed is of utmost importance. There needs to be a considered search plan for each scene which should be accurately recorded in the decision log and clearly communicated to those persons charged with the responsibility for carrying out the search. The use of specialist search teams (Caribbean Search Centre) must be carefully considered for deployment.

Other than where life and limb are an issue, forensic search has primacy over physical search. It is therefore very important to include the Crime Scene Manager in the formulation and implementation of the search strategy.

The main strategic issues to be considered by the IO are:

Define the scene	Search objectives	Managing the search
Scene identification	Reason for search	Co-ordination
Scene parameters	Search priority	Methods employed
Scene priority	Fast track searches	Legal issues
		Recording action
		Health & Safety risk assessment

4.8 House to House (H2H) Enquiries

The instigation of immediate house-to-house enquiries, more accurately described as ‘immediate directed enquiries’ is an important tactical consideration. Supervisory officers should consider the likely benefits of carrying out initial ‘fast-track’ directed local enquiries to identify witnesses at the earliest opportunity. Records must always be meticulously kept and maintained. Records must document which premises were visited including those premises where no reply was received or the occupant stated they had no information. It is important that officers are fully debriefed before undertaking subsequent house-to-house enquiries

4.8.1 House to House (H2H) Enquiry Teams – Protocol for Deployment

The IO must ensure that a House-to-House co-ordinator is appointed from within the team. The IO House to House strategy should include the parameters and rationale. Furthermore the IO should document the briefing plan and any additional questions to be asked of occupants together with which forms are required to be completed. Personal Descriptive Form (PDF) policy should additionally be documented and relayed to the team at this stage.

In addition to those officers from the Mobile Reserve and Divisions, the co-ordinator should consider utilising the Island Special Constabulary in undertaking H2H; and in cases requiring such, a request can be made to the ISCF for their assistance. All those involved must be given proper instruction and be briefed and de-briefed. Consideration must be given to the most appropriate days and times to conduct H2H. The co-ordinator must ensure that Personal Description Forms are completed in accordance with the IOs PDF policy and scrupulous cross-referencing undertaken.

4.8.1.1 Risk Assessment

The House to House Co-ordinator must ensure that an appropriate risk assessment is undertaken, and formally recorded within the House to House Strategy Document and entered into the case file.

4.8.1.2 Analysis of Location

Once the location parameters have been set, intelligence systems should be analysed to establish if there are any people or events in the area that those carrying out H2H enquiries should be aware of. This could include:

- ☐ Violent offenders who pose a risk;
- ☐ Those wanted for other crimes or on warrant;
- ☐ Groups with particular linguistic or cultural needs;
- ☐ Local incidents or issues which residents may raise with the police.

Analysis of other records such as the electoral roll, force command and control systems, may assist with the reconnaissance of the area

4.8.1.3 Divisional Geographic Formations Responsibility

It is the responsibility of all Divisional geographic formations to provide house-to-house enquiry teams and their training.

The H2H team trained on Division should normally consist of one sergeant and five constables but can consist of a greater or lesser number depending on the nature of the tasking.

4.8.1.4 Responsibilities of the Investigating Officer

Clearly, IOs seeking H2H teams must consider the needs of the investigation and the most appropriate time for such enquiries to be undertaken and must balance the logistical and other implications of mobilising teams. Short notice H2H resource demands are only to be requested if absolutely necessary. IOs must consider the deployment in accordance with best value principles and take into account the many other abstractions that apply to Divisions.

Wherever possible, at least 24 hours notice should be given of the requirement for a H2H team.

4.8.1.5 Mobile Police Station

The JCF has a number of Mobile Police Stations available for deployment at scenes. Their use as a reception centre and focal point should be considered. They are available through Community Safety & Security Branch.

4.9 Arrest Strategy

Whenever circumstances permit, arrests should be well planned and the opportunities they present should be fully exploited to prove or disprove the involvement of the suspect in the commission of the offence.

Many issues will affect the preparation of an 'arrest strategy' but the following may help the **IO** in devising their main strategic issues:

Legal	Arrest Justification	Intelligence	Planning
Grounds for arrest	Description	Source information	Risk assessment
Search warrants	Implicating facts	Antecedents	Firearms
Suspect samples	Evidence	Lifestyle	Briefing Officers
	Need to protect	Associates	Custody issues
	Public/suspect To secure forensic evidence.	Previous convictions	Forensic issues Relevant MO Human Rights Health and Safety

4.10 Identification Strategy

The identification of an offender is frequently the turning point of a murder or other serious investigation. When identification is an issue, it is vital that the identification evidence is secured in a manner which will stand scrutiny in court. It is essential that **IOs** are fully aware of the rules governing identification procedures and aware of the pitfalls surrounding this subject.

Assistance is available through the Visual Identification Unit (VIU) at Operations Branch.

The VIU has mobile facilities and fixed sites, with locations at;

- ☐ Kingston Central
- ☐ St Catherine South (Hundred Man)
- ☐ Manchester (Mandeville)
- ☐ St Ann (Ocho Rios) and another site which is still being developed for St James.

All identification procedures must conform to legal requirements and is fully described in [Code D.](#)

4.10.1 Electronic Facial Identification technique (e-Fit)

Additionally, the VIU have specially trained officers to provide sketches (mobile & at the above locations) utilising the e-Fit system. This is ideal for identifying suspects who are not known to a witness, or the investigators. In such cases, the witness will be interviewed by the police 'artist' who will then provide an 'e-Fit' sketch of the person described. This can then be published in the media, or internally circulated for police use only.

Any suspect held may require an identification procedure and as such consideration of this will be required by the **IO** to avoid 'exposure' on the suspects arrest. Should an identification procedure be required, the e-Fit sketch should be shown to the suspect's attorney, in accordance with [Code D.](#)

4.11 Interview Strategy

Interviewing of suspects and, when appropriate, 'Vulnerable' or 'significant' witnesses is a vital stage of any murder investigation. Interviews should be well planned, based upon detailed research of all the available evidence. Interviews must be conducted professionally and with integrity, thereby minimising the frequency of defence challenges. The **IO** must play an active role and should be influential in developing the interview strategy. The interview strategy and in the case of suspects, pre-interview/staged disclosure strategy should be fully documented by the **IO** together with rationale within the decision log.

The main strategic issues to be considered by the **IO** are as follows:

Selection of Interviewers	Planning the interview	Managing the interview	Selection of interviewers
Training	Briefing	Co-ordination	Training
Experience	Research	Disclosure	Experience
Suitability	Structure	Suspect support	Suitability
Number of teams	Disclosure	Continual review	Number of teams
	Venue	Expert Support	

In complex cases, **IOs** can appoint an interview advisor to assist them with these aspects of the process.

Identification of suspects must be within the legal requirements as outlined in [Code D](#).

To support the implementation of interview strategies, a number of projects are nearing completion. These will be the subject of further instructions in due course.

The projects include:

- ☐ Level 1 course (interviewing skills);
- ☐ Provision of CCTV interview recording equipment at selected sites; and
- ☐ Level 2 video recording interview training for 'significant' witnesses and /or suspects.

The Force will ensure that sufficient training is provided, in relation to the existing laws and relevant guidelines for interviewing 'significant' and vulnerable witnesses are adhered to.

4.12 'Significant' (Key) Witness

4.12.1 Introduction

'Key' witnesses are sometimes referred to as a 'significant' witness.

'Vulnerable' witness is a term being considered in an 'Amendment to the Evidence Act' and if passed & Gazetted may refer to;

- ☐ 'Vulnerable child witness' may mean a person under the age of eighteen years
- ☐ 'Vulnerable witness' may mean a witness who is eligible for assistance under Section 31T or 31W (subject to amendment).

The term 'significant' is used in the following paragraphs to avoid repetition and any user of this manual is required to check the amendments, if made & passed, to the Evidence Act.

The JCF policy on interviews with 'significant' witnesses - that active consideration must be given to making a visual or audio-record of the interview, wherever possible.

4.12.2 Definitions

4.12.2.1 General Criteria

Subject to legislative change – the JCF provides the following definition:

'Significant' witnesses are those who:

- ☐ Those who have been, or claim to have been, a first-hand witness to the immediate event or events directly associated with it; or
- ☐ Those who have, or claim to have, witnessed a confession or threat; or
- ☐ Those who stand in a particular relationship to the victim, or to some other person who appears to be of importance to the enquiry.

Any legislative changes may add to this definition concerning 'vulnerable (child) witnesses' and these must be considered in relation to this section.

Police officers who fall within the above definition should also be considered for formal interview as 'significant' witnesses.

Investigating officers have, however, a general discretion to treat any witness as significant where this would in their judgment be beneficial.

4.12.2.2 Categories of Victims Always to be Considered as 'Significant' Witnesses

The victim should always be considered a significant witness in instances of:

- ☐ Attempted murder;
- ☐ Shootings;
- ☐ Serious sexual assault;
- ☐ Kidnap;
- ☐ Robberies in which firearms are discharged and cause physical injury; and
- ☐ Serious physical (woundings) assault (especially where there are grounds to believe the victim may die).

4.12.3 Interviewing 'Significant' (Key) Witnesses

4.12.3.1 JCF Policy

The term 'significant' witness or 'Key' witness is not defined by reference to particular offences. The following list is however a guide to the types of offences where there is a strong presumption that witnesses meeting the general criteria in paragraph **4.12.2.1** (above) will be dealt with in accordance with these procedures;

- ☐ Murder;
- ☐ Manslaughter;
- ☐ Road death (where there is an allegation of failing to stop or where the driver's identity is an issue);
- ☐ Shootings
- ☐ Serious physical (woundings) assault (especially where there are grounds to believe the victim may die);
- ☐ Serious sexual assault
- ☐ Kidnap;
- ☐ Robberies in which firearms are discharged and cause physical injury; and
- ☐ Any criminal attempts or conspiracies in relation to the above offences.

4.12.3.2 Decision Making

At an early stage of an investigation, the **IO** must determine who are the 'significant' witnesses and they must record their decisions and rationale about their management.

IOs must record their decisions as to whether a visual or audio record of an interview with a witness is to be made. They must also record the underpinning rationale for their decisions.

Note: Compliance is required regarding the Use of Digital Media in Criminal Investigations Policy (Force Orders 6th October 2011, #3357).

4.12.4 Benefits of Visual or Audio-Recordings

The use of visual or audio recordings allows the officer and the witness to engage in a more normal conversation than is the case when a written statement is being taken because it is necessary to stop and start the conversation to enable notes and the statement to be written. The stopping and starting of the conversation interrupts the flow of recall from the witness and consequently, it is more likely that small but important elements will be missed from the interview. In addition, the benefits also include:

- ☐ Increase the amount and quality of information gained from the witness;
- ☐ Safeguarding the integrity of the interviewer and the interview process;
- ☐ Increased opportunities for planning, officer training and reviewing the witnesses disposition and demeanour; by replaying the recording; and
- ☐ Supporting Section 31d of the Evidence Act, if applicable.

4.12.4.1 Other Factors to Take into Account

It may not, however, always be desirable or practicable to make an audio or visual recording immediately or at all. Reasons for this include the following:

- ☐ At an early stage of an investigation, the need to preserve life, preserve scenes, secure evidence, identify victim(s) and identify suspect(s). Accurate records must, however, be kept.
- ☐ Potential delay between interview and the written statement may, for example, undermine the expeditious progress of the investigation and an early decision to prosecute.
- ☐ For a variety of reasons, witnesses may become unavailable or subsequently withdraw their co-operation whilst a statement is being prepared from the recording.
- ☐ The need to take into account identifiable risks in relation to disclosure of witness identification and security where video recording is used.
- ☐ The wishes of the witness. (See consent below at **4.12.8.1**).

4.12.5 Selection of Interviewers

Officers conducting interviews with 'significant' witnesses, whether visual or audio recording is used, should be appropriately trained with at least the level 1 training (Core Skills) and where possible the level 2 course (video/audio recorded interview training course).

Consideration should also be given to:

- ☐ The competence and experience of the interviewing officer in respect of the type of offence being investigated and any other skills he or she possesses that could be useful; and
- ☐ The suitability of the particular officer to undertake the interview including:
 - ☐ Welfare issues; and
- ☐ Whether any previous experience that the officer has with the witness is likely either to inhibit rapport-building or to give rise to challenges from the defence of coaching, prompting or offering inducements.

4.12.5.1 Improvements in the quality of statements taken from witnesses. **(Force Orders 5th May 2011 #3335)**

This publication reminded all officers of the urgent need for improvement in the quality of statements taken from witnesses, particularly in cases of homicides and provided updated guidelines for investigating officers under Section 31D of the Evidence Act.

'Key' witnesses in any homicide investigation should be interviewed by trained officers (at least to level 1) and consideration should also be made to record the interview using audio/video equipment. These statements must include full details of the suspect (detailed description, addresses, school/employment, occupation, full details of relatives and other useful social background information about the defendant etc.)

Any alias used without a full name requires further specific considerations and this should include obtaining a statement from persons in the community, who can corroborate the information obtained (above) and also say, what alias the person is known by and whether any others locally are known by the same alias. Where necessary an identification parade must be held.

Where the identification is made by way of voice recognition similar rules apply as in **R v Turnbull** (1977) and statements must include all the required information – length of time known/seen/heard speaking etc.

S31D of the Evidence Act requires that **ALL** reasonable efforts must be made to locate the witness. The following is a list of efforts which **IO** would do well to complete in order to satisfy this requirement:

- ☐ Visit all known addresses (home, work, church etc) armed with a subpoena on at least ten (10) occasions, at different times of the day and on different days.
- ☐ Speak with relatives, neighbours and friends as to the last time the witness was seen. If possible, ascertain different addresses and visit these, as above.
- ☐ Ensure the ODPP has considered applying for a media publication to have an advertisement placed on radio and in newspapers. Secure the newspapers within which the advertisement is placed as an exhibit. (the ODPP will apply to the Ministry of Justice for a CCN publication through the Deputy Commissioner of Police)
- ☐ Make checks re admissions and deaths at the major hospitals in the area (Corporate Area would be KPH & UHWI)
- ☐ Check the local approved Funeral Home as well the Registrar General's Department to determine if the witness is dead.
- ☐ Check with Immigration Authorities.
- ☐ Make checks at places of employment, schools etc.
- ☐ Ascertain areas witness frequents for leisure and make several visits and checks at them, including at different times/days.
- ☐ Whenever possible, record statements from persons who may be able to speak directly at the unavailability of the witness, e.g. close relative, neighbour, employer
- ☐ Finally, the **IO** ought to keep **detailed** notes relating to the dates and times when the above checks are made and the names of persons from whom information was received.

In writing the further statement, the **IO** must ensure the statement reflects just how exhaustive a search was made. The various checks must be detailed with dates and times in chronological order from the earliest to most recent efforts. The most recent efforts should be made as recent as the day before the statement is actually written. Efforts should be made to locate the witness, as close as possible to the date of the hearing.

4.12.5.2 Family Liaison Officers

While Family Liaison Officers (FLOs) routinely take statements in respect of identification and antecedence issues, they should not normally be tasked to conduct a 'significant' witness interview with a family member after careful consideration of the following factors:

- ☐ Whether or not the FLO has the skills to conduct such an interview;
- ☐ The extent to which the FLOs position with the family is likely to be compromised by the need to challenge the witness's account;
- ☐ Whether the FLOs knowledge of the circumstances of the case is such that it might inadvertently contaminate the interview process; and

- ☐ Whether it is reasonable and realistic to expect the FLO to remain sufficiently objective in view of the particular circumstances of the case.

Where a FLO is tasked to conduct a 'significant' witness interview, it is important that he or she is debriefed afterwards and their ongoing deployment in the role with the family reviewed.

Any decision to task a FLO to conduct a 'significant' witness interview the rationale for it and the decision made after he or she has been debriefed should be recorded in the IOs decision/policy log.

4.12.6 Facilities

4.12.6.1 Visual or Audio Recording

Where a decision is made to record an interview with a 'significant' witness, the advantages of recording the process are most likely to be maximised through a *visual* recording.

Consideration should, however, be given to recording the process on audio-tape if:

- ☐ Visual recording equipment is not available when it is necessary for the interview to take place; or
- ☐ The witness does not wish to be visually identified on a recording.

4.12.6.2 Location of Interview

Ideally, interviews should take place in purpose-built interview suites.

If this is impractical, the interview may take place at an alternative, appropriate location using approved, portable equipment.

Currently sites are provided at;

- ☐ CISOCA HQ (Special unit for children & victims of sexual assault)
- ☐ The Kingston & St. Andrew MIT,
- ☐ St. Catherine MIT &
- ☐ Anti-Corruption Branch offices in St James.

Additional sites are expected to be opening in Area 2 & 3 in due course.

In the event of it being necessary to interview a witness at his or her home address, care should be taken to avoid saying anything, or visually recording any background material, that might lead to the location being identified.

4.12.7 Planning and Preparing the Interview

All interviews must be conducted in a framework of a phased approach (see paragraph [4.12.8.2](#)).

4.12.7.1 Guidance on Planning the Interview

The planning phase of an interview with a witness involves some consideration of three types of information:

- ☐ Information about the witness;
- ☐ Information about the alleged offence(s); and
- ☐ Information important to the investigation.

More detailed guidance is given below about the planning and preparation of interviews, but at this point, it is important to note that the quality of the interview and the information obtained will depend to a great extent on the care that is taken in the planning and preparation process. The interviewer and the IO should go through the investigation and carefully prepare a written schedule of the topics to be covered in the interview in relation to the witness, information relating directly to the alleged offence and other areas to be explored that will be helpful to the investigation.

4.12.7.2 Process for Conducting the Interview

- ☐ Make a visual or audio recording of the interview and then, as soon as possible after the interview, using the recording to prepare a full written statement of the witness's evidence derived from the video or audio recording. This should then be presented to the witness for reading and signing.
- ☐ The recording and any related notes will be retained as 'unused material' and will only be produced, if required, at a later date on the directions of the ODPP or a Judge.

In circumstances where multiple witnesses are involved, it will be necessary to limit the number of interviewees who are visually recorded according to the resources that are available. Such a decision should be made by the IO in charge of the investigation and a record should be made of the rationale underpinning it, including the criteria used for determining which interviewees were visually recorded.

IMPORTANT: IOs must record their decisions and the underpinning rationale.

4.12.8 Conducting the Interview

4.12.8.1 Consent

It is a general principle that all witnesses should freely consent to be interviewed and to have the interview recorded on video. For this reason, interviewers should explain the purpose of a video recorded interview to the witness. Such an explanation should include:

- ☐ The benefits/disadvantages of having or not having the interview video-recorded; and
- ☐ Who may see the video-recorded interview (including the alleged offender).

While interviewers should make a record of the action taken to obtain consent for a video-recorded interview, it is not necessary for the witness to give their consent in writing.

4.12.8.2 PEACE Interviews

The interview is a process in which an interview technique is deployed in the framework of a phased approach. The PEACE model is an example of the phased approach.

PEACE, for best investigative interviewing practice for witnesses, defines the interview aim as:

- ☐ To obtain evidence to prove or disprove the suspects involvement in the alleged offence.
- ☐ To obtain information that will assist with the investigation.

An interview is:

The process of obtaining as much information as possible by enabling the witness to recall as much detail as possible about an alleged incident that is relevant to the investigation of a criminal offence

The skill and sensitivity of the interviewer is an integral part of the role of any police officer.

4.12.8.3 The Interview Model

The interview model, on which the content of the police training courses are based, consists of a series of operations captured using the mnemonic **PEACE**. This stands for:

- P** – Preparation and planning
- E** – Engage and explain
- A** – Account
- C** – Closure
- E** – Evaluate

P – Preparation and Planning

The **IO** should prepare an interview plan, connecting this to the prosecution evidence, identifying specific areas requiring investigation, points to prove the offence, and negation of defences. It is essential that before starting an interview, interviewing officers remind themselves of the main elements of the offence(s) they believe to have been committed. This will enable officers to be clear, when framing questions and directing the course of the interview, which points it is necessary to be able to prove, by evidence, if a prosecution is to be sustained. All officers should have access to a brief reminder of the main elements of the most common offences for this purpose.

Crucial elements of good planning and preparation for an interview situation include:

- ☐ Understanding the purpose of the interview;
- ☐ Defining the aims and objectives of the interview;
- ☐ Understanding and recognising the points to prove;
- ☐ Assessing what evidence is available and from where it can be obtained;
- ☐ Assessing what evidence is needed and how it can be obtained;
- ☐ Understanding Judges Rules;



Preparing the mechanics of the interview (stationery, exhibits, location etc).

E – Engage and Explain

These two terms also known as interview Preamble' refers to early phases within the actual interview and is defined as follows:

The essential element of **engagement** is an introduction appropriate to the circumstances of the interview. It is desirable that a proper relationship is formed between the interviewer and interviewee. This requires, for example, that the officer develops an awareness of, and is able to respond to, the welfare needs of the interviewee and any particular fears and expectations. This phase is also called "establishing rapport".

The engage phase is followed by the **explanation** phase in which the officer should outline the reasons for the interview and explain what kinds of action will be followed during the interview, particularly the preparation of a written statement using the information recorded during the interview and the procedures that will be followed for the written statement to be reviewed by the witness and signed.

A – Account

This term describes the stage in which the interviewee's recollection of the events of interest is obtained. This stage is directed at obtaining the fullest possible account from the suspect. There are two accepted approaches of inducing recollection known as:



The cognitive approach;



Conversation management.

Different techniques for assisting recollection are associated with each method. With the cognitive method, the interviewee is asked to think back and mentally relive the event, initially with minimal interference from the interviewing officer. The officer does not interrupt, makes effective use of pauses and avoids leading questions.

The account stage of the cognitive interview should follow a defined pattern.

The account should start by the interviewer asking the witness to describe as much detail as possible from his or her knowledge of the incident. This is the "free narrative" stage. The witness should be encouraged by pauses and other techniques to describe as much as possible in his or her own words. However, the interviewer must be very careful not to prompt or lead the free narrative phase.

When it appears that the witness has given as much information in the free narrative stage, then the questioning phase can begin. This phase also has a defined structure. The first part of the questioning phase should use "invitations". For example the witness should be reminded about some point they made in the free narrative stage and then asked to elaborate. For example, the interviewer may say "you mentioned that the man ran out of the shop and got into a car, can you tell me more about the car?" This should prompt another free narrative account specifically directed towards the car.

When it appears that the witness has described as much as possible about the car, but there is a need for clarification, then direct questions can be asked to obtain specific information. For example, "you have described the car in detail but can you remember what make it was?"

Finally, questions relating to an "either or" or "yes no" answer can be asked in appropriate circumstances. For example, "did the car have two doors or four doors?"

It is also important that after a sequence of questions related to a specific topic, the interviewer should take the opportunity to summarise what has been said to confirm the details and also to give the witness an opportunity to correct any misunderstandings. Also, the process of summarising can often lead to the witness remembering an additional detail.

When the conversation management method is used, the interviewee is asked first to say what happened and the officer then subdivides the account into a number of individual parts which are enquired about in turn for further details.

The cognitive method provides the interviewee with greater control over the way the interview develops, whereas conversation management attributes more authority to the interviewer. This basic difference between the two approaches broadly defines when each is most appropriately used. For example, conversation management may be more appropriate for reluctant interviewees than the cognitive method.

C – Closure

Before ending the interview, the interviewer should summarise all the information that has been given by the witness. This provides another opportunity to confirm the detail and also enabling the witness to correct any misunderstandings. It also gives the second officer to review the written interview plan to ensure that all the topics have been covered during the interview.

To avoid immediate or future problems with the relationship formed between the interviewer and interviewee, officers should ensure that, at the end of an interview:

- ☐ Interviewees are thanked before leaving;
- ☐ Everyone understands what has happened during the interview;
- ☐ Everyone understands what will happen in the future particularly with reference to the preparation of a written statement that will then be signed by the witness.

Closure should also include elements such as giving the interviewee the opportunity to ask any questions. It is crucial that the officer responsible always ensures that there is a planned closure, rather than an impromptu end, to the interview.

E – Evaluate

After each interview is completed, the event and the material that came from it should be evaluated fully. The first consideration is whether the objectives of the interview were achieved. Decisions must then be made about whether any further interview is required or whether other inquiries need to be made (as corroboration, confirmation or as preparation for further investigation). An important element of the evaluation is to put the interview in the context of the whole investigation

and to review the information obtained along with that already available. Consideration should be given to the following:

- ☐ The points to prove of any offence;
- ☐ Evidence of a defence to the offence;
- ☐ What other areas need to be addressed during the investigation.

Evaluation can also help officers to improve their interviewing skills. To this end, they should take the opportunity to reflect on their personal performance and identify areas for future development or improvement.

The sound legal framework that the phased approach provides should not be departed from by interviewers unless they have discussed and agreed the reasons for doing so with the IO or an interview adviser. The reasons for any departure should be carefully documented.

The reasons for any departure from the PEACE framework of interviewing, whether planned prior to an interview or taking place as a result of circumstances arising during an interview, should be carefully documented.

The witness who becomes a suspect

So far as is practicable, consideration should be given in the planning stage as to how interviewers will deal with any confessions to criminal offences made by the witness in the course of the interview. Any decision on an appropriate course of action will involve taking into account the seriousness of the crime admitted and weighing it against the seriousness of the crime under investigation.

It is preferable to anticipate and plan for such an eventuality, while recognising that any decisions on a particular course of action are likely to depend upon what has been disclosed by the witness during the course of the interview. This is a very complicated and a contentious issue and requires careful consideration and action by the interviewing officer.

Where a suspect admits criminal activity, intent or conduct, then they should be 'cautioned', in accordance with Judges Rules, and advice and guidance sought, at an appropriate point, from a Clerk of the Court or the ODPP. Clearly where the offence for which the person is being interviewed is more serious, in nature or facts, than the criminality that they have admitted; then the interviewer could consider continuing the interview – after cautioning the suspect, using the appropriate 'caution'. If serious criminal offences are admitted then it is most likely appropriate to immediately enquire whether the person wishes to consult with an attorney, or if one is present to continue, once the caution has been administered.

4.12.9 After the Interview

4.12.9.1 Integrity and Accuracy

At the conclusion of a visual or audio-recorded interview, the master version of the tape or DVD must be sealed in the presence of the 'significant' witness.

In addition:

- ❑ All persons present must sign the seal.
- ❑ It should then be stored in a secure facility.
- ❑ At least one working copy should be provided and retained securely with the case file.
- ❑ The following should be observed:
 - The interviewing officer should prepare a statement from the working copy of the record as soon as possible. There is no need to have the witness present during this process.
 - The statement will also include an introductory paragraph confirming that the original interview was recorded visually or in audio and that the written statement is an accurate account of that interview.
 - The draft of the statement should then be reviewed by playing the recorded interview to check firstly, that all the information in the statement was actually mentioned by the witness, and second to ensure that information given by the witness has been included in the statement and using the 'words' and 'expressions' used by the witness.
 - A revised statement where necessary will be prepared and arrangements made for the witness to attend to confirm the contents and sign the statement.
 - The interviewing officer should review the statement with the witness by playing back the recording in his or her presence and invite them to make any alterations or additions to it that they consider necessary.
 - Having agreed its content, the witness should be invited to sign the statement.
 - The process of review, alteration and signature should also be visually or audio-recorded.

4.12.9.2 Officers' Statements

An agreed format for the officer's witness statement has been provided as a guide (see Appendix 4 A) and this statement should confirm that a video/audio interview procedure was conducted in relation to the witness and naming all persons present. It is normal practice for two officers to be present in the interview room. The role of the second officer is to monitor the equipment and also to review the checklist prepared during the interview planning stage and to identify areas for further exploration, ensuring that all the topics are covered.

4.12.9.3 Disclosure

Any notes made and the tape(s)/DVD(s) are unused material. However, they should be marked and treated as a potential exhibit by the interviewing officer or the interviewee as it may be necessary to disclose them in due course – only on the instructions of the ODPP or a Judge.

4.12.10 Retention and Storage

Working copies of the visual or audio record should be held by the interviewing officer only for as long as necessary to assist in case preparation.

The record should then be placed in a secure storage facility with the case file.

4.12.11 Serious and Complex Crime

In complex crime investigations consideration should be given to using officers with specialist investigative interviewing skills. This would include officers who have completed the:

- ☐ Level 1 Core interview skills course;
- ☐ Level 2 video/audio interview course; and
- ☐ Level 2 child/victim sexual offences interview course.

Where complex witness issues may be apparent the support of an Interview Advisor should be utilised. A schedule of all video interview trained officers is held at CIB HQ.

4.12.12 Recording Contacts with ‘Significant’ Witnesses

4.12.12.1 General Principle

The general principle is that contacts with ‘significant’ witnesses must be recorded and the witnesses supported ensuring their exposure is minimised and all appropriate support and assistance is given.

4.12.12.2 Witness Liaison Officers (WLO)

Officers maintaining contacts with ‘significant’ witnesses may be referred to as ‘witness liaison officers’

4.12.12.3 Records that should be Made

WLOs should record details of all contacts or attempted contacts with the ‘significant’ witness. Details include the following:

- ☐ Date and time of contacts;
- ☐ Date and time of meetings;
- ☐ Method of contact (for example, telephone);
- ☐ Venue (for example, home address);
- ☐ Purpose of contact;
- ☐ Information exchanged;
- ☐ Details of who initiated the contact (for example, police, witness, others);
- ☐ Persons present;
- ☐ Any changes to the evidence or other additions; and
- ☐ All requests to contact the witness which were refused or declined and the reasons given.

All significant contacts (for example, change in account or threats received) must be brought to the attention of the IO. The WLO should show where, when and by/to whom. In any issues of doubt, the WLO should consult with the IO.

4.12.12.4 Professional Standards

Meticulous care must be taken to ensure that no untoward approaches are made by police or others. On no account should any inducements be given or offered to obtain evidence.

4.12.12.5 Witness Protection

Consideration should be given to witness protection in appropriate cases. If in doubt, contact the Justice Support Unit (JSU) at CIB HQ.

The Justice Protection Act provides the State the ability to protect witnesses in fear or at risk. The IO is required to complete an application and risk/threat assessments for consideration by the Ministry of National Security, Justice Protection Unit, and these reports will be submitted through the CIB Justice Support Unit. Specific measures must be considered at the commencement of any investigation where a 'significant' witness has been identified, to minimise any risks to them or their family.

Pseudonym

A pseudonym is used to preserve the identity of a vulnerable witness and **must be considered at the commencement of any investigation** and the following process adopted;

1. 'Significant' witness who is in fear or at risk.
2. Statement (true identity) to be taken using their true name and providing their personal history and details relevant to proving their existence where S31d may be relevant – to be revealed to the Prosecutor (Crown Counsel/Clerk) and retained as a sensitive document.
3. True identity statement to include the pseudonym that is to be used by them
4. Statement to be taken using the pseudonym and signed by the witness using the pseudonym. Taking care to avoid disclosure of their true name and details that would clearly identify them (any such details should be recorded in 3 above).

Note: The withholding of the Identity and/or relationship of a witness with the suspect(s) may make this procedure irrelevant, as the evidence provided by the witness may be such that the true identity of the witness is immediately apparent by the content of their evidence and this procedure is then not practicable (i.e. victim who is assaulted by a close friend or relative). The true witness must always be informed that the true identity may have to be revealed on the directions of a Judge.

4.12.12.6 Storage and Retention

The WLO will be responsible for the safe custody of their records until the investigation or trial is concluded. At that point, the record should be filed with the Registry docket and retained by Registry Branch in accordance with their guidelines.

4.13 Cell Confession Evidence – Use of Serving Prisoners as Witnesses

This guidance concerns the use of a serving prisoner as a witness in circumstances that are colloquially known as "cell block confessions". The use of a serving prisoner as a witness in a murder investigation (or other serious offence) should only be considered in the most exceptional circumstances. Without care, the involvement of this type of witness can significantly undermine the strongest case.

It is essential that the IO exercises direct control and leadership, and that this is evidenced by comprehensive policy decisions.

The definition of a serving prisoner includes those persons on remand and those who were in prison (including a police lock up) at the time relevant to their evidence. An IO should remember that the prime consideration for any Superintendent in charge of a prison facility (including a police lock up) is the security and public order within their establishment. Any requirement of the investigation will have to take account of the maintenance of good order in prison establishments. No investigation can successfully proceed without Corrections Service co-operation where relevant.

The use of serving prisoners will need to be considered in three parts:

- ☐ Reactive response
- ☐ Corroboration of evidence
- ☐ Proactive tasking.

4.13.1 Reactive Response

This will be when the IO becomes aware that a serving prisoner is a potential witness to the murder investigation. This may be evidence known to the witness prior to any incarceration or more sensitively evidence obtained by the witness whilst in custody with any suspect/defendant.

The IO will need to consider the following:

- ☐ Where to obtain the evidence? It is strongly recommended that advice be obtained from the ACP CIB and the Prison Liaison Officer (Prison LO) at NIB should a corrections facility be involved. A number of factors need to be considered to ensure the safety and security of the prisoner.
These include the Category of the prisoner, the prisoners' willingness to assist the investigation and the type of prison establishment. The Commissioner of Corrections can facilitate a number of options to allow the IO to communicate with the prisoner prior to any removal from prison or visits to him (covertly or overtly). The Prison LO at NIB can assist with advice and guidance on the available options.
- ☐ For the protection of the witness a cover story may be required for his/her contact with the police. This story has to be credible and robust to withstand scrutiny within the prison establishment.
- ☐ The choice of officers to interview and/or collect and transport the witness will be important. It is recommended that officers with no connection with the investigation do this in order to build some distance between the witness and the investigation.
- ☐ Obtaining legal representation for the witness will be preferable but not compulsory if not requested by the witness.
- ☐ Best practice will be for 'Significant (Key) Witness' level 2 trained officers to be used where available.
- ☐ Interviewing officers should be fully briefed around the expectations of the IO, particularly on the issues of the quality and method of evidence capture. Consideration should be given by the IO as to whether it would be preferable and practicable to utilise officers independent of the main investigations. In these circumstances special consideration should be given as to the amount of disclosure the officers are given in order to maintain their independence and the

credibility of the evidence obtained. This should be fully documented. There should be specific guidance around the obtaining of any witness statements

- ☐ Visual or audio recording of the witness whilst any witness evidence is being obtained is strongly recommended. This will be subject to constraints of the venue of the interview. If interviewed within the prison establishment the ACP CIB & the Superintendent in charge should be consulted.
- ☐ The early establishment of the motive of the witness will be required e.g. money, text, revenge, public duty.
- ☐ Advice and guidance should be sought from the ODPP at an early stage together with a full and transparent disclosure.
- ☐ The Prison Superintendent will require updates to allow comprehensive risk assessments to be conducted. Also he/she should be consulted as issues around potential disclosure arise.
- ☐ A full detailed background research of the witness will be required. This will assess the credibility and veracity of the witness and in particular if he/she has ever provided evidence in similar circumstances. This should include identification of who the prisoner has been associating with in prison and from whom they have been communicating with, in order to establish whether the information could have been provided to him/her from someone other than the suspect/defendant. Consideration must be given to fully debriefing and "cleansing" the serving prisoner of any previous criminality. It is also crucial that all efforts are made to establish whether the witness is registered as a confidential source.
- ☐ No witness should receive any reward or promise of a reward prior to or after making a witness statement. The ODPP should be consulted at an early stage about witnesses' eligibility to receive any type of reward. If any witness is registered, whether as a CHIS or confidential source, no rewards should be given immediately preceding or following the making of any witness statement for information relating to the case. In other cases the fact that the source is or is likely to be a witness in a prosecution case should be brought to the attention of the Director of Intelligence within any application for reward.
- ☐ The protection of the witness will need to be continuously assessed. For any witness protection issues guidance must be sought from the ACP CIB.
- ☐ Pseudonyms and the suggestion of anonymity should not be promised or used when presenting cell confession evidence at court. However consideration must be given to the safety and rights of the prisoner during their imprisonment. In consultation with the ODPP a pseudonym may be used on the witness statement until the case is due for trial.
- ☐ All policy decisions with regard to the risk assessment or treatment of the witness, liaison with the CPS or the legal representatives of the witness and any emerging evidential issues should be recorded.
- ☐ A Witness Log recording any contact made with the witness is essential.
- ☐ In the event of multiple witnesses a standardised approach covering the above points is essential.

4.13.2 Detention in Police Establishments

A crucial aspect of providing the transparency and required ethics in the use of this type of witness will be their detention at police establishments. The following are guidelines for this process:

- ☐ It is essential that a detailed custody record is maintained. This should record all their activities and movements, including any visits if allowed.
- ☐ The witness should be thoroughly searched on arrival or departure from police custody.

- ☐ Records should include what occurred whilst the witness was in the 'custody' of the police. In particular the record must include details of any food, refreshment (non alcoholic) or visits provided to the witness. It is essential that police minimise any suggestion that anything provided to the witness could be an inducement for the witness to give evidence.
- ☐ Continuity witness statements should be provided by all police officers that have any involvement with the witness.

4.13.3 Corroboration of Evidence

In all investigations it is best practice to seek the corroboration of a suspects' admissions or 'significant' witness evidence. In circumstances relating to a "cell block confession" the need for corroboration is vital and the **IO** should be seen to be making all efforts to obtain the same.

Corroboration of the prisoner's account or character may be achieved by using some of the following:

- ☐ Prisoner's and suspect's movements through any detention records.
- ☐ Identification of previous cellmates or prison associates of suspect and witness.
- ☐ Visitor and police/prison staff contact.
- ☐ Identification of potential CHIS or confidential source suitable for tasking through the Prison Intelligence Unit at NIB.
- ☐ Communication interception.
- ☐ Probation, treatment or care records.

All these options require the practical considerations to be fully considered. The enquiries should be undertaken in conjunction with the Prison LO at NIB to ensure that the safety of the prisoner or the operation is not compromised.

The **IO** could consider the use of sensitive policing techniques, e.g. the obtaining of audio evidence of any further likely admissions from the suspect/defendant, if that opportunity still exists. The sensitivity and repercussions of this tactic cannot be over emphasised.

If decided upon as a desirable tactic the **IO** will need to consider the following:

- ☐ Tactical use of the intelligence (authorisation to use the intelligence as evidence will only be given in extreme circumstances).
- ☐ Use of covert technical equipment considering the feasibility of any proposals and the willingness of the corrections establishment to co-operate.
- ☐ Liaison with the Police Intelligence Section at NIB.
- ☐ The prison Superintendent must be kept fully involved and in particularly sensitive cases the formation of a Gold Strategy Group should be considered.
- ☐ ODPP will require early notification together with a full and transparent disclosure.
- ☐ The protection of the witness will be paramount. Again the **IO** is reminded that the issues of security and maintenance of order are the prime considerations for the Corrections Service.

4.13.4 Proactive Tasking

The following should be read in conjunction with the NIB Intelligence Manual.

On very rare occasions an IO may consider the proactive tasking of a serving prisoner (who may be a registered informant or who has given information previously) or deployment of an undercover operative, to target a suspect who is either on remand or serving a custodial sentence. The considerations for any IO are as above. Again the sensitivity and repercussions of this tactic cannot be over emphasised.

Consideration could also be given to making a witness appeal within the visit area of a prison or a trawl/drop letter within a prison establishment. Early advice must be sought from the ODPP together with the Prison LO at NIB to ensure the co-operation of the prison establishment. This method of investigation is fraught with danger as it may inspire prisoners to come forward to provide statements, which may be motivated by self-interest. If this tactic is used, a long-term strategy should be considered for dealing with the issues raised.

The uses of all these proactive and sensitive tactics in a murder investigation are extremely hazardous and should only be considered on rare occasions. They are however, if appropriately applied, a legitimate line of enquiry to pursue.

4.13.5 Guidance for Statement Taking

When compiling a witness statement the officer should consider all of the aspects of the alleged confession/evidence. This will allow it to be fully assessed. The conduct and demeanour of both the defendant and the witness is important. It must be considered if any confession is voluntary or the result of bullying, violence or the threat of violence. There also exists within the prison establishment a culture known as 'bigging up'. This occurs when an inmate fabricates an account in order to prevent themselves from being bullied or assaulted or out of pure bravado in order to increase their status amongst fellow inmates.

There are additional factors to consider in the content of any statement when considering the close environment of gossip within a prison;

- ☐ What did the witness know of the case before the admission? (Considerations would include access to newspapers or other media outlets).
- ☐ What were the admissions and their exact circumstances?
- ☐ What additional information has the witness received since the admission? (Particularly anything which may have impact on their evidence).
- ☐ What is their motivation for providing the evidence and making the statement?
- ☐ Antecedent history of the witness should be included. This will include an analysis of previous convictions against pleas made and the reasons why.
- ☐ Details of any requests for texts or rewards should be included together with the attitude of the witness to any positive or negative response.
- ☐ Hearsay evidence should be included.
- ☐ Identifying intermediaries and first complaints.

4.13.6 Practicalities

The undertaking of an investigation can have major logistical implications for both the Police and Corrections Department. It is important that the assistance and advice of the ACP CIB and where applicable the Prison LO is obtained at an early stage.

4.14 Witness Statements – Use of Plan/Map

In appropriate cases, officers are to be promptly issued with a plan of the murder venue and surrounding area, which is to be used when taking statements from all relevant witnesses. If a single plan is used, it will assist both in the taking and reading of witnesses' statements.

The plan/map should be made available to any officer making enquiries of witnesses, potential witnesses or H2H.

N.B. Nothing is to be marked on the plan before being shown to the potential witness. If any mark is made by/from the witness on the plan, it **MUST** be exhibited **AND NOT** used for any other potential witness. A fresh unmarked plan/map will then be used for additiobnal activity.

4.15 Media Strategy

The JCF has developed a Force Media Strategy that has been widely circulated to all Crime Officers and **IOs**. Copies of the Strategy can be obtained from Director of Communications at the Commissioner's Office.

It is vital for the police service to understand the relationship and interaction between:

- ☐ The experience of families;
- ☐ The experience of communities;
- ☐ Media interpretation, analysis and subsequent reporting;
- ☐ The consequent impact on an investigation.

The following principles should be considered:

- ☐ The media strategy must be consistent with the principle of *'truth, not spin'*;
- ☐ The media must not be used to negotiate with families or victims;
- ☐ The media strategy must be consistent with all other investigative strategies;
- ☐ The type and tone of language used in media statements must be sensitive and take account of past experience;
- ☐ There must be clarity about the timing and content of any acknowledgement regarding previous mistakes or gaps in an investigation;
- ☐ A range of investigative tools can be utilised (e.g. Crimestop, reward offers);
- ☐ The media strategy should not just include the 24 hour media but also encompass social, local and community related media, in order to reach the maximum potential audience;
- ☐ The strategy must recognise the fundamental role of the family and their representatives in liaising with the media;

- ❑ Consideration should be given to shared media statements with the family and their representatives (provided they are not potential suspects) – a united approach helps to build community trust and to undermine the confidence of perpetrators;
- ❑ Media strategy should also consider other agencies (e.g. INDECOM, BSI etc);
- ❑ Significant messages should be decided upon to ensure clarity of objectives and consistency in future releases.

4.15.1 Most Appropriate Media Spokesperson

In high profile cases, it is not always beneficial for the IO to lead the media appeals. It may be beneficial for a media spokesperson to be appointed leaving the IO to concentrate on investigation matters. The media strategy should detail; the most appropriate person to lead on the media demands on an investigation.

When considering who is the most appropriate person to act as media spokesperson it must be borne in mind that anything private and unrelated to the case in that persons background may become the subject of media interest and focus.

When any officer is asked to act as a media spokesperson they should carefully consider whether there are any private matters in their background that could become the focus of media attention and would embarrass themselves or the service if those matters were to become uncovered and published by the media.

Where an individual considers that there are or may be any such private issue within their background, it is their personal responsibility to decline to act as media spokesperson for private reasons.

Any person, other than the IO, who fronts up the media requirements should ensure that he or she is fully conversant with the facts of the case and the strategy of what can be released and when.

Great care must be taken to hold back certain elements of the case to ensure that the media do not print detail that may be part of a future interview and/or suspect elimination strategy. If there is any concern of a police leak to the media, this must be robustly investigated and dealt with as appropriate.

Where an officer other than the IO leads on media, this should be reflected in the IOs decision log and the officer must keep his/her own records.

4.16 Forensic Strategy

The construction of a forensic strategy is key priority for the IO in the early stages of a murder investigation.

[Forensic Strategy](#) - See Chapter [3.1](#) & [5.7](#).

4.17 Community Impact Assessment (CIA)

IOs are to conduct a CIA at the early stages of an incident.

The following paragraphs provide guidance for the completion of the CIA forms.

4.17.1 Completing the Community Impact Assessment

A CIA should be carried out in all cases involving homicide or serious crime. The impact of such incidents on the immediate community or minority groups may be considerable.

The assessment should be commenced as soon as practical after an IO has been appointed, and certainly within twenty-four hours of the assignment of an IO to an investigation. It should be reviewed every seven days thereafter. If this is not possible, the reasons for the delay should be entered in the Decision Log.

If the CIA is low, it only needs to be reviewed at significant events and not every seven days.

The assessment requires an analysis of all factors that might have an impact on the community including 'community intelligence'. The CIA has been designed to help the IO and divisional commanders in adopting a structured approach to the assessment. Following the analysis, an assessment is made in broad terms of low, medium or high risk, and this also utilises the Homicide Assessment Matrix to risk assess all reported Homicides.

Assessment is an ongoing process and when new information comes to light further CIAs should be conducted.

4.17.2 Accountability

If public confidence in the JCF to investigate major crime is to be maintained, it is essential that the process of managing the assessment is ethical and transparent. The assessment should be based on evidence and intelligence so that it is capable of withstanding scrutiny

4.17.3 Structure of the Community Impact Assessment Form

The **report** consists of four sections:

Section A	Consultation process.
Section B	Identified/predictive events.
Section C	IO management plan.
Section D	Divisional Commander management/implementation plan.

The CIA should be distributed as below:



Original remains in the case file;

- ☐ Copy will be supplied to the Divisional Commander who will ensure that the information is passed to the DIU and officer in charge of Community Safety & Security unit within the division; and
- ☐ Copy to NIB.

4.17.4 Completing the Community Impact Assessment

4.17.4.1 Section A – Consultation Process

Section A records the internal and external consultation undertaken to inform the assessment. When completing the first assessment there may be occasions when it is impracticable to consult widely. A further assessment must be completed after fuller consultation has taken place.

It is the responsibility of the **IO** and Divisional Commander to determine the scope of consultation appropriate to each incident. When consulting external agencies, it is important to record the name of the individual and the organisation concerned.

4.17.4.2 Section B – Identified/Predictive Events

Section B highlights categories of identified and predictive events that may impact on the The **IO**, community and the investigation. in consultation with the Divisional Commander, should grade the appropriate sections:

Level 1 – Standard Risk indicates current requirements have been met or that normal operational procedure will manage the risk.

Level 2 – Medium Risk indicates that measures are required to develop further intelligence to indicate whether the risk is likely to increase or decrease.

Level 3 – High Risk indicates that action is required to minimise or negate the identified risks.

4.17.4.3 Section C – Investigating Officer (IO) Management Plan

The **IO** assessment should be specific in identifying the risk, making reference to supporting evidence and/or intelligence. The **IO** should formulate an action plan in the best interests of the investigation. The **IO** should clearly identify specific objectives and requirements that will progress the investigation.

4.17.4.4 Section D – Divisional Commander Management/Implementation Plan

The primary objectives of the Divisional Commander's management/implementation plan should be to:

- ☐ Minimise or negate the risk;
- ☐ Provide direction in developing further community intelligence;
- ☐ Meet the **IOs** specific requirements without creating or heightening tensions in the community; and

- ☐ Respond to community needs and concerns promptly.

In the planning phase there may be occasions where the Divisional Commander and the **IO** have conflicting priorities. In cases of disagreement, the advice of the Area ACP should be sought immediately to resolve the conflict.

The CIA may well identify issues that need to be brought to attention and consideration as to the need for a Gold Strategy Group.

4.18 Gold Groups

ACP CIB through Area Crime Officers has a strategic responsibility in respect of all homicide investigation within the JCF. Ordinarily this can be managed through **IO** line management and supervision.

Although all homicide investigations clearly are critical incidents, a number of factors surrounding the homicide and/or investigation may necessitate the formation of a gold strategy group. Area Crime Officers will determine whether such a group is necessary in respect of any particular investigation.

The role of this group in all cases is as a strategic advisory group to the **IO** and additionally affords ACP CIB the opportunity to directly oversee the investigation from a strategic perspective.

The following persons will always be members of a gold group:

- ☐ Area ACP – chair (this may be delegated)
- ☐ Area Crime Officer (deputy chair)
- ☐ **IO**(s)
- ☐ **IO** line manager and/or MIT Commander(s)
- ☐ Divisional Commander(s)
- ☐ CCN Liaison Officer(s)
- ☐ Family Liaison Coordinator/advisor
- ☐ Secretary/minute taker

The following by no means exhaustive list may also be part of the group as appropriate:

- ☐ Independent Advisory Group (**IAG**) member(s)
- ☐ Community representative (general or specific to investigation)
- ☐ Forensic expert(s)
- ☐ Technical expert(s)
- ☐ Media representative(s)
- ☐ CIB HQ representative

The Gold Group will consider and advise the **IO** in respect of the following:

- ☐ The investigative update
- ☐ Family Liaison Issues

☐ Community Impact assessment

- ☐ The issues of criticism
- ☐ Issues for the community/communities
- ☐ Opportunities (e.g. forensic)
- ☐ Ethical aspects
- ☐ Welfare of the team and IO
- ☐ Media strategy
- ☐ Resourcing of the investigation

All Gold Group meetings will be minuted and actions arising from them should be identified and dealt with appropriately within the investigation.

It is recommended that any task raised during a Gold Group meeting that directly or indirectly is relevant to the investigation should be routed through the DDI/Case Registry, raised as an action to an individual officer and dealt with accordingly.

4.19 Independent Advisory Group (IAG)

Every individual and institution has the responsibility to continually examine their behaviour, perceptions and prejudices.

The principle of independent involvement and advice is;

"Independent involvement is the process that takes place when people independent of the police service monitor, observe or participate in any police activity in such a way that they have no responsibility for the outcomes, but are free to make observations both within the force and to the broader community. For maximum benefit to the community and the service, such people will be drawn from those who are:

- ☐ able and prepared to critically appraise police policies and practices
- ☐ representative of, and commanding the respect of the communities policed
- ☐ able to make dispassionate assessment of what they experience
- ☐ committed to improving community - police relations
- ☐ Those who can bring relevant expertise.

The advice of Independent Advisors is independent of the police and carries no responsibility or liability for the outcome and equally, the police are not obliged to follow any of the advice given.

Independent Advisors are separate from traditional community advisors and should ideally have no connection with the judicial processes or national or local politics.

Experience has shown the benefits of independent advice in current and historic investigations.

The decision to involve independent advisors in a specific investigation is a decision for Gold Command or IOs.

4.19.1 Operating Protocols

The operating protocols for independent advisors will depend upon force requirements or be specific to an individual investigation/incident and why the involvement of independent persons is required.

As advisors are entirely independent of the police force, serious consideration must be given before they are used in cases involving covert policing. However, the responsibility to investigate and manage the investigation lies with the **IO** and as such, he/she may wish to involve independent advisors documenting the rationale for partial disclosure of certain lines of enquiry.

It is recommended the **IO** should record in the decision log the involvement and the extent of the involvement of Independent Advisors.

The following are suggested areas to be addressed when preparing an operating protocol.

- ☐ Any disclosures made in the course of independent involvement are subject to the strictest confidentiality and rules of disclosure.
- ☐ Determine a permanent chair for the group (independent - to be identified by the group).
- ☐ If a member of the police organisation is involved, agree how this person will liaise and inform the chair/director of the group.
- ☐ Independent Advisors and police must agree a process for external communication and it is advised that a press statement be released about the formation and terms of reference for the group as soon as practicable.
- ☐ Audio records of meetings (if equipment available) to ensure accuracy of records in cases of disagreement and also to enable reports or minutes to contain brief summaries, decisions, actions, advice or recommendations only.
- ☐ Any advice or recommendations made to the **IO** should be clearly and fully recorded in the minutes, and a formal written acknowledgement should be returned by Police within an agreed time, and if appropriate outlining how the matter will be dealt with and when.
- ☐ The **IO** should make every effort to involve their Independent Advisory Group in all aspects of the case, including the disclosure of information necessary for effective advice and recommendations.
- ☐ The Advisory Group process must be ethical and be seen to be so. This ethical protocol should go some way to ensure the Advisory Group meets the rigorous standards in public life expected and acts as a guide to members in their work as Independent Advisors.
- ☐ If the Independent Advisory Group is reviewing an incident which has relevance to a members interest, the member shall make this known immediately to the meeting and the fact recorded in the Minutes or Report of a meeting. A member's interests can include a pecuniary interest, a pecuniary interest of a member of his/her family or close friend/s and any matter where the member's position on the Independent Advisory Group could be seen as possibly influencing a decision the effect of which would be of benefit to the member or members of his/her family or close friend/s. The member shall not take part in any discussions in which the member has declared an interest and shall leave the room during that discussion, if so requested by the Chairperson. Consideration should be given to that member not being party to any further discussions or involvement in that particular case.
- ☐ If such a declaration is made the meeting will determine to what extent that member continues to participate in discussions about the relevant subject (a member with such relevant interests shall not be entitled to vote on formal advice or recommendations to the Director).

- ☐ Under no circumstances is a member to use his/her position as an Independent Advisor to further or advantage his/her own interests. Any serious and deliberate contravention of the above will call into question the members suitability to remain an Independent Advisor.
- ☐ Members should agree to the vetting procedures .(i.e. CRO, Local Checks)
- ☐ Members of the Independent Advisory Group should become signatories to agreed protocols accepting the need for total confidentiality throughout and after this process has taken place, except for those matters that have come into the public domain.

4.19.2 Terms of Reference

It is recommended a Terms of Reference be drawn up and agreed by the **IO** and the Independent Advisors prior to the actual involvement of the Advisor/s.

The following are suggested areas, which should be considered for inclusion in a Terms of Reference document.

The reason why it is thought appropriate for the involvement of an Advisor or Advisory Group;

- ☐ To advise and make recommendations to the **IO**.
 - ☐ To assist in reviewing and improving the investigation.
 - ☐ To receive updates on investigations assisting in the handling and resolution of homicide cases.
 - ☐ Handling and resolving of critical incidents including effective family liaison.
 - ☐ To advise and make recommendations to the Force through appropriate channels.
 - ☐ Improving the trust and confidence of the community particularly the diverse communities.
 - ☐ Any other aspect of an investigation which impacts upon the community or any part of the community, including media communication.

Consideration should be given for the inclusion of other areas within the Terms of Reference specific to the investigation/critical incident.

4.19.3 Selection

It is recommended Independent Advisors be invited to become members of an Independent Advisory Group.

Members should as far as possible be representative of all aspects of the local community and be able to understand complex issues.

It is advantageous for members not to have any connection with the judicial and political process.

4.19.4 Training

It is recommended training is provided to Independent Advisors in the following areas:

- ☐ Role of the Independent Advisors
 - ☐ The structure of a major investigation
 - ☐ The roles of Investigating Officers

- ☐ An overview of case management
- ☐ Issues regarding disclosure in criminal proceedings and confidentiality
- ☐ If connected with a review, the Reviewing Officer's methodology

Any other area relevant to the investigation or critical incident.

4.19.5 Briefing

It is recommended regular briefings should be held to ensure the Advisors have relevant up-to-date accurate information.

It is imperative when considering disclosure issues that minutes are recorded of meetings and retained.

4.19.6 Welfare

The welfare of advisors should be considered particularly when considering the nature of the investigation or critical incident they may become involved in.

Consideration should be given to a risk assessment being undertaken by Gold Commanders and IOs which will include personal safety and other welfare needs of Independent Advisors.

It may be appropriate for a protocol to be put into place to deal with welfare issues arising from their involvement.

4.20 Post-Mortem (Autopsy) Conference

4.20.1 Definition

A conference consisting of Forensic Pathologist, Investigation Agencies (Police, MIT, BSI, Magistrate, Coroner, etc.) Forensic Scientist and Prosecutors to debate, analyse the outcome of an Investigation or scientific findings in Forensic Cases (Accident, Suicide, Homicide and Sudden Deaths) where facts may be disputed or are complex

4.20.2 Aim

- ☐ To discuss the Forensic Case and overcome any issues related to the Death Investigation.
- ☐ To uphold the professionalism and team work concept within the Criminal Justice System.
- ☐ To achieve the highest standards.
- ☐ To avoid criticism from the Media, Politicization, victimization of the Personnel involved within the criminal Justice system.

4.20.3 Who can participate?

The Pathologist who conducted Post-mortem examination, The Investigating Officer, Forensic Scientist, Prosecutor/Govt Legal Representative or any other persons who can assist the process.

4.20.4 What cases qualify for Autopsy Conference?

Any case wherein there is Major Discrepancy in the Investigation Officer Findings and/or the Pathologist Findings; including any Second Autopsy or Investigative/forensic review.

4.20.5 Who can request the Autopsy Conference?

Autopsy Conference on demand:

- ☐ **Police** - Investigating Officer through the Respective Assistant Commissioner of Police or Deputy Commissioner of Police.
- ☐ **Pathologist** - through The Director, Legal Medicine Unit.
- ☐ **Scientist** - through the Director, Forensic Laboratory.
- ☐ **Clerk/Crown Counsel** – through the Director of Public Prosecutions
- ☐ **Any other party/interest group** - after consultation and through one of the above.

4.20.6 Timing

To be formed without undue delay and for minutes to be taken and retained for disclosure as required.

4.21 Specific Investigations

This section is intended to deal with specific types of investigations that may come to notice. These incidents may originate in any part of this organisation and it is important that the receiving command, be that Division, MIT, Area or other sections of the JCF, is responsible for the investigation until a formal hand over procedure has taken place with another department.

4.21.1 Contract Killings

A murder or attempted murder of an identified person, for payment, reward or other favour.

4.21.1.1 Persons likely to be engaged in a Contract Killing

- ☐ **The Contractor** – a person who seeks to murder another
- ☐ **The Middleman** – a person, most likely with a criminal background, who can identify a person or syndicate to take on the contract
- ☐ **The Contractee** – a person or persons who accept the contract to murder another
- ☐ **The Murderer**
- ☐ **The Armourer** – a person who, where necessary, will supply firearms, weapons etc
- ☐ **The intended victim**
- ☐ **Other persons** – may be partner, friend etc, of intended victim who is in the wrong place at the wrong time

4.21.1.2 Problems encountered in Contract Killings

When a murder occurs and there appears to be no obvious assailant or it has the hallmarks of a professional killing, i.e., killer waiting for the victims arrival and shots fired at close range without any discussions/interaction, the murder is labeled a “contract killing”. This may be due in some part to press speculation such or community speculation.

As an investigation of a murder develops, there may be no obvious ties such as those between parties and the scene. However, when one looks at the list of persons engaged above, there may be a direct link between the other parties such as the victim to a contractor or between the contractor and the contractee.

4.21.1.3 Perception

A contract killer is not always someone who wears a full-face crash helmet, mask etc. and, following a hit, disappears without trace.

A professional contract killer may leave no trace at all. The death may appear to be:

- ☐ A road traffic accident;
- ☐ An accident in the home;
- ☐ Apparent suicide; or
- ☐ Someone falling in front of a vehicle.

4.21.1.4 Intelligence/Statistics

Nationally, the recording procedure is confused on the basis that there is no definition of a contract killing. However, the national press would have us believe that there were many more.

At present, there is no national database for the collection of intelligence on contract murders and those engaged in this activity or of serious offences against the person. Nor is there any accurate data held locally, nationally or internationally of crimes that have occurred.

4.21.1.5 Considerations Following the Receipt of Intelligence with Regard to an Impending Contract to Murder

The police response WILL ALWAYS be geared to the preservation of life and protection issues with pro-activity on potential targets being a secondary consideration.

The following are submitted as suggestions for the guidance to an IO to ensure:

- ☐ That the correct level of resources are properly directed
- ☐ That police response and strategy is proportionate in the light of raw intelligence.

Intelligence is often received at inconvenient times that indicate that someone’s life is in danger. More often than not, the threat arises from a person’s criminality, business dealings, lifestyle or as a result of domestic scenarios.

The Constitution and other case law such as *Osman v UK* reinforces our priorities. The **primary object** of any investigation is the preservation of life. This does not just mean the life of an intended victim but extends to others such as:

- ☐ Covert Human Intelligence Source (CHIS)
- ☐ Friends and family of an intended victim
- ☐ Neighbours of friends and family of the intended victim
- ☐ Members of the public innocently caught up in crossfire
- ☐ Contractor (pre-emptive strike by intended victim)
- ☐ Contractee (*R v McCann – Gibraltar*) and
- ☐ Police or other emergency services deployed on the operation.

It may be possible to achieve the primary objective by disruption and/or arrest of those concerned in the conspiracy but police strategy on this issue of protection will always have regard to proportionality.

It is accepted that police have wide ranging responsibilities and it is therefore impossible to give anyone complete protection. History indicates that even with sophisticated close protection a determined would-be assassin can achieve his purpose.

If a murder or serious injury occurred, police must therefore satisfy any adjudication, be it coroner's court or public inquiry that their actions were reasonable and proportionate in all the circumstances.

The **secondary objective** will be to arrest all those involved in the conspiracy. It must however be borne in mind that police may need to intervene and arrest when there is reasonable suspicion of comparatively minor offences.

An example of this may be as follows:

- ☐ Intelligence is received that "A" will receive a firearm from "B". It is "A's" intention to then visit "C" and shoot him, using the firearm.
- ☐ The intelligence may have to be subject to a Public Interest Immunity (PII) hearing as an act of parliament may specifically exclude that intelligence from being adduced as evidence.
- ☐ A successful prosecution can result of "A" and "B" for the possession of the firearm.
- ☐ Police have arrested persons involved in serious crime and through subterfuge prevented a murder.

4.21.1.6 Operational Strategy

The strategy will always take into account the primary and secondary objectives. We must, however, be flexible enough to refine the strategy to changes in intelligence and competing demands on resources.

The key to managing this type of investigation is balance and control.

Decisions, threat and risk assessments must be regularly reviewed and documented.

Where a “Gold Forum” has been established, for example, with a cross-border investigation, details of meetings and decisions must also be documented. It is possible that parties will not agree and it will be essential to maintain independent records to corroborate our review process.

It is essential to test the intelligence. We must endeavour to independently corroborate the intelligence or disprove it.

Experience has shown the importance of an appropriate person from the operational team meeting a source of intelligence. When denied direct access, sanitised source intelligence has led to police embarking on a particular course of action. Then, many weeks into an operation when crosschecking intelligence, it is found that original information provided to us was incorrect and has caused a waste of valuable resources.

4.21.1.7 Areas of Review

Duty to care – it must be borne in mind that the decision NOT to inform the intended victim may have been because to inform him would be to escalate the problem. If the intended victim has not been informed of the threat this decision must be reviewed in the light of new intelligence and the progress of the investigation.

Police should consider engineering circumstances where an intended victim can be notified of the threat. This may occur through the tasking of a CHIS or deployment of an undercover officer.

To combat a threat to kill in these circumstances may lead to the deployment of a wide range of resources. The following are some obvious specialists:

- ☐ Covert/Overt firearms support
- ☐ Surveillance and technical support
- ☐ OCID/Flying Squad Covert Operations Unit
- ☐ NIB intelligence support
- ☐ Division, Area or Mobile Reserve overt firearms/policing support
- ☐ Arrest team

Specialists such as these have finite resources. The **IO** must therefore keep them focused on the operational objectives. Regular consultation with them will assist in refining strategy and tailoring deployments to respond to changing circumstances.

4.21.1.8 Exit Strategy

There are few circumstances where police can walk away from this type of threat with confidence. Even where arrests occur, one party may harbour such a grudge as to always pose a threat to an intended victim.

As previously mentioned, it is impossible for police to provide complete protection. It is also accepted in case law that police cannot guarantee this type of service.

Generally speaking, an intended victim is such because of their actions, in business or lifestyle. Changing identity and/or moving away from known vulnerable areas can go a long way to reducing or removing the risks.

If the vulnerable person is involved in criminality but will not co-operate fully with police then the exit strategy may be as follows:

- ☐ To notify him/her of the risks
- ☐ To put security measures in place – alarm/CCTV, etc
- ☐ To ensure that the necessary markers are placed on relevant databases for officer safety reasons
- ☐ To notify local community leaders where appropriate, and
- ☐ To place markers for the collection of intelligence which may indicate an increase in threat or risk levels

Even where an operation has been closed, if new intelligence indicates an increased or renewed threat then police may recommence the investigation process.

4.21.2 Attempted Murder

Unlike murder, which requires an intention to kill or cause grievous bodily harm, **attempted murder requires evidence of an intention to kill alone.**

This makes it a difficult allegation to sustain and careful consideration must be given to whether the more appropriate charge is Section 17 of the Offences Against the Persons Act. The courts will pay particular attention to counts of attempted murder and will be highly critical unless there is clear evidence of an intention to kill.

You should bear in mind that the actions of the defendant must be more than preparatory and although words and threats may provide *prima facie* evidence of an intention to kill, there may be doubt as to whether they were uttered seriously or were mere bravado.

Important factors which may support an intention to kill include:

- ☐ Calculated planning;
- ☐ Selection and use of a deadly weapon;
- ☐ Threats;
- ☐ Severity or duration of attack; and
- ☐ Relevant admissions in interview.

4.21.3 Murders within the Home (Domestic Murders)

In such cases IOs must seek to recover any documentation referring to the relationship between the parties involved (and any other 3rd party). These may well be from CISOCA or partner

agencies/stakeholders. Consider any injunctions or orders taken out under the Domestic Violence Act.

4.21.4 Homophobic Murder

In such cases independent advice and support can be obtained from local groups, such as J'Flag who can assist the **IO** and offer community support and intelligence to further the investigation. Confidentiality and minimising potential risks for social disorder is important, as a number of incidents have occurred where sexual orientation or flamboyant behaviour have resulted in violent attacks on minority groups.

4.21.5 DNA Database

Use of the National DNA Database in relation to deceased persons (when the relevant legislation is obtained and a database is established) should be used to identify bodies. In the mean time, samples should be taken from bodies and consent of relatives obtained to provide 'standards' for comparison and to confirm identification (blood or mouth swab).

DNA can be obtained from a suspect **ONLY WITH CONSENT** (until the legislation is passed) and if refused, the **IO** must consider other legal and fair ways to obtain such (which may include seizing clothing being worn, discarded cigarettes, etc) and in cases of doubt the advice of ACP CIB or the ODPP should be obtained.

4.22 Other Issues

4.22.1 Critical Incidents

The definition of a critical incident is:

Any incident where the effectiveness of the police response is likely to have a significant impact on the confidence of:



The victim; Their family; and/or The community

4.22.1.1 Key Words

EFFECTIVENESS

This is a measure of the professionalism, competence and integrity evident in the police response to an incident.

SIGNIFICANT IMPACT

The common sense definition of significant should be applied; the 'impact' is that felt by a particular individual, family or community.

CONFIDENCE

This is a reference to long-term confidence in policing – of victims, families and communities.

It is important that a Gold Strategy Group is considered in all critical incidents (but especially so where a murder is under investigation). Consideration should be given to including the following on the Gold Group:

- ☐ The Gold officer (preferably the Area ACP – The Area Crime Officer in a homicide case);
- ☐ Divisional Commander or representative;
- ☐ Community/IAG representative;
- ☐ The IO;
- ☐ The FLO(s);
- ☐ CCN representative;
- ☐ A secretary/minute taker;
- ☐ Any other party to be co-opted on a needs basis.

There should be an agreed terms of reference for the group and all meetings must be fully recorded. A copy of the minutes must be held in the case file and correspondence list for the enquiry.

4.22.2 Missing Persons

Experience shows that missing persons can end in the tragedy of murder. The policy and directives in dealing with missing persons must be strictly adhered to. All staff are reminded of the need to undertake a thorough investigation, extensive searches and accurate record keeping in missing person enquiries. If the Divisional Crime Officer believes that the missing person has been murdered or is likely to be murdered, a CIB officer should lead the investigation

In cases of doubt a missing person case conference will be held where the Crime Officer will oversee the investigation.

Policy and guidance relating to missing persons is set out in the relevant policy.

4.22.3 Property

At an appropriate time, for instance after a period for appeal, any property should either be returned following its evidential value or destroyed if it is a health hazard. The family of any deceased should be informed.

In unsolved cases that are put away, property must be retained and retained at Stores. No property will be destroyed without a full review and risk assessment as to its retention by the IO or his/her successors. The IO must take into consideration the possible future advances to be made in respect of DNA evidence. In cases of doubt The ACP CIB must be consulted.

To ensure that property and exhibits from major enquiries are easily retrieved for review or re-investigation purposes; it is vital that at the conclusion of the case these items are submitted to the Central Property Store for retention. A copy of the report will be appended to the Case file held in the Registry. Supervisors giving authority for papers to be 'put away' must ensure that such action is taken.

A review of any property held by the Laboratory (or other scientific service) is to be commissioned. All property held by these agencies should be recovered following completion of examination and dealt with as above.

It should be remembered that no exhibit or property of forensic or evidential value should be destroyed without due passage of time and a proper assessment as to its current and potential value. Property reports should be marked 'NEVER TO BE DESTROYED' until they have been reviewed and authorised for disposal as outlined above.

In the fullness and with the passage of time, cases will be reviewed where there is no serving officer who was involved in the original case. Where this occurs, Stores will refer their records, documents and request for guidance as to retention to the ACP CIB. A decision will then be made with the divisional & Stores Commander as to retention.

No property is to be destroyed or restored without due consideration of its evidential requirements.

4.22.4 Jury Protection

Where information/intelligence suggests such a need, a report is to be submitted through line command to the Director of Public Prosecutions without delay.

4.22.5 Risk Assessments

For many reasons risk assessments have to be conducted. The model suggested is PPPLEM:

Political

Psychological

Physical (Including Health & Safety risk assessment)

Legal (including Human Rights provisions - P.L.A.N.)

Ethical

Moral

The JCF has a responsibility to protect individuals both within and outside the organisation from threats that appear to be real and immediate. In order to determine whether this is the case, an assessment of all the available information must be carried out at the first available opportunity. Where circumstances change as more information becomes available, or as investigations progress, assessments must be reviewed to establish that they remain valid in the light of the changing circumstances.

INTELLIGENCE EVALUATION 5 x 5

Current best practice dictates that *intelligence* is evaluated according to three factors, namely the source and the intelligence. The evaluation is recorded in a coded format known as the 5x5 system.

Source	A Always reliable	B Mostly reliable	C Sometimes reliable	D Unreliable	E Untested
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Intelligence	1	2	3	4	5
	Known to be true without reservation	Known personally to source but not to officer	Not personally known to source but corroborated	Cannot be judged	Suspected to be false or malicious

The object of the 5x5 system is to ensure the best possible protection for, and assessment of, sources of intelligence, while at the same time safeguarding the rights of individuals. It is also designed to enable an objective judgement to be made of the value and reliability of the intelligence contained in the report.

As a general rule, intelligence graded 1 or 2 originating from a source graded A or B can be considered to be reliable for assessment or analytical purposes. However, intelligence from an untested source (including an anonymous source) that cannot be judged (that is graded as E4*) should be treated with caution until there is information to suggest otherwise. Early steps should be taken to corroborate such intelligence to assist with future evaluation of intelligence from the same source (if known).

4.22.6 JCF Medical Services/Occupational Health Support

IOs should consider support and advice from the JCF Medical Services/Occupational Health branch where it is felt that a particular case (or overall workload) may be traumatic and have a lasting impact on staff and partner agencies.

Divisional Commanders should, additionally, consider the same in respect of their IOs.

Where Gold groups are instigated, welfare support should be an agenda item and Medical Services Branch advice obtained as felt appropriate.

4.22.7 Post Charge Strategy

Subsequent to giving authority to charge, the IO should undertake a comprehensive review of all strategies, ongoing lines of enquiry and outstanding actions, post charge resourcing. This review should be documented within the decision log and drawn together to produce a comprehensive post charge strategy within the decision log.

The IO should chair a post-charge forensic strategy and (if necessary) telephone strategy meeting in order to facilitate the review of those strategies.

The post-charge strategy must take account of timeliness issues imposed by the Judge, Clerk or the ODPP.

4.22.8 Pre-trial Case Conferences

The importance of the IO personally attending pre-trial case conferences cannot be overstated.

If there are complex or difficult issues, these should be discussed by the IO with the relevant Crime Officer pre-conference.

Only in extremely rare circumstances, when all the issues are straightforward, should a deputy attend on behalf of the IO.

4.22.9 Media and Trials

Nothing should be done to jeopardise a trial. If media seek, or the IO believes that a media briefing would be of value:

- ☐ Pre-trial;
- ☐ Post-prosecution;
- ☐ Pre-verdict; or
- ☐ Post-verdict.

Advice is to be sought from the ACP CIB and the Director of Communications should be consulted.

4.22.9.1 Requests for Photographs

Any request for a photograph of convicted persons must be referred to the ACP CIB.

The considerations for publication are Constitutional rights & Human Rights - the privacy of the individual against the interests of the public, proportionality, further offences, more witnesses and reassurance for the general public.

4.22.9.2 Release of Prosecution Material

Special consideration and review is required before any prosecution material is to be released to the media for the purposes of making documentaries, etc., The ODPP, ACP CIB must be consulted prior to any such release.

Non-contentious prosecution material which will normally be allowed to be released to the media may include:

- ☐ Maps and diagrams;
- ☐ Photographs (including custody photos of defendants);
- ☐ Videos showing scene recorded by police after event;
- ☐ Videos of property seized, (such as weapons, drugs, clothing, stolen goods);
- ☐ Sections of transcripts of interviews or statements as read out in court; and
- ☐ Videos or photographs showing reconstructions of the crime.

Material such as CCTV footage of the defendant(s); video or audio tapes of police interviews with defendants, victims or witnesses; victims' statements; and medical or psychiatric statements; will not be authorised for release without very careful consideration by the ODPP.

APPENDIX 4 A

JCF Policy – Video Interviews with Child/Adult Witnesses

GUIDANCE NOTES – Preparing Written Statements from Recorded Interview

Introduction

This guidance has been prepared following two training workshops held in January 2011. At these workshops, the officers had the opportunity to learn about the preparation for video interviews and to then view a recorded interview and transcribe the evidence disclosed into a written statement. Video recorded interviews with witnesses are an extremely effective means of obtaining detailed evidence about serious crimes. They can be used with witnesses and victims of any age, but they are particularly useful where the victim or witness is a child and has been traumatised by the event.

CISOCA has a specially designed video interview suite comprising of a child friendly interview room, a room where the equipment operator records the interview and operates the cameras, and a third room which can be used to observe the interview whilst it is taking place through a live audio and video link.

Additional single room 'interview' facilities will be provided in 2011, and these rooms are more appropriate for adults/suspects. This guidance will support the use of these facilities. The principle difference relates to the fixed camera positions and single use/recording equipment that will be provided. The interviewing and observer role(s) would be conducted in the same room and normally two (2) officers would conduct the interview, one being the lead interviewer, and the second noting relevant points and timings for easier identification and raising any relevant points.

To gain the maximum benefit from the use of video recording of victim and witness interviews, it is essential to follow this guidance that ensures the correct preparation for the interview, the most effective environment in which the interview takes place and steps that can be taken to transcribe the evidence from the interview into a written statement.

Interviewer

The person undertaking the video interview must have received the video interview training that was given by Dr Tony Butler, a Child Protection Consultant and a retired police officer or by another approved trainer. This training was given to 24 investigators from CISOCA and MIT in April and September 2009.

Video recording equipment operator

The person designated to operate the CISOCA video recording equipment and cameras should also have received the video interview training. Additional facilities will be provided across Jamaica with

fixed cameras in designated interview rooms. These facilities are best suited for adult victims/witnesses.

PLANNING AND INTERVIEW PROCESS

The interview should follow the four stage interview process that was the basis of the interview training in 2009 and internationally recognised best practice for such interviews. However, the precise structure of the interview will be part of the planning and will reflect the age, communication skills and other factors related to the child victim or witness.

Preparation

The preparation for the interview is vital to the effective execution of the interview process. During this preparation, it is essential that the investigating officer who is familiar with the case provides as much information as possible to the person who will undertake interview. In addition, the interviewer should have an opportunity to meet and talk with the child victim or witness prior to the interview. The purpose of this meeting is to gain rapport and reassure the child and therefore it is essential that at no time should the facts in the case be discussed with the child.

The following items should be part of the preparation agenda but they should not be seen as an exhaustive list because these factors will vary on a case-by-case basis.

The child/adult witness or victim

Special considerations must be applied for child victims/witnesses, or those with learning difficulties. It is essential that the interviewer is aware of the age, communication skills and other developmental factors related to the child/adult. In addition, any emotional trauma or other factors that need to be taken into account when interviewing the child/adult should also be discussed. Such issues as the concentration span of the child/adult will be very relevant factors in determining the length of an interview. In complicated cases where the child is young and traumatised, it is possible that the interview will need to take place in small segments separated by appropriate breaks to enable the child to return to a condition where he or she can concentrate again on the details of his or her experience. Adults with learning difficulties or mental illness should be provided similar arrangements as a child, and the CISOCA equipment used.

Details of the incident or allegation

The interviewer must be familiar with all of the facts as known by the investigation at that point. For example, if the child/adult knows the full identity of the perpetrator (given names and not just an alias) then it will not be necessary to go into detail questioning about the description, height, weight, clothing and so on. But if the identity of the perpetrator is not known to the child, then a detailed description of the alleged perpetrator will form a significant element within the interview. Summary, information about the location of the crime, the layout of any premises involved, the time and other elements of the crime scene are important information that should be provided to the officer undertaking the interview. In a complex case, it may be appropriate for the officer undertaking interview to have an opportunity to examine photographs of the crime scene and plans of the location.

Interview plan

The investigating officer can be seen as a "customer" of the interviewer. Consequently, it is essential that before the interview takes place there is an agreement between the investigating officer and the interviewer as to what topics will be covered. This interview plan should be written down and a copy used as a checklist to monitor the progress of the interview as it takes place. The planning should also consider how the child/adult will be managed during the interview. For example, will it be necessary to take frequent breaks to enable the child/adult to re-concentrate on the evidence? During the breaks, the interviewing officer can discuss with the investigator the progress of the interview and identify areas for re-examination in the next stage of the interview. In addition, consideration should be given to providing a sketch plan of the location of the incident to enable the child to physically identify on the plan where the various actors were during the incident.

Observers CISOCA equipment

The main role of the equipment operator is to ensure that the camera is positioned correctly on the child/adult (not applicable for the fixed camera interview rooms) and if necessary follows a child if he or she moved around in the room. The operator should also be involved in monitoring what is said during interview and making notes of evidential disclosures. However, in some interviews the operation of the equipment will place such a burden on the equipment operator that a second or indeed third observer should be in the room making detailed notes about the disclosures. In addition to noting the exact detail of the evidential disclosure, the time point shown on the monitor when the disclosure was made should also be recorded. This will improve the efficiency of the replay of the interview to enable it to be "fast forwarded" to the appropriate point in the interview. It also assists in the crosschecking of evidential point between the observers to ensure that there is an agreement between them as to what precisely has been said by the witness.

The number of observers will depend on the child being interviewed, but as a rule, there should also be an equipment operator and an additional investigator in the room making notes of the disclosures made by the child. These notes are essential for ensuring that all points have been covered effectively before the interview is finally concluded.

Observer role for adult victim/witness interview

the time indicators should be recorded for evidential disclosure(s), points of detail or of particular interest etc. The time point shown on the monitor when the disclosure was made should be recorded. This will improve the efficiency of the replay of the interview to enable it to be "fast forwarded" to the appropriate point(s) in the interview.

THE INTERVIEW

The interview should follow a four stage process described during the training. It is important that the preliminary procedures particularly relating to "truth and lies" is fully covered by the interviewer. With very young children, it is often helpful to repeat key phrases or sentences that are disclosed as the interview progresses. In addition, the use of summaries throughout the interview process can be very helpful in aiding the child/adult to re-concentrate on the areas under

examination. During the planning stage, the likely length of each interview should have been discussed and agreed. In some cases where the child grows in confidence and is clearly concentrating, then the interview time can be extended. But where the child/adult becomes uncomfortable or loses concentration, it may be appropriate to have a short break to enable the child/adult to recover and also the interviewer to discuss the progress of the interview with the observers. It is essential that these discussions on the progress of the interview do not take place within the hearing of the child.

Before the interview is finally concluded, the observers should confirm with the interviewer through the communication earpiece (CISOCA equipment only) that they are satisfied that all the issues have been covered in sufficient detail.

Interviews of 'suspected' persons

Separate instructions will be provided for the use of this equipment for suspects and the adherence to Judges Rules.

DRAFTING AND PREPARING THE STATEMENTS

At the conclusion of the interview, the person undertaking the interview, the observers and equipment operator (CISOCA equipment) must go through all of the notes of the interview to clarify precisely what the child/adult has said and the words that were used. When they are satisfied that they have identified all the evidential points, the process of structuring the evidence into a coherent and chronological order can take place. When this framework has been prepared, the process of writing the statement can start. It is important to ensure that the words used in the statement reflect accurately the words used by the child/adult witness particularly with regard to their vocabulary and style of speaking. In some cases, it will be necessary to write the statement in the dialect used by the child/adult.

Reviewing the recording

When the first draft of the statement has been prepared, the recorded interview should then be replayed and each item in the statement should be checked off against the recorded interview. If at the end of the recording, there are elements in the statement that have not been checked off these must either be deleted or the interview replayed to ensure that the child/adult did in fact disclose the specific piece of information. It is also possible that additional items will be revealed during the replay of the interview that were not originally noted during the first recording. These elements must then be included in a revised statement.

Revising the statement

After reviewing the statement against the recording, it may be necessary to revise the statement to ensure a completely accurate record of what the child/adult said.

Signing the statement

When the investigating officer is satisfied that the statement accurately reflects all the evidence disclosed by the child/adult during the recorded interview, then arrangements can be made for the child to return to CISOCA for him or her to sign the statement and a witness to the relevant interviewing officer. When the child/adult arrives, they should meet the officer who undertook the interview and an explanation given as to the next steps in the procedure. The child/adult will then have an opportunity to watch the video recording and after viewing it, the statement can either be read by the child/adult or read over to him or her by the interviewing officer. After these procedures, the usual steps are taken to sign the statement and witness it by the child's parent or caregiver should take place. The statement will also include the introductory paragraph at Appendix 'A'.

Preparing the officer's statements

Before the amendment to the Evidence Act, the written statement will be the primary evidence contained in the file. However, there is a possibility that the original video recording will be produced as an exhibit at the trial. Consequently, there is a requirement for the officers undertaking the interview and observing it to make statements confirming their participation and the procedures that were used. The original recording will have been made using at least two CD/DVD's. One would have been saved as the Master copy and sealed and marked with the officers initials and their next exhibit number for this investigation – example LT/1. The second will be marked working copy and marked LT/2.

The statement to be prepared and signed by the interviewing officer is shown at Appendix C.

The statement to be prepared by the observing officer (Cisoca equipment) who prepared the written statement is shown at Appendix D.

Appendix 'A'

Introduction to the statement of the child victim or witness

On (date of interview) I went to the Centre for the Investigation of Sexual Offences and Child Abuse in Ruthven Road, Kingston. I was interviewed by (name of police officer) and the interview was recorded on video.

I have watched a copy of the recorded interview. I can confirm that this statement, which I have read (or has been read to me), and is an accurate account of what I told the police officer about what happened to me.

Appendix 'B'

Introduction to the statement of an adult

On (date of interview) I went to the (describe location). I was interviewed by (name of police officer) and the interview was recorded on video.

I have watched a copy of the recorded interview marked exhibit / . (EXAMPLE LT/2) . I can confirm that this statement, which I have read (or has been read to me), and is an accurate account of what I told the police officer about what happened to me or what I witnessed.

Appendix 'C'

Introduction to the statement of the Officer who interviewed the child

I am stationed at Centre for the Investigation of Sexual Offences and Child Abuse in Ruthven Road, Kingston (or describe other unit) and I undertook an interview with (name of child and date of birth). The interview took place on (date of interview) and was recorded on video. I have been trained in the process of undertaking video recorded interviews. The recording was made using a 4201 Digital Audio Video Witness Interview Recording System (serial No. 40779) manufactured in the United Kingdom by Canford Audio (OR specify equipment used & serial number). The equipment was operated by (name of the officer).

Appendix 'D'

Introduction to the statement of the Officer who interviewed the adult

I am stationed at (describe) and I undertook an interview with (name of person). The interview took place on (date of interview) and was recorded on video. I have been trained in the process of undertaking video recorded interviews. The recording was made using a (describe equipment) Digital Audio Video Witness Interview Recording System (serial No. (insert)) manufactured in the (describe) by (describe). The equipment was operated by (name of the officer).

Appendix 'D'

Introduction to the statement of the Officer who observed the interview of the child and prepared the written statement.

On (date of interview) I went to the Centre for the Investigation of Sexual Offences and Child Abuse in Ruthven Road, Kingston. I observed an interview of (name of the child) who was interviewed by (name of police officer) and the interview was recorded on video.

Following the interview I prepared a written statement from the contents of the video recording and on (date), (name of witness) watched the video recording and read the statement (or the statement was read to him or her). He (she) then signed the statement confirming it was an accurate record of the video interview. The statement was witnessed by his (or her) parent (guardian). I checked all the equipment prior to making the recording and I am able to confirm that this was working properly. I used new blank CD/DVD'S placed them into the designated locations. I removed and sealed one disc and marked this as the Master copy and the exhibit was marked as / . I then removed another and sealed this as a Working Copy and marked this as exhibit / . I have viewed the Working copy marked exhibit / and this is an accurate recording of the interview that was conducted.

Appendix 'E'

Introduction to the statement of the Officer who observed the interview of the adult and prepared the written statement.

On (date of interview) I went to the (describe location). I checked all the equipment prior to making the recording and I am able to confirm that this was working properly. I used new blank CD/DVD'S and placed them into the designated locations. I observed an interview of (name of the adult) who was interviewed by (name of police officer) and the interview was recorded on video.

Following the interview, I removed and sealed one disc and marked this as the Master copy and the exhibit was marked as / . I then removed another and sealed this as a Working Copy and marked this as exhibit / . I prepared a written statement from the contents of the video recording and on (date), (name of witness) watched the video recording, marked exhibit / and read the statement (or the statement was read to him or her). He (she) then signed the statement confirming it was an true statement. The statement was witnessed by his (or her) parent (guardian) (where applicable). I confirm that the Working copy marked exhibit / is an accurate recording of the interview that was conducted as described above.

CHAPTER 5

RECORD KEEPING

5.1 The Importance of Keeping Records

An important aspect of the Jamaica Constabulary Force (JCF) crime strategy is the improvement of both the effectiveness and efficiency of the input into the criminal justice process. Accurate and professional incident reporting, the recording of decision making rationale and the methods of initial evidence retrieval together with all subsequent supervision are crucial to our objective being achieved.

All officers, including those on detective duties, must carry Note Books (NBs) at all times when on duty. These books must be used when dealing with crime incidents. This will allow subsequent investigators to have control of a copy of the original book (original must be securely retained as the original note), make use of the information therein and preserve the integrity of a copy of the notes made should the original be lost.

Whilst this instruction remains in force for most officers, a number of specialist roles have been identified which are common to all major crime scenes and logs have been developed to cater for these critical functions. The logs currently being used consist of:

SOC 1 **Scene Attendance Register** (incorporating SOC 1A, First Responding Officers, SOC 1B , Crime Scene Log (Prior to Cordon) and SOC 1C, Crime Scene log (After to Cordon))

SOC 2 **SOC/FSCI Report.**

SOC 3 **Exhibit Continuity form**

Additional logs will be developed and implemented in due course.

The key log in any homicide investigation is the IOs Decision Log. All other logs generated during an investigation, (e.g. FLO; Crime Scene Manager) should reflect the overall strategies and policies recorded by the IO and therefore complement the investigating policy of the IO.

All material obtained or used in the course of an investigation is potentially disclosable and as such, all material MUST be revealed to the prosecutor (Clerk or Crown Counsel). If specific objections can be raised under Public Interest Immunity (PII), by the prosecution, then it may not be disclosed. If any material is believed to fall under this provision, it MUST be revealed to the ODPP, who can then make an informed decision, which may have to be presented to a Judge, as the final arbitrator.

Throughout this section in relation to a number of logs (e.g. SIO Decision Log, & FLO Log) it is stated that there should be no disclosure without the express request of the Clerk/ODPP reviewing lawyer. These logs should be treated as sensitive from the outset and consultation at an early stage with the Clerk/ODPP to ascertain whether or not disclosure is required may prevent officers who compile these documents suffering from a false sense of security.

The retention of an officer's original note is essential and these logs would be regarded as such. The officer, subject to certain procedural arrangements, may refresh their memory from an original note and this is essential where time has passed or significant activity has been undertaken and without refreshing their memory the information cannot be recalled.

5.2 List of logs that should be utilised include:

- ☐ Family Liaison Log
- ☐ Record of Contact Log
- ☐ Decision Log
- ☐ Major Crime Scene Log (SOC1)
- ☐ SOC/FCSI LOG (SOC2)

5.3 Family Liaison Log

At the beginning of an enquiry the FLO must commence a FLO Log in which to keep all records of contact with family/next of kin, representatives of the family and other parties connected to the family. The log should be maintained by the FLO and supervised, at regular intervals by the IO and registered within the Case Management System.

Record keeping is essential to the role of family liaison. It provides the facility for the IO to manage the liaison effectively. It ensures that there is an accurate, accountable and transparent record of any future review process. The integrity of this record is essential and ideally should be maintained in a securely bound document with numbered pages.

The log must be maintained in line with JCF instructions, which relate to 'original notes' and care should be employed in its completion, working on a presumption that disclosure by virtue of the disclosure rules, will take place. It is important to retain all such notebooks for evidential integrity and disclosure purposes.

5.3.1 Continuity and Integrity

The family liaison Log should be available at all times for use by all FLOs and for inspection by the IO. Its security should also be maintained. For these reasons it is advisable that the log is kept within a secure police environment. When notes are made on separate pieces of paper or personal notebooks, these are to be kept for evidential integrity and disclosure purposes and a copy attached to the FLO log.

5.3.2 Disclosure

The Family Liaison Log must not be disclosed to the defence unless directed by the ODPP or a court order authorising the disclosure.

5.3.3 Sensitive Material

Where the FLO becomes aware of any sensitive issues that might need to be brought to the attention of the enquiry, an early meeting should be arranged with the IO to discuss how they wish this information to be recorded.

Applications for Public Interest Immunity (PII) regarding the disclosure of such sensitive information can then be considered at a later point as and when appropriate.

The Family Liaison Log should include reasonably full accounts of what victims and families of serious crime are told, particularly when the information is of a confidential nature.

5.3.4 Content

The log should contain the following information:

- ☐ Details of all non-sensitive strategic and tactical decisions agreed with the IO affecting the Family Liaison Strategy
- ☐ Date and time of all contacts made including the times of any meetings
- ☐ Method of contact and venue where applicable e.g. by telephone, at home address
- ☐ Detail the purpose of contact and any information exchanged
- ☐ Details of any complaint made by the family and action taken to appraise the IO
- ☐ Details of any request made by the family not acceded to and action taken to appraise the IO
- ☐ Details of who initiated the contact, e.g. police, family, others.
- ☐ Details of non-family members present at meetings

NB. Care and discretion should be employed in establishing these details if they are not volunteered or already known

- ☐ All attempts to contact the family or their representatives without success
- ☐ All attempts to contact the family which were refused or declined and any reasons given
- ☐ Date and time of submission of the entry to the enquiry system (where applicable).

On completion of each sheet the FLO will sign, date and time it and complete the assessment level to measure the appropriate response. Any request made by the family of a victim which is not acceded to shall be formally recorded by the IO in the Decision Log and brought to the attention of the relevant Crime Officer without delay.

5.3.5 Family Liaison Assessment Levels

A grading should be given and recorded in the FLO log for the relationship between police and the family.

The levels are:

Level 1	The relationship is good and there is healthy collaboration between the FLO and the family.
Level 2	The relationship is strained and there exists concern of a rift developing.
Level 3	A rift exists and immediate remedial action must be taken to address this. In such instances the assistance of additional support should be sought as appropriate.

At levels 2 and 3, consideration ought to be given to the formation of a Case (name of victim) steering group. 'Gold Group'

This is a dynamic process and the assessment levels can rise and fall depending on the circumstances. CIB HQ is available to offer guidance and support to the IO particularly in cases where the family liaison assessment level rises above level one. All investigating officers will be given a familiarisation course in the role of family liaison. There is also a cadre of officers who have received accredited training in this role and this is retained at CIB HQ.

An accredited officer may be appointed at any time, but should always be involved when the assessment level gives cause for concern. CIB HQ will maintain a register of accredited officers and should be contacted to discuss the appropriate response.

5.3.6 Supervision – Family Liaison

The IO will be responsible for supervising all aspects of liaison with the family and will regularly sign and date each page of the Family Liaison Log. The IO should hold regular briefings and debriefings with the FLO to ensure the appropriate response level is attained within the concept of the different family liaison levels. The FLO should have easy direct access to the IO.

5.4 Record of Contact Log

This log is to be used when the IO has identified a 'significant' witness who requires special attention. These may include:

- ☐ A very young witness,
- ☐ A witness whose motives or evidence is doubted, and
- ☐ A witness who requires JSU support.

All contact must be recorded in the log and retained. If there are other records of contact, e.g. minutes, this will suffice, there is no requirement to duplicate records. Relevant sections of decision log management (see below) should be read here.

5.4.1 General Criteria

Whether or not a witness is dealt with as a significant witness will depend upon:

- ☐ The definitions provided in Chapter **4.12**; and
- ☐ A decision by the IO in the particular enquiry.

‘Significant’ (or key) witnesses are defined as:

- ☐ Those who have been, or claim to have been, a first-hand witness to the immediate event or events directly associated with it; or
- ☐ Those who have, or claim to have, witnessed a confession or threat; or
- ☐ Those who stand in a particular relationship to the victim, or to some other person who appears to be of importance to the enquiry.

Police officers who fall within the above definition should also be considered for formal interview as significant witnesses.

Guidance on significant, or key, witnesses is set out in Chapter **4.12** of this manual.

5.4.2 Recording Contacts with Significant Witnesses

The general principle is that contacts with significant witnesses must be recorded.

5.4.3 Completing Contacts with Significant Witnesses

Witness Liaison Officers (WLOs) should record details of all contacts or attempted contacts with the significant witness. Details include the following:

- ☐ Date and time of contacts;
 - ☐ Date and time of meetings;
 - ☐ Method of contact (e.g., telephone);
 - ☐ Venue (e.g., home address);
 - ☐ Purpose of contact;
 - ☐ Information exchanged;
 - ☐ Details of who initiated the contact (e.g., police, witness, others);
 - ☐ Persons present;
 - ☐ Any changes to the evidence or other changes;
 - ☐ All requests to contact the witness which were refused or declined and the reasons given;
 - ☐ Date and time sheet completed; and
 - ☐ Other Actions by WLO.

All significant contacts (e.g. change in account or threats received) must be brought to the attention of the IO. The WLO should show where, when and by/to whom.

In any issues of doubt, the WLO should consult with the IO.

5.4.4 Professional Standards

Meticulous care must be taken to ensure that no untoward approaches are made by police or others. On no account should any inducements be given or offered to obtain evidence.

5.4.5 Witness Protection

Consideration should be given to witness protection in appropriate cases. If in doubt, contact the CIB Justice Support Unit (JSU).

The use of a pseudonym to preserve identity should also be considered as one of the protective measures that can be taken.

For additional information relating to this, see Chapter **4.12.12.5**.

5.4.6 Storage and Retention

The WLO will be responsible for the safe custody of record until the investigation or trial is concluded. At that point, the record will be filed with the Case File and retained by Records Branch in accordance with the JCF policy.

5.5 Decision Log

Historically there have been vigorous debates over what constitutes a policy within a major crime investigation and what should be included within a policy file. Uncertainty and misunderstanding have often diminished the quality of the content of a policy file.

The Decision Log should accurately reflect the strategic and important tactical decisions made by IOs as they relate to the investigation. All strategic and important tactical decisions should be recorded with the rationale behind the decisions.

In the past policy files were subjected to scrutiny by criminal courts, civil courts, inquests and reviews. Scrutiny now may also include judicial reviews and public inquiries. If Decision Logs are skillfully prepared, they will serve as a critical record supporting the accurate management of crime investigation.

IOs must be mindful that this log is the definitive record upon which they will rely when subsequently asked to account for their decisions.

Only the IO for the case should complete a Decision Log.

5.5.1 When is a Decision Log Required?

Probably the most important aspect of managing any major investigation is the systematic recording of IOs decisions. The recording of why various lines of enquiry and tactical decisions were, or were not, pursued is critical.

CIB guidelines advise that when Homicide investigation is established the IO should start recording their decision making process. IOs are also to be encouraged to record their decisions in these logs when dealing with other major crimes such as shootings, armed robbery, complicated frauds and stranger rapes. The rationale behind this approach is that these officers may become the IOs of the

future and they should be encouraged to develop the skills and ideology associated with constructing decision logs.

5.5.2 Continuity and Integrity

Where a Decision Log has been commenced and the investigation is handed over, the original Decision Log, if not adopted by the new **IO**, must at least be signed off and a copy of the original log retained by him/her. There should always be only one decision log operating which will be held by the nominated **IO**. In investigations where the **IO** has changed, the original **IO** must securely retain the original record where it has not been handed over as it may be required at a later date.

5.5.3 Page Numbering

To assist with disclosure, each page should be consecutively numbered and ideally a separate record made for each investigation.

Recognised good practice is for the **IO** to share decisions at briefings and display updated copies of their investigation plan. It is acknowledged that there will be occasions when the **IO** withholds information from the enquiry team on the basis of sensitive issues or in the interest of operational security.

5.5.4 Disclosure

To assist with disclosure, each page should be consecutively numbered and ideally a separate record made for each investigation.

Recognised good practice is for the **IO** to share decisions at briefings and display updated copies of their investigation plan. It is acknowledged that there will be occasions when the **IO** withholds information from the enquiry team on the basis of sensitive issues or in the interest of operational security.

5.5.5 Sensitive Material

There is no change in policy about sensitive issues. All decisions relating to sensitive matters should be recorded within the Decision Log. In some circumstances, an additional Decision Log can be generated to exclusively record sensitive decisions. The **IO** must acknowledge the creation of a sensitive decision log in the non-sensitive version.

5.5.6 Additional Books

When an investigation generates a large volume of one particular strategic category, for example, media, forensic or sensitive issues, additional books can be generated. Although the policy remains one enquiry for each Decision Log, there are no limits to the amount of logbooks for each enquiry. In extreme circumstances the **IO** could create a log for each strategy that is, one log for each category heading.

5.5.7 Maps and Analytical Charts

IOs have found advantages in presenting their policy files with maps, photographs and analytical charts. IOs may refer to the subsidiary documents within Decision Logs, and they can be either stored separately or in the Case Management system as other documents.

5.5.8 Content

Decision Logs should be used to record strategic and important tactical decisions. They are not action logs. Individual actions, unless likely to be controversial, should be administered within the Case Management system.

There is no requirement to record any detail of administration and finance within the Decision Log.

It is recommended that a decision log entry be made by the IO of an enquiry to confirm both the Classification and Method for the enquiry under investigation and that the relevant Crime entry is classified and updated with Statistics Branch.

Construction of a good Decision Log is a skill IOs should seek to develop and should be an aid memoire help IOs in considering their strategies within the investigation plan.

5.5.9 Supervision

The IOs Crime Officer & line manager where applicable will be responsible for supervising the progress of the investigation. Any review process will use the Decision Log as a primary reference point for examining the strategic direction of the investigation. the IO should record the time that a decision was made but also, if different, to show the time that a decision was recorded.

5.6 SOC 1 – Major Crime Scene Log

(Scene Attendance Register)

Crime scenes are precious. The recovery of forensic material from a crime scene and the potential to provide evidence to detect the crime is well recognised. The preservation of a crime scene is one of the primary responsibilities for police at any scene.

A Crime Scene Log (SOC 1) has been designed to help ensure a full record is kept of everyone attending the scene of a suspicious death, major crime or other major incident. Officers may also choose to use it at other incidents where control of a scene will be an issue. It will be used to record the details of any person who enters the scene, with times of arrival and departure, as well as details of persons who request entry but are denied.

A Crime Scene Log should be brought into use as early as possible. People already at a scene when a log is started should be entered in the log and marked as *'already at scene'* in the *'Reason for Entry'* column. If a log has been started in a pocket book, Notebook and so on before SOC 1 being brought

into use, the details should be transferred into SOC 1 and a note made in the '*Reason for Entry*' column and show cross reference to original document.

When a Crime Scene Log is handed over to another officer, each officer should sign, date and time an entry noting the handover on the next available line.

Every officer who uses a Crime Scene Log may be required to complete a written statement. Once permission is given to close the log, it should be handed to the **IO** who will be responsible for its storage with the Case File. Crime Scene Logs will be dealt with as an '*other document*'.

Arrangements should be made for them to be carried at all times on immediate response cars and similar vehicles.

5.7 Forensic Crime Scene Investigator (FCSI)

or Forensic Crime Scene Manager (FCSM) where applicable.

The JCF Forensic Master Plan provides additional information, in respect of our forensic specialisms, and their roles, to support all the JCF forensic investigations. This should be read and considered in respect of our forensic activity.

The FCSI/FCSM are the primary deliverers of our Scene of Crime response and this is supplemented by Certified FCSIs, referred to as CFCSI. For ease of understanding, only 'FCSI' will be used in this manual, which would include the CFCSIs who have obtained international recognition and Certification in this specialist area of forensic work.

The FCSI report/worksheet (SOC2) and exhibit receipt (SOC3) should be recorded to provide documentary evidence encapsulating all forensic records, actions, and decisions made within the provision of scientific support to homicide and major crime. Initially the SOC2 Forensic Crime Scene Investigators Report and SOC2A Narrative will initially be used to record activity. Any subsequent work will be recorded in and SOC3 Exhibit Receipt (where applicable) or another log and a copy provided to the **IO**.

FCSMs provide an enhanced forensic support to homicide and major crime investigations, and should be used in complex cases. FCSIs will provide the immediate forensic support at any crime scene and where necessary they will contact the FCSM for additional assistance and advice. The **IO** may at any time make contact with the on call TSD FCSM for advice and guidance in any case where potential concerns have been or may be apparent. This will include the crime scene management and examination of primary and secondary crime scenes, post mortem examinations, premises searches, vehicles, and the examination of victims and suspects.

A FCSI/FCSM report/worksheet (SOC2 & SOC3) should be completed in support of homicide, suspicious death, sudden death, major crime scene or critical incident where aspects of crime scene management are required.

5.7.1 Purpose

The SOC1, SOC2 & SOC3 provides a corporate framework for the management of individual crime scenes and overall co-ordination of multiple crime scenes relating to a particular enquiry. The SOC1 is completed by the first responders. The SOC2 & SOC3 will contain documentary evidence of records of work for forensic crime scene management, including forensic strategies, decisions made with supporting rationales, and actions taken within the implementation of forensic strategies adopted. Completion of the SOC1, SOC2 & SOC3 will support compliance with existing JCF forensic strategies and established competency frameworks.

5.7.2 Protocols

The SOC2 & SOC3 (where applicable) is to be used as the primary source of documentary evidence for records of work produced by TSD FCSI/FCSMs relating to the provision of forensic support to homicide and major crime investigations.

- ☐ All notes must be contemporaneous and in a chronological order, or recorded as soon as it is practicable, and all entries made must be signed and dated by the author.
- ☐ Entries must be made to provide an unambiguous record of all decisions made, actions taken, and forensic strategies formulated and implemented in the provision of forensic support to an investigation, with clear and concise supporting rationales provided.
- ☐ All relevant Health and Safety issues and full details of any risk assessment carried out should be fully documented.
- ☐ With regard to actions relating to ancillary tasks undertaken in support of an enquiry, such as recording the receipt and transfer of items of property or where assistance only has been provided, the Exhibit Receipt form (SOC 3) will be used where considered to be appropriate.
- ☐ Completed self-duplicating copy sheets within the SOC 2 should be submitted to the relevant **IO** within 48 hours and at other appropriate stages, in order to ensure the efficient and effective exchange of information.
- ☐ Completed witness statements from the FCSI will be submitted within 7 days, together with any additional material (i.e. Laboratory Receipt).
- ☐ At the conclusion of an enquiry, all records should be signed off and submitted to the relevant **IO** and stored with case file.

5.7.3 Benefits

- ☐ The records will provide a structured corporate framework for documentary evidence of records of work produced by TSD FCSI/FCSM
- ☐ It will include details relating to decisions made and actions taken within forensic strategies formulated, adopted, and implemented.
- ☐ It will provide an enhanced clarity with regard to accountability and responsibility, with supporting audit trail facilities included.
- ☐ Records will provide an improved level of communication and information exchange between the FCSI/FCSM and the relevant **IO** within established time scales.

5.7.4 Completion of reports (SOC2 and SOC3)

The SOC2 will be commenced at the scene and completed for every major scene of crime. A duplicate copy will be forwarded to the **IO within forty eight (48) hours** for their information and inclusion in the investigation case file. It should contain the following:

- ☐ Time, date, location of offence /Scene of Crime examination number;
 - ☐ Any relevant weather or situational conditions at the scene to include the status at the crime scene upon arrival (e.g. fire, crowds, and initial observations);
 - ☐ Factual detail and observations regarding the victim and inner scene e.g. injuries, lighting, signs of disturbance etc.;
 - ☐ List of all evidential exhibits seized, their description and location found. (**SOC 3**) may facilitate this process, if utilised; and
 - ☐ Viewer CD/DVD's of photo images taken (Note: The Master & Working discs will be retained according to TSD policy).
- a. The FCSI/FCSM will provide a minimum of 3 viewer copies for each CD/DVD completed. (one each for the **IO**, case file and the Clerk of Court). In cases where charges have been laid an additional viewer CD/DVD will be provided for each defendant.
- b. The FCSI/FCSM will provide a statement to the **IO within seven (7) DAYS**, producing the **SOC2 & SOC3** (where applicable) and any master/copy CD/DVD's as exhibits and detailing the movement of all exhibits collected and any other action taken.

5.8 Debrief Log

This document is to be used as an aid to assist officers conducting and recording debriefing of murders and other critical incidents. In case of homicide and suspicious death, a "hot debrief" is acknowledged good practice.

All officers involved in the incident/pre-planned event should complete notes or report books prior to debriefing; any additional information remembered as a result of the debriefing should be added at the conclusion of the debrief, with a clause noting it's addition as a result of recollection prompted by the debriefing process.

Any urgent or pressing developments identified should be reported **WITHOUT DELAY** to the **IO**, or other lead officer.

Completed logs should be retained with case file or other documents, and be available for compliance with disclosure issues.

5.9

Current Situation Reports

5.9.1 Introduction

There comes a point in every homicide or other major enquiry where all reasonable investigative steps have been taken and, whether or not any person has been charged, it is necessary to consider bringing the active phase of the investigation to a close.

The term “active phase of the enquiry” recognises that an unsolved (or only partially solved) investigation is never actually closed. That said, however, there will come a time when all meaningful enquiries are exhausted and the enquiry team is disbanded. At this stage other arrangements need to be put in place to ensure that the case is periodically reviewed to ensure any new investigative opportunities are identified and exploited. There is also a need to ensure that the victim’s family and others have a permanent point of contact.

Current situation reports should be completed at the conclusion of the active phase in a major enquiry that remains undetected. It is not possible to provide an exhaustive list of the types of cases in which this should be done but the following categories are suggested as a minimum standard:

- ☐ Murder;
- ☐ Attempted murder;
- ☐ Shootings
- ☐ Stranger rape; and
- ☐ Abduction/kidnapping cases.

In long running enquiries it may also be useful to utilise the format of a Current Situation Report to provide detailed factual updates for the use of senior managers.

At the conclusion of the active phase of the enquiry the Current Situation Report needs to fulfill two distinct purposes:

- ☐ To inform the active phase closure process; and
- ☐ To provide a detailed summary of the enquiry to inform any later review or reinvestigation.

Properly prepared, a single report can fulfill both these functions. That said, it is inevitable that to fulfill the second function a substantial level of detail is required and the report is likely to be lengthy. It is important that IOs recognise the importance of the Current Situation Report. It should allow any subsequent investigator to quickly assimilate the key facts and evidential issues involved in the case. This is particularly important many years later, when the case may be re-opened by an IO and officers who have no previous knowledge of the case.

It is a matter for individual IOs to decide whether the Current Situation Report for a particular enquiry should be completed at the end of the active phase of the enquiry or whether it should be kept as a dynamic document, regularly updated as the investigation progresses. However the “Facts” aspect of the report, as discussed below, lends itself to regular updating and it is likely to be extremely useful to the officers presenting the case at Court if the case is detected.

Whilst the precise format of the Current Situation Report may vary, it is recommended that it should contain the following sections:

- ☐ "Facts"
- ☐ "Narrative"
- ☐ "IOs report"

5.9.2 Facts

This section should gather together all the factual information relating to the investigation, including times, dates, places, names, reference numbers and the like. As some information will be known from the outset, and other information will arise as the enquiry progresses, it is recommended that a document should be opened as soon as possible, with new information added periodically thereafter.

The following sections should be included:

- ☐ **Victim:** Name; basic details; summary of relevant antecedents.
- ☐ **Crime scene(s):** Location(s); details of discovery of body; scene examiners (names, reference numbers).
- ☐ **Search strategy:** Locations searched; extent; name of search co-ordinator.
- ☐ **Sequence of principal events:** Single line entries summarising the time and date of the principal events in the enquiry timeline.
- ☐ **Initial Police Action:** First officer on scene; cross references (e.g. to emergency calls, etc.); extent of cordons; details of incident manager and loggists; attendance of specialists.
- ☐ **Local enquiries:** Parameters, extent (full house-to-house, "FLASH Searches" or "witness seeks"); co-ordinator; details of any road checks or other witness seek events.
- ☐ **CCTV:** Search and seizure parameters; viewing parameters.
- ☐ **Forensic strategy:** Details of exhibits officer(s) and specialist advisors; reference numbers.
- ☐ **Post mortem(s):** Dates, locations and pathologists names; body release and disposal details; inquest details.
- ☐ **Staffing:** Names and effective dates of officers in principal roles.
- ☐ **Administration:** Diary references, correspondence and crime reference numbers; property/exhibit reference numbers; details of any risk assessments.
- ☐ **Photographs/videos/plans/etc.:** Subjects, dates, details of originator, reference number.
- ☐ **Intelligence:** Details of initial and subsequent intelligence updates; source unit tasking details; details of analysts, profilers and similar experts.
- ☐ **Suspects:** Summary of available "first descriptions"; best composite descriptions; e-Fit, etc. References.
- ☐ **Arrests:** Name and basic details of persons arrested; custody reference numbers; details of final disposal.
- ☐ **Suspects charged:** Names, Clerk/ODPP references and representatives dealing; details of court hearings; court reference numbers.
- ☐ **Suspects outstanding:** Name and basic details; details of circulations; reference numbers, etc.
- ☐ **Publicity:** Name of CCN Officers; summary of coverage; details of posters / leaflets / etc.; details of reconstructions; details of rewards offered.
- ☐ **Reviews:** Details of periodic review by immediate supervisors of the IO; details of formal independent reviews.

- ❑ **Community Concern Assessment:** Details of representatives of local division; summary of Community Impact Assessments conducted; details of any independent advisors, etc. involved in the enquiry.

The contents of this section should be presented simply as a collection of facts and without discussion. If it is treated as a dynamic document, the Case Officer or any other nominated member of the enquiry team may fill it in on an ongoing basis. At the conclusion of the active phase of the enquiry all that should be necessary is for the details to be checked for accuracy and completion.

5.9.3 The Narrative Report

This section should provide the most accurate possible account of the incident, pulling together all the evidence obtained during the investigation. It will be very similar to the narrative prepared for the Clerk/ODPP in detected cases and if such a document already exists it may be used as the basis for this report and very little more may be required.

It is suggested that the report should be presented in numbered paragraphs and sub-paragraphs as this allows new information to be inserted easily in the appropriate section. Where different versions are prepared over time, care should be taken to ensure that they are clearly marked with version number or date, perhaps in the bottom corner of each page.

There should be sections on the following subjects:

Introduction: This section will lay out briefly the overall nature of the incident.

- ❑ **The victim:** This section will detail all that is known about the victim(s), with particular emphasis on aspects of their character which are relevant to the investigation.
- ❑ **The venue:** In this section the venue(s) involved in the enquiry will be detailed. Reference will be made to plans, photographs, videos, etc. created during the enquiry. In some cases there will be several venues to be described. Again particular attention will be paid to aspects of the venue which directly impact upon the investigation.
- ❑ **Sequence of events:** The best possible account of the sequence of events involved in the enquiry will be detailed in this section, which is likely to be the longest section of the report. Where there are discrepancies between different witnesses, the alternative accounts may be described with comment, if appropriate as to where the truth is believed to lie.
- ❑ **Motive:** The various motives considered during the enquiry should be detailed in this section, with appropriate comment as to which is the favoured motive of the Investigating Officer.

Police activity: This will again be a lengthy section. Details of all police activity from the initial response onward should be included in sequence. This will include:

- ❑ **Initial response:** summary of key points, referring to source documents (Police Control messages, logs, etc.).
- ❑ **Scene examination:** detail of examinations carried out, parameters set, prioritisation and key evidence found.
- ❑ **Searches:** locations, search parameters, extent (e.g. *Caribbean Search Centre*) and key evidence found. CCTV survey parameters, viewing parameters and key evidence found.

- ❑ **Post mortem:** time, place and pathologist for all examinations, details of photographs, etc., key findings, details of identification, result of analysis of samples taken, release of body and details of final disposal.
- ❑ **Search for witnesses:** local enquiry / house-to-house parameters, details of witness seeks, appeals, reconstructions, etc. If a reward was offered, details should be included here.

Exhibits/Physical evidence: This section will summarise the physical evidence obtained during the course of the investigation. The **IO** will highlight the “key” exhibits in the case and the arrangements made to secure them for future reconsideration.

- ❑ The summary must clearly show which exhibits have been subjected to which scientific or other analyses (by the FCSI/TSD, the TSD Fingerprint Branch, Forensic Laboratory or any other agency). Key results of such examinations will be highlighted.
- ❑ Details of the relevant homicide advisors, exhibits officers, and key specialists will be included. Where relevant, parameters or priorities for examination will be discussed.
- ❑ The **IO** will highlight any areas where future developments in science or technology may be considered.

Intelligence and analysis: This section will summarise the intelligence gained during the investigation. The national 5x5 system will be used for assessment. Intelligence obtained from *Crimestop* and other sources will be included, in desensitised form if necessary.

- ❑ Any telephone intelligence will be summarised in this section. The **IO** will highlight any such intelligence that could not be obtained because of technical or procedural difficulty with the service providers.
- ❑ Analytical products developed during the course of the enquiry will be summarised.
- ❑ Details of profilers, financial investigators or similar specialists will be summarised, along with their key findings.

Lines of Enquiry: Details of any hypothesis by the **IO** and any links with other incidents will be outlined.

There will be a summary of main lines of enquiry, divided into two categories:

- a. The principal lines of enquiry which *have* been pursued and their outcome
- b. Any remaining lines of enquiry that *could* be pursued but which have been considered unreasonable.

In each case in category (b), a consistent approach to assessment should be adopted. It may be desirable to consider aspects such as the investigative value of the line of enquiry, the resources necessary to pursue it and an estimation of the likelihood of success.

In particular, any lines of enquiry suggested by the family of the victim or other interested parties should be assessed in this section of the report.

Where decisions are taken *not* to pursue lines of enquiry, they should be fully recorded in the **IOs** Decision Log. The rationale for each decision should include the **context** of the decision, such as other operational requirements existing at the time.

Particular care should be taken when deciding not to pursue lines of enquiry solely, or primarily, because of a lack of resources. There is a legal requirement for police to investigate thoroughly criminal allegations and an internationally accepted duty for the state to provide a competent and thorough investigation, and these should be borne in mind.

Suspects: In this section the details of all suspects identified during the enquiry should be drawn together, perhaps presented in the form of a table or schedule. The following details should be included:

- ☐ **Source:** how their details came into the enquiry (all sources to be shown)
 - ☐ **Details:** basic details, address(es), relevant antecedents
- ☐ **Designation:** whether formally defined as “suspect” by IO or not, including rationale for decision.
- ☐ **Investigation:** summary of action taken to investigate each “suspect” including key evidence discovered. Where relevant, details of any outstanding circulations should be included.
- ☐ **Summary of evidence:** the IO should summarise the available evidence against each suspect and the factors which prevented arrest and / or charge. A summary of any interviews carried out should be included here. If Clerk/ODPP advice has been obtained it too should be summarised.
- ☐ **Elimination criteria:** parameters applied and outcome for each “suspect”.
- ☐ **Future potential for investigation:** IO to highlight any potential areas worthy of future reconsideration (e.g. any areas of weakness in terms of alibi or any outstanding suspicions that remain).

In all cases, whether or not any suspects were ever identified by name, this section will summarise the best information available about the person(s) responsible for the offence (descriptions, habits, vehicles, associates, etc.).

Administration: This section should summarise the current situation in relation to the various administrative processes:

- ☐ **Case File:** policy decisions, parameters, etc. is to be included. There should be specific reference to indexing policy. Where actions have been referred or queued, this section will summarise the criteria used and the numbers of actions currently of each status. Disclosure status will also be discussed.
- ☐ **Case papers and other material:** the location and reference numbers of all case files, electronic records (e.g. *communication data, analysis charts*), exhibits and other material will be summarised to assist location in the future if necessary.
- ☐ **Inquest:** details of the inquest (if any) including the verdict recorded by the Coroner. Also to include details of the release of the victim’s body and any information known about final disposal (e.g. place of burial, details of cremation, etc.)
- ☐ **Family liaison:** there will be a brief resume of the family liaison history of the investigation. The current situation, and especially the family response to conclusion being considered, will be dealt with in detail. Family liaison officers, lay advisors, family representatives, etc. will be detailed with clear means of contact for the future. A summary of the FLO exit strategy should be included.

- ❑ **Community issues:** there should be a brief resume of the community issues that were identified during the enquiry, but again the emphasis will be on any outstanding matters.
- ❑ **Media:** a summary of the media strategy throughout the enquiry should be included, with discussion of the anticipated media reaction to the proposed closure of the active phase
- ❑ **Intelligence:** this section should include the arrangements made to disseminate any appropriate intelligence from the enquiry into the wider policing environment (e.g. into intelligence systems, locally and nationally and to other agencies).
- ❑ **Reviews:** a summary of any previous reviews of the enquiry should be included here, with details of all recommendations made and the action taken in response to them.

In view of the number of subjects to be included, and the level of detail required, it is inevitable that the narrative report will be of substantial length.

It is suggested that the preparation of the narrative report should be the responsibility of the case officer or the **IO**. However, the **IO** should personally check and accept the contents.

5.9.4 Investigating Officer's Report

This section, which should be prepared by the **IO** personally, will be relatively short. All the necessary factual information should be included in the preceding two sections and, where necessary, the **IO** should cross-refer to them. The **IO** should consider the following headings when completing this section, although some may not be relevant to any individual investigation:

- ❑ **Strengths and weaknesses of the investigation:** The **IO** should discuss any particular aspects of the enquiry which went well or badly, with particular attention to any areas such as witness intimidation or lack of co-operation, evidential issues, Clerk/ODPP advice etc. which made effective investigation difficult.
- ❑ **Residual suspicions:** If the **IO** considers that any particular suspect cannot be fully eliminated, despite their best efforts, a summary of available evidence supporting the residual suspicions should be included. The **IO** may also be able to suggest potential areas for re-investigation in the future (such as an alibi witness who may be liable to change their story if allegiances change in the future)
- ❑ **Recommendations for future activity:** In this section the **IO** should make their own recommendations for future investigative activity in relation to the enquiry. There may simply be a suggestion that the case be considered in due course by the undetected review unit. In other cases, however, the **IO** may highlight future investigative opportunities that merit some action being planned for a specific date in the future. This may include activity around an anniversary, reconsideration of suspects and witnesses relationships after a period of time has elapsed or regular review of some police or other records.
- ❑ **Other comments:** The principle aim of this section is to enable a subsequent investigator to place themselves in the position of the original **IO** as swiftly as possible. The **IO** should include any other information that they consider may assist this process.

5.9.5 Construction of Closing Documentation

The following are identified as those documents which should form the core of any closing submission:



Current Situation Report

- ☐ All statements- typed where possible
- ☐ All Other Documents
- ☐ Original and typed messages
- ☐ Copy Indictment
- ☐ Copy court result sheet (If appropriate)
- ☐ Copy of Appeal results
- ☐ Details of persons wanted or suspected not arrested/copy Wanted Dockets
- ☐ Exhibits Books
- ☐ Exhibit schedules
- ☐ Copy Laboratory submissions
- ☐ Copy Documentary Exhibits.
- ☐ Details of outstanding fingerprint marks
- ☐ All Analyst reports/files/chart work
- ☐ Schedule CCTV
- ☐ Schedule photographs
- ☐ Photograph Viewer discs
- ☐ Schedule of witnesses both alphabetical and chronological
- ☐ IO Decision Logs
- ☐ FLO Logs
- ☐ Crime Scene Logs (SOC1, SOC2 & SOC3)
- ☐ Copy Risk Assessments
- ☐ All Sensitive Material to local arrangements

5.9.6 The Active Phase Conclusion Process

In *fully* detected cases it may be appropriate for the IOs Crime Officer to authorise the conclusion of the active phase of the investigation as an essentially administrative process.

In undetected cases, however, it may be desirable for other interested parties to be involved in the process. It is suggested that cases where charges have been laid but no convictions have been attained, and cases where one or more suspects remain outstanding should be treated as “undetected” for the purposes of this process.

The aim is to ensure that all viewpoints are considered and all possible investigative opportunities are identified and considered prior to the case being referred for independent review. In effect, the operational decision of the IO that all “reasonable” steps have been taken is underwritten by a multi-party meeting.

The involvement of the following parties may be considered:



The Investigating Officer and/or deputy;

- ☐ The IOs immediate supervisors/Crime Officer;
- ☐ The Area Crime Officer with responsibility for the investigating command;
- ☐ Independent advisor(s);
- ☐ Divisional policing representatives;
- ☐ Officers responsible for review of homicide investigations/CIB HQ;
- ☐ CCN officer; and



Others with a particular involvement in the case (e.g. Inspectorate of Constabulary, ODPP, partners from health, social services or other agencies).

Notes or minutes of the meeting should be kept, with particular emphasis on decisions made in relation to whether or not lines of enquiry should be pursued.

It is suggested that the victim's family are not involved in this process as it may be necessary to discuss confidential intelligence or covert techniques. They should, however, be advised of the fact that the meeting is taking place and should be invited to make any representations via the **IO** and the Family Liaison Officer.

In most cases the decision of the meeting will quite adequately be communicated back to the family via the **IO** and FLO. In difficult cases, however, arrangements may need to be made for a formal presentation to the family, attended by some or all of the parties present at the meeting. The intention is to ensure that not only is the enquiry professionally concluded, but that the family and other interested parties perceive that to be the case.

The Current Situation Report (or an abridged version concentrating on the salient points in issue in the particular case) should form the basis of the meeting.

It is stressed that this meeting forms the final part of the investigative process as opposed to being an independent review in it's own right. The Area Crime Officer, if present, may use the meeting as an opportunity to decide the Terms of Reference for the subsequent independent review.

Once it is decided to conclude the active phase of the investigation, the **IO** and the Family Liaison Officer should begin to put exit strategies in place with the victim's family and other interested parties.

5.9.7 Risk Assessment

At the conclusion of the active phase of an investigation, it is strongly recommended that a risk assessment should be carried out.

Physical risks to any specific individual or group, or to the public in general, arising from the fact that an offender remains at large (in an undetected case) or arising at some point in the future as a result of the eventual release of an offender (in a detected case) should be the principle focus.

Other risks, such as risks to the police service as a result of the enquiry remaining undetected, may be included in the process if appropriate.

Standard risk assessment processes would be used in this assessment, with risks identified and analysed and control measures considered and implemented.

Control measures may be available in any form. Some possibilities that may be commonly encountered include:



Publicity;

- ☐ Information/advice/support to individuals or groups identified as being specifically at risk;
- ☐ Monitoring of individuals in some way where residual suspicions of involvement remain (perhaps by “flagging” or similar action on intelligence databases);
- ☐ Multi-agency initiatives, especially in cases where specific groups are considered to be at risk;
- ☐ Crime trend monitoring;
- ☐ Reference of individuals to Sex/Dangerous Offender Panels in exceptional cases; and
- ☐ Monitoring of prisoners and pre-release warning of police by prison authorities.

Whilst the Investigating Officer is well placed to carry out the risk assessment, it is strongly suggested that the process should be overseen by a senior officer. The long-term nature of many of the control measures likely to be necessary means that it is unlikely that the investigative team will be the most appropriate unit to put them in place. It may be necessary to involve local policing units, specialist central departments and agencies outside the police service.

5.9.8 Administrative Matters

A number of routine administrative matters should also be checked at the conclusion of the active phase of an investigation. Completion of these tasks falls as part of the responsibility of the IO and the investigative team. The following list includes some of the matters that should be considered:

- ☐ Correspondence – completion and filing of all case papers.
- ☐ Crime reports – updating Statistics Branch on the classification of crime reports relating to the investigation.
- ☐ Intelligence – ensuring all available intelligence is retrievable from mainstream force intelligence systems.
- ☐ Property/exhibits – storage, restoration or destruction, as appropriate, of all property seized. Ensuring that important exhibits are stored in an appropriate manner and in a readily retrievable way.
- ☐ Logs – ensuring that all decision logs, family liaison logs and community concern assessments are completed in an appropriate manner and filed with the appropriate papers.
- ☐ Circulations – ensure that any “wanted” circulations are confirmed and that case papers are readily available if a person is located.
- ☐ Other agencies – ensuring that any other interested agencies have been provided with appropriate reports.

All of this activity, though routine, is absolutely essential in ensuring that any future re-investigation can be rapidly set in motion, with no difficulties encountered in finding papers, exhibits or information.

5.9.9 Ongoing Ownership of Enquiries

Once the active phase of an investigation is concluded it becomes particularly important to ensure that ownership of the case is not lost. If it is to remain with the original IO, strict guidelines should be put in place to govern the handing over of cases when that IO retires, is promoted or otherwise moves on. Similar considerations apply in relation to the Family Liaison Officer.

5.9.10 Sensitive Material

Where a docket which is ready to be 'put away' contains sensitive material, Registry Branch must be consulted. A docket appropriate to the material, with the same registry number as the main docket, will be issued which will be stored separately from the main docket in secure accommodation.

5.10 Retention of Murder Files

Murder files must be retained until the defendant is 85 years of age, in case of an appeal or any other interest in the case.

Murder cases where the murderer subsequently committed suicide may be destroyed.

Before destruction, all murder files must be referred to, CIB HQ.

To clarify:

- ☐ Solved cases kept until the defendant is aged 85.
- ☐ Unsolved cases we assume any defendant would be aged at least 16 and then keep until age 85.

CHAPTER 6

MURDER REVIEW POLICY

6.1 Introduction

Homicide investigations are complex matters and as such there is a need for 'an element of review' to any investigation. This is particularly relevant if the investigation is going to be concluded with no detection. Review is also a vital aspect of supervision of the Senior Investigating Officer and is expected by the public that we serve.

The JCF needs to ensure that it has robust and defensible systems in place so that all major crime investigations are conducted competently and the needs of victims, families and communities are addressed.

The **Area CIB Review Team** reports directly to the **Area Crime Officer** and is generally independent of all homicide investigation teams. The **Area CIB Review Team** will conduct the majority of reviews for homicide investigations. However, on some occasions the **CIB Inv. Review Team** may be commissioned to undertake a review. This will only be in exceptional cases and as decided by the **ACP CIB**.

This policy will be updated on a regular basis to encompass policy, procedural and legislative change. The policy is effectively a process map for review and contains copies of all review templates.

Each Geographic division will maintain a register of all homicide investigations and their outcomes. Where it is believed that a Murder has been committed then the matter will be recorded as a crime, within the geographic division where the actual event occurred, and will be managed by the existing CIB case management process. Any other homicide (suicide, natural causes etc.) will be managed by the Divisional Commander in accordance with the force policy.

6.2 Flowcharts

Figure 1: The Initial Review Stage

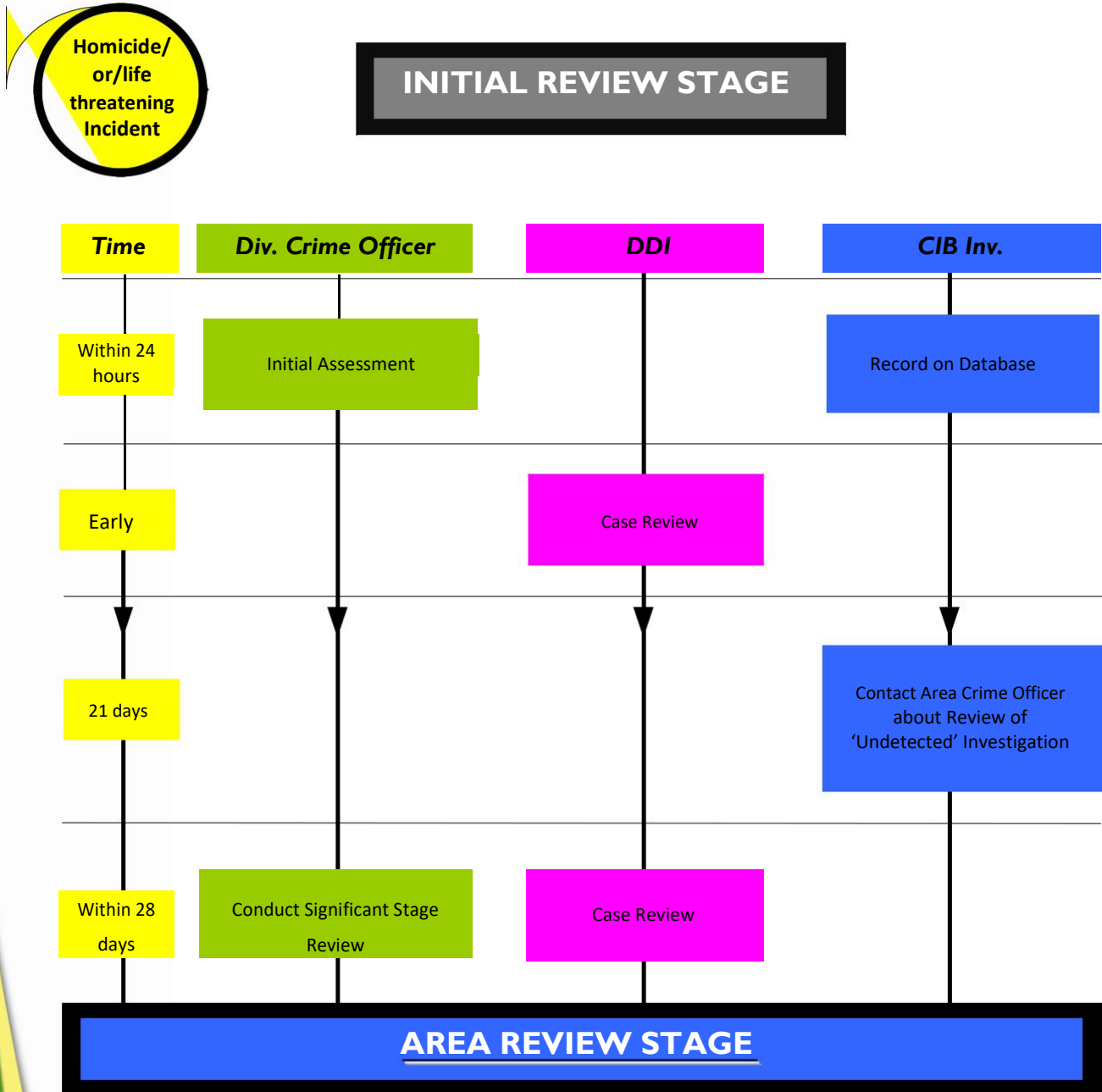
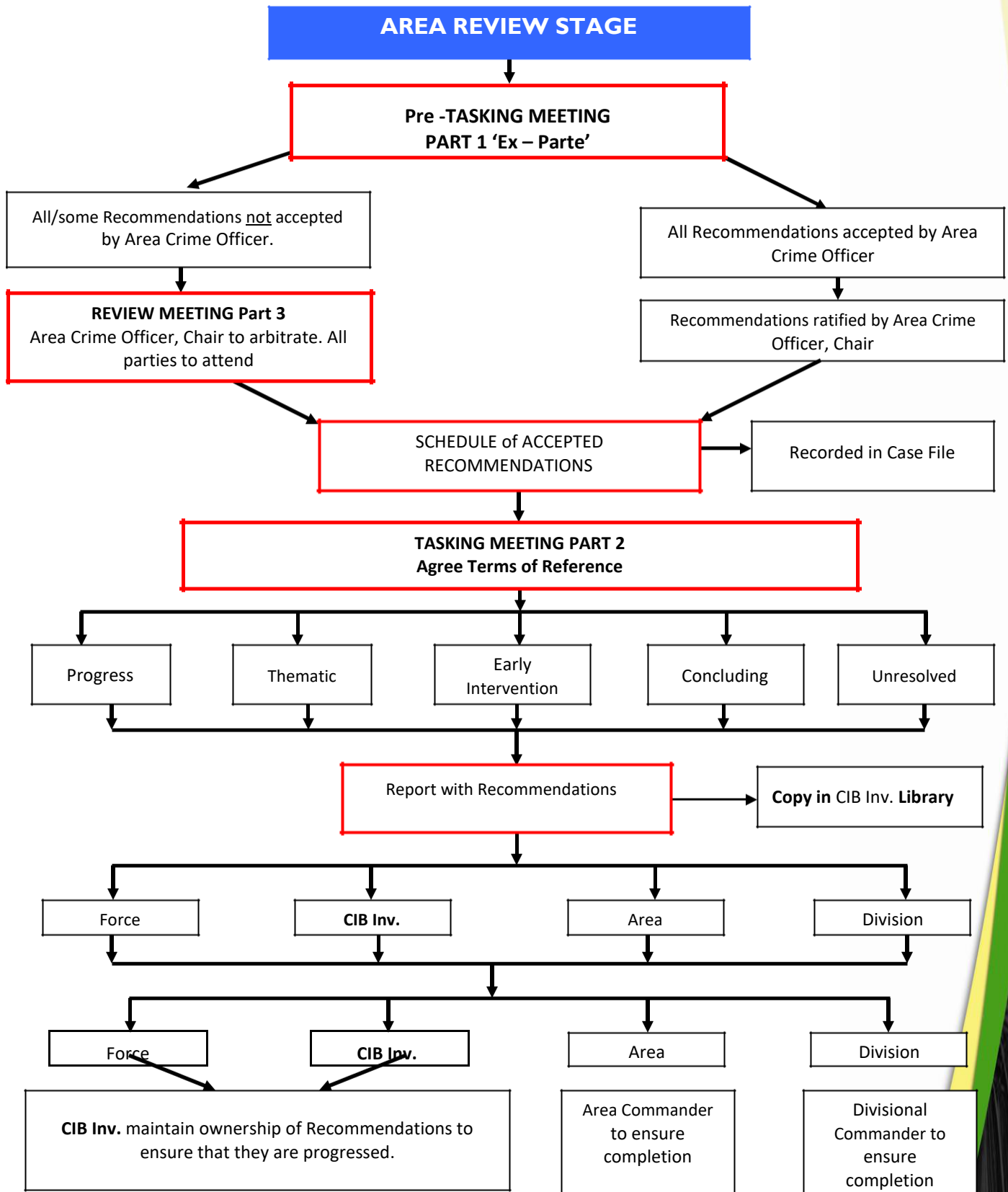


Figure 2: Area Review Stage



6.3 Principal Aims of Review

The review process has three principal aims:

- ☐ To identify and develop investigative opportunities that will progress an investigation;
- ☐ To act as a form of quality assurance in relation to both the content and process of an investigation; and
- ☐ To identify, develop and disseminate good investigative practice.

Other benefits include:

- ☐ Reducing the likelihood of problems escalating to the detriment of the investigation;
- ☐ Improving individual performance through the identification and sharing of development opportunities;
- ☐ Decreasing the potential of a costly reinvestigation at a later date;
- ☐ Lessening the chance of litigation;
- ☐ Providing support to officers during protracted or difficult investigations; and
- ☐ Increasing public confidence in the integrity and ability of police investigations.

6.4 Key Stages

There are two key stages in the review process. These stages are:

1. The initial review stage; and
2. The Area review stage.

These key stages of the policy are outlined in Figures 1 and 2 above.

An explanation of the stages follows.

6.4.1 Initial Review Stage

Following an allegation of murder/life threatening incident the Divisional Crime Officer will conduct an "**Initial Assessment**" within 24 hours.

Note: - *Where an investigation falls within the remit of a Major Investigation Taskforce (MIT) the Divisional Crime Officer will be responsible for conducting this review and will ensure that the MIT are consulted. Subsequent reviews will ALL be conducted by the MIT DDI/Commanding Officer in accordance with this policy and a close working relationship will be maintained between the Division and the MIT.*

The **First Investigative Review** is to be undertaken by the relevant DDI within 7 days.

Significant Stage Review is to be undertaken by the relevant Divisional Crime Officer (or where the case is being investigated by a MIT – the MIT Director or Deputy Director will conduct this) and the

DDI between 21- 28 days of the start of the investigation should it remain undetected. The timing of this review will depend on the circumstances of each case but must be completed prior to any **Progress Review** and a written copy made available to the Review Officer.

6.4.2 Area Crime Review Team – Review Stage

The Area Crime Review Team will contact the relevant Divisional Commander by letter at 21 days with a view to conducting a Review of any undetected investigation. This letter is also notification that the investigation will be discussed at the **Area CIB Tasking Meeting** on a notified date.

The decision to delay a Review into an undetected case can only be taken by the ACP CIB. Should the case be solved, the result will be noted at the Tasking Meeting and no Review will take place. If a Review has already been commenced and a charge is preferred, then it will be stopped and reported on only up to that point. In all cases the decisions will be recorded on the **CIB Inv.** review database.

In addition to murder investigations, **CIB Inv.** may request to review other life threatening Incidents as agreed by the **ACP CIB**.

Reviews fall into the following categories:

Progress	– normally 28 to 42 days into investigation.
Thematic	– as directed, to deal with key issues.
Early intervention	– snapshot of enquiry at early stage.
Concluding	– prior to enquiry being 'put away'.
Unresolved	– previously closed enquiries.

Review outcomes are reported as:

- ☐ **Force Recommendations** – have implications for the JCF in general.
- ☐ **Area Recommendations** – have implications for the policing Area involved.
- ☐ **Divisional Recommendations** - refer to a specific enquiry and will be dealt with by the relevant Divisional Command.
- ☐ **Considerations** – can apply to CIB Inv or divisional officers and deal with matters, which require consideration but fall short of recommendation status.

6.4.3 Area Tasking Process

There is a need for a more structured process whereby undetected murders, cold case work, brought forward reviews and any other bespoke review work could be discussed, Terms of Reference agreed with the 'customer' and tasked within available resources.

The meeting structure and required attendance for this part of the meeting within the Area Tasking and Co-ordination process and this will be supported by the MIT where they operate, within the Area concerned.

The following tables detail the three separate phases of the tasking process.

PART 1 PRE-MEETING

ATTENDEES:

Area Crime Officer
Divisional Crime Officer/DDI
MIT Officer (where applicable)
Minute Taker

To discuss/identify reviews that need not be brought to the Area Review Panel (**Part 3**). (E.g. those where all recommendations have been 'accepted' or where there are no issues).

To discuss/agree the allocation of the following:

Brought Forward Reviews

Cases previously reviewed and which were PA'd at a Case Closure meeting with an instruction that they be re-examined at a later date. Note: - this will primarily (but not exclusively) be where there is potential to benefit from developments in forensic technology.

Unresolved Reviews (Cold Case)

For undetected cases that have been PA'd and where further information comes to light or a request is made to review by a family member or other person.

Requests for other bespoke review work.

Includes requests from outside the JCF and from outside the CIB.

Note: Some of these may require the attendance of other parties and as such this would be carried out at **level 2** (Tasking).

Also –

To approve Force/Area Level recommendations and agree who in the Area will be responsible for progressing the work.

Note: *CIB Inv will continue to monitor this work on behalf of the JCF & the MIT will support this process and will be responsible for all the requirements, designated within this policy, for any investigation being conducted by them, on behalf of the Division/Area that they are operating within.*

To ratify completed Force Level recommendations.

To discuss any other Command issues.

PART 2 TASKING

ATTENDEES:

Area Crime Officer Chair
Divisional DIU
Divisional Crime Officer/DDI
MIT Officer (where applicable)
Minute Taker
TSD Forensic Manager
Area/Divisional Analyst
Area Review Officer
SIO/**IO** (where necessary)

To consider whether the following cases should be reviewed: -

Progress Reviews

Undetected murders at 28 days (as currently identified by the 21 day letter process). Note: - Other than a **Progress Review**, agreement should be reached as to when and what type of review will be conducted and to 'sign' Terms of Reference.

Thematic Reviews

Reviews conducted to a thematic Terms of Reference.

Note: A request to "ensure that no lines of enquiry have been missed" is NOT a thematic review. This is more likely to be a concluding review and has significant resource implications.

Forensic Reviews

Concentrating purely on forensic opportunities.

Concluding Reviews

Note: These will have significant resource implications primarily due to incident volumes.

Agreed Terms of Reference will be minuted. These minutes will be forwarded to any subsequently appointed Review Officer for the Terms of Reference document to be produced by them.

PART 3 AREA REVIEW PRESENTATION MEETING

ATTENDEES:

Area Crime Officer
Divisional Crime Officer & DDI
MIT Officer (where applicable)
Minute Taker

TSD Forensic Manager
CIB Inv/Area Analyst
CIB Inv./Area Review Officer(s)
SIO/IO (where necessary)
Divisional Command Team Representative
CIB Inv. representative

Numbers of cases coming to this process will be reduced by: -

1. More frequent meetings (fortnightly where possible) and
2. More cases being 'agreed/accepted' at the Pre- meeting stage.

This meeting will deal primarily with Force and Area Level recommendations and recommendations that are not accepted by the Investigating Command and/or any other issues as identified by the AREA/CIB Inv. lead.

Divisional Command Representatives should always be invited to attend but this attendance will not be mandatory where divisional issues have been identified within the review.

The Tasking Meeting will normally be chaired by the Area Crime Officer on behalf of the ACP CIB. The ACP, CIB, will on occasions, also attend the meeting and may/may not chair it.

Whilst Commanders may deputise attendance at the Tasking Meeting, any decisions made by that 'deputy' will be made on behalf of and with the support of the relevant Commander.

The Tasking Meeting will be comprehensively minuted.

6.4.3.1 Part 3 – Area Review Presentation Meeting

Progress reviews of undetected current murders will naturally form the bulk of presentations but other types of reviews, as documented in the above table, may also be 'heard'. The Review Officer will be responsible for ensuring that the 'Accepted Y/N' and the 'Action/Progress' columns of the Recommendation Grid are fully completed by the Investigating Officer. The Review Officer will make sufficient copies of the fully completed grid for those present at the Area Review Presentation Panel meeting. In practice, the grid will already have been completed for consideration within the aforementioned Phase 1 in order that a decision may be made as to whether the case will be taken to Phase 3 in the first place.

After an initial introduction by the 'chairing' Commander, the Investigating Officer will be invited to update the meeting with the progress of the investigation since the review was completed. The Area Officer will then ask the Review Officer to explain the rationale behind the various recommendations starting with those affecting Force Issues". Recommendations made at Area and Divisional level that have already been agreed and accepted will not normally be discussed. Decisions are then made as to whether the recommendations are accepted, and if so, how they are to be progressed. "Considerations" will not normally be discussed.

Best practice and good work identified within the review will be discussed and any appropriate action taken and/or directed.

6.4.3.2 Recommendation Registry

All recommendations will be monitored by **CIB Inv.** Force and Area Recommendations will be shown as "accepted" or "not accepted". Those "accepted" will be allocated to the appropriate DDI for development and ultimately resulted on the **CIB Inv.** register. Best practice and good work will also be recorded.

The Register allows for a corporate record of all reviews to be held on a searchable database. Recommendations and Best Practice are searchable by subject matter and are available to all JCF staff with the relevant authority. (Area & Div. Crime Officers & DDIs).

All recommendations are raised as Actions; Force and Area Level as medium priority and all others as low priority. Low Priority Actions are simply filed as the Area and Divisions are responsible for the conduct of any work required. Medium Priority Actions are allocated to Divisional/Area staff according to subject matter with individuals having specific areas of responsibility. These Actions must be meaningfully updated on a regular basis and in all cases within 84 days.

The Area Crime Officer is responsible for the supervision of the Area Register and for ensuring that all Force and Area Level recommendations are expeditiously progressed to a satisfactory conclusion and the **CIB Inv.** Register is fully updated on a monthly basis.

6.4.4 Best Practice

Best practice or learning points can be disseminated through the **SIO/IO development programme** (delivered by CITI) or through the **CIB Inv.** Division of the CIB.

6.4.5 Area Crime Officers Panel – Case Closure Meeting

Although not part of the Area review process, Area Case Closure Meetings are an important part of the review 'cycle'.

The **Area Case Closure Panel** deals with investigations where all lines of enquiry have been exhausted, review recommendations completed and the investigation is unable to proceed any further. The Area Crime Officer will chair the Panel and attendees will include the Divisional Commander, Divisional Crime Officer, DDI the and Investigating Officer. The Area Review Team will normally be represented by one of their staff and where circumstances dictate, the original Review Officer. The briefing to the Area Crime Officer must include the following:

- ☐ Lines of enquiry concluded.
- ☐ Forensic investigations concluded.
- ☐ DDI Review recommendations completed.

The Area lead will decide the following:

- ☐ Whether the investigation is to be classified 'No Further Action', subject to additional information coming to light.
- ☐ Whether the investigation will require a further review and if so, when and for what specific reasons.

The Area Review team representative must ensure that the date of and specific reasons for further review are accurately recorded. This information will be entered onto the Area database as a 'Brought Forward Review', thus ensuring that the requirement to 'revisit' the investigation is not overlooked. The need for any subsequent reviews into such cases will be decided by the Area Crime Officer.

6.5 Terms of Reference

The Terms of Reference drive a review. It is vital that they are clear, concise and encompass all the areas that the Commissioning Officer wishes to be reviewed.

6.5.1 Progress Reviews

Progress Reviews are the most common reviews undertaken and their Terms of Reference may be fairly consistent. To assist in their formulation, a 'Standard Terms of Reference' has been devised which will act as a starting point for discussions with the Divisional Crime Officer and DDI. It deals with both the aims of the review and its areas of focus.

A progress review requires a structured approach and structured reporting style. This ensures that all areas of the investigation have been properly examined.

The required format has been devised. The format divides the research into key component parts as follows:

- ☐ Initial action
- ☐ IO Policy and Strategy
- ☐ Intelligence
- ☐ Forensic
- ☐ Arrest and Search
- ☐ Interview
- ☐ Media
- ☐ Family Liaison
- ☐ Case File
- ☐ Other Investigative Considerations

The Review Officer will introduce an extra chapter/paragraph at an appropriate place in any report in respect of an investigation which has a particular feature that falls outside the above criteria.

Full research will normally be undertaken in all progress reviews, subject to the Terms of Reference, which will also dictate the amount and style of written work. There are two styles of progress report:

- ☐ *Full report.*
- ☐ *Standard report.*

6.5.1.1 Full Report

A 'Full Report' will only be commissioned in the minority of cases. These will be high profile investigations where there is a real / perceived threat to the reputation of the Area.

All findings will be reported on and the report will provide the Area with a comprehensive assessment for any subsequent criminal or civil hearing. Such reports will be rare since they clearly have time and resource implications.

The format for the 'Full Report' will therefore normally be as follows:

- ☐ Introduction
- ☐ Brief Circumstances
- ☐ Initial Action
- ☐ IO Policy and Strategy
- ☐ Intelligence
- ☐ Forensic
- ☐ Arrest and Search
- ☐ Interview
- ☐ Media
- ☐ Family Liaison
- ☐ Case File
- ☐ Other Investigative Considerations
- ☐ Conclusion
- ☐ Appendices

6.5.1.2 Standard Report

A Standard Report will deal with all areas of the investigation but will use a Document and Enquiry Check List to record the areas researched, issues identified and to log comments on minor matters.

A standard progress review report will only document recommendations and other identified 'issues' and may additionally include reference to best practice, good work and other appropriate comments or observations. The rationale is that if a particular area has been researched and is found to be satisfactory then there is no need to write about it.

The retention of notes and other material is vital in any review. In the case of a 'Standard Report' it is particularly important since all areas on the Document and Enquiry Check List must be supported by auditable research.

For the reasons outlined, a Standard Report may not 'flow' as well as a full report. Although the report will be briefer and more focused, the same amount of research may be required.

The format for a 'Standard Report', will normally be as follows:

- ☐ Introduction
- ☐ Brief Circumstances
- ☐ Investigation



Initial Action



IO Policy and Strategy



Intelligence



Forensic



Arrest and Search



Interview



Media



Family Liaison



Case File



Other Investigative Considerations



Conclusion



Appendices

Areas listed under 'Investigation' should always be written in the above order. If there are no 'issues' under a particular sub-heading, it will merely be omitted and results recorded in the Document and Enquiry Check List.

6.5.2 Thematic Reviews, Early Intervention, Concluding Reviews and Unresolved Review

The reviews will be extremely varied and will require Terms of Reference to be crafted according to their particular needs. This is done at the Tasking Meeting

Whatever the outcome of the Terms of Reference discussions, it will remain the responsibility of the Commissioning Officer to make the final decision as to their content. The appointed Review Officer will produce documented Terms of Reference as guided by the minutes of the Tasking Meeting. This document will be retained with the review report/docket.

6.6 Types of Review

There are various types of reviews, which will require various styles of reports. They are necessary to deal with circumstances, which range from the common to the unique.

6.6.1 Thematic Review Report

A Thematic Review can be commissioned at any stage of an investigation and may be requested to examine any identified issue(s). Detected and Pre-Trial Reviews fall under this heading. Clearly the format of the report will depend very much on the Terms of Reference. However, whatever the Terms of Reference the report will invariably require an introduction and brief circumstances at the front and a conclusion and recommendation grid at the rear. The content format thereafter will be a matter for the Commissioning Officer, Area/Divisional Crime Officer, DDI and the Review Officer.

6.6.2 Early Intervention

An Early Intervention will normally be of an urgent nature and the terms of reference may be initially agreed verbally but must be documented at a later stage. The identified issues may be dealt

with by way of a minuted meeting or alternatively a brief report. Whatever the circumstances, the terms of reference and the outcome of the intervention must be clearly documented. Any such decisions will be later ratified at the next scheduled Area Tasking Meeting.

6.6.3 Concluding Reviews

A Concluding Review is commissioned by the Area Crime Officer prior to an enquiry being closed and requires the Investigating Command to complete a Current Situation Report and ensure appropriate 'housekeeping' within the Case File before the review takes place. The Terms of Reference will dictate the style of review and may require a full or selected examination of areas of the investigation. The report may vary between a progress and thematic report style. The decision on the format is a matter for the Commissioning Officer, Area/Divisional Crime Officer, DDI and the Review Officer.

6.6.4 Unresolved Reviews

Unresolved Reviews will be commissioned at the Area Tasking Meeting and the format designed to reflect the Terms of Reference within the listed categories.

Unresolved Reviews comprise of three categories:

- 1. Cases dating from January 2008 to December 2010, which have been put away as unresolved.**
- 2. Cases pre 2011 which have not been put away, but have a completed Current Situation Report.**
- 3. Where a party, normally close to the victim, requests a review of a case, which falls outside the dates at (i) and ACP CIB or Area Crime Officer concur.**

6.7 Reports - General

Normally two draft copies of progress reports are prepared. After the Area Crime Officer quality assures the report, one copy will be distributed to the IO and the other kept by the Review Officer. The IO has seven days in which to consider the factual accuracy of the report. After that time final reports will be prepared and distributed as shown on the Area distribution list and depending on whether it is for Part 1 or Part 3 'hearing' at the Tasking Meeting. The number of draft or final reports required for other reviews may vary according to other instructions.

All review reports are marked at least 'Restricted Crime' to ensure that care is taken with their security and distribution. To aid security all reports, including drafts, are separately numbered and each individual page background numbered. The front cover of each report should be endorsed "The contents of this report should not be disclosed without the authority of the **ACP CIB**".

Review report appendices will normally include:



Terms of Reference



Document and Enquiry check list.



DDI Review (if applicable).



IO Review



Divisional analysis report

6.8 Interim arrangements for 2011

To ensure immediate activity is subject of review, all unresolved murder cases reported in 2011 will be subject of a review by the DDI and if 21 days or more the Area Review team will prioritise the review and a '**standard report**' progress report for the Area Crime Officer will commence the appropriate review process.

This will allow all 2011 cases to be reviewed and for **CIB Inv.** to monitor the progress of current investigations. In addition, **CIB Inv.** will identify ALL unresolved cases from 2008 to 2010, so they may be reviewed and considered at the Area CIB Tasking Meeting. To ensure workloads are manageable these additional cases will be reviewed throughout 2011 and all should be completed by December 2011 and incorporated into this process.

6.9 Documentation Updates

To implement the process this document (version 1) will ensure the activity of reviews are implemented immediately – Each Area Crime Officer will commence the review and Tasking process for all current 2011 investigations and CIB Inv. will commence the reviews of all unresolved cases from 2008 to 2010. Further versions of this document will be produced until this process is fully established. The initial Document and Enquiry check list will be the CIB 'Case File checklist' as published in the CIB SOP, until a new form can be provided in due course.

6.10 Scene(s) – Golden Hours



Initial response – preserve life, search for suspects/witnesses



Forensics – Fibres, Hair, DNA, Body fluids, shoe/tyre prints etc . **AFIS searches to be conducted to identify victim and suspects. IBIS searches for ballistic matches and analysis**



Digital photography – identification of scene, identification of property, location, points of interest etc.



Closed Circuit Recording systems – Crime scene, Bank ATM's etc.



Communication Data – retrieval of victim cell phone (Last calls made/received etc), analysis of 'key' communication data to link incidents & events, etc.



Identify all crime scenes (include where suspects were hiding/waiting etc.)



Document, in statement form, all rumours early on and other information.



Suspects – clothing, property & cell phones (early retrieval may provide enhanced forensic evidence)



Searches – Crime Scene (re-visit in daylight), vehicles/addresses (victim/suspects etc.)

6.11 Investigation

- ☐ **Research** - victim(s), suspect(s), witness(s), location, Bank card or phone usage etc.
- ☐ **Knowledge** - Control log, statements? Call data? CFCU application for call data. Efit for identification of suspects where they are not know
- ☐ **Forensic results** – AFIS, IBIS, DNA, Communication data, CCTV & ATM's
- ☐ **Hypothesis** – Threat Assessment, maybe's.
- ☐ **Lines of enquiry** – Priorities.
- ☐ **Management & Supervision** – Review (Crime Officer & DDI).
- ☐ **Wanted Persons** – early arrest = Evidence (property), Forensics (clothing, cell phone), Interviews (Q&A) & Identification process (Video Id).
- ☐ **Communication Data** – detailed analysis and attribution
- ☐ Last seen/last spoken too?

6.12 Technology

- ☐ **Automated Fingerprint Identification System**
- ☐ **Integrated Ballistic Information System**
- ☐ **Communication Data** (Cell site analysis, call usage, switching SIM/Phones etc.
- ☐ **DNA profiles**
- ☐ **Electronic Facial Identification technique (e-fit)**
- ☐ **Video Identification system**
- ☐ **Canine support** (Cadaver dogs, tracking dogs etc.)

6.13

Action Form (part 1 of 2)

Cons. #	Action	Priority			Allocation (Name, Rank & Reg. No.)	Remarks
		High (H)	Low (L)	Med (M)		

Action Form (part 2)

Issue	Action Recommended	Accepted Yes or No	Officer Assigned	Action Progress

6.14

Document and Enquiry check list

Incident Date ____/____/____ 7 day ☐ OR 28 Day ☐

Victim name/Location _____

Div Ref _____ IO Name & # _____ Contact # _____

Police Control Log Yes ☐ No ☐ **Statements provided**

Response Officers – Names/# ☐ ☐ Yes ☐ No ☐

Cell # _____

Cell # _____

SOC 2 Scene ☐ Postmortem ☐

SOC 3 - Scene ☐ Postmortem ☐

Viewer disc(s) – # ☐

Images of note – specify _____

FCSI's – Scene – Name _____ Contact # _____ ☐ ☐

Postmortem - Name _____ Contact # _____ ☐ ☐

Forensic Laboratory # FL/...../..... Date Certificate expected/...../.....

Case file Worksheet ☐ ☐ **Up to date** ☐ ☐

Informant - name Contact # ☐ ☐

Witness statements taken ☐

Key witnesses to be found

Name Contact # Reason

Name Contact # Reason

Name Contact # Reason

Identification of Victim – Name Contact # ☐ ☐

Communication data required? ☐ ☐ CFC form submitted ☐ ☐ Date/...../.....

Efit required? ☐ ☐ VIU application submitted ☐ ☐ Date/...../.....

Post Mortem Date/...../..... report ☐ ☐ Pathologist Name – Dr

Is investigation progressing well? ☐ ☐ **if not why?**

.....

.....

Review officer name Signature Date/...../.....

Victimology

Key lines of enquiry

Forensic evidence (inc CCTV/Bank ATM)

Communication Data

Witnesses

Local appeals/enquiries

Intelligence development

Suspects/Persons of Interest

Media

Others (Family Liaison Officer appointed etc)

Crime Recording Policy Forms

CR 1	Crime Report Booklet (if applicable)	☐
CR 2	Crime Report Form	☐
CR 3	Witness Statements – Informant, relative, neighbours, finding person (body), identification of body etc.....	☐
CR 3C	Police Witness Statements – Station Guard, IO, 1 st responders, FCSI etc.....	☐
CR5	Crime Report Supplementary (if applicable).....	☐
CR 6	Caution Statement	☐
CR 7	<u>Questions and Answer of Suspects – preferred choice</u>	☐
CR 8	<u>Question and Answer of Accused</u>	☐
CR 10	Customer Reference	☐
CR 12	Suspect/Wanted/Arrested Person Profile (replaces CIB 4 & 7).....	☐
CR 14	Remand Form.....	☐
CR 15	Case File Information Sheet – <u>Describe what's outstanding & timescale for completion</u> (Forensic Certificate, PM report etc)	☐
CR 16	Case File Check List.....	☐
CR 17	Major Crime Investigators Worksheet/Report	☐
CR 18	Stolen Property excluding vehicles (replaces CIB 8).....	☐
CR 21	Exhibit Schedule	☐

SOC Forms

SOC 1A	First Responding Officers	☐
SOC 1B	Crime Scene Log (before cordon).....	☐
SOC 1C	Crime Scene Log (after cordon).....	☐
SOC 2	SOC/FCSI Report.....	☐
SOC 2A	Crime Scene Narrative Report.....	☐
SOC 3	Exhibit Receipt.....	☐
LAB 1	Laboratory Submission Form.....	☐

Missing Person's Forms (if applicable)

M.P.1	Report Form	☐
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Visual Identification Forms (if applicable)

ID 1A	Notice to Suspect (Part 1).....	☐
ID 1B	Notice to Suspect (Part 2).....	☐
ID 2A	Application for ID Parade.....	☐
ID 2B	First Description of Suspect.....	☐
VID/ID/1	Consent & Filming of suspect.....	☐
VID/ID/2	Viewing of CD by Witness.....	☐
VID/ID/3	Summary of Video ID Parade.....	☐

Others

Diary entries	Missing Person, Murder (crime scene) etc.....	☐
#1 Information	<u>State Act and Section</u> (Crime Bills – Bail/sentence).....	☐
Viewer Disc(s)	(PLUS additional copy of each - for each defendant & Clerk).	☐
Police Control Log	Initial call time, scene attendance and possibly the informant	☐
Communication data	Service Provider & CFC statements and evidence	☐
<u>Convictions & bail breaches</u>	<u>Criminal record and details of any previous breaches of bail</u>	☐
Photograph	Missing Person	☐
Efit	Suspect(s).....	☐
Others – Describe.....		☐

CHAPTER 7

MAJOR INCIDENT MANAGEMENT

7.1 Corporate Standards – JCF Case Management Policy

This section must be read in conjunction with the CIB policies & SOP's and in particular those relating to the Case Management Policy. This Manual is for the investigation of the most difficult and often most complex of all investigations – *establishing the circumstances of a human beings death!*, especially when there is no reliable eye witness accounts, to assist the investigator.

Compliance with this Chapter will ensure that an effective and efficient investigation is conducted, some of the content is aspirational, as currently we are dealing with 'volume' crime and until we can establish a sustained murder reduction then resources, personnel and success will be severely limited. We can only aspire to some of the opportunities that would exist when we have more investigators working on fewer cases.

This Chapter is set to raise the standard of our investigations to a higher level and to ensure more effective management, accountability and commitment is obtained to justify the actions taken and to withstand scrutiny – even when facing such high 'volume' demands with such limited resources. The process to be adopted will raise the standard for Homicide investigations and the good practice learnt will also have a positive impact on all other major crime investigations conducted by the JCF.

The MIT SOP at **Appendix 7 A & 7 B** set out the minimum standards that a Case Registry must achieve in relation to the management of serious crime investigations and in particular relation to this manual – Homicides.

7.2 Role of the CIB Case File Registry

The hub of any major enquiry is the Registry (or for large & complex investigations an 'Incident Room' concept should be established – as we have in our existing MIT's) where a great amount of written information is gathered from members of the public, enquiry officers and other sources. The information is channeled using a set of administrative procedures into a system whereby the **IO** can direct and control the course of the enquiry. Overseen by an effective system that monitors and guides the **IO** throughout their investigations.

It is vital that the Registry staff are properly trained both in the appropriate use of the case management system and in all CIB policies and SOP's. The additional functions, roles and responsibilities of staff supporting murder investigations are detailed below and these will either be established within the Case File Registry or will be performed by officers attached to the CIB, in general, to support the management of homicide investigations. The **IO** must ensure that clear areas

of responsibility are allocated and officers conducting these roles are both appraised of their role and supervised accordingly.

Principal objectives of an 'incident room' controlling a major investigation are to:

- ☐ Provide the IO with an accurate record of all relevant information relating to the crime, together with police enquiries made and the results there from;
- ☐ Show the state of the enquiry and how much work in the form of outstanding actions remain to be done at any one time;
- ☐ Enable police officers making an enquiry to establish whether any person has previously come to the notice of the investigation;
- ☐ Provide enquiry officers with a ready means of acquiring all the information that the system contains about their enquiry subjects;
- ☐ Keep records in a manner which highlights people, vehicles, addresses, telephone numbers or any other factors which have become the subject to the enquiry, so that such records are capable of in-depth analysis from which lines of enquiry and suspects may be identified, thereby enabling the IO to direct special attention to them;
- ☐ Act as a means of historical reference so that in a long running enquiry, officers joining the investigation team can have easy access to major policy decisions taken earlier in the enquiry, and the rationale behind those decisions;
- ☐ Facilitate, at the appropriate time, the production of reports for legal consideration;
- ☐ Ensure that all information is recorded and linked with the standardised procedural rules of the system. Information can thereby be readily retrieved to aid the IO and his/her supporting teams to establish priorities and to ensure the best possible use is made of staff and equipment so that enquiries are made speedily and effectively and the results are subject to detailed analysis;
- ☐ Ensure that all the recognised protocols have been applied to facilitate necessary research to be made across different databases and, where appropriate, for investigations to be linked; and
- ☐ Provide a database from which it is possible to undertake self and internal reviews and which will support reviews of the investigation by external sources.

7.2.1 Management of the Case File Registry

The strategic lead for the Registry within the JCF rests with the ACP CIB. Day-to-day management of the Registry is vested in all the Divisional Crime Officers (DCO) (or equivalent in specialist formations) across Jamaica.

The Divisional Detective Inspector (DDI) is the primary officer responsible for the effective management and operations of the Registry. The individual IOs will in effect be managed by the

system, the DDI and the Divisional Crime Officer will oversee the process to ensure it is effectively managed and implemented.

7.2.2 General Procedures

7.2.2.1 Opening an Investigation

Every crime allegation will be recorded in the Divisional Crime Diary and the Registry will open a docket for the retention of all the relevant case papers. This is essential to ensure effective monitoring and management is achieved. This will also allow effective reviews and case file standards to be verified and scrutinised.

7.2.2.2 Protective Marking

The Registry file has been rated as a RESTRICTED document. The IO may consider making a Policy decision that only documents that exceed this level need to be individually marked and secured outside the Registry as necessary to ensure the integrity and security of the material/information.

7.2.2.3 Sensitive Intelligence and Exhibits

'Sensitive Intelligence' is defined as intelligence obtained from any source whose identity, if compromised or released into the public domain, could lead to that source being subjected to harm; and to whom the police owe a duty of care to safeguard their anonymity and well-being as outlined in law.

OR

Intelligence obtained from a wide variety of different covert sources whose identity require protection in order to safeguard the effectiveness of the particular source of intelligence in future operations; or where the source is specifically defined as 'sensitive' by the Senior Investigating Officer.

AND

The police would usually seek to protect the identity of the source by way of a public interest immunity application.

With proper safeguards and systems in place, the majority of sensitive intelligence should be capable of being placed within the Registry system. It is the responsibility of the IO and senior managers to ensure that covert methodology or the originating source of the intelligence is not stored or recorded in such a way as to cause compromise.

The NIB Intelligence Manual should be read in connection with all intelligence material and the security/storage of such.

7.3 Level 1 – Full Major Incident Room (MIR)

Used in rare cases and designated by ACP CIB as a 'Major Investigation' where the JCF will implement a 'Major Incident Room' procedure and conduct an intensive investigation using additional resources. (this concept is utilised within the MIT's that currently exist in Kingston & St Andrew and St Catherine – See Appendix 7 A & 7 B).

This does not mean that an existing MIT takes on an additional role, but that a new 'MIR' is established to conduct the investigation. Previously these incident rooms were established in local community halls, churches or other **LOCAL** buildings, to the incident, where police could control and manage an investigation, close to the scene of the crime, for a few days, and later relocate back to a police building for the long term activity.

This should be considered wherever possible as best practice. Being closer to the scene and the community ensures increased visibility, communication and an open sign that we mean business – to solve the crime.

7.3.1 Level I MIR Staffing Level

An entry in the Decision Log should reflect the MIR staffing level. The following positions should be considered:

☐ Office manager	Detective Sergeant
☐ Receiver	Detective Constable
☐ Registrar	Police Officer/Police Staff
☐ Document reader	Detective Constable
☐ Action manager	Detective Sergeant
☐ Indexer(s)	Police Officer/Police Staff
☐ Exhibits**	Detective Constable
☐ Disclosure officer**	Detective Constable
☐ Researcher	Accredited Police Staff
☐ Analyst	Accredited Police Staff
☐ Typist	Support Staff

Notes:

- i. Detective ranks are police officers who have successfully completed the accredited CIB level 2 Training Course and have been selected for the CIB.
- ii. The Role of Registrar may be a single or dual role performed by the Receiver and/or indexer.
- iii. '**' These roles are incident based rather than within the MIR.

Many investigations may utilise existing Registry staff and the DCO & DDI must ensure that the workloads are carefully reviewed and managed, increasing staff as necessary to ensure an effective system is in place and delivering on the basic principles.

7.3.2 Action Priorities

The **IO** will set the parameters for the priority marking of actions as **High**, **Medium** or **Low**. However, in the absence of such a decision, the default will be:

High	A 'Fast track' or 'High Priority Action' requiring immediate allocation, and completion within a defined time frame.
Medium	An action that directly relates to a main line of enquiry.
Low	Identified as an action but does not support a main line of enquiry and will not be allocated as a matter of course.

Consideration should be given to re-queuing low priority actions shown in the 'for allocation' queue and placing them in one of the action queues more appropriate to its status, for example 'pending' or 'for referral'.

7.3.3 Allocation and Return of Actions

The action manager must take account of the priority marking of all actions awaiting allocation and allocate them in conjunction with the **IOs** prioritised lines of enquiry. Timely consideration should be given to re-queuing actions that may not be for immediate allocation, for example, low priority actions could be moved to 'for referral'.

The **IO** must ensure that systems are in place to monitor the progress of allocated actions to ensure their timely completion and return to the Receiver.

The returning officer will clearly indicate on the action the date and time that it was returned to the receiver.

7.3.4 TIE (Trace, Interview and Eliminate) Actions

The **IO** will usually only direct the use of the TIE Action sparingly. The TIE Action requires that the subject of the action be dealt with in accordance with the **IOs** instructions so that they are eliminated from the investigation. The undertaking of TIE Actions is resource intensive and should be carefully considered before they are raised and allocated.

Enquiry officers should be reminded that the raising of a TIE Action does not designate the person subject of the action a suspect, although subsequent enquiries may bring suspicion upon that person making them a suspect.

As each investigation is unique it is not possible to provide a corporate standard for the creation of TIE Actions. The **IO** will make a decision based on all surrounding circumstances.

7.3.5 Referral of Actions

This is a two-part process for actions that are not to be progressed immediately.

Stage 1	Will normally be indicated by the receiver or action manager to the indexer who will place the action in the 'For Referral' queue for a subsequent decision to be made by the IO . The IO can undertake this function if necessary.
Stage 2	Involves the IO making a decision that referral of the action is or is not appropriate. The IO must provide a written reason for the referral of any action to enable the system to be updated. The officer manager will be responsible for ensuring that the re-queuing of referred actions, with associated rationale, is recorded within the system.

7.3.6 Research Actions

All 'Research' actions must provide the enquiry team officer with specific instructions as to type of research required. The **IO** will record in the **IO** Decision Log the level of research required for the various indexes. The following may act as an aide memoire but is not prescriptive:

	Nominal	Address	Vehicle	Telephone
A	CRO DIU/NIB Intel Crime Diary & other station registers (local)	Voters DIU/NIB Intel Crime Diary & other station registers (local) Local Parish Council	CRO DIU/NIB Intel Crime Diary & other station registers (local) Police Controls checks Tax Office	DIU/NIB Intel Subscribers** CFCU at OCID
B	As above plus Other DIU's CDA Other Divisional Crime Diaries Registry Branch Open Source	As above plus Other DIU's CDA Open Source	As above plus Other DIU's Traffic tickets Vehicle 'type' distributor(s) Insurance Companies Open Source	As above plus Other DIU's Open Source
C	As above plus Immigration** TCND	As above plus Immigration** Customs** TCND	As above plus Immigration** Customs** Car Pounds	As above plus Immigration** Customs**
D	As above plus Financial Investigation Inland Revenue Prison Liaison	As above plus Financial Investigation Inland Revenue Utilities # Post Office	As above plus HP checks	

** Where applicable # Includes electricity, water and local Parish Council

7.3.7 Documents

A standard set of initial documents will be registered as the first documents within any incident as follows:

- D1 Indexing Policy File**
- D2 IO Decision Log**
- D3 Initial Police Control Log**
- D4 Copy original Station Diary entry & Crime Report (CR2)**

FLO LOGS

As there is often more than one set of FLO Logs, they will be registered as individual Other Documents. They will be Registered to a category of 'FLO Logs' and indexed accordingly.

SCENE LOGS (SOC 1)

As there is often more than one scene, each book will be registered as an Other Document. They will be registered to a Category of Scene Logs and indexed accordingly.

INCIDENT MANAGEMENT LOGS

These will be treated in a manner similar to Scene Logs

OFFICE MEETING MINUTES

Each set of Minutes will be registered as individual Other Documents and typed onto the system. They will be Registered to the category of Incident Room Documents and indexed accordingly.

WITNESS LIAISON LOGS

These if used will be treated in a similar manner to the FLO logs but registered to the category of Incident Room Documents.

7.3.8 Registration

The Receiver will indicate on the physical document the intended level of protective marking (PMS) i.e. **Confidential, Restricted, Secret or Top Secret**. This can then be recorded and the Document typed where appropriate.

7.3.9 Document Priority Marking

To facilitate the progress of documents through the MIR, their priority needs to be assessed. The Receiver will make the initial assessment, which will be subsequently reviewed by the Document Reader.

The IO will make a policy decision regarding the document priority levels. However it is recognised that the criteria may change as lines of enquiry are developed or prioritised. All such priority

changes must be reflected in the **IOs** Decision Log. In the absence of a **IO** policy decision the standard defaults will be:

High	Of the utmost importance to the enquiry either for the purpose of fast track analysis, raising urgent actions or it contains important indexing.
Medium	Requires indexing of material information or raising of actions.
Low	No actions are required to be generated and it contains no information that furthers the IOs lines of enquiry.

It is imperative that all MIR staff ensure that the throughput of documentation within the MIR takes account of the priority marking.

Consideration should be given to all statements that are 'scene connected' being raised to a minimum 'Medium' priority action and dealt with by the Action Manager or Office Manager by way of monitoring their returns to the Divisions.

Divisional Commanders should be made aware of any delays by their officers in providing statements and take responsibility for ensuring prompt compliance with such requests.

7.3.10 Indexing

The purpose of any index is to record sufficient data in such a manner that makes for the quick retrieval of vital facts, and in a way that enables the easy correlation of a given fact with others.

Indexing is the process of taking selected information from a document and placing it on the records associated with that information. The information can be anything from a single word through to the précis of a whole document.

The indexing of everything will guarantee there are no cracks through which any data can fall. However the penalties for indexing in this way are significant:

- ☐ Massive build-up of work or additional staff needed to handle it;
- ☐ Complications arising from managing unnecessary data;
- ☐ Morale sapping task for indexing staff; and
- ☐ The Case File becomes no more than historical database.

The crux of successful indexing of material within the system is the ability to form a timely, accurate and searchable database of information, with a trail of accountability of police action within the enquiry process.

Full indexing of all material will be undertaken with a meaningful cross-reference between entities unless the **IO** makes a policy decision to use the abbreviated form.

Abbreviated indexing places the onus upon the person viewing the record to ensure that they are aware of the content of all material attached to that record.

7.3.11 Sequence of Events

The **IO** will define the sequence of event that is required and the parameters of each sequence, for example, 'Scene' – time parameters and so on.

7.3.12 Nominals

All named nominals will be created to satisfy the requirements of Subject Access enquiries.

The **IO** will set the parameters by which 'Unidentified' nominals will be created, for example, seen at a specific location, or seen during specific times and so on. This will be recorded in the **IOs** Decision Log.

Nominal records will only be merged on the Office Manager's authority (printouts should be kept).

7.3.13 PDFs (Personal Descriptive Forms)

The **IO** will set the criteria for the completion of PDFs, for example, age range/sex/descriptions and so on.

7.3.14 Categories

This index, together with the use of tags, should be one of the most important sections of the database, and properly used, can be a vital tool in progressing the investigation to a successful outcome.

Careful consideration must be given to the creation and naming of categories, which requires initiative and flexibility of mind, so that the system user can fully appreciate the meaning of each one, its use and relevance to the enquiry. There must be a constant review of material contained in the relevant categories to identify links and thereby develop potential lines of enquiry.

Categories will only be created on the authority of the **IO** or office manager.

A properly constructed Category Index is a good indication that the whole system Database has been correctly managed and can be relied upon to fully support the investigation.

7.3.15 Scenes

It is vitally important that the **IO** designates the scene(s) that will be clearly indicated when inputting information. These should be recorded in the Policy File.

7.3.16 Exhibits

The Exhibit Index will be used to ensure all exhibits are identified and their location known:



Registration of all exhibits and full record of all movements.

Should any sealed exhibit be opened at any stage after it has been sealed the circumstances and new seal number (where relevant) must, in addition to being recorded within the Exhibits Book, be recorded in the 'Other information' field of the exhibit details of the record.

7.3.17 Printed Material

Care must be taken when printing material on behalf of a third party to ensure that it does not contain sensitive material.

7.4 Level 2 – 'Standard' CIB Homicide Case Management System

To be invoked for an enquiry which does not require the full MIR but can manage on a 'cut down' version. **This system is likely to be the level most IOs would utilise and will support the management of the investigation.** This would allow for a record holding database to be created and this would not use the full management functions associated with a level 1 MIR.

Level 2 is designed to use the basic functionality of the system whilst minimising the resource requirement for the full MIR system and would support a Divisional Registry in the implementation of best practice (see Appendix 7 A & 7 B) as utilised in the existing MIT's.

All statements/documents will be typed and the exhibits and disclosure modules used.

7.4.1 Documents

A standard set of initial documents will be registered as the first documents within any incident as follows:

- D1 Indexing Policy File**
- D2 IO Decision Log**
- D3 Initial Police Control Log**
- D4 Copy original Station Diary entry & Crime Report (CR2)**

7.4.2 Family Liaison Log

As there is often more than one set of FLO Logs, they will be registered as individual 'Other Documents'. They will be registered to a category of 'FLO Logs' and indexed accordingly.

7.4.3 Interviews

Interviews of any description should be registered as 'Interviews'.

7.4.4 Foreign Statements

Foreign statements should in reality be treated exactly the same as ordinary statements. The only difference being that the original translation is actually an exhibit.

Other documents will be registered as appropriate.

Actions may be raised and messages registered as required.

7.4.5 Level 2 MIR Staffing Level

This is the standard to be utilised for the majority of JCF murder investigations.

An entry in the Decision Log should reflect the staffing level.

The following positions should be considered:

Office Manager – Oic Registry	Detective Sergeant
Indexer	Police Officer/Police Staff
Exhibits*	Detective Constable
Disclosure officer*	Detective Constable
Researcher	Police Officer/Police Staff
Analyst	Accredited Police Staff
Typist	Police Staff

‘*’ These roles are incident based rather than within the MIR.

7.4.6 Level 2 Ethos

The following summarises the ethos of this level of activity:

- ☐ **Actions** - Actions will be raised as required.
- ☐ **Nominals** - The only nominals to be created would be the victim, defendant(s), authors of statements and those generated from pertinent messages.
- ☐ **Statements** - All statements would be registered to the author and typed.
- ☐ **Messages** - Messages will be registered as an ‘Other document’.
- ☐ **Documents** - As appropriate. These must be typed or a meaningful précis included.
- ☐ **Indexing** - A electronic database should be created to assist.
- ☐ **Disclosure** - Depending on a IOs policy decision.
- ☐ **Exhibits** - Schedule completed and location recorded and updated throughout.

7.4.7 Disclosure

Notwithstanding the way in which material is dealt with in the system, the onus to provide full and complete schedules remains upon the disclosure officer and for this to be revealed to the Prosecutor as required by the Disclosure Rules.

7.5 Roles and Responsibilities

7.5.1 Investigating Officer (IO) - The Role of the Investigating Officer

An **IO** is the lead investigator.

This requires the **IO** to:

- ☐ Develop and implement the investigative strategy;
- ☐ Develop the information management and decision-making systems for the investigation;
- ☐ Manage the resources allocated to the investigation;
- ☐ Be accountable to chief officers for the conduct of the investigation.
- ☐ Have a sound working knowledge of the JCF Murder Investigation Manual, CIB Policies & SOP's and other JCF policy surrounding major investigations.
- ☐ Arrange & implement all the necessary elements for an effective investigation – scene management, appeal/search for witnesses (H2H teams/appeals/media etc), search for suspects etc.

The IO is the officer appointed to take charge of the investigation of a serious crime.

The officer should be of sufficient rank, normally detective Sergeant or Detective Corporal and have received appropriate training and experience to fulfill that role.

The **IO** is regarded as the principal decision-maker in the investigation.

There are classic examples of serious crimes being part of a series and the **IO** must always bear in mind that the specific enquiry in hand may be part of such a series. For that reason it is vital that the **IO** strictly enforces standard practices that will allow the linking of investigations in appropriate circumstances.

The **IO** will be responsible for ensuring all decisions are properly catalogued in the policy file and is required to endorse each entry with a signature. It is the responsibility of the **IO** to read and initial as 'filed' all documentation generated in the MIR. The **IO** may delegate part of this function to an appointed deputy. The **IO** should understand the importance of personally reviewing all relevant documentation.

The version number of any analytical product must be included in the Decision Log when a decision is based upon that product.

The **IO** will be responsible for the opening and subsequent completion of the General Registry file containing all material pertinent to the investigation.

Be aware of all disclosure issues surrounding the investigation to ensure that the need for disclosure as required has been fulfilled.

7.5.2 The Deputy Investigating Officer

In all but the most straightforward of investigations it is likely that a Deputy Investigating Officer (D/IO) will be appointed. The role of the D/IO is not simply to mirror that of the IO and to deputise in their absence. The D/IO should be given specific responsibility for managing key areas of the investigation to enable the IO to focus on strategic issues.

The exact role of the D/IO will depend on the circumstances of each case, the type of resources that are being used and the investigative strategy being followed by the IO. As a general rule the D/IO should be responsible for:

- ☐ Deputising in the absence of the IO;
- ☐ Assisting in developing the investigative strategy;
- ☐ Managing the logistics of the investigation;
- ☐ Implementing the investigative strategy.

Although it is appropriate to use the role of D/IO as a way of developing future IOs, the nature of the role means that the D/IO will often be placed in positions where they must take full responsibility for the conduct of the investigation. They may also have to take significant decisions. IOs should satisfy themselves that D/IOs have sufficient training and experience before they are placed in such positions. Where IOs are likely to be absent for substantial periods, for example, taking vacation leave, they should ensure that the D/IO has clear guidelines on the way the investigative strategy is to be pursued. They should also be given a point of contact with a more experienced IO should they need support.

The deputy investigating officer (D/IO) has responsibility for the control and direction of the investigation in the absence of the IO. Any decision made on behalf of the IO will be recorded in the policy file.

This officer will have received an appropriate level of training and experience to undertake this role and will normally be of detective Corporal or Detective Constable

The D/IO will:

- ☐ Will lead the outside enquiry team.
- ☐ Have a sound working knowledge of the JCF Murder Investigation Manual, CIB Policies & SOP's and other JCF policy surrounding major investigations.
- ☐ Ensure that all property coming into police possession during the enquiry is dealt with correctly by the exhibits officer.
- ☐ Read and initial documentation as having been seen and confirm approval to 'file' where that responsibility has been delegated by the IO.
- ☐ Ensure that after conviction, or other conclusion, the Case File is updated and resulted and facilitate prompt dissemination of any additional intelligence.

7.5.3 Duties of Office Manager – Oic Divisional Registry in Most Cases

The office manager, who is responsible for the efficient running of the MIR, will be a minimum of substantive detective sergeant rank and appropriately trained in the use of the Case Management System.

The office manager will:

- ☐ Assess, recommend and maintain a level of staff capable of carrying out the administrative functions efficiently.
- ☐ At all times, be aware of developments in the investigation and keep the **IO** informed of them.
- ☐ Liaise with the **IO** and assist that officer in respect of enquires to be made.
- ☐ Determine, in conjunction with the **IO**, levels of and requirements for indexing, ensuring that an appropriate entry is made in the Indexing Policy File.
- ☐ Manage incident room staff ensuring all are aware of their duties and of any developments in the case.
- ☐ Ensure name/vehicle checks and checks on local systems have been made and the results entered.
- ☐ Establish from the **IO** the designated area for house to house enquiries, whether a questionnaire is to be used and whether supplementary questions are required.
- ☐ Arrange frequent briefings/meetings with the **IO** and to ensure that the receiver, document reader, action manager, crime scene manager, exhibits officer, intelligence cell supervisor, analyst/researcher, and house to house enquiry co-ordinator attend as required.
- ☐ Liaise with the action manager, keeping up-to-date with all high priority actions.
- ☐ Ensure that, in liaison with the **IO**, crime scene manager and exhibits officer, appropriate actions are raised from relevant exhibits.
- ☐ Ensure exhibits are input onto the Exhibit schedule and their locations updated.
- ☐ Ensure that typed documentation is proof read and file preparation is dealt with quickly and efficiently.
- ☐ Liaise with the disclosure officer to ensure that disclosure decisions have been fully considered.
- ☐ Read and assess all documentation and approve it for filing within the Case File system. (In very large enquiries, it may not be practicable for the office manager to read every document. In such cases, with the approval of the **IO**, a system should be adopted whereby certain documentation is vetted by another supervisory officer, ensuring that only those papers containing relevant information are passed to the OM.)
- ☐ Assess resulted actions, check they have been dealt with satisfactorily and, where necessary, raise further actions. If satisfied, the office manager should 'File' the action and mark the document 'recommended for filing' or 'file' if they have been authorised by the **IO**.
- ☐ Assess actions that have been 'referred' (for example, not pursued at this stage) on a regular basis.
- ☐ Ensure that all officers engaged in the enquiry are aware of the security provisions in relation to copy documentation and its movement outside the incident room.
- ☐ Ensure that all documents are marked with the appropriate Protective Marking System (PMS) classification.
- ☐ In consultation with the **IO**, maintain current situation report.
- ☐ In consultation with the **IO**, maintain the log of events file.
- ☐ Ensure notes are prepared from briefings for reference by staff in general.

NOTE: Many of the above duties are the responsibility of the office manager, this is not to say they will actually be performed by them.

7.5.4 Duties of Receiver

The receiver will be a substantive detective, or an officer having received accredited CIB training, and appropriately trained in the use of the Case Management system

This officer will invariably be most up-to-date in respect of the current state of the enquiry, with all documentation entering the incident room being first routed through this post. The receiver must work in close liaison with the office manager and analyst.

The receiver will:

- ☐ **Receive and read all documentation** submitted to the Registry/incident room, underline or highlight any priority content to be indexed and mark on the document any High Priority Actions that are required to be raised. The receiver will also endorse any documentation which 'Undermines Case', or is 'Sensitive' or 'Detrimental to Witness', then forward it to the registrar. This may be achieved by way of 'tags'.
- ☐ **Receive and assess 'other documents'** as to whether any urgent actions need to be raised. Attach an 'Other Document' form to the document and endorse it with the document title.
- ☐ **Receive returned actions from enquiry officers**, ensure that the action has been properly completed, wherever possible discussing the result with the officer and read any accompanying documentation (for example statements, PDFs, and so on). The receiver will change the status of that action on the computer to 'completed' and forward it together with all the accompanying documents to the registrar. Any urgent action(s) arising will be raised immediately.
- ☐ **Remind officers that they are responsible for consigning to confidential waste any copy documentation issued with an action.** The action form will be endorsed that this has been done.
- ☐ **Immediately notify the office manager of any important development.**
 - ☐ Pass a copy of any relevant documentation directly to the IO and/or analyst.
 - ☐ Indicate to the Typist the appropriate PMS classification.
 - ☐ Indicate to the registration officer the appropriate priority of the document (i.e. High, Medium or Low) in accordance with IO policy.
 - ☐ Indicate to the registration officer the appropriate level of document security in accordance with IO policy.
 - ☐ Attend all briefings held by the IO.

The receiver should also, on instructions from the IO, assess actions to eliminate persons, and indicate on the action the appropriate elimination code for the indexer to enter on to the Nominal Record.

It is good practice to personally receive material, and discuss the content, from the officer submitting.

7.5.5 Duties of Registrar

Depending on the volume of documentation gathered, this can be a single role or a dual role performed by the receiver or indexer(s).

The registrar must have received relevant training and have a good working knowledge of the Case Management system.

Before any type of document (with the exception of messages) can be worked on it must first have been registered. Modern technology, scanning, e-mail, and other facilities can be applied once registration has taken place.

The documentation will first be seen and assessed by the receiver, who will endorse the document(s) with appropriate comments, level of priority marking, PMS marking and so on and forward it to the registrar. That officer will register the document and deal with it as indicated below:

STATEMENTS

Create and complete the initial Nominal Record, location record and telephone record (where appropriate)

MESSAGES

Register the message form and create the nominal, address, telephone records and any relevant category.

PERSONAL DESCRIPTIVE FORMS (PDF)

Register and create a nominal record and forward to the typist/indexer.

HOUSE TO HOUSE (H2H)

Register using the house to house form number. Create the nominal, address, telephone, vehicle, category field.

OFFICERS REPORTS

Register the report to the officer

INTERVIEWS

Register to the nominal record of the person being interviewed. (These will be registered as Interviews).

TRANSMISSIONS

Register to the relevant index as directed by the office manager/receiver.

OTHER DOCUMENTS

Register to the relevant index.

ACTIONS

Actions will be returned to the receiver who will determine if any further enquiries are necessary. If the action is returned with documents attached thereto, these will be registered and the numbers endorsed on the action.

7.5.6 Duties of Document Reader

The document reader will be a substantive detective, or an officer having received accredited CIB training, and appropriately trained in the Case Management system.

This officer will read all material in detail endorsing it with a summary and decide what further actions will be raised to further assist the investigation.

7.5.7 Recording

The document reader will read and record documentation that has been submitted and where possible typed. If not a copy will be utilised and marked:

- ☐ Underline or highlight the content of the document that is to be indexed.
- ☐ Where any line of enquiry is apparent, mark up the text for an action to be raised and use a footnote to place explicit instructions for the indexer about the nature of the action.
- ☐ Enter a summary of that document in the summary field. The summary should contain sufficient information to assist both the file preparation team and the disclosure officer. It will also be of benefit to the IO and the office manager. (N.B. Nominal numbers should not be included as this may be used for disclosure)
- ☐ If index records are to be created, the officer should indicate this with the appropriate index marking. This will identify to the indexer the type of index record that is to be created.
- ☐ Endorse the Other Document Form with the tasks to be carried out by the Index Section.
- ☐ Decide what action should be taken with the other document and endorse it accordingly.
- ☐ Use a footnote to place any other comments or instructions for future reference by the indexer.

The document reader may wish to research the document whilst reading and marking up the document. If an index record, action or document already exists then it can be annotated with the appropriate text.

The IO will decide whether or not the document reader will carry out such research whilst reading and marking up documents. This may vary from incident to incident.

7.5.8 Duties of Indexer

The indexer will have fully conversant with the CIB Case Management system. The indexer will receive all documents from the receiver and document reader and raise actions as directed (first researching the index). The indexer will index the content of the documents following the

instructions established by the receiver or document reader and, if applicable, by the office manager.

The Indexing Section is a key part of the investigation team, with the facility to continually research information. It is vital that the role is not reduced to one that merely records information. Indexers must use the indices to interrogate the system as they update information to link the facts and take appropriate action. Any problems, queries or matters of interest should be immediately drawn to the attention of the office manager, receiver or local administrator.

The duties of the indexer may be summarised as:

- ☐ Raise any action as directed (for example, by the **IO**, the D/IO, office manager or where indicated in any document), first researching the database to see if an action already exists for that enquiry. If so, verify that it fulfils the enquiry now required and update if appropriate, consider 'Linking Actions'.
- ☐ Raise an action ensuring that the resume and full instructions are in clear and precise terms to enable the enquiry officer to carry out the duty specified.
- ☐ Raise an action as 'HIGH PRIORITY' if appropriate.
- ☐ Endorse on all actions the numbers of any documents that refer to the subject of the enquiry and may need to accompany the allocated action when issued to an enquiry officer.
- ☐ When raising an action ensure that the originating document or other authority (e.g. **IO**, office manager) is endorsed on the action. This will then create an action to document cross-reference automatically.
- ☐ Monitor the action and document queues and identify work to be prioritised.
- ☐ Index documentation from which an action has been raised.
- ☐ Endorse documents as 'indexed'.
- ☐ Pass all documents to office manager for approval
- ☐ Where a completed action is returned through the receiver, type the result onto the system and index. Raise further action if so directed. Ensure that numbers of accompanying documents have been endorsed on the action by the registrar.
- ☐ Ensure action state is shown as resulted unless re-allocation required. Forward to office manager for filing.
- ☐ Index the information on the Personal Descriptive Form
- ☐ Register documentation in the absence of a registrar. Raise High Priority Actions where directed, index and pass to the document reader.
- ☐ Index documentation marked up by the document reader. Raise actions as directed. Show as indexed and pass to the office manager.
- ☐ Maintain designated Indexes:
 - ☐ Nominal
 - ☐ Location
 - ☐ Vehicle
 - ☐ Telephone
 - ☐ Category (only created in conjunction with **IO/OM**)
 - ☐ Sequence of events
- ☐ Exhibits (link exhibits to other records, add documentary cross-references and raise actions in respect of exhibits).

NOTE: Indexers should prioritise their work according to the indicated document priority. Not by taking the next document from 'the tray'.

7.5.9 Duties of Typist

The typist, who will have been appropriately trained in the use of the CIB Case Management system, performs the following functions:

- ☐ From the copies of the original documentation, type the document
- ☐ Type unregistered messages to ensure rapid input of data for free text searching.
- ☐ Proof read documentation with the clerk, when conditions permit but not to the detriment of word processing.
- ☐ Transfer material provided on disc, to the database whilst ensuring that typing conventions are adhered to, for example date/time formats and upper case where appropriate.
- ☐ Undertake scanning of documents as required.

7.5.10 Duties of Clerk

The clerk, who may have been appropriately trained in the CIB Case Management system, performs the following instructions:

- ☐ Opens and maintains files for the library of original and copied documents received into and created by the incident room.
- ☐ Regularly empties trays throughout the incident room to ensure a free-flow of documentation.
- ☐ Proof reads batches of statements with the typist or other nominated person as required.
- ☐ Ensures that hard copy material is removed from the printer(s) and sent to the appropriate trays.
- ☐ Photocopies and distributes documents.
- ☐ Carries out such other duties as the IO or office manager may direct.

7.5.11 Duties of Telephonist

The telephonist may be a dedicated member of staff or alternatively may be any person who answers the telephone.

The telephonist receives and records telephone messages concerned with the enquiry.

Accuracy and detail are essential and the correct message forms should be used on all occasions. Once received the message should be passed to the receiver. Messages of an urgent nature should be handed personally to that officer.

7.5.12 Duties of Action Manager

The action manager will be a Detective Sergeant trained in the use of the Case Management system. This officer will be responsible for the management and allocation of actions in consultation with the IO, D/IO and office manager. It will be advantageous if this officer has a good knowledge of the enquiry team officers, their specialist skills and of the area where the offence has occurred.

The aim will be to:

- ☐ Continually research the action queues, assess actions and monitor their priorities in accordance with the policy laid down by the **IO** and move them to the appropriate queue .
- ☐ Consider when assessing actions 'for allocation', either allocating to the same officer determined by locality or by the nature of the enquiry.
- ☐ Assess the type of enquiry and ensure that the officer to whom it is issued is capable of satisfactorily completing the enquiry.
- ☐ Liaise with the **IO** to identify actions that are to be pended or referred.
- ☐ Consider allocating actions relating to unidentified persons and vehicles to the researcher/analyst to examine any relevant database in an attempt to identify such persons and vehicles.
- ☐ Allocate actions in accordance with **IOs** designated time scales.
- ☐ Ensure that actions are returned within the **IOs** designated time scales.
- ☐ Pend those actions where enquiries have been started but cannot be completed until a future date and subsequently manage their allocation.
- ☐ Refer those actions that are, in accordance with **IO** policy, not to be allocated immediately.
- ☐ Liaise closely with the receiver, thereby maintaining a good knowledge of the overall state of the enquiry.
- ☐ Update where an Action has been given an incorrect class or priority and record the reason in the Action Log.

NOTE: It is the action manager's responsibility to ensure that all documents relating to the subject of the action are issued with it. This will ensure that the officer undertaking the enquiry has all relevant intelligence and information available, where appropriate.

The action manager will, on a regular basis commensurate with the policy of the **IO**, discuss with enquiry officers the state of their allocated actions to establish any difficulties or problems in the completion.

7.5.13 Duties of Researcher

Staff undertaking this role should have been trained in the CIB Case Management system.

The researcher will:

- ☐ Undertake detailed research into specified areas;
- ☐ Undertake and collate detailed research of documentary exhibits and lists;
- ☐ Prepare briefing material as instructed by the office manager or analyst;
- ☐ Prepare and provide copy material to facilitate detailed lines of enquiry;
- ☐ Carry out other tasks as directed by the **IO** or analyst;
- ☐ Make use of open source material when appropriate; and
- ☐ Ensure that all taskings are by way of a raising an action.

7.5.14 Duties of Analyst

The analyst, who will have been appropriately trained in the CIB Case Management system, performs the following functions:

- ☐ In conjunction with the researcher read and research all documentary material. This may be after registration and typing or, in the case of the 'Fast track' process, in their raw state.

- ☐ Thoroughly analyse information recorded on available databases, in order to identify links or discrepancies, highlight new lines of enquiry or suggest possible 'suspects', and informing the office manager or IO.
- ☐ Produce sequence of events charts as required and ensure that they are made available to all members of the enquiry team.
- ☐ Produce analytical charts illustrating aspects of the incident as required by, or that would prove useful to, the IO and/or enquiry team.
- ☐ Ensure that all draft documents are version controlled, dated, and sent to the MIR for disclosure purposes.
- ☐ Attend briefings and update incident staff on any points highlighted by analysis and research.
- ☐ Carry out other tasks as directed by the IO.
- ☐ Ensure that all tasking is by way of a raising an action.

7.5.15 Duties of Disclosure Officer

The disclosure officer will be a detective appropriately trained in the CIB Case Management system.

The disclosure officer will:

- ☐ Examine and be responsible for the disclosure of all material involved in the major enquiry.
- ☐ Brief major incident staff at the outset of the enquiry on matters surrounding disclosure.
- ☐ Prepare a major incident schedule for the prosecutor on the appropriate CIB forms.
- ☐ Advise the IO about:
 - *Third party disclosure issues.*
 - *Unused material in the possession of all officers on the enquiry.*
 - *Lines of enquiry.*
 - *Continuity of evidence.*
 - *Material that undermines the prosecution case.*
 - *Material that assists the defence case.*
- ☐ Where applicable edit all relevant disclosable material before disclosure to the defence.
- ☐ Liaise with the IO, Clerk and Crown Counsel (ODPP) regarding all aspects of the unused material in the enquiry, including:
 - *The reasons why material is classified as sensitive.*
 - *The degree of sensitivity attached to the material.*
 - *Instructions concerning public interest immunity (PII) for certain material.*
 - *The apparent relevance of the material to the issues in the trial and its likely evidential weight.*
- ☐ Be involved in the process leading to:
 - *Inter-parte hearings.*
 - *Ex-parte hearings.*
- ☐ Liaise with the office manager to ensure that arrangements are in place so that the disclosure officer is consulted if additional work is authorised on any previously considered material.
- ☐ Liaise with the exhibits officer in all matters surrounding disclosure of exhibits.
- ☐ Make arrangements and agree best practice with the IO and ODPP, when the defence requires access to review disclosure material.

7.5.16 Duties of Exhibits Officer

An exhibits officer will be a detective appropriately trained in exhibit handling and the CIB Case Management system, and will:

- ☐ Form part of the IOs 'First Response Team'.
- ☐ Maintain liaison with the IO, Crime Scene Manager and Forensic Crime Scene Investigators (FCSI) at the scene.
- ☐ Liaise with the IO.
- ☐ To develop an exhibits strategy.
- ☐ To identify and prioritise forensic submissions.
- ☐ Obtain all possible evidential exhibits that may assist the enquiry.
- ☐ Be responsible for logging and recording all exhibits in the Exhibits Book.
- ☐ Preserve the continuity of all exhibits, record details of persons to whom any article is handed for examination or identification and so on by updating the Exhibits Book and exhibit label.
- ☐ Be responsible for the secure storage of exhibits in accordance with JCF policy.
- ☐ Ensure that all exhibits are registered and record movements of exhibits.
- ☐ Provide timely copies of documentary exhibits to the MIR Receiver.
- ☐ Maintain liaison with the disclosure officer in all matters surrounding exhibits.
- ☐ Arrange for the disposal of property at the conclusion of the enquiry.

7.6 Suggested CATEGORY Titles

Categories should be discussed at the start of an enquiry between the IO, office manager and MIR staff and should reflect the following areas:

- ☐ Lines of enquiry;
- ☐ Profile of suspect(s) and offence; and
- ☐ Administration.

An account set up in this manner will enable the IO to supervise the progress of lines of enquiry, provided that the categories reflect those lines identified in the Decision Log.

The IO, and all staff, can also quickly retrieve such administrative data, such as where 'First Descriptions' are located within the system. Similarly, the IO can readily establish who has come to notice of the investigation and fits the profile of the offender.

The 'Lines of enquiry' and 'Administration' themes are self-evident.

Lines of enquiry categories

Victim	Main scene	Intelligence
Relatives	Witnesses at	CCTV
Friends	Police at	CRO
Associates	Vehicles at	Analysis
Addresses	Taxis/other transport	Anon Information – Male
Vehicles	Buses	Anon Information – Female
Telephones	Utility workers	Intelligence logs
Employers	Deliveries, (milk, post, papers, etc.)	Local crime maps
Criminal records, intelligence	Rubbish collection	Offenders living locally

7.6.1 Other scenes (as appropriate)

Forensic	Exhibits	Telephones of relevance to IO
Forensic support staff	At scene	Cell (by company)
Forensic review/minutes	At hospital	Landlines
Scene 1	Suspect exhibits (by suspect)	Subscriber checks/requests
Scene 2 (and so on)	Vehicle exhibits	Subscriber check results
Laboratory forms (submissions)	Address exhibits	Itemised billing requests
Reports/documents	Exhibit schedule	Cell site requests/results
Crime scene exam report	Other documents as exhibits	
Miscellaneous		

7.6.2 Suspect categories

Search strategy	Suspect strategy	Arrest/Interview strategy
House to house	Motives	Nominal details
Open spaces	Method Index	Circulations
Search warrants	CRO	Briefing documents
Search following arrest	DIU/NIB Intel	Disclosure to solicitors
Miscellaneous	Sex Offender Register	Custody records
Documents	Other (named by witnesses and so on)	Tapes Transcripts
	Crimestop	Interview plan
	Press appeals	Miscellaneous documents

All other main lines of enquiry should be reflected in their own categories, as above.

7.6.3 Administrative categories

Laboratory	Sensitive material	e-Fits/artist impressions
Maps and plans	Unused material	First descriptions
Photographic	Unidentified streets	Identification witnesses
Police support	Estates with no road name	VSS/support agencies
Policy documents	Questionnaires	Court dates
Press and publicity	Elimination prints	119 callers
	Post mortem	
	Reconstruction	

7.7 Profiling Offence and Offenders

At the start of all investigations the **IO** will have knowledge of the type of offence by modus operandi (MO) and from initial enquiry will have formed an opinion of the type of offender sought. This may be drawn from experience, from witnesses or most likely a combination of both.

Without specific information as to who committed the offence the investigation will gather information on individuals by record in the CIB HQ & CRO Nominal Indexes. In a large enquiry numbers may run into hundreds, if not thousands. The question is how to search the database for persons matching the MO and possible description of the suspect(s), thereby forming a suspect strategy (and elimination criteria).

If such nominals have been recorded in a category matching the profile this task is simplified. For example, the **IO** is faced with a murder where the occupant of a house had disturbed a burglar, been stabbed to death with a weapon brought in by the suspect, consideration might be given to forming the following categories:

- ☐ Burglary conviction;
- ☐ Possess offensive weapon;
- ☐ Assault conviction;
- ☐ Receiving stolen goods;
- ☐ Unlawful Possession of Property; and
- ☐ Possess drugs (separated into type).

The categories might, in addition, be sub-divided into age ranges 12-17, 18-21, 22-24 and over 24. Setting up the categories in this manner would mean that all persons fitting any of these criteria would appear under the relevant heading. Consideration could then be given into prioritising those who appear in all categories, all bar one and so on or as advised by a profiler. As these categories would be unique to the individual investigation it has not been possible to reflect these in this document.

APPENDIX 7 A

ST. CATHERINE MAJOR INVESTIGATION TASKFORCE (MIT) STANDARD OPERATING PROCEDURES (SOP' S)

TERMS OF REFERENCE

1. To conduct professional and effective investigations within **St. Catherine**, in relation to all **murders by the use of firearms** (NOT involving the Security Forces) and to disrupt, dismantle and prosecute the criminals involved by:
 - i. *Supporting and caring for victims and witnesses;*
 - ii. *Developing more effective investigative strategies including intelligence and community support;*
 - iii. *Improving and developing a professional and sustainable case management system to aid prosecutors and increase convictions at court;*
 - iv. *Working together with other professional bodies within the criminal justice system to reduce delays; and*
 - v. *Increasing public confidence in crime investigations, by working together with vulnerable communities, to solve local problems, in a new partnership approach to tackle violent crime.*
2. The **MIT** team will also be able to provide specialist support, knowledge and skills for the investigation of all major crime(s) and to support the reduction in offending, increase detections and convictions throughout Jamaica.

This will be achieved by providing a centralised and professional Taskforce to support and enhance the professionalism of all crime investigations conducted by the Jamaica Constabulary Force (**JCF**), by:

- i. *Forming a team of experienced detectives to provide a 'one stop' response for major disasters/investigations, by combining staff and resources from within the JCF, together with short term attachments for staff attached to other Divisions and Areas.*
- ii. *Providing direct support, advice and oversight for major crime investigations conducted by Divisional and/or Area officers, as directed by the Assistant Commissioner Criminal Investigation Branch.*

All of the above will be achieved from lessons learned and developed by Operation Kingfish, together with continuous improvement throughout our investigative practices, by increasing our professional ability to conduct investigations with the highest standards and integrity.

STANDARD OPERATING PROCEDURES

Reported Murder in St. Catherine

Initial attendance (Major Crimes Scene Attendance Policy - Appendix A)

Control will dispatch a local police response in accordance with existing policy and practice. On arrival at the reported crime scene the first officer(s) will be responsible for commencing the investigation, when it is **established that firearms have been discharged** they will call Control who will assign HAT officers.

The **HAT** team will be responsible for all the investigations in St. Catherine whereby a shooting murder occurs. These investigations must be conducted in close consultation with the **BSI** investigators where police or security forces may have been involved in a shooting with suspects/other persons. Valuable opportunities exist to bring early convictions against such offenders, provided the criminal use of firearms investigation is undertaken without delay.

The Homicide Action Teams (HAT) from MIT will respond to and commence examination of the scene. The HAT teams operate with a combined investigative and forensic capability.



To provide a **'one stop'** response for all suspected/alleged shooting murders, by;

- Conducting an 'all inclusive' investigation and scene of crime response and
- Providing a coordinated 'taskforce' approach for such investigations.

In exceptional situations, effective communication and mutual support must be provided to ensure crime scenes are properly managed. The Commanding Officers, in charge of the Technical Services Division (TSD) and MIT, are required to ensure that this is achieved.

First Response

Remains the responsibility of local divisional staff and as such they will continue to provide an effective response to all allegations of crime. Divisional CIB attendance will remain an essential element of the initial divisional police response.

The local divisional officers will be responsible for;

1. *Preserving life and minimising harm to all persons involved*
2. *Scene preservation, **prioritising**;*
 - d. Cordons – utilising crime scene tape and police officers posted
 - e. Security of the scene and local area

- f. Search for witnesses and suspects
3. *Maintaining Crime Scene Logs*
4. *Provide continuity evidence for the body and identification at the Post Mortem examination*
5. *Leading on community interaction and support*
6. *Supporting the **HAT/MIT** investigators and their investigation*
7. *Informing senior divisional officers in accordance with existing policies and procedures and*
8. *The Divisional Senior Officer will Retain the Media and communication lead until accepted by a senior **MIT** officer (usually after 24hours).*

NOTE - Divisional Radio Cars **MUST** have sufficient supplies of Crime Scene Tape and Logs. This is the responsibility of each Divisional Commander and their supervisors.

On establishing that a shooting murder has occurred the divisional investigating officer (*usually the first police officer or/CIB officer on the scene*) will inform Police Control and a HAT response requested.

SCENE PRESERVATION

It is essential that once the first officers on the scene have conducted a search for 'life' or suspects **IMMEDIATE** cordons and scene preservation **MUST** take place to secure vital forensic evidence. **NO PERSON** will then enter that scene until the arrival of the HAT Supervisor and then **ONLY** with their authority, no matter the rank/role of the officer involved.

Scene preservation is vital and no unauthorised persons will be admitted. Senior officers may attend **AND REMAIN OUTSIDE** the cordon, but will not enter until **AFTER** the scene examination has been concluded.

SUPPORT FROM THE HAT SUPERVISOR

1. The HAT supervisor and staff will provide the immediate investigative lead and must be supported by divisional staff.
2. A divisional detective will be appointed as the divisional contact for the MIT investigators (*usually the first CIB officer on the scene*).

DIVISIONAL PRIMACY

The division will retain their responsibility to local communities relative to conducting effective crime management and crime reduction strategies. The **MIT** will report to the Divisional Commander in relation to all investigations undertaken on their behalf.

All investigations will be coordinated with the local Divisional Crime Officer and close liaison will be maintained with the Divisional Intelligence Unit.

The **MIT** will implement improved management procedures and policies and will utilise new forensic technology and investigative skills to solve the crimes investigated, within their terms of reference.

The overall media strategy will remain with the Divisional Commander although no media releases should be made without consultation of the **MIT**.

Homicide Action Teams (HAT)

Will provide a 24 hour, 7 day week response to all **CONFIRMED** shooting murders and will provide:

- ☐ The investigative lead
- ☐ Improved crime scene management.
- ☐ An early and thorough assessment of the investigative opportunities.
- ☐ Prioritisation of the immediate lines of enquiry **and**
- ☐ Implement a cooperative investigation strategy with the local division and community

The HAT team will be responsible for all investigations ACCEPTED by the HAT Supervisor, prioritising;

1. *Confirming that the allegation/incident is within their terms of reference*
2. *Forensic examination and preservation of any evidence and exhibits found*
3. *Directing and overseeing the search for witnesses and suspects*
4. *Seeking community support for the investigation*
5. *Informing senior MIT officers in accordance with existing policies and procedures*
6. *Ensuring a full record has been made in the relevant Station Diary and*
7. *Completion of the MIT **HAT** report and circulation of such.*

St. Catherine Major Investigation Taskforce (MIT) Investigators

Will undertake the investigation on behalf of the relevant divisional command and will provide weekly updates to each Divisional Commander and their nominated DIU point of contact.

Divisional Liaison Meetings

Investigations

A weekly investigative and review meeting will be conducted and chaired, by a senior **MIT** officer, on a weekly basis. Divisional Crime Officers and other divisional staff will be required to attend, to ensure an effective coordination of activity and exchange of information takes place.

Community Activity

A monthly meeting, will be held and chaired by a senior **MIT** officer, to improve coordination and information sharing with the local communities, identified as 'murder hotspots', within St. Catherine.

Divisions

Will continue to lead on community policing initiatives, intelligence gathering and will assist and support all MIT investigations conducted on their behalf.

The Major Investigation Room (MIR)

Will be responsible for the receipt and maintenance of all case files and related papers for all investigations undertaken by the MIT.

Paper flow in the MIR

All paperwork (witness statements, documents etc.) **MUST** be handed to the **RECEIVER** who is responsible for the management of all paperwork in the **MIR**.

On receipt of any material obtained, it will be necessary for the **RECEIVER** to read, prioritise and accurately record the information in one of the following indices: -

Statements – This is **ONLY** for witness statements, Contemporaneous (Question and Answer) interviews and Statements Under Caution. To be identified by the letter **S..** Followed by the next available Unique Reference Number (**URN**), e.g. **S55**.

Each statement is to be allocated an **URN** and indexed in the Statement Register. (Single **URN** for each year **AND NOT** for each separate investigation e.g. 06/S55).

Other Document – For any other document, Computer disk or material other than exhibits e.g. Case files, reports, letters, telephone data etc. To be identified as **OD/..** followed by the next available **URN**, e.g. **06/OD/55**.

Exhibits – **Not to be managed within the MIR** (Except Q and A's, Statements Under Caution, Post Mortem reports and Medical Certificates) and to be handed **DIRECT** to the designated **EXHIBITS OFFICER, CASE OFFICER** or **IO** as applicable. The chain of continuity **MUST** be maintained at all times.

Messages – Any intelligence, information or case updates must be recorded on a message form and given an **URN**, e.g. **06/M/55**. The **Receiver** will review the information and record any action taken (i.e. Action URN, details of officer or unit the information has been disseminated to (NIB, MIU).

The **Receiver** will be responsible for informing the relevant **IO** or **Case Officer** to ensure that they are aware of the updated position, and that any additional Actions are written and allocated.

The **Reader/Indexer** will then be responsible for ensuring the items are typed, proof read and then filed appropriately, updating the relevant **IO** or **Case Officer**.

The following files will be maintained within the investigation Case File:

Master file –



File note. To be updated regularly to record all activity e.g. date of court appearances, case progress, statements/documents served (*detailed witness names and officers details undertaking service*).

For all material served (e.g. statements, copy documents etc.) **a written record must be made and a receipt obtained** to record *what has been served*, when and to whom, including name of the Court Clerk/lawyer. After committal proceedings the papers will go direct to the ODPP against receipt, together with a record being made to record the date/time etc. (*Advice of SIO/ODPP to be sought regarding any contentious issues e.g. witness protection etc.*)



All relevant items listed in the checklist (Appendix B) e.g. Statements, contemporaneous Question and Answer records, exhibit list (*Relevant and Non Relevant*) etc.

Master Exhibits file –



Index of all exhibits (*Relevant and Non Relevant*)

Original non-bulky exhibits to be held securely in a file e.g. Post Mortem reports, photographs etc.

Bulky exhibits are to be listed, including a full description and the location where stored is to be recorded.

The **Case Officer (CO)** is responsible for ensuring that the file is maintained in good order and that all relevant material is properly dealt with in accordance with existing practices and procedures.

A copy of all material obtained will be maintained on the Master Case File and the **IO** will be responsible for overseeing that this is correctly carried out. Where a **Prosecutions Officer** is appointed they will provide advice, support and guidance to the **CO**, never less the overall responsibility remain the **CO** and **IOs** respectively.

The nominated **CO** must make regular reviews of all ongoing prosecutions, (**IO** in their absence) and witnesses will be fully informed of key developments at the earliest opportunity.

A professional approach will ensure that all case files/prosecutions are conducted without undue delay to minimise the risks posed to victims, witnesses and justice overall. This can only be achieved by the **CO** presenting a complete and regularly updated set of case papers, together with frequent liaison with Crown Counsel and prosecution witnesses, including police officers.

OPERATIONS AND SEARCHES

- ☐ Preparation of briefing sheet utilising IIMARC (*Intention, Information, Method, Administration, Risk Assessment and Communication*)
- ☐ Preparation of a search strategy (*Clothes/weapons/cell phones, documents etc.*)
- ☐ Appointment of Officer in Charge of search (*may be IO/Case Officer etc.*)
- ☐ *Appointment of an Exhibits Officer to record what was found, when, where and by whom.
- ☐ Utilisation of an exhibits bag (*gloves, bags, envelopes, boxes, tape, exhibit seals, labels etc.*)
- ☐ *Appointment of a note taker (*to contemporaneously record questions put to support an effective search and identify 'items' found, avoiding any suggestions that this is not a formal 'interview'.*)
- ☐ Photograph of any damage caused and any suspect items found in the situation found (if possible) in particular firearms, large seizures of drugs and cash etc.
- ☐ Preservation and retention of 'key' items for forensic examinations (*Clothes, weapons, suspected blood/DNA material etc.*)
- ☐ Identification of items for 'fast tracking' forensic submissions and communicating reasons for such to the Forensic Scientist (*i.e. Priority exhibits to identify suspects from swabs, clothing etc.*)

**could be dual roles on small searches*

STRATEGY

A thorough knowledge of all witness statements and other intelligence/information concerning the investigation is required BEFORE the completion of an effective search strategy.

A search is to be undertaken in order to find articles/evidence and as such it is necessary to identify what is sought **PRIOR** to effecting a search and in particular to identify the 'significant items' required. There is no point in conducting a search unless you properly consider what is likely to be found.

The following should be considered:

- ☐ Search Warrants (*Unlawful possession, firearms etc.*) are required for each address and will be obtained by an officer who is in possession of the relevant facts.
- ☐ Securing the premises/scene/suspect (*Security cordons, Officer/public safety*)

- ☐ **Photography – STILLS and VIDEO** (*under directions of Officer in charge (Silver) or IO*) to record entry and arrest if practicable to do so, and include -
 - ☐ Condition of prisoner, in particular any existing injuries/marks (Special care if identification procedures are likely to be an issue).
 - ☐ **Safety of filming officer(s) must be maintained at all times** and should resistance/violence occur filming/photography may have to be suspended.
 - **IF relevant - General scene coverage of;**
 - Outside of the premises from various directions.
 - Inside each room (After premises secured – Prior to commencement of search and AGAIN at conclusion).
 - **Specific coverage of;**
 - Any significant items found (**Significant items marked*) PRIOR to packaging and PRIOR to being moved (if possible to do so)
 - Any damage caused (*locks etc*) AND after repair (if appropriate)
- ☐ **HAT or Scenes of Crime officer** (*in large operations a Coordinator will be required*) and Forensic Scientist (if relevant) to lead and advise on items found (*forensic value*) and packaging strategy, dependent on an the initial assessment and in accordance with JCF policies.
- ☐ **Search and seizure of exhibits:**
 - Forensic exhibits seized **MUST** be packaged as soon as possible to avoid contamination and as such should be packaged and sealed close to the point of retrieval. Only one item in each package (i.e. **pair of shoes = 2 items**)
 - Continuity of the exhibits is required and written records will be kept to show the officer finding the exhibit; officer packaging and officer transporting each item found.

Wherever possible the minimum number of officers should be involved in handling exhibits and as such continuity issues will be reduced (*Finding officer to be Exhibits officer/Scenes of crime should be the norm, with the Exhibits officer/Scenes of crime then conveying all the items to the Forensic Laboratory etc.*)

- ☐ **Debrief prior to removal of security cordons.**
- ☐ **Removal of security cordons** (Only after directions from Officer in charge).

Identify and describe the 'Significant items' required to be found such as:

***Human hair**
***Human blood**
***Specific cell phones – provide descriptions** (*i.e. Sony Ericsson, model T105 and colour*)
All cell phones and SIM cards (*any phones found should be turned off and if possible the pin number ascertained from the owner/user*)
Diaries
Address books
Financial documents (*Ledgers/accounting books, bank accounts, ownership/letting of property etc.*)

***Firearms and Ammunition**

***Areas damaged by gunfire** (*where possible retrieve and photograph*)

***Knives, machetes, axes, pliers etc.**

***Large amounts of cash**

***Large amounts of drugs** (*or photograph if particular evidential value, such as in open view of all occupants*)

Computers and IT storage media (OCID or FID can provide advice and guidance)

Nominate Officers to the following roles and Areas of specific responsibility



Gold (Strategy) –

- **Officer in overall charge**, not normally present at the scene, may be in a control room for major operations. Is responsible for ensuring that the activity has sufficient resources, staffing and the wider strategic issues are effectively managed (*liaison with other agencies, media, community etc*)



Silver (Tactics) –

- **Tactical Commander and MUST be available to take command** at an appropriate location (*Control room, scene etc.*) and is responsible for the tactical implementation of the overall strategy (*Arrests/searches etc.*) and the effective deployment of the resources.



Bronzes:

- **Officer in charge of a 'specific' function** - Must be present and be deployed to ensure the effective supervision and oversight of staff conducting a 'specific' activity.



MARSHALLING OFFICER (IF LARGE SCALE OPERATION) –



CELL PHONE SECURITY/RETENTION –



BRIEFINGS AND DE-BRIEFS –



SECURITY CORDONS –



SCENES OF CRIME OFFICER OR CO-ORDINATOR –



PHOTOGRAPHER (Video and Stills) -



ARREST (separate officer(s) for each suspect sought) –



SEARCH OFFICERS (such as Caribbean Search Centre, MIT, FID, Crime Scene Coordinator etc.) –



FINANCIAL INVESTIGATION DIVISION/CONSTABULARY FINANCIAL UNIT -

- ☐ **COMMUNITY –**
- ☐ **MEDIA –**
- ☐ **WELFARE –**

ARREST STRATEGY (Compliance with JCF Wanted Persons Policy)

Circulation of Persons - Wanted or Suspected

The **IO/SIO** will, through the course of any investigation, identify persons of interest to that investigation; such persons must be identified, interviewed and eliminated at the earliest opportunity, any delay may lead to further offences being committed or witnesses intimidated. This will ensure that all activity is prioritised to effectively deal with any person of interest, whether they be a significant witness, suspect or wanted.

Any person, for whom there is reasonable suspicion to arrest and interview for an offence, **MUST** be circulated at the earliest opportunity as a Wanted Person in accordance with existing JCF policy.

Arrest Warrants should not be obtained during the normal course of an investigation. Sufficient powers of arrest are available to effect the arrests and protect officers from malicious complaint/litigation. In cases of doubt, the Director of Investigations must be consulted.

All persons should be circulated using the following terms;

- ☐ **Wanted for questioning.** The use of these words will explain to the public that charges are not imminent and that police will be questioning the suspect when detained, in accordance with Judges Rules. The **SIO/IO** will have identified and can justify **'reasonable suspicion'** for the arrest of this person. An appropriate power of arrest will have been identified and the Detective Inspector in charge of the **MIR** (or a Senior MIT Officer) will authorise, in writing, the circulation.
- ☐ **Suspected** (person of interest). To be used in cases where there are insufficient grounds to justify arrest and detention, although police still need to conduct interviews and develop the information available to them.
- ☐ **Locate/Trace.** Potential witnesses and other persons who may be able to provide valuable information to assist the investigation.
- ☐ **Wanted on Warrant.** Only to be used in rare and exceptional cases, such as Warrants issued by the courts (e.g. absconding) or where they have previously been arrested, interviewed and released; with new grounds identified for their arrest. (Judges Rules allows for interviews in these circumstances).

Powers of Arrest/Authority

It is essential that police know their powers of arrest and in particular when they can effect these. For instance some powers are only for:

- ☐ Felonies,
- ☐ Persons found committing,
- ☐ Persons who have committed the offence.

This SOP will highlight ONLY the Common Law power as this is the primary power available for the offences under investigation by the MIT. **it is the responsibility of each member of the police force to know their powers of arrest and to use them appropriately.** Consideration must always be given as to whether the arrest is justified.



Constitution of Jamaica (Chapter 111, 15.1)

No person shall be deprived of his personal liberty save as may in any of the following cases be authorised by law-

- f) upon reasonable suspicion of his having committed or of being about to commit a criminal offence; or

At Common Law a policeman may arrest without warrant;

- i. **On his view:** When a felony, treason or breach of the peace is committed or attempted in the presence of an officer, for example murder, robbery, larceny.
- ii. **On the charge of a third person:** It is the duty of a Constable, on a reasonable charge of felony being made to him by a private person against anyone else to take the supposed offender into custody. *Hedges v Chapman (1825) 2 Bing 523.*
- iii. **On his own suspicion:** The policeman may arrest on reasonable suspicion of a felony whether a felony has or has not been committed.

If it should appear that no such offence has been committed, the arrest will be justified, provided it was made on reasonable suspicion. A Constable is justified in arresting upon a reasonable suspicion of a felony having been committed whether the reasonable or suspicion are matters within his own knowledge or are facts stated to him by another. Police powers of arrest coincide with those of the citizen. He is thus a citizen in uniform.

Identify all offences for which the suspect is to be arrested. On arrest the suspect is to be told in clear language for which offences they have been arrested for and cautioned in accordance with Judges Rules. A contemporaneous record should be made of any questions put, including those made after caution and/or arrest, where practicable to do so, dependant on the security situation at the time (safety of officers/public/prisoner).

Judges Rules ([1964] 1 WLR 152, 154.) - When a Police Officer is trying to discover whether or by whom, an offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question has been taken into custody, so long as he has not been charged with the offence or informed that he may be prosecuted for it.

A contemporaneous record should also be made, in accordance with Judges Rules of any additional questions and answers:



To ensure an effective conduct of a search(s)



Any observations made by the officer(s) involved.

A nominated officer will be responsible for the prisoner's security/safety and to provide fair treatment during their detention. Consideration should be given to using a Justice of the Peace (JP) as an independent witness during any searches/arrests. A JP should be present if the prisoner has to be removed prior to the conclusion of the search, in accordance with legislation and force policy.

Search and seizure of exhibits as per the search strategy and if possible this should be in the presence of the prisoner and/or a JP. Should the prisoner request an Attorney; steps should be taken to arrange their attendance.

Suitable transport for any prisoners should be immediately available throughout the operation in order that the prisoner can be removed from the premises to a secure police station dependant on the security situation, in such an event a JP should be obtained to be present to witness any further searches.

Identification of other offences and arrest(s) for them. As the search progresses other offences may become apparent and as such the Team Leader or IO will direct further arrest(s) as applicable and any questions put should be contemporaneously recorded in accordance with Judges Rules.

Arrest notes to be completed at the earliest opportunity and the Arrest, Crime Scene Co-ordinator, Search and Interview team leaders should debrief the arrest/search prior to commencement of the interview phase. *An effective interview can only be accomplished when the officers conducting the interview know all the relevant facts.*

It is an essential and a vital element of any investigation that we have strict adherence to this policy.

Contemporaneous Question and Answer interviews

No charges should be brought, until AFTER a formal interview has been conducted, with an Attorney present and in accordance with Judges Rules. The purpose of such interviews is to:

- ☐ Secure 'best evidence' by way of questions and answers,
- ☐ To assist to prove/disprove the involvement of that person,
- ☐ Afford the suspect the opportunity to give an early account of their knowledge/actions and
- ☐ Provide an opportunity to test the strength/reliability of any information obtained during the investigation.

In addition the interview could provide new information that may make an identification procedure unnecessary (Special care MUST be taken in any case involving 'Identification issues' and as such the Attorneys attached to Kingfish or the Legal Affairs Division MUST be consulted for advice) i.e.

- ☐ **The suspect may admit their identity/involvement,**
- ☐ Place themselves at the scene(s)
- ☐ Provide confirmation that they are the same person described by the witness(s) (*admitting same facts as outlined by the witness such as relatives, addresses, place/type of work, friends etc*).

PRIOR to any interview the IO or CO MUST prepare an interview strategy. This can only be completed when all the relevant facts are known. The officer preparing the strategy must consider the following points

1. Points to prove in relation to the offence for which they are investigating,
2. Information provided by witnesses,
3. Additional information and/or intelligence surrounding the offences,
4. Articles/exhibits found at the scene(s), on arrest or at other places and connected with the investigation,
5. Confirmation that this is the same person as described by the witness(s) (*Identification issues*)

Detention time limits

It is essential that all persons who are detained by the **MIT** should be dealt with expeditiously and within a 'reasonable time', as required by the Bail Act. It is expected that all persons detained without charge should be released or charged within 24 hours of their arrest. Any additional detention may lead to an abuse and may be subject to legal proceedings for the detainee's release.

The investigation should be completed within this 24 hour period and as such the **IO** will record and retain details of all the relevant factors affecting this detention; such as requests for attorney attendance at interviews, identification parades etc.

In ALL cases where persons are likely to be detained without charge for 24 hours a written report must be presented to ACP CIB, prior to this period expiring. The report must include details of the investigation, reasons for the delay, the outstanding issues and when these are likely to be resolved. This report will remain open and will be updated as directed until the person is either released or charged.

A Justice of the Peace should always be called to extend the period of custody beyond 24 hours and all matters fully recorded by the **IO**.

After charge - Revisit other cases

Whenever a suspect has been charged, with a serious crime a specific review must be undertaken by the SIO to identify additional charges. This review should consider additional cases that may have been linked to this person or for which intelligence suggests may have committed by them.

When a suspect has been detained and subsequently charged with a serious crime, it is likely that the confidence of communities and in particular witnesses will increase in the knowledge that the suspect will remain in custody. Special attention must be made during this process to identify additional charges and obtaining new witness statements from potential witnesses.

Additional clear ups can also be made and this is a very important and visible signal of our practicable support to vulnerable communities, and the families affected by such crimes. This will

increase community support and strengthen our interaction with the public by securing as many charges as possible against such violent offenders.

Case Files

The **Case Officer (CO)** will be responsible for the completion of all case files to the following Minimum Standard:

- ☐ Compliance with the case file check list (*appendix B*).
- ☐ Working closely with and complying with the **IO or SIOs** instructions in the first instance, and then ensuring that the Master Case File is maintained by providing a copy of all documents etc. to the Major Investigation Room (MIR) for filing in the master case file.
- ☐ Obtaining legal advice from the Taskforce **attorney(s)** and recording submissions/decisions/actions. The initial submission should include a brief summary of the facts and identification of the specific advice sought.

Charges only to be made AFTER advice from **IO/SIO/Attorney AND** after a formal interview (*Contemporaneously recorded questions and answers*) has been conducted.

Once an interview has been conducted a FURTHER review will be required to ensure that further questions are not necessary **PRIOR** to any charges being made.

Prior to conveying the case file to court, a full copy **MUST** be lodged with the MIR and signed off by **IO or SIO**. Any further statements, documents, certificates etc. obtained **MUST** be copied and placed on the MASTER file in the MIR, before they are taken to the Crown Counsel or Court Registrar. **(NO FILE WILL BE TAKEN TO COURT/CROWN COUNSEL WITHOUT BEING SIGNED OFF BY THE IO/SIO)**

Regular and frequent contact is to be maintained with all witnesses/victims families, updating them on progress at key stages (*arrests, charges, court appearances etc.*) whilst continually assessing the risks posed to them.

Prompt action will be required to complete all outstanding actions and to ensure that the case file is completed and regularly reviewed.

Effective communication with Crown Counsel at the RM and Circuit Courts will be necessary and a fully briefed officer will be required to appear **at all hearings** to ensure that police are fully represented and any applications, such as bail or outstanding issues are properly addressed.

In cases where a '**Prosecutions Liaison Officer**' (**PLO**) has been appointed the **CO/IO** retains full responsibility for the case and they can utilise the **PLO** to undertake activity on their behalf, in particular attendance at court for mentions, bail applications etc **PROVIDED** the **PLO** has been fully briefed and outstanding actions are being dealt with expeditiously.

The appointment of a named Crown Counsel to prosecute the case, at the earliest opportunity will ensure a more effective and efficient prosecution takes place and as such the case officer must liaise with the ODPP to minimise any delays.

Witness Protection

Special care must always be taken by the **CO/IO/SIO** in all cases to fully identify and assess the risks posed to any witness. This must be under constant review and in cases of difficulty the **Director of Investigations (DOI)** must be consulted.

In cases where the witness may require entering the Witness Protection Programme, application on the prescribed forms must be made at the earliest possible opportunity through **ACP CIB**. This will ensure that the necessary arrangements can be made and the witness is able to be closely monitored during the investigation.

Witnesses do not always require or wish to be involved in the programme, so the **CO/IO/SIO** must ensure that appropriate advice/guidance is provided to all witnesses. Statements should not include personal details which are not relevant to the evidence the witness provides (including addresses, telephone numbers, family details, schooling etc.).

'Exposure' of a witness to the suspect (or their attorney) may increase the threat level for the witness and again particular care must be taken when this occurs to fully identify and assess the threat levels (such as at time of taking witness statement, attendance at identification parade, disclosure of the statement to Clerk at RM court or ODPP)

Special arrangements can be made to protect vulnerable witnesses, at an early stage of an investigation, to prevent their true identity from being revealed. A pseudonym can be assigned and used by a witness, as permitted in the Witness Protection Act and the relevant procedure must be followed. Where a pseudonym is intended to be used the Divisional Crime Officer **must** be consulted and if possible the ODPP.

Case Conferences (See appendix C)

The liaison between investigators and Crown Counsel is paramount in securing a conviction at court and can only be accomplished by effective communication, presentation of quality paperwork and with full disclosure of all the facts. This may take place PRIOR to any charges being laid and as such records of all such meetings must be recorded, together with any Actions by the **IO OR CO**. It is the responsibility of the **IO** to ensure that this conference takes place when required and without delay.

The purpose of this conference is to ensure that all issues likely to affect the trial are identified and fully discussed, with prompt action taken to resolve them prior to any trial.

The issues to be discussed will include:

- ☐ Charges laid
- ☐ Witness protection and other factors affecting witnesses and their evidence (*such as conflicts in their evidence with other witnesses or known facts*)
- ☐ The actual order that prosecution Witnesses for the trial will be called (*to avoid unnecessary exposure and inconvenience*).
- ☐ What exhibits will be used e.g. the relevance of the contemporaneous Question and Answer records.
- ☐ Any other factors that could affect an effective trial.

Media Strategy

During the initial stages of an investigation the media strategy will be led by the **Divisional Commander** or their senior officer on duty. As investigations progress, a review of the lead must be undertaken, and any additional media activity should be undertaken only after full consultation with the **MIT**, in cases of difficulty or in high profile incidents the Director of Communications should be consulted without delay.

All **MIT** officers must ensure that any relevant information/material (*photographs/video etc.*) is provided, together with a brief overview of the activity/arrest/seizure (*drugs firearms*) to the nominated CCN representative.

Specific care MUST be taken concerning any press release after charges have been made and the SIO/Divisional Commander should always be consulted prior to any release.

At all stages of a prosecution, an update will be provided to the CCN representative. This is to provide accurate and timely information should any requests be made and to ensure that the media strategy is effectively implemented. All the activity of the Taskforce should be harnessed in a positive representation of the activities being undertaken by the staff.

Post trial press release

A brief overview of the case will be prepared for the post trial media release in consultation with the **SIO** and the CCN representative. The media release will be updated by the **CO** or **IO** to include all the significant events identified during the investigation/trial, together with the outcome(s) (*e.g. support provided to secure witnesses, key events, degree of violence used, new investigative methods used etc.*) to provide a positive message for the public/police interest.

COMMUNITY IMPACT ASSESSMENT

Insert name of community/location

Strategy: To implement/develop new initiatives in the community by providing a multi agency led intervention programme to deliver community improvements.

Describe events/incident/crimes that have brought the community to notice

There has also been several other murders (*or state crimes/activity that has occurred*) that (*have taken place OR were previously taking place within this community*). The community have been the subject of intimidation by these criminal elements and as such it is likely that the criminals involved will take action against witnesses in the cases of those charged to date.

This community is also in need of a coordinated approach to implement community improvements and a multi agency approach should be adopted.

This document proposes a number of tasks in order to:

1. Identify, evaluate and research all information/intelligence and thereafter locate and detain those who seek to control the community through fear and to disrupt their criminality.
2. Identify what additional community intervention is required
3. Identify a multi agency action plan and engage partners to deliver this.

The main aim will be to restore a lawful and peaceful environment and to improve the community for all of the residents.

- ☐ Task Intelligence assets to provide historical and current intelligence of the criminal elements in this community.
- ☐ Acquire all intelligence from existing ongoing investigations eg (*Name Investigations or details of incidents*) and other (*name crimes*) investigated elsewhere.
- ☐ Obtain intelligence from local officers.
- ☐ Identify local community leaders or community elders and other key agencies/organisations for inclusion.
- ☐ Work in partnership with local Senior Police representative through structured meetings for sustainable JCF patrols and community involvement and intervention.
- ☐ Identify the Socio – economic needs of the community and identify partners that can assist including possible funding streams.
- ☐ Identify key issues that can be improved to enhance the community.
- ☐ Consider the impact of any operational deployment on the existing high profile cases and consider risks of such to the community through consultation with respective SIOs and the local Divisional Commander.
- ☐ Identify strategic targets and formulate a strategy and an action plan to provide improvements.
- ☐ Market the strategy through an effective media strategy.

When complete hand to the Taskforce Commander and provide copies to:

Director of Investigations, MIR, Intelligence manager, Divisional Commander and the relevant DIU's.

Director of Community Support will be responsible for taking this activity on and developing a community strategy in partnership with other key agencies and the local community concerned.

APPENDIX A

CASEFILE CHECKLIST

The following documents should be attached in each case where applicable. Please use this as a guide and remember that the more comprehensive YOUR file is the better chance YOU will have in securing a conviction.

INITIAL CALL/INCIDENT RECORD

1. Police Control Incident Form

CRIME SCENE

2. Crime scene investigators notes
3. Photographs
4. Plans
5. Forensic documentation & FL Number

INVESTIGATION

6. Victim statements
7. Witness statements including expert(s)
8. Officers statements
9. Witness list (*separate list with personal details etc. (Appendix G).*)
10. Exhibit List (*including medical certificate, Post mortem report etc.*)
11. Other Document list

ARREST PHASE

12. Arrest notes or statements
13. Contemporaneous notes (*Q & A record of interview*)
14. Previous convictions
15. Records of ID parade proceedings

CASE PREPARATION

16. All of the above
17. Case summary (**Force Orders requires Sub Officer & Detective Inspector to sign**)
18. Bail objections completed **using the Remand Form (CR14)**
19. Review by IO & JCF Lawyer if appropriate (*date(s)*)

MISCELLANEOUS

20. Collect relevant newspaper cuttings
21. Collect relevant Film footage
22. Record all contact & provide FREQUENT updates with witnesses, victim(s) (or their families) including police officers.

APPENDIX B

KEY FACTORS TO ENSURE A SUCCESSFUL PROSECUTION

Witness Care

- ☐ Completion of witness lists including the confidential details as per Appendix D.
- ☐ Regular contact with witness at key stages (*arrests, charges, court appearances etc.*) whilst continually assessing the risks posed to them.
- ☐ Update the master file note within the file.
- ☐ Prior to court dates contact all witnesses to ensure their availability and update Appendix D with any new dates to avoid.
- ☐ Make arrangements for any special measures e.g. holding witnesses out of sight at Area 4 or in a room set-aside at Court, well before the trials starts.
- ☐ Ensure an independent officer, outside of the investigation, assists to manage witness movement/protection.
- ☐ Arrangements with Witness Protection must be dealt with well in advance of any court appearances.
- ☐ Any significant difficulties in this area must be brought to the attention of the IO or SIO as soon as possible.

No officer should take leave if they are a witness in an ongoing prosecution case, without prior consultation with Crown Counsel, the investigating Officer and without authority of their commanding officer.

Exhibits

- ☐ Check the case File for a copy of Exhibit List
- ☐ Check and ensure the whereabouts of all exhibits and make sure they tally with the exhibit list.
- ☐ Exhibits that are away from your control, ensure that you have a contact who can produce them should they be required for the trial
- ☐ Ensure you have continuity statements for all Exhibits being used at Court.

Case Conference

- ☐ Ensure that any documents served on the ODPP/ Crown counsel are listed and signed for on receipt. (Template held within MIR)
- ☐ Seek a case conference at the earliest possibility with Crown Counsel
- ☐ Discuss any witness issues or special measures with Crown Counsel in order that they can plan ahead.
- ☐ Make a written record of all discussions/agreements with Crown Counsel showing date and time, for accountability
- ☐ Ask Crown Counsel for an order of witnesses for the trial to assist in their movement/management and identify potential length of trial

EVERY EFFORT MUST BE MADE TO PROFESSIONALLY MANAGE ALL PROSECUTION CASES IN ORDER THAT THE JUDICIARY AND PUBLIC RETAIN A HIGH LEVEL OF CONFIDENCE IN MIT

APPENDIX C

NOT FOR DISCLOSURE – CONFIDENTIAL**Witness list including personal details**

Family name	Forename(s)	Otherwise called (OC)	Address(s)	Contact numbers	Dates to avoid	Other relatives/contacts

SAMPLES OF TEAM MEETINGS AND AGENDAS

INDIVIDUAL TEAM MEETINGS

Monday @ 8.00AM

General Meeting

Chaired by respective DIs (or DSPs in their absence)

Attended by: Individual Team staff & Where necessary additional Taskforce staff may be present.

Location: MIT offices

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TASKFORCE COMMAND MEETING

Monday @ 2.00PM

Management Meeting

Chaired by TaskForce Commander (or Deputy)

Attended by: ACP Serious and Organised Crime, All Superintendents, All Deputy Superintendents, All Detective Inspectors, Other staff as directed.

Location: Conference room

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TASKFORCE COMMAND MEETING

FRIDAYS @ 8.30AM

Management Meeting

Chaired by Taskforce Commander (or Deputy)

Attended by: All Superintendents, All Deputy Superintendents, All Detective Inspectors

Location: Conference room

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Daily 9.30AM

General Team Meetings

Chaired by DI (or DSPs in their absence)

Attended by: Individual Team staff, Where necessary additional Taskforce staff may be present.

Location: MIT office

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TASKFORCE COMMAND MEETING

AGENDA



INVESTIGATIONS (New/Ongoing)

This agenda item allows discussion around new investigations being accepted by the Director and an update to be given by the DIs to SIO and Director highlighting problematic or lengthy outstanding actions.



COURT CASES/ONGOING PROSECUTIONS

This agenda item allows DIs to outline the position of their various cases and issues arising from these (Witness Prot/ care, outstanding or problematic issues etc). Prior to fixing trial dates all witnesses should be contacted and their dates to avoid obtained.



HAT

This agenda item allows for a full update from the HAT manager.



IT

This agenda item allows for a full update from the IT manager.



MIR

This agenda item allows for a full update from the MIR DI/ Office manager of the paper flow and general administration of the MIR office and its procedures



STAFF

This agenda item gives the chair an opportunity to update the Management team with news/details of any moves/transfers or details of growth and impact of any change



ACCOMODATION

Issues affecting the building/offices etc and updates accordingly.



FLEET

Update around management of vehicles and identification of further bids.



EQUIPMENT and BUDGETS

Discussion around funding streams, and allocation of any new equipment/ incidental expenses.



TRAINING

Discussion around suitable nominations and allocation of available courses.



WELFARE

Welfare matters highlighted and decisions around level of support to be given to support staff members.



SOCIAL

Social events to be agreed.



ANY OTHER BUSINESS

TEAM MEETINGS

AGENDA



ACTIONS

This agenda item allows the Chair scope to monitor the outstanding actions with the team.



INVESTIGATIONS (New/Ongoing)

This agenda item allows discussion on new investigations accepted by the Management team and to discuss issues around existing investigations.



COURT CASES/ONGOING PROSECUTIONS

This agenda item allows the chair to monitor the progress of ongoing cases. Prior to fixing trial dates all witnesses should be contacted and their dates to avoid obtained.



FEEDBACK from other Taskforce teams

This agenda item gives the MIR an opportunity to provide feedback to the MIT.



STAFF

This agenda item gives the chair an opportunity to update the MIT with news/details of any moves/transfers or details of growth



ACCOMMODATION

Issues affecting the building/offices etc



FLEET

Update around vehicles, rotation, servicing etc



EQUIPMENT and BUDGETS

Any update around funding ranging from issue of new equipment to incidental expenses.



TRAINING

Availability of courses and nominations/applications.



WELFARE

Esprit de Corps and general support to staff members.



SOCIAL

Social events to be discussed.



ANY OTHER BUSINESS

APPENDIX 7 B

KINGSTON & ST. ANDREW MAJOR INVESTIGATION TASKFORCE (K&S MIT) ROLES AND RESPONSIBILITIES

TASKFORCE COMMANDER

Rank – Senior Superintendent.

Role



Strategic and management lead of the K & S MIT.



Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the K & S MIT.



Provide effective communication and feedback;



Internally - with other strands of the Taskforce and



Externally - with other units/commands and partner agencies.

Including briefings/debriefs of all activities undertaken, ensuring that best practice is recorded and promulgated for continuous development and improvement.



Ensure K & S MIT compliance with legislation, JCF policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

Reporting to the ACP Criminal Investigation Branch and working with other senior officers & partners as necessary.

Responsibilities

Regular attendance & active participation at all Strategic, Management & Operational Planning meetings (OPT's) held by the Taskforce and other meetings as directed or required e.g. Commissioners briefings, Tasking & Co-ordination meetings etc.

Assess all external requests for K & S MIT assistance and to allocate sufficient resources or where appropriate, to provide advice and guidance should the request be refused, ensuring a professional service is provided at all times.

Oversee all operations and/or investigations undertaken by K & S MIT in accordance with the Terms of Reference & the Standard Operating Procedures (SOP), utilising multi-agency support, by leading

the necessary liaison and co-ordination at a strategic level and dealing promptly with issues affecting performance.

*Ensure effective Management procedures are operating for all staff attached to **K & S MIT**, including those seconded or working under their direction/support and updating the **SOP's** as necessary.*

Identify & implement a structured performance development programme for all staff based on skills, abilities and experience and to provide developmental opportunities for staff.

Implement a reward mechanism to acknowledge success and high performance from staff and create a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Crime Policy meetings, Victim Support, Court Users Group etc.

DIRECTOR (REACTIVE) & SENIOR INVESTIGATING OFFICER (SIO)

Rank – Superintendent.

Role

- ☐ *Strategic lead for all Reactive functions within the **K & S MIT**.*
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ *Manage and lead as the **SIO** on all major investigations allocated.*
- ☐ *Where necessary appoint **SIO's** & **IOs** and then to oversee their investigations.*
- ☐ *Ensure effective monitoring procedures are in place for all investigations and maintain high professional standards, whilst achieving continuous development and improvements.*
- ☐ *Ensure **K & S MIT** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

*Reporting to the **Taskforce Commander** and working with other senior officers & partners as necessary.*

Responsibilities

*Support the **Taskforce Commander** and to deputise in their absence.*

*Regular attendance & active participation at all Strategic, Management & Operational Planning meetings (**OPT's**) held by the Taskforce and all other meetings as directed or required e.g. Crime Policy, CIB Crime Officers, Area Crime meetings etc.*

*Oversee all operations and/or investigations undertaken by **K & S MIT** in accordance with the Terms of Reference & the Standard Operating Procedures (SOP), utilising multi-agency support, by leading the necessary liaison and co-ordination at a strategic level and dealing promptly with issues affecting performance.*

*Ensure effective Management procedures are operating for all staff attached to **K & S MIT**, including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.*

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Crime Policy meetings, Victim Support, Court Users Group etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

DIRECTOR (HAT & INTELLIGENCE) & SENIOR INVESTIGATING OFFICER (SIO)

Rank – Deputy Superintendent.

Role

- ☐ *Strategic lead for all Homicide Action Teams (HAT) & Intelligence functions.*
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ *Manage and lead as the **SIO** on all major investigations allocated.*
- ☐ *Manage and undertake frequent visits to **HAT** crime scenes.*
- ☐ *Ensure effective monitoring procedures are in place for all **HAT** investigations and maintain high professional standards, whilst achieving continuous development and improvements.*
- ☐ *Ensure **K & S MIT** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

Reporting to the Taskforce Commander and working with other senior officers & partners as necessary.

Responsibilities

*Support the **Taskforce Commander** and to deputise in their absence.*

Regular attendance & active participation at all Strategic, Management & Operational Planning meetings (OPT's) held by the Taskforce and all other meetings as directed or required e.g. Crime Policy, CIB Crime Officers, Area Crime meetings etc.

*Oversee all operations and/or investigations undertaken by the **HAT** & Intelligence teams in accordance with the Terms of Reference & the Standard Operating Procedures (SOP), utilising multi-agency support, by leading the necessary liaison and co-ordination at a strategic level and dealing promptly with issues affecting performance.*

*Ensure effective Management procedures are operating for all staff attached to the **HAT** & Intelligence wing, including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.*

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Crime Policy meetings, Victim Support, Court Users Group etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

DEPUTY DIRECTOR (REACTIVE) & SENIOR INVESTIGATING OFFICER (SIO)

Rank – Deputy Superintendent.

Role

- ☐ *Management lead for all Reactive functions within the **K & S MIT**.*
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ *Manage and lead as the **SIO** on all major investigations allocated.*
- ☐ *Where necessary appoint **SIOs** & **IOs** and then to oversee their investigations.*
- ☐ *Ensure effective monitoring procedures are in place for all investigations and maintain high professional standards, whilst achieving continuous development and improvements.*
- ☐ *Ensure **K & S MIT** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

Reporting to the **Director (Reactive)** and working with other senior officers & partners as necessary.

Responsibilities

Support the **Director of Reactive Investigations** and to deputise in their absence.

Regular attendance & active participation at all Management & Operational Planning meetings (**OPT's**) held by the Taskforce and all other meetings as directed or required e.g. Area & Divisional crime meetings etc.

Oversee all operations and/or investigations undertaken by **K & S MIT** in accordance with the Terms of Reference & the Standard Operating Procedures (**SOP**), utilising multi-agency support, by leading the necessary liaison and co-ordination at a management level and dealing promptly with issues affecting performance.

Ensure effective Management procedures are implemented for all staff attached to **K & S MIT**, including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Victim Support, Court Users Group, Crime Policy sub-groups etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

INVESTIGATION GROUP LEADER & SENIOR INVESTIGATING OFFICER OR INVESTIGATING OFFICER (SIO OR IO)

Rank – Detective Inspector.

Role

- ☐ Manage & supervise all the **Investigation Group** staff and undertake the tactical lead as the **SIO** or **IO**.
- ☐ Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.
- ☐ Where necessary appoint **IOs**, **COs** etc. and oversee their investigations.

- ☐ *Ensure effective monitoring procedures are in place for all investigations and maintain high professional standards, whilst achieving continuous development and improvements.*
- ☐ *Ensure **Investigative Groups** compliance with legislation, JCF policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

Reporting to the Deputy Director (Reactive) and work with other senior officers & partners as necessary.

Responsibilities

Support the **Deputy Director (Reactive)** and to deputise in their absence.

Regular attendance & active participation at all Management & Operational Planning meetings (OPT's) held by the Taskforce and all other meetings as directed or required e.g. Area & Divisional crime meetings etc.

*Oversee all operations and/or investigations undertaken by the **Investigation Group** in accordance with the Terms of Reference & the Standard Operating Procedures (SOP), utilising multi-agency support, by leading the necessary liaison and co-ordination at a management level and dealing promptly with issues affecting performance.*

Provide personal support to all staff including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Victim Support, Court Users Group, Crime Policy sub-groups etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

INVESTIGATION TEAM LEADER & INVESTIGATING OFFICER (IO)

Rank – Detective Sergeant.

Role

- ☐ *Manage & supervise the **Investigation Team** staff, undertaking the tactical lead as the IO and where necessary appoint and manage IOs, COs etc.*

- ❑ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ❑ *Ensure effective monitoring procedures are in place for all investigations and maintain high professional standards, whilst achieving continuous development and improvements.*
- ❑ *Ensure **Investigative Teams** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

*Reporting to the **Investigation Group Leader** and work with other police officers & partners as necessary.*

Responsibilities

*Support the **Investigation Group Leader** and to deputise in their absence.*

*Regular attendance & active participation at all Operational Planning meetings (**OPT's**) held by the Taskforce and all other meetings as directed or required e.g. Area & Divisional crime meetings etc.*

*Oversee all operations and/or investigations undertaken by **the Investigation Team** in accordance with the Terms of Reference & the Standard Operating Procedures (**SOP**), utilising multi-agency support, by leading the necessary liaison and co-ordination at a management level and dealing promptly with issues affecting performance.*

Provide personal support to all staff including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.

Promptly undertake activity/completion of actions to ensure an effective and efficient investigation is completed for all investigations allocated to the team.

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Victim Support, Court Users Group, Crime Policy sub-groups etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

INVESTIGATORS

Rank – Detective Constable and above.

Role

- ☐ *Undertake any allocated roles (COs, Exhibits etc.) and promptly complete all actions and investigations to a high standard.*
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ *Ensure compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*
- ☐ *Ensure all intelligence is collected and disseminated in accordance with the investigative protocols*

*Reporting to the **Team Leader** and to work with other police officers & partners as necessary.*

Responsibilities

*Support the **Team Leader**, **SIO** and **IOs**, and to deputise in their absence.*

*Promptly undertake activity and completion of actions without delay to ensure an effective and efficient multi agency investigation is completed without delay and ensure that all activity is conducted within the Terms of Reference & the Standard Operating Procedures (**SOP**) for the **K & S MIT**.*

*Provide briefings/updates to the **SIO**, **IO**, **MIR** and other units/commands & agencies as required. For any issue that may or are likely to have an adverse impact on the investigation, this must be communicated without delay.*

Regular attendance & participation at all meetings held by the Taskforce and for any other meetings that may be necessary e.g. divisional crime meetings etc.

Provide personal support & care to all victims and witnesses, ensuring all appropriate support services are informed and written reports completed without delay.

*Undertake specific roles to support major investigations (e.g. Exhibits officer, Case Officer (**CO**), Contemporaneous note taker etc.) and to promptly arrest offenders, secure evidence and protect the public.*

Recommend staff for rewards by acknowledging success and high performance e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with attendance at meetings e.g. Victim Support, Witness Protection etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

MANAGER

Rank – Detective Inspector

Role

- ☐ Responsible for the efficient and effective management of the **MIR**, ensuring sufficient resources and staff are deployed to complete all the administrative functions necessary to support investigations.
- ☐ Manage **MIR** staff ensuring all are aware of their roles & responsibilities.
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ Provide immediate updates to **IO/SIOs** to ensure investigations have the relevant information.
- ☐ Ensure compliance with legislation, JCF policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

Reporting to the **Deputy Director Investigations** and to work with other police officers & partners as necessary.

Responsibilities

Ensure all administrative and case management functions are complied with in accordance with the Terms of Reference & the Standard Operating Procedures (SOP).

Regularly attend and actively participate in all Management & Operational Planning meetings (OPT's) held by the Taskforce and all other meetings as directed or required e.g. Area & Divisional crime meetings etc.

Co-ordinate activity & Inform the **SIO & IO** of any new developments and implement any instructions that may be given, dealing promptly with issues affecting performance.

Assess resulted Actions, check they have been dealt with satisfactorily and, where necessary, raise further Actions. If satisfied, the Office Manager should 'approve' the Action by marking the document for filing and ensure that all reports are accurate.

Provide personal support to all staff including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Crime Policy sub-groups, Criminal Justice groups

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

RECEIVER & ACTIONS

Rank – Detective Sergeant.

Role

- ☐ Receive & read all documentation entering the **MIR** and allocate individual Actions to the enquiry officers, in consultation with the **SIO, IO** and Office Manager.
- ☐ Continually review the priorities set by the **SIO/IOs** and re-classify Actions when necessary, together with updating the officers involved. (Priority to be shown as High, Medium or Low as defined/set by the **IO**).
- ☐ Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.
- ☐ Ensure compliance with legislation, JCF policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

Reporting to the **Office Manager**.

Responsibilities

Deputise in the absence of the **Office Manager** when necessary.

Undertake specific activity to:

- ☐ Effectively supervise the **MIR** staff and procedures
- ☐ Receive and assess 'Other Documents' to ascertain whether any urgent Actions are to be raised. Attach an 'Other Document' form to the document and endorse it with the document title.

- ☐ Receive returned Actions from enquiry officers; ensure that the Action has been properly completed, discuss the result with the Officer and reading any accompanying documentation (e.g. *Statements, documents etc*). Any urgent Action(s) arising there from will be raised immediately noting and correctly recording the outcome.
- ☐ Ensure all intelligence is collected and disseminated in accordance with the investigative protocols and as part of the Review process, will undertake appropriate self-assessment on a weekly basis in accordance with **K & S MIT** Policy.

Every five days, discuss with enquiry officers the state of their allocated Actions to establish any difficulties or problems in the completion. Excepted from this process will be the High Priority Actions, which should be subjected to continuous monitoring.

Identify & recommend developmental opportunities for staff; e.g. additional training, identifying new opportunities to broaden their knowledge, skills and capabilities.

*Attend meetings as directed or necessary to support the **Office Manager, IO/SIO and their investigations.***

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

READER/INDEXER

Rank – Detective Corporal.

Role

- ☐ *Read all documents, cross-reference all relevant material (Exhibits, Actions to locate other witnesses identified etc.) and check accuracy of all typed documents to ensure they are a true copy of the originals.*
- ☐ *Maintain all the registers and indices for the **MIR** and to ensure compliance with JCF/K & S MIT policy and guidelines.*
- ☐ *File and retain all relevant material in the appropriate case files for each investigation*
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ *Ensure compliance with legislation, JCF policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

Reporting to the Receiver & Actions Officer.

Responsibilities

Deputise for the **Receiver & Actions Officer** as required and to provide additional support to all staff in the **MIR**.

Support the Receiver and Office Manager by effectively and efficiently managing the flow of documents within the **MIR**, ensuring they are properly indexed and cross-referenced.

Attend all K & S MIT meetings as directed and provide effective liaison with **IOs, COs** and **MIR** staff for all the investigations undertaken.

Ensure all individual investigation case files are properly collated and stored securely. Copying statements/documents etc. that are relevant in more than one file and reporting any additional Actions required to be raised to the Receiver/Actions Officer for such action to be taken.

Receive and provide advice guidance for any calls/visitors to the **MIR** and ensure other K & S MIT staff promptly attends to their requirements.

Identify & recommend developmental opportunities for staff; such as additional training, support and identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented e.g. Commendations, new personal development opportunities etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

PROSECUTION LIAISON MANAGER

Rank – Detective Inspector.

Role

- ☐ Lead on all strategic issues affecting prosecutions utilising all available resources in a multi agency approach.
- ☐ Attendance at court and to undertake close liaison with Crown Counsel, ODPP and other relevant persons to ensure cases are dealt with expeditiously, avoiding delays and securing convictions.
- ☐ Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.
- ☐ Provide immediate updates to **IO/SIOs, witnesses & victims** for all prosecutions.
- ☐ Ensure compliance with legislation, JCF policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

Reporting to the Deputy Director Investigations and to work with other police officers & partners as necessary.

Responsibilities

Regular attendance at all K & S MIT meetings and at other meetings as directed/necessary to support the prosecutions unit.

Manage the **Prosecution Liaison Officers** and their activities on behalf of the **SIO/IOs** for all **K & S MIT** prosecutions, ensuring that all case files are completed expeditiously and all outstanding Actions are returned without delay.

Ensure that relevant material is served on the Prosecutor & defence, without delay and a written record is maintained.

Ensure sufficient resources are available/allocated for each activity/prosecution undertaken and if necessary report any issues to the IO/SIO at the earliest opportunity.

Ensure effective communication and feedback is provided both internally and externally with other units/commands and partner agencies to ensure best practice is identified and shared.

Identify & recommend developmental opportunities for staff; such as additional training, support and identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented e.g. Commendations, new personal development opportunities etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

PROSECUTIONS LIAISON OFFICER (PLO)

Rank – Detective Sergeant.

Role

- ☐ *To advise on all issues affecting prosecutions and to manage & support IOs in all post charge cases being investigated by K & S MIT utilising all available resources in a multi agency approach.*
- ☐ *Attendance at court and to undertake close liaison with Crown Counsel, ODPP and other relevant persons to ensure cases are dealt with expeditiously, avoiding delays and securing convictions.*

- ☐ Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.
- ☐ Provide immediate updates to **IO/SIOs, witnesses & victims** for all prosecutions.
- ☐ Ensure compliance with legislation, JCF policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

Reporting to the Prosecution Team Inspector.

Responsibilities

Regular attendance at all K & S MIT meetings and at others as directed/necessary to support the prosecutions.

*Review all prosecutions with the **IO/SIO**, promoting continuous improvement & development to ensure a prompt and thorough prosecution is achieved.*

*Ensure sufficient resources are available/allocated for each activity/prosecution undertaken and if necessary report any issues to the **IO/SIO** at the earliest opportunity.*

Ensure effective communication and feedback is provided both internally and externally with other units/commands and partner agencies to ensure best practice is identified and shared.

Ensure that all officers are aware of their individual roles & responsibilities and that they are working towards the JCF/K & S MIT aims, goals and objectives.

Identify & recommend developmental opportunities for staff; such as additional training, support and identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented e.g. Commendations, new personal development opportunities etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

TYPIST

Role

- ☐ Promptly type written statements, reports etc. and provide typed documents in accordance with legislation, **JCF/K & S MIT** policy and guidelines to a high standard.
- ☐ Review all documents typed to reduce errors and mistakes prior to handing to **Reader/Indexer**.
- ☐ Identify any errors/mistakes in the collection of evidence (e.g. wrongs dates, names etc.) to the **Reader/Indexer** or **Receiver & Actions** officer(s)

Reporting to the **Receiver & Actions Officer**.

Responsibilities

Attend all K & S MIT meetings as necessary.

Maintain strict security for all documents and typed material at all times.

Undertake any urgent work as designated by the **Office Manager** and minimise delays by providing a professional and efficient typed record of original document(s)

DEPUTY DIRECTOR HAT & INTELLIGENCE

Rank – Deputy Superintendent

Role

- ☐ Management lead for all **HAT & Intelligence** functions.
- ☐ Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.
- ☐ Manage and undertake frequent visits to **HAT** crime scenes.
- ☐ Ensure effective monitoring procedures are in place for all **HAT** investigations and maintain high professional standards, whilst achieving continuous development and improvements.
- ☐ Ensure effective dissemination of all intelligence.
- ☐ Ensure **K & S MIT** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.

Reporting to the **Director HAT & Intelligence** and working with other senior officers & partners as necessary.

Responsibilities

*Support the **Director HAT & Intelligence wing** and to deputise in their absence.*

*Regular attendance & active participation at all Strategic, Management & Operational Planning meetings (**OPT's**) held by the Taskforce and all other meetings as directed or required e.g. Crime Policy, CIB Crime Officers, Area Crime meetings etc.*

Manage all the equipment and consumable items being utilised by the HAT & Intelligence wing ensuring sufficient supplies are available at all times and new investigative/forensic techniques are implemented.

*Ensure effective Management procedures are operating for all staff attached to the **HAT & Intelligence wing**, including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.*

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Crime Policy meetings, Victim Support, Court Users Group etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

HAT GROUP MANAGER

Rank – Detective Inspector

Role



*Management & tactical lead for all **HAT** activities.*



*Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*



*Manage and undertake frequent visits to **HAT** crime scenes.*



*Ensure effective monitoring procedures are in place for all **HAT** investigations and maintain high professional standards, whilst achieving continuous development and improvements.*



Inspect and manage resources issued to HAT staff to ensure proper care and maintenance.



*Ensure **K & S MIT** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

*Reporting to the **Deputy Director HAT** & Intelligence and working with other senior officers & partners as necessary.*

Responsibilities

*Support the **Deputy Director HAT** & Intelligence wing and to deputise in their absence.*

*Regular attendance & active participation at all Management & Operational Planning meetings (**OPT's**) held by the Taskforce and all other meetings as directed or required e.g. Crime Policy, CIB Crime Officers, Area Crime meetings etc.*

*Manage all the equipment and consumable items being utilised by the **HAT** & Intelligence wing ensuring sufficient supplies are available at all times and new investigative/forensic techniques are implemented.*

*Ensure effective Management procedures are operating for all staff attached to the **HAT** group, including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.*

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Crime Policy meetings, Victim Support, Court Users Group etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

HAT TEAM LEADER

Rank – Detective Sergeant

Role



*Management & tactical lead for all **HAT** assigned investigations.*



*Attend and assess all crime scenes assigned by Police Control or any senior police officer and ensure that they are within the Terms of Reference for **K & S MIT** and are a safe working environment.*

- ☐ *Ensure effective supervision is undertaken for all **HAT** investigations and to maintain high professional standards, whilst achieving continuous development and improvements.*
- ☐ *Inspect and manage equipment issued to **HAT** staff to ensure proper care and maintenance.*
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ *Ensure **K & S MIT** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

Reporting to the **HAT Group Manager** and working with other senior officers & partners as necessary.

Responsibilities

*Support the **HAT Group Manager** and to deputise in their absence.*

*Regular attendance & active participation at all Management & Operational Planning meetings (**OPT's**) held by the Taskforce and all other meetings as directed or required e.g. Crime Policy, CIB Crime Officers, Area Crime meetings etc.*

*Manage all the equipment and consumable items being utilised by the **HAT** & Intelligence wing ensuring sufficient supplies are available at all times and new investigative/forensic techniques are implemented.*

*Ensure effective Management procedures are operating for all staff attached to the **HAT** team, including those seconded or working under their direction/support and to provide written advice and guidance for investigators when necessary, e.g. identification of priority actions, new lines of enquiry etc.*

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance at forums e.g. Victim Support, DIU's etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

HAT Team Investigator

Rank – Detective Constable & above

Role

- ☐ *Tactical lead and investigator for all assigned investigations.*
- ☐ *Attend and assess all crime scenes assigned by Police Control or any senior police officer and ensure that they are within the Terms of Reference for **K & S MIT** and are a safe working environment.*
- ☐ *Ensure effective investigations and scene of crime work is completed for all **HAT** investigations and to maintain high professional standards, whilst achieving continuous development and improvements.*
- ☐ *Maintain equipment issued and ensure it is clean, tidy and kept in good condition.*
- ☐ *Achieve performance targets (aims, goals and objectives) in accordance with the agreed mandate for the **K & S MIT**.*
- ☐ *Ensure **K & S MIT** compliance with legislation, **JCF** policy & guidelines; such as health and safety of all staff, visitors and the public is maintained at all times.*

Reporting to the **HAT Team Leader** and working with other senior officers as necessary.

Responsibilities

*Support the **HAT Team Leader** and to deputise in their absence.*

*Regular attendance & active participation at all Operational Planning meetings (**OPT's**) held by the Taskforce and all other meetings as directed or required e.g. Area/Divisional CIB meetings etc.*

*Manage all the equipment and consumable items utilised by **HAT**, ensuring sufficient supplies are available at all times and new investigative/forensic techniques are implemented.*

*Ensure effective investigations are conducted to support the **K & S MIT SOP's** and to retain written records detailing the actions completed, exhibits found and investigative activity undertaken or considered e.g. identification of priority actions, new lines of enquiry etc.*

Ensure all working environments are safe and immediately report any shortcomings to Police Control and supervising officers.

Recommend staff for rewards by acknowledging success and high performance of staff and creating a positive performance culture and ethos e.g. Commendations, new personal development opportunities, promotions etc.

Maintain vital links with key partners such as the Judiciary, ODPP & Divisions with regular attendance e.g. DIU's, Guard rooms etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

INTELLIGENCE TEAM MANAGER

Rank – Inspector

Role

- ☐ *Lead on all intelligence issues obtained in investigations to* **for the K & S MIT and to develop and disseminate intelligence appropriate officers/units for the IO/SIO in all K & S MIT investigations.**
- ☐ *Provide additional information to aid the identification of witnesses, suspects, premises etc. to further investigations.*
- ☐ *Provide intelligence packages as directed by the IO/SIO, by undertaking recognizance and liaison with other intelligence units and agencies. To include profiles, plans, photographs etc.*
- ☐ *Brief/debrief operations and to assist during searches/arrests etc. to gather intelligence and disseminate in accordance with the intelligence protocols.*
- ☐ *Undertake analysis of seized cell phones and provide a written report of the intelligence obtained.*

Reporting to the Deputy Director HAT & Intelligence

Responsibilities

Attend all K & S MIT & other meetings/briefings as directed.

Provide effective liaison with all intelligence formations in the JCF and other partners/agencies

Obtain Special Branch, MIU, NIB briefings and disseminate to all relevant staff on a need to know basis and provide briefings for all staff concerning their investigations/operations as required and to liaise and disseminate intelligence promptly to other officers/agencies as necessary.

Identify any new intelligence that is likely to support investigators and disseminate such to them on a need to know basis ensuring strict security principles are applied for the storage of all intelligence material obtained.

Support searches/arrests for general intelligence purposes and specifically to further ongoing investigations and as directed by the IO/SIO.

Identify & recommend developmental opportunities for staff; e.g. additional training, identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented e.g. Commendations, new personal development opportunities etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

INTELLIGENCE FIELD OFFICER

Rank –Corporal or above.

Role

- ☐ *Gather and manage intelligence for the **K & S MIT** and to develop and disseminate intelligence obtained in investigations to appropriate officers/units for the **IO/SIO** in all **K & S MIT** investigations.*
- ☐ *Provide additional information to aid the identification of witnesses, suspects, premises etc. to further investigations.*
- ☐ *Provide intelligence packages as directed by the **IO/SIO**, by undertaking recognizance and liaison with other intelligence units and agencies. To include profiles, plans, photographs etc.*
- ☐ *Brief/debrief operations and to assist during searches/arrests etc. to gather intelligence and disseminate in accordance with the intelligence protocols.*
- ☐ *Undertake analysis of seized cell phones and provide a written report of the intelligence obtained.*

*Reporting to the **DI Intelligence**.*

Responsibilities

*Attend all **K & S MIT** & other meetings/briefings as directed and any other relevant meeting.*

*Provide effective liaison with all intelligence formations in the **JCF** and other partners/agencies.*

*Gather and develop intelligence by conducting observations and conducting field intelligence work to support **K & S MIT** investigations.*

Identify any new intelligence that is likely to support investigators and disseminate such to them on a need to know basis ensuring strict security principles are applied for the storage of all intelligence material obtained.

Support searches/arrests for general intelligence purposes and specifically to further ongoing investigations as directed by the IO/SIO.

Identify & recommend developmental opportunities for staff; e.g. additional training, identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented e.g. Commendations, new personal development opportunities etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.

INTELLIGENCE ANALYST

Rank – Constable or above.

Role

- ☐ *Gather, collate, assess and analyse data relating to shootings, murders and other relevant crimes to aid K & S MIT investigations.*
- ☐ *Provide additional information to aid the identification of witnesses, suspects, premises etc. to further investigations.*
- ☐ *Provide analytical packages as directed by the IO/SIO, by undertaking the interpretation of the relevant data and presenting 'standard' analytical packages.*
- ☐ *Brief/debrief operations and to assist during searches/arrests etc. to gather intelligence and disseminate in accordance with the intelligence protocols.*
- ☐ *Undertake analysis of seized cell phones and provide a written report of the intelligence/analysis obtained.*

Reporting to the DI Intelligence.

Responsibilities

Attend all K & S MIT & other meetings/briefings as directed and any other relevant meeting.

Provide effective liaison with all intelligence formations in the JCF and other partners/agencies.

Gather and develop intelligence by sharing relevant data with other units/agencies.

Identify any new intelligence that is likely to support investigators and disseminate such to them on a need to know basis ensuring strict security principles are applied for the storage of all intelligence material obtained.

Support searches/arrests for general intelligence purposes and specifically to further ongoing investigations as directed by the IO/SIO.

Identify & recommend developmental opportunities for staff; e.g. additional training, identifying new opportunities to broaden their knowledge, skills and capabilities.

Recommend staff for appropriate rewards and to acknowledge success and high performance from staff to ensure a positive performance culture and ethos is implemented e.g. Commendations, new personal development opportunities etc.

Deal promptly with any issues/situations that are likely to affect performance and to communicate effectively with the appropriate units/commands/agencies involved, at an appropriate level to improve performance.